

**The English Works
of
Thomas Hobbes
of Malmesbury**

Volume IV

**Edited by
William Molesworthy**

MDCCCXL

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of
Thomas Hobbes
of Malmesbury

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THE
ENGLISH WORKS
OF
THOMAS HOBBS.

THE
ENGLISH WORKS
OF
THOMAS HOBBS
OF MALMESBURY;
NOW FIRST COLLECTED AND EDITED
BY
SIR WILLIAM MOLESWORTH, BART.

VOL. IV.

LONDON:
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HOBBS' TRIPOS

IN

Three Discourses.

THE FIRST,
HUMAN NATURE:

THE SECOND,
DE CORPORE POLITICO:

THE THIRD,
OF LIBERTY AND NECESSITY.

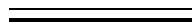
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BY
THOMAS HOBBS
OF MALMESBURY.

HUMAN NATURE,
OR THE
FUNDAMENTAL ELEMENTS
OF
POLICY.

BEING A DISCOVERY OF
THE FACULTIES, ACTS, AND PASSIONS,
OF
THE SOUL OF MAN,
FROM THEIR ORIGINAL CAUSES;
ACCORDING TO SUCH
PHILOSOPHICAL PRINCIPLES,
AS ARE NOT COMMONLY KNOWN OR ASSERTED.

BY
THOMAS HOBBS
OF MALMESBURY.
TO THE READER.



READER,

It was thought good to let you know that *Mr. Hobbes* hath written a body of philosophy, upon such principles and in such order as are used by men conversant in demonstration: this he hath distinguished into three parts; *De Corpore, De Homine, De Cive*; each of the consequents beginning at the end of the antecedent, and insisting thereupon, as the later Books of *Euclid* upon the former. The last of these he hath already published in Latin beyond the seas; the second is this now presented: and if these two receive justice in the world, there is hope we may obtain the first. He whose care it is, and labour, to satisfy the *judgment* and *reason* of mankind, will condescend so far, we hope, to satisfy the *desire* of those learned men whom these shall either have found or made; which cannot be, until they shall analytically have followed the grand *phænomena* of states and kingdoms through the passions of particular men, into the elemental principles of natural and corporeal motions. The former work was published by the Author, and so is out of danger; this by a friend, with leave from him: and to secure this, you are intreated to consider the relations wherein it stands, especially to the book *de Cive*. It was thought a part of religion, not to make any change without the author's advice, which could not suddenly be obtained; and so it comes forth innocently, supposing nothing to have happened since the Dedication of it; which if it seem a solecism to some, it may to others give satisfaction, in calling to mind those times and opportunities to which we are indebted for these admirable compositions.

F. B.

TO THE RIGHT HONOURABLE

WILLIAM, EARL OF NEWCASTLE,

GOVERNOR TO THE PRINCE HIS HIGHNESS,

ONE OF HIS MAJESTY'S MOST HONOURABLE PRIVY COUNCIL.

MY MOST HONOURED LORD,

From the principal parts of Nature, Reason and Passion, have proceeded two kinds of learning, *mathematical* and *dogmatical*: the former is free from controversy and dispute, because it consisteth in comparing figure and motion only; in which things, *truth*, and *the interest of men*, oppose not each other: but in the other there is nothing undisputable, because it compareth men, and meddleth with their right and profit; in which, as oft as reason is against a man, so oft will a man be against reason. And from hence it cometh, that they who have written of justice and policy in general, do all invade each other and themselves with contradictions. To reduce this doctrine to the rules and infallibility of reason, there is no way, but, first, put such principles down for a foundation, as passion, not mistrusting, may not seek to displace; and afterwards to build thereon the truth of cases in the law of nature (which hitherto have been built in the air) by degrees, till the whole have been inexpugnable. Now, my Lord, the principles fit for such a foundation, are those which heretofore I have acquainted your Lordship withal in private discourse, and which by your command I have here put into a method. To examine cases thereby between *sovereign* and *sovereign*, or between *sovereign* and *subject*, I leave to them that shall find leisure and encouragement thereto. For my part, I present this to your Lordship for the true and only foundation of such science. For the style, it is therefore the worse, because, whilst I was writing, I consulted more with logic than with rhetoric: but for the doctrine, it is not slightly proved; and the conclusions thereof of such nature, as, for want of them, government and peace have been nothing else, to this day, but mutual fears; and it would be an incomparable benefit to commonwealth, that every one held the opinion concerning *law* and *policy* here delivered. The ambition therefore of this book, in seeking by your Lordship's countenance to insinuate itself with those whom the matter it containeth most nearly concerneth, is to be excused. For myself, I desire no greater honour than I enjoy already in your

Lordship's favour, unless it be that you would be pleased, in continuance thereof, to give me more exercise in your commands; which, as I am bound by your many great favours, I shall obey, being,

My most honoured Lord,
Your most humble and most obliged Servant,
THOMAS HOBBS.

May 9, 1640.

IN LIBELLUM PRÆSTANTISSIMI

THOMÆ HOBBI,

VIRI VERE PHILOSOPHI,

“DE NATURA HOMINIS.”

Quæ magna cœli mœnia, et tractus maris
Terræque fines, siquid aut ultra est, capit,
Mens ipsa tandem capitur: omnia hactenus
Quæ nosse potuit, nota jam primum est sibi.

Accede, Lector, disce quis demum sies;
Et inquilinam jecoris agnoscas tui,
Qua propius hæret nil tibi, et nil tam procul.

Non hic scholarum frivola, aut cassi logi,
Quales per annos forte plus septem legit;
Ut folle pleno prodeat, rixæ artifex;
Vanasque merces futili lingua crepet:
Sed sancta rerum pondera, et sensus graves,
Quales parari decuit, ipsa cum fuit
Pingenda ratio, et vindici suo adstitit.

Panduntur omnes machinæ gyri tuæ,
Animæque vectes, trochleæ, cunei, rotæ;
Qua concitetur arte, quo sufflamine
Sistatur illa rursus, et constet sibi:
Nec, si fenestram pectori humano suam

Aptasset ipse Momus, inspiceret magis.
Hic cerno levia affectuum vestigia,
Gracilesque sensus lineas; video quibus
Vehantur alis blanduli cupidines,
Quibusque stimulis urgeant iræ graves.
Hic et dolores, et voluptates suos
Produnt recessus; ipse nec timor latet.

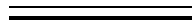
Has norit artes, quisquis in foro velit
Animorum habenas flectere, et populos cupit
Aptis ligatos nexibus jungi sibi.
Hic Archimedes publicus figat pedem,
Siquando regna machinis politicis
Urgere satagit, et feras gentes ciet,
Imisque motum sedibus mundum quatit:
Facile domabit cuncta, qui menti imperat.

Consultor audax, et Promethei potens
Facinoris anime! quis tibi dedit Deus
Hæc intueri sæculis longe abdita,
Oculosque luce tinxit ambrosia tuos?
Tu mentis omnis, at tuæ nulla est capax.
Hac laude solus fruire: divinum est opus
Animam creare; proximum huic, ostendere.

RAD. BATHURST, A.M.

COL. TRIN. OXON.

HUMAN NATURE:
OR THE
FUNDAMENTAL ELEMENTS
OF POLICY.



CHAPTER I.

Introduction.

1. The true and perspicuous explication of the elements of *laws natural and politic* (which is my present scope) dependeth upon the knowledge of what is *human nature*, what is *body politic*, and what it is we call a *law*; concerning which points, as the *writings* of men from antiquity downwards have still increased, so also have the *doubts* and *controversies* concerning the same: and seeing that true knowledge begetteth not doubt nor controversy, but knowledge, it is manifest from the present controversies, that they, which have *heretofore* written thereof, have not well understood their own subject.

2. *Harm* I can do none, though I err no less than they; for I shall leave men but as they are, in doubt and dispute: but, intending not to take any principle upon *trust*, but only to put men in mind of what they *know already*, or *may know* by their own experience, I hope to err the less; and when I do, it must proceed from too *hasty concluding*, which I will endeavour as much as I can to avoid.

3. On the other side, if *reasoning aright* win not *consent*, which may very easily happen, from them that being confident of their own knowledge weigh not what is said, the *fault* is not mine, but theirs; for as it is my part to *shew* my reasons, so it is theirs to bring *attention*.

4. Man's *nature* is the *sum of his natural faculties and powers*, as the faculties of *nutrition, motion, generation, sense, reason, &c.* These powers we do unanimously call *natural*, and are contained in the definition of man, under these words, *animal* and *rational*.

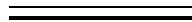
5. According to the two principal parts of man, I divide his faculties into two sorts, faculties of the *body*, and faculties of the *mind*.

6. Since the minute and distinct anatomy of the powers of the *body* is nothing necessary to the present purpose, I will only sum them up in these three heads, power *nutritive*, power *motive*, and power *generative*.

7. Of the powers of the *mind* there be two sorts, *cognitive, imaginative, or conceptive* and *motive*; and first of *cognitive*.

For the understanding of what I mean by the power *cognitive*, we must remember and acknowledge that there be in our minds continually certain *images* or conceptions of the things without us, insomuch that if

a man could be alive, and all the rest of the world annihilated, he should nevertheless retain the *image* thereof, and all those things which he had before seen or perceived in it; every one by his own experience knowing, that the *absence* or *destruction* of things once imagined doth not cause the *absence* or *destruction* of the *imagination* itself. This *imagery* and *representations* of the qualities of the thing without, is that we call our *conception*, *imagination*, *ideas*, *notice* or *knowledge* of them; and the *faculty* or power by which we are capable of such knowledge, is that I here call *cognitive power*, or *conceptive*, the power of knowing or conceiving.



CHAPTER II.

2. Definition of sense. 4. Four propositions concerning the nature of conceptions. 5. The first proved. 6. The second proved. 7, 8. The third proved. 9. The fourth proved. 10. The main deception of sense.

1. Having declared what I mean by the word *conception*, and other words equivalent thereunto, I come to the *conceptions* themselves, to shew their *differences*, their *causes*, and the *manner of the production*, so far as is necessary for this place.

Definition of sense.

2. Originally all *conceptions* proceed from the *action* of the thing itself, whereof it is the conception: now when the action is *present*, the conception it produceth is also called *sense*; and the thing by whose action the same is produced, is called the *object of the sense*.

3. By our several *organs* we have several *conceptions* of several qualities in the objects; for by *sight* we have a conception or image composed of *colour* and *figure*, which is all the notice and knowledge the object imparteth to us of its nature by the eye. By *hearing* we have a conception called *sound*, which is all the knowledge we have of the quality of the object from the ear. And so the rest of the senses are also conceptions of several qualities, or natures of their objects.

Four propositions concerning the nature of conceptions.

4. Because the *image* in vision consisting of *colour* and *shape* is the knowledge we have of the qualities of the object of that sense; it is no hard matter for a man to fall into this opinion, that the same *colour* and *shape* are the very *qualities themselves*; and for the same cause, that *sound* and *noise* are the *qualities of the bell*, or of the air. And this opinion hath been so long received, that the *contrary* must needs appear a great paradox; and yet the introduction of *species visible* and *intelligible* (which is necessary for the maintenance of that opinion) passing to and fro from the *object*, is *worse* than any paradox, as being a plain *impossibility*. I shall therefore endeavour to make plain these points:

That the subject wherein colour and image are inherent, is *not* the *object* or thing seen.

That there is nothing *without us* (really) which we call an *image* or colour.

That the said image or colour is but an *apparition* unto us of the *motion*, agitation, or alteration, which the *object* worketh in the *brain*, or spirits, or some internal substance of the head.

That as in *vision*, so also in conceptions that arise from the *other senses*, the subject of their *inherence* is not the *object*, but the *sentient*.

The first proved 5. Every man hath so much experience as to have seen the *sun* and the other visible objects by reflection in the *water* and *glasses*; and this alone is sufficient for this conclusion, that *colour* and *image* may be there where the *thing seen* is *not*. But because it may be said that notwithstanding the *image* in the water be not in the object, but a thing merely *phantastical*, yet there may be *colour* really in the thing itself: I will urge further this experience, that divers times men see directly the *same* object *double*, as *two candles* for *one*, which may happen from distemper, or otherwise without distemper if a man will, the organs being either in their right temper, or equally distempered; the *colours* and *figures* in two such images of the same thing *cannot be inherent* therein, because the thing seen cannot be in *two places*.

One of these images therefore is *not inherent* in the object: but seeing the organs of the sight are then in equal temper or distemper, the *one* of them is no more inherent than the *other*; and consequently *neither* of them both are in the object; which is the first proposition, mentioned in the precedent number.

The second proved. 6. Secondly, that the image of any thing by *reflection* in a *glass* or *water* or the like, is *not* any thing *in* or *behind* the glass, or *in* or *under* the water, every man may grant to himself; which is the second proposition.

The third proved. 7. For the third, we are to consider, first that upon every *great agitation* or *concussion* of the *brain* (as it happeneth from a stroke, especially if the stroke be upon the eye) whereby the optic nerve suffereth any great violence, there *appeareth* before the *eyes* a certain light, which light is *nothing without*, but an apparition only, all that is real being the concussion or motion of the parts of that nerve; from which experience we may conclude, that

apparition of light is really nothing but motion within. If therefore from *lucid bodies* there can be derived *motion*, so as to affect the optic nerve in such manner as is proper thereunto, there will follow an *image* of light somewhere in that line by which the motion was last derived to the eye; that is to say, in the object, if we look directly on it, and in the glass or water, when we look upon it in the line of reflection, which in effect is the third proposition; namely, that image and colour is but an apparition to us of that motion, agitation, or alteration which the object worketh in the brain or spirits, or some *internal* substance in the head.

8. But that *from all lucid*, shining and illuminate bodies, there is a *motion produced* to the eye, and, through the eye, to the *optic* nerve, and so into the *brain*, by which that apparition of *light* or *colour* is affected, is not hard to prove. And first, it is evident that the *fire*, the only lucid body here upon earth, worketh by *motion* equally every way; insomuch as the motion thereof *stopped* or inclosed, it is presently *extinguished*, and no more fire. And further, that that motion, whereby the fire worketh, is *dilation*, and *contraction* of itself *alternately*, commonly called *scintillation* or glowing, is manifest also by experience. From such *motion* in the fire must needs arise a *rejection* or casting from itself of that part of the *medium* which is *contiguous* to it, whereby that part also rejecteth the *next*, and so successively one part beateth back another to the very *eye*; and in the same manner the *exterior* part of the eye presseth the *interior*, (the laws of refraction still observed). Now the interior coat of the eye is nothing else but a piece of the *optic* nerve; and therefore the motion is still continued thereby into the *brain*, and by *resistance* or reaction of the brain, is also a *rebound* into the optic nerve again; which we *not conceiving* as motion or rebound from *within*, do think it is *without*, and call it *light*; as hath been already shewed by the experience of a stroke. We have no reason to doubt, that the fountain of light, the *sun*, worketh by any other ways than the *fire*, at least in this matter. And thus all *vision* hath its original from such *motion* as is here described: for where there is no light, there is no sight; and therefore *colour* also must be the same thing with *light*, as being the effect of the lucid bodies: their *difference* being only this, that when the light cometh *directly* from the fountain to the eye, or *indirectly* by reflection from *clean* and *polite* bodies, and such as have *not* any particular motion internal to alter it, we call it *light*; but when it

cometh to the eye by reflection from *uneven, rough*, and coarse bodies, or such as are affected with internal motion of their own that may alter it, then we call it *colour*; colour and light differing only in this, that the one is *pure*, and the other *perturbed* light. By that which hath been said, not only the truth of the third proposition, but also the whole manner of producing light and colour, is apparent.

The fourth
proved.

9. As colour is not inherent in the object, but an effect thereof upon us, caused by such motion in the object, as hath been described: so neither is *sound* in the thing we hear, but in ourselves. One manifest sign thereof is, that as a man may *see*, so also he may *hear double or treble*, by multiplication of *echoes*, which echoes are sounds as well as the original; and *not* being in one and the *same place*, cannot be *inherent* in the body that maketh them. Nothing can make any thing which is not in itself: the *clapper* hath no *sound* in it, but *motion*, and maketh motion in the internal parts of the bell; so the *bell* hath motion, and not sound, that imparteth *motion* to the *air*; and the *air* hath motion, but not sound; the *air* imparteth motion by the *ear* and *nerve* unto the *brain*; and the brain hath motion but not sound; from the *brain*, it reboundeth back into the nerves *outward*, and thence it becometh an *apparition without*, which we call *sound*. And to proceed to the *rest* of the *senses*, it is apparent enough, that the *smell* and *taste* of the *same thing*, are *not* the *same* to *every man*; and therefore are not in the thing *smelt* or *tasted*, but in the men. So likewise the *heat* we feel from the fire is manifestly in *us*, and is quite *different* from the heat which is in the *fire*: for *our* heat is *pleasure* or *pain*, according as it is *great* or *moderate*; but in the *coal* there is no such thing. By this the fourth and last proposition is proved, *viz.* that as in vision, so also in conceptions that arise from *other* senses, the subject of their inherence is not in the object, but in the sentient.

The main
deception of
sense.

10. And from hence also it followeth, that *whatsoever accidents* or qualities our senses make us think there be in the *world*, they be *not* there, but are *seeming* and *apparitions* only: the things that really *are* in the world without us, are those *motions* by which these seemings are caused. And this is the *great deception of sense*, which also is to be by sense *corrected*: for as sense telleth me, when I see *directly*, that the colour

seemeth to *be* in the object; so also sense telleth me, when I see by *reflection*, that colour is not in the object.



CHAPTER III.

1. Imagination defined. 2. Sleep and dreams defined. 3. Causes of dreams. 4. Fiction defined. 5. Phantasms defined. 6. Remembrance defined. 7. Wherein remembrance consisteth. 8. Why in a dream a man never thinks he dreams. 9. Why few things seem strange in dreams. 10. That a dream may be taken for reality and vision.

Imagination defined.

1. As standing water put into motion by the stroke of a *stone*, or blast of wind, doth *not presently* give over moving as soon as the wind ceaseth, or the stone settleth: so *neither* doth the *effect* cease which the *object* hath wrought upon the *brain*, so soon as ever by turning aside of the organs the *object ceaseth* to work; that is to say, though the *sense* be *past*, the *image* or *conception* remaineth; but more *obscure* while we are *awake*, because some *object* or other continually *plieth* and soliciteth our eyes, and ears, *keeping* the mind in a *stronger* motion, whereby the *weaker* doth not easily *appear*. And this obscure conception is that we call *phantasy*, or *imagination*: *imagination* being, to define it, *conception remaining, and by little and little decaying from and after the act of sense*.

Sleep and dreams defined.

2. But when *present* sense is *not*, as in *sleep*, there the *images* remaining after sense, when there be many, as in dreams, are *not obscure*, but *strong* and *clear*, as in sense itself. The reason is, that which obscured and made the conceptions weak, namely sense, and present *operation* of the object, is *removed*: for *sleep* is the *privation of the act of sense*, (the power remaining) and *dreams* are the *imagination* of them that *sleep*.

Causes of dreams.

3. The *causes* of dreams, if they be natural, are the *actions* or violence of the *inward* parts of a man upon his *brain*, by which the *passages* of sense by sleep *benumbed*, are *restored* to their motion. The signs by which this appeareth to be so, are the *differences* of dreams (old men commonly dream oftener, and have their dreams more painful than young) proceeding from the *different*

accidents of man's body, as dreams of *lust*, as dreams of *anger*, according as the heart, or other parts within, work more or less upon the brain, by more or less *heat*; so also the descents of different *sorts of phlegm* maketh us a dream of different tastes of meats and drinks; and I believe there is a *reciprocation* of motion from the brain to the vital parts, and back from the vital parts to the brain; whereby not only *imagination* begetteth *motion* in those parts; but also motion in those parts begetteth imagination like to that by which it was begotten. If this be true, and that *sad* imaginations nourish the *spleen*, then we see also a cause, why a strong *spleen* reciprocally causeth *fearful dreams*, and why the effects of *lasciviousness* may in a dream produce the image of some person that had *caused* them. Another sign that dreams are caused by the action of the inward parts, is the *disorder* and casual consequence of one conception or image to another: for when we are *waking*, the *antecedent* thought or conception introduceth, and is cause of the *consequent*, as the water followeth a man's finger upon a dry and level table; but in *dreams* there is commonly *no coherence*, and when there is, it is by chance, which must needs proceed from this, that the *brain* in dreams is *not restored* to its motion in every part alike; whereby it cometh to pass, that our thoughts appear like the stars between the flying clouds, not in the order which a man would choose to observe them, but as the uncertain flight of broken clouds permits.

Fiction defined.

4. As when the *water*, or any liquid thing moved at once by *divers* movents, receiveth *one* motion compounded of them all; so also the *brain* or spirit therein, having been stirred by *divers* objects, composeth an imagination of *divers* conceptions that appeared single to the sense. As for example, the sense sheweth at one time the figure of a *mountain*, and at another time the colour of *gold*; but the imagination afterwards hath them both at once in a *golden mountain*. From the same cause it is, there appear unto us *castles* in the *air*, *chimeras*, and other monsters which are *not* in *rerum natura*, but have been conceived by the sense in pieces at several times. And this composition is that which we commonly call *fiction* of the mind.

Phantasms defined.

5. There is yet another kind of imagination, which for *clearness contendeth* with *sense*, as well as a *dream*; and that is, when the *action* of sense hath been *long* or *vehement*: and the experience thereof is more frequent in the sense of

seeing, than the rest. An example whereof is, the *image* remaining before the *eye* after looking upon the *sun*. Also, those little images that appear before the eyes in the *dark* (whereof I think every man hath experience, but they most of all, who are *timorous* or superstitious) are examples of the same. And these, for distinction-sake, may be called *phantasms*.

Remembrance
defined.

6. By the *senses*, which are numbered according to the *organs* to be *five*, we take notice (as hath been said already) of the objects *without* us; and that *notice* is our *conception* thereof: but we take *notice* also some way or other *of our conceptions*: for when the conception of the same thing cometh *again*, we take notice that it is *again*; that is to say, that we have had the same conception *before*; which is as much as to imagine a thing *past*; which is impossible to the *sense*, which is only of things *present*. This therefore may be accounted a *sixth sense*, but *internal*, (not *external*, as the rest) and is commonly called *remembrance*.

Wherein
remembrance
consisteth.

7. For the *manner* by which we take notice of a conception *past*, we are to remember, that in the *definition of imagination*, it is said to be a conception by *little* and *little decaying*, or growing more *obscure*. An *obscure* conception is that which representeth the *whole object* together, but *none* of the *smaller parts* by themselves; and as *more* or *fewer* parts be represented, so is the conception or representation said to be *more* or *less clear*. Seeing then the *conception*, which when it was *first* produced by sense, was *clear*, and represented the *parts* of the object *distinctly*; and when it cometh *again* is *obscure*, we find *missing* somewhat that we expected; by which we judge it *past* and *decayed*. For example, a man that is present in a foreign *city*, seeth not only *whole* streets, but can also distinguish particular *houses*, and *parts* of houses; but departed thence, he cannot distinguish them so particularly in his mind as he did, some *house* or turning escaping him; yet is this to *remember*: when *afterwards* there escape him *more* particulars, this is also to *remember*, but *not* so well. In process of time, the *image* of the city *returneth* but as a *mass* of building *only*, which is *almost* to have *forgotten* it. Seeing then remembrance is *more* or *less*, as we find more or less *obscurity*, why may not we well think *remembrance* to be nothing else but the *missing of parts*, which every man expecteth

should succeed after they have a conception of the whole? To see at a great distance of place, and to remember at a great distance of time, is to have like conceptions of the thing: for there wanteth distinction of parts in both; the one conception being weak by operation at distance, the other by decay.

Why in a dream
a man never
thinks he
dreams.

8. And from this that hath been said, there followeth, that a man can *never know* he *dreameth*; he *may* dream he *doubteth*, whether it be a dream or no: but the clearness of the imagination representeth every thing with as many parts as doth sense itself, and consequently, he can take notice of nothing but as present; whereas to think he dreameth, is to think those his conceptions, that is to say dreams, obscurer than they were in the sense: so that he must think them both as clear, and not as clear as sense; which is impossible.

Why few things
seem strange in
dreams.

9. From the same ground it proceedeth, that men *wonder not* in their dreams at place and persons, as they would do waking: for waking, a man would think it strange to be in a place where he never was before, and remember nothing of how he came there; but in a dream, there cometh little of that kind into consideration. The *clearness* of conception in a dream, taketh away *distrust*, unless the *strangeness* be *excessive*, as to think himself fallen from on high without hurt, and then most commonly he *waketh*.

That a dream
may be taken
for reality and
vision.

10. Nor is it *impossible* for a man to be so far deceived, as when his dream is *past*, to think it real: for if he dream of such things as are ordinarily in his mind, and in such order as he useth to do waking, and withal that he laid him down to sleep in the place where he findeth himself when he awaketh; all which may happen: I know no κριτήριο or mark by which he can discern whether it were a dream or not, and therefore do the less wonder to hear a man sometimes to tell his dream for a truth, or to take it for a vision.

CHAPTER IV.

1. Discourse. 2. The cause of coherence of thoughts. 3. Ranging. 4. Sagacity. 5. Reminiscence. 6. Experience. 7. Expectation. 8. Conjecture. 9. Signs. 10. Prudence. 11. Caveats of concluding from experience.

Discourse.

1. The *succession* of conceptions in the mind, series or consequence of one after another, may be *casual* and incoherent, as in dreams for the most part; and it may be *orderly*, as when the former thought introduceth the latter; and this is *discourse* of the mind. But because the word discourse is commonly taken for the *coherence* and consequence of words, I will, to avoid equivocation, call it *discursion*.

The cause of coherence of thoughts.

2. The *cause* of the *coherence* or consequence of one conception to another, is their first *coherence* or consequence at that *time* when they are produced by sense: as for example, from St. Andrew the mind runneth to St. Peter, because their names are read together; from St. Peter to a *stone*, for the same cause; from *stone* to *foundation*, because we see them together; and for the same cause, from foundation to *church*, and from church to *people*, and from people to *tumult*: and according to this example, the mind may run almost from anything to anything. But as in the *sense* the conception of cause and effect may succeed one another; so may they after sense in the *imagination*: and for the most part they do so; the *cause* whereof is the *appetite* of them, who, having a conception of the *end*, have next unto it a conception of the next *means* to that end: as, when a man, from a thought of *honour* to which he hath an appetite, cometh to the thought of *wisdom*, which is the next means thereunto; and from thence to the thought of *study*, which is the next means to wisdom.

Ranging.

3. To omit that kind of *discursion* by which we proceed from anything to anything, there are of the *other* kind *divers* sorts: as first, in the *senses* there are certain coherences of conceptions, which we may call *ranging*; examples whereof are; a man casteth his eye upon the *ground*, to look about for some *small* thing lost; the

hounds casting about at a fault in hunting; and the *ranging* of spaniels: and herein we take a beginning arbitrary.

Sagacity. 4. Another sort of discursion is, when the *appetite* giveth a man his beginning, as in the example before, where honour to which a man hath appetite, maketh him think upon the next means of attaining it, and that again of the next, &c. And this the Latins call *sagacitas*, and we may call *hunting* or *tracing*, as dogs trace beasts by the smell, and men hunt them by their footsteps; or as men hunt after riches, place, or knowledge.

Reminiscence. 5. There is yet another kind of discursion beginning with the appetite to *recover* something lost, proceeding from the *present backward*, from thought of the place where we *miss* at, to the thought of the place from whence we came *last*; and from the thought of that, to the thought of a place *before*, till we have in our mind some place, wherein we had the thing we miss: and this is called *reminiscence*.

Experience. 6. The *remembrance* of succession of one thing to another, that is, of what was *antecedent*, and what *consequent*, and what *concomitant*, is called an *experiment*; whether the same be made by us *voluntarily*, as when a man putteth any thing into the fire, to see what effect the fire will produce upon it: or *not* made by us, as when we remember a fair morning after a red evening. To have had many *experiments*, is that we call *experience*, which is nothing else but *remembrance* of what antecedents have been followed by what consequents.

Expectation. 7. No man can have in his mind a conception of the *future*, for the future is *not yet*: but of our conceptions of the *past*, we make a *future*; or rather, call *past*, *future* relatively. Thus after a man hath been accustomed to see like antecedents followed by like consequents, whensoever he seeth the like come to pass to any thing he had seen before, he looks there should follow it the same that followed then: as for example, because a man hath often seen offences followed by punishment, when he seeth an offence in present, he thinketh punishment to be consequent thereto; but consequent unto that which is present, men call future; and thus we make *remembrance* to be the *prevision* of things to come, or *expectation* or presumption of the future.

Conjecture.

8. In the same manner, if a man seeth in present that which he hath seen before, he thinks that that which was antecedent to that which he saw before, is also antecedent to that he presently seeth: as for example, he that hath seen the ashes remain after the fire, and now again seeth ashes, concludeth again there hath been fire: and this is called again *conjecture* of the past, or presumption of the fact.

Signs.

9. When a man hath so *often* observed like antecedents to be followed by like consequents, that *whensoever* he seeth the antecedent, he looketh again for the consequent; or when he seeth the consequent, maketh account there hath been the like antecedent; then he calleth both the antecedent and the consequent, *signs* one of another, as clouds are signs of rain to come, and rain of clouds past.

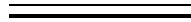
Prudence.

10. This taking of signs by *experience*, is that wherein men do ordinarily think, the difference stands between man and man in *wisdom*, by which they commonly understand a man's whole ability or *power cognitive*; but this is an *error*: for the signs are but *conjectural*; and according as they have often or seldom failed, so their *assurance* is more or less; but *never full* and *evident*: for though a man have always seen the day and night to follow one another hitherto; yet can he not thence conclude they shall do so, or that they have done so eternally: *experience concludeth nothing universally*. If the signs hit twenty times for one missing, a man may lay a wager of twenty to one of the event; but may not conclude it for a truth. But by this it is plain, that they shall *conjecture best*, that have *most experience*, because they have most signs to conjecture by: which is the reason *old men* are *more prudent*, that is, conjecture better, *cæteris paribus*, than young: for, being old, they remember more; and experience is but remembrance. And *men of quick* imagination, *cæteris paribus*, are *more prudent* than those whose imaginations are slow: for they observe *more* in *less* time. Prudence is nothing but conjecture from experience, or taking of signs from experience warily, that is, that the experiments from which he taketh such signs be all remembered; for else the cases are not alike that seem so.

**Caveats of
concluding
from
experience.**

11. As in conjecture concerning things past and future, it is prudence to conclude from experience, what is like to come to pass, or to have passed already;

so it is an error to conclude from it, that *it is* so or so *called*; that is to say, we cannot from experience conclude, that any thing is to be called *just* or *unjust*, *true* or *false*, or any proposition *universal* whatsoever, except it be from remembrance of the use of names imposed arbitrarily by men: for example, to have heard a sentence given in the like case, the like sentence a thousand times is not enough to conclude that the sentence is just; though most men have no other means to conclude by: but it is *necessary*, for the drawing of such conclusion, to *trace* and *find out*, by many experiences, what men do mean by calling things just and unjust. Further, there is another *caveat* to be taken in concluding by experience, from the [tenth section](#) of the second chapter; that is, that we conclude such things to be without, that are within us.



CHAPTER V.

1. Of marks. 2. Names or appellations. 3. Names positive and privative. 4. Advantage of names maketh us capable of science. 5. Names universal and singular. 6. Universals not in *rerum natura*. 7. Equivocal names. 8. Understanding. 9. Affirmation, negation, proposition. 10. Truth, falsity. 11. Ratiocination. 12. According to reason, against reason. 13. Names causes of knowledge, so of error. 14. Translation of the discourse of the mind into the discourse of the tongue, and of the errors thence proceeding.

Of marks.

1. Seeing the *succession* of conceptions in the *mind* are caused, as hath been said before, by the succession they *had* one to another when they were produced by the *senses*, and that there is no conception that hath not been produced immediately before or after innumerable others, by the innumerable acts of sense; it must needs follow, that one *conception* followeth *not* another, according to our election, and the need we have of them, *but* as it *chanceth* us to hear or see such things as shall bring them to our mind. The experience we have hereof, is in such brute beasts, which, having the providence to hide the remains and superfluity of their meat, do nevertheless want the remembrance of the place where they hid it, and thereby make no benefit thereof in their hunger: but man, who in this point beginneth to rank himself somewhat above the nature of beasts, hath observed and remembered the cause of this defect, and to amend the same, hath imagined or devised to set up a visible or other sensible mark, the which, when he seeth it again, may bring to his mind the thought he had when he set it up. A *mark* therefore is a *sensible object* which a man erecteth voluntarily to himself, to the end to *remember* thereby somewhat past, when the same is objected to his sense again: as men that have passed by a rock at sea, set up some mark, thereby to remember their former danger, and avoid it.

Names or appellations.

2. In the number of these *marks*, are those *human voices*, which we call the *names* or appellations of things sensible by the ear, by which we recall into our mind some conceptions of the things to which we gave those names or appellations; as the appellation *white* bringeth to remembrance the quality of such objects as produce that colour or conception in us. A

name or appellation therefore is the *voice* of a man *arbitrary*, imposed for a *mark* to bring into his mind some conception concerning the thing on which it is imposed.

Names positive
and privative.

3. Things named, are either the *objects* themselves, as a man; or the *conception* itself that we have of man, as shape and motion: or some privation, which is when we conceive that there is something which we conceive, not in him; as when we conceive he is not just, not finite, we give him the name of unjust, of infinite, which signify privation or defect; and to the privations themselves we give the names of injustice and infiniteness: so that here be *two sorts* of names; one of *things*, in which we conceive something; or of the conceptions themselves, which are called *positive*: the other of things wherein we conceive *privation* or defect, and those names are called *privative*.

Advantage of
names maketh
us capable of
science.

4. By the advantage of *names* it is that we are capable of *science*, which beasts, for want of them are not; nor man, without the use of them: for as a beast misseth not one or two out of many her young ones, for want of those names of order, one, two, and three, and which we call *number*; so neither would a man, without repeating orally or mentally the words of number, know how many pieces of money or other things lie before him.

Names
universal and
singular.

5. Seeing there be *many* conceptions of *one* and the same thing, and for *every* conception we give it a *several* name; it followeth that for one and the same thing, we have many names or attributes; as to the same man we give the appellations of *just*, *valiant*, &c. for divers *virtues*; of *strong*, *comely*, &c. for divers *qualities* of the *body*. And again, because from divers things we receive like conceptions, many things must needs have the same appellation: as to all things we *see*, we give the same name of *visible*; and to all things we *see moveable*, we give the appellation of *moveable*: and those names we give to *many*, are called *universal* to them all; as the name of man to every particular of mankind: such appellation as we give to *one* only thing, we call *individual*, or singular; as Socrates, and other proper names: or, by circumlocution, he that writ the *Iliads*, for Homer.

Universals not
in *rerum natura*.

6. The universality of *one name* to many things, hath been the cause that men think the *things* are themselves universal; and so seriously contend, that besides Peter and John, and all the rest of the men that are, have been, or shall be in the world, there is yet something else that we call *man*, viz. *man in general*, deceiving themselves, by taking the universal, or general appellation, for the thing it signifieth: for if one should desire the painter to make him the picture of a man, which is as much as to say, of a man in general; he meaneth no more, but that the painter should choose what man he pleaseth to draw, which must needs be some of them that are, or have been, or may be, none of which are *universal*. But when he would have him to draw the picture of the king, or any particular person, he limiteth the painter to that one person he chooseth. It is plain therefore, that there is *nothing universal* but *names*; which are therefore called *indefinite*; because we limit them not ourselves, but leave them to be applied by the hearer: whereas a singular name is limited and restrained to one of the many things it signifieth; as when we say, this man, pointing to him, or giving him his proper name, or by some such other way.

Equivocal
names.

7. The appellations that be *universal*, and common to many things, are *not* always given to all the *particulars*, (as they ought to be) for like conceptions, and like considerations in them all; which is the cause that many of them are *not* of *constant* signification, but bring into our mind other thoughts than those for which they were ordained, and these are called equivocal. As for example, the word faith signifieth the same with belief; sometimes it signifieth particularly that belief which maketh a Christian; and sometime it signifieth the keeping of a promise. Also all *metaphors* are by profession *equivocal*: and there is scarce any word that is not made *equivocal* by divers contextures of speech, or by diversity of pronunciation and gesture.

Understanding.

8. This *equivocation* of names maketh it *difficult* to recover those conceptions for which the name was ordained; and that not only in the language of other men, wherein we are to consider the *drift*, and *occasion*, and *contexture* of the speech, as well as the *words* themselves; but also in our discourse, which being derived from the custom and common use of speech, representeth unto us not our own conceptions. It is therefore a great ability in a man, out of the words,

contexture, and other circumstances of language, to deliver himself from *equivocation*, and to find out the true meaning of what is said: and this is it we call *understanding*.

Affirmation,
negation,
proposition.

9. Of two *appellations*, by the help of this little verb *is*, or something equivalent, we make an *affirmation* or *negation*, either of which in the Schools we call also a *proposition*, and consisteth of two appellations joined together by the said verb *is*: as for example, man is a living creature; or thus, man is not righteous: whereof the former is called an *affirmation*, because the appellation, living creature, is *positive*; the latter a *negative*, because not righteous is *privative*.

Truth, falsity.

10. In *every proposition*, be it affirmative or negative, the latter appellation either comprehendeth the former, as in this proposition, charity is a virtue, the name of virtue comprehendeth the name of charity, and many other virtues beside; and then is the proposition said to be *true*, or *truth*: for, *truth*, and a *true proposition*, is all one. Or *else* the *latter* appellation comprehendeth *not* the former; as in this proposition, every man is just; the name of just comprehendeth not every man; for unjust is the name of the far greater part of men: and the proposition is said to be *false*, or falsity: *falsity* and a *false proposition* being also the same thing.

Ratiocination.

11. In what manner of two propositions, whether *both* affirmative, or *one* affirmative, the *other* negative, is made a *sylogism*, I forbear to write. All this that hath been said of names or propositions, though *necessary*, is but *dry* discourse: and this place is not for the whole art of logic, which if I enter further into, I ought to pursue: besides, it is not needful; for there be few men which have not so much natural logic, as thereby to discern well enough, whether any conclusion I shall make in this discourse hereafter, be well or ill collected: only thus much I say in this place, that *making of syllogisms* is that we call *ratiocination* or *reasoning*.

According to
reason, against
reason.

12. Now when a man *reasoneth* from *principles* that are *found* indubitable by experience, all deceptions of sense and equivocation of words avoided, the conclusion he maketh is said to be *according to right reason*: but when from his conclusion a man may, by good ratiocination, derive that which is *contradictory* to any evident truth whatsoever, then he is said

to have concluded *against reason*: and such a conclusion is called *absurdity*.

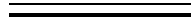
Names causes of knowledge, so of error.

13. As the *invention of names* hath been *necessary* for the drawing men *out of* ignorance, by calling to their remembrance the necessary *coherence* of one conception to another; so also hath it on the other side precipitated men into *error*: insomuch, that whereas by the benefit of *words* and ratiocination they exceed *brute beasts* in knowledge, and the commodities that accompany the same; so they exceed them also in *error*: for *true* and *false* are things not incident to beasts, because they adhere not to propositions and language; nor have they ratiocination, whereby to multiply one untruth by another, as men have.

Translation of the discourse of the mind into the discourse of the tongue, and of the errors thence proceeding.

14. It is the *nature* almost of every *corporal* thing, being *often moved* in one and the same manner, to receive continually a *greater* and *greater easiness* and aptitude to the *same* motion, insomuch as in time the same becometh so *habitual*, that, to *beget* it, there needs no more than to *begin* it. The *passions* of man, as they are the beginning of *voluntary* motions; so are they the beginning of *speech*, which is the motion of the tongue. And men desiring to shew others the knowledge, opinions, conceptions, and passions which are in themselves, and to that end having invented *language*, have by that means transferred all that *discursion* of their *mind* mentioned in the former chapter, by the *motion* of their *tongues*, into *discourse* of *words*: and *ratio* now is but *oratio*, for the most part, wherein custom hath so great a power, that the mind suggesteth only the first word; the rest follow *habitually*, and are not followed by the mind; as it is with beggars, when they say their *paternoster*, putting together such words, and in such manner, as in their education they have learned from their nurses, from their companies, or from their teachers, having *no images* or *conceptions* in their mind, answering to the words they speak: and as they have learned themselves, so they teach posterity. Now, if we consider the power of those *deceptions* of the sense, mentioned chapter II. [section 10](#), and also how *unconstantly* names have been settled, and how subject they are to *equivocation*, and how *diversified* by *passion*, (scarce two men agreeing what is to be called good, and what evil; what liberality, what prodigality; what

valour, what temerity) and how subject men are to paralogism or fallacy in reasoning, I may in a manner conclude, that it is impossible to *rectify* so many errors of any one man, as must needs proceed from those causes, without beginning *anew* from the very first grounds of all our knowledge and sense; and instead of books, reading over orderly one's own conceptions: in which meaning, I take *nosce* *te ipsum* for a precept worthy the reputation it hath gotten.



CHAPTER VI.

1. Of the two kinds of knowledge. 2. Truth and evidence necessary to knowledge. 3. Evidence defined. 4. Science defined. 5. Supposition defined. 6. Opinion defined. 7. Belief defined. 8. Conscience defined. 9. Belief, in some cases, no less from doubt than knowledge.

Of the two kinds of knowledge.

1. There is a story somewhere, of one that pretends to have been miraculously cured of blindness, wherewith he was born, by St. Alban or other Saints, at the town of St. Alban's; and that the Duke of Gloucester being there, to be satisfied of the truth of the miracle, asked the man, What colour is this? who, by answering, it was green, discovered himself, and was punished for a counterfeit: for though by his sight newly received he might distinguish between green, and red, and all other colours, as well as any that should interrogate him, yet he could not possibly know at first sight which of them was called green, or red, or by any other name. By this we may understand, there be *two kinds* of knowledge, whereof the *one* is nothing else but *sense*, or knowledge *original*, as I have said in the beginning of the second chapter, and *remembrance* of the same; the *other* is called *science* or knowledge of the *truth of propositions*, and how things are called, and is derived from *understanding*. Both of these sorts are but *experience*; the former being the experience of the effects of things that work upon us from *without*; and the latter experience men have from the proper use of *names* in language: and all experience being, as I have said, but remembrance, all knowledge is remembrance: and of the *former*, the register we keep in books, is called *history*; but the registers of the *latter* are called the *sciences*.

Truth and evidence necessary to knowledge.

2. There are *two things* necessarily implied in this word *knowledge*; the one is *truth*, the other *evidence*; for what is not truth, can never be known. For, let a man say he knoweth a thing never so well, if the same shall afterwards appear false, he is driven to confession, that it was not knowledge, but opinion. Likewise, if the truth be not evident, though a man holdeth it, yet is his knowledge thereof no more than theirs who

hold the contrary: for if truth were enough to make it knowledge, all truth were known; which is not so.

Evidence defined.

3. What *truth* is, hath been defined in the precedent chapter; what *evidence* is, I now set down: and it is the concomitance of a man's *conception* with the *words* that signify such conception in the act of ratiocination: for when a man reasoneth with his lips only, to which the mind suggesteth only the beginning, and followeth not the words of his mouth with the conceptions of his mind, out of custom of so speaking; though he begin his ratiocination with true propositions, and proceed with certain syllogisms, and thereby make always true conclusions; yet are not his conclusions *evident* to him, for want of the *concomitance of conception* with his words: for if the words alone were sufficient, a *parrot* might be taught as well to know truth, as to speak it. Evidence is to truth, as the sap to the tree, which, so far as it creepeth along with the body and branches, keepeth them alive; where it forsaketh them, they die: for this evidence, which is meaning with our words, is the life of truth.

Science defined.

4. Knowledge thereof, which we call *science*, I define to be *evidence of truth*, from some beginning or principle of *sense*: for the truth of a proposition is never evident, until we conceive the meaning of the words or terms whereof it consisteth, which are always conceptions of the mind: nor can we remember those conceptions, without the thing that produced the same by our senses. The *first* principle of knowledge is, that we have such and such *conceptions*; the *second*, that we have thus and thus *named* the things whereof they are conceptions; the *third* is, that we have *joined* those *names* in such manner as to make true propositions; the *fourth* and last is, that we have *joined* those *propositions* in such manner as they be concluding, and the truth of the conclusion said to be known. And of these two kinds of knowledge, whereof the former is *experience of fact*, and the latter *evidence of truth*; as the *former*, if it be great, is called *prudence*; so the *latter*, if it be much, hath usually been called, both by ancient and modern writers, *sapience* or wisdom: and of this *latter*, *man* only is capable; of the *former*, *brute beasts* also participate.

Supposition defined.

5. A proposition is said to be *supposed*, when, being *not evident*, it is nevertheless *admitted for a time*, to the end, that, joining to it other propositions, we may *conclude* something;

and to *proceed* from conclusion to conclusion, for a *trial* whether the same will lead us into any *absurd* or impossible conclusion; which if it *do*, then we know such supposition to have been false.

**Opinion
defined.**

6. But if running through *many* conclusions, we come to *none* that are *absurd*, then we think the proposition *probable*; likewise we think probable whatsoever proposition we *admit* for truth by error of reasoning, or from trusting to other men: and all such propositions as are admitted by *trust* or error, we are not said to *know*, but to *think* them to be true; and the admittance of them is called *opinion*.

Belief defined.

7. And particularly, when the opinion is admitted out of *trust* to *other* men, they are said to *believe* it; and their admittance of it is called *belief*, and sometimes *faith*.

**Conscience
defined.**

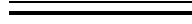
8. It is either *science* or *opinion* which we commonly mean by the word *conscience*: for men say that such and such a thing is true in or upon their conscience; which they *never* do, when they think it *doubtful*; and therefore they *know*, or *think* they know it to be true. But men, when they say things upon their conscience, are not therefore presumed certainly to know the truth of what they say; it remaineth then, that that word is used by them that have an *opinion*, *not* only of the *truth* of the thing, *but* also of their *knowledge* of it, to which the *truth* of the proposition is consequent. *Conscience* I therefore define to be *opinion of evidence*.

**Belief, in some
cases, no less
from doubt
than
knowledge.**

9. *Belief*, which is the admitting of propositions upon *trust*, in many cases is no less free from *doubt*, than perfect and manifest *knowledge*: for as there is nothing whereof there is not some cause; so, when there is doubt, there must be some cause thereof conceived. Now there be many things which we receive from *report of others*, of which it is impossible to imagine any cause of *doubt*: for what can be opposed against the consent of all men, in things they can know, and have no cause to report otherwise than they are, such as is a great part of our *histories*, unless a man would say that all the world had *conspired* to deceive him.

And thus much of *sense*, *imagination*, *discursion*, *ratiocination*, and *knowledge*, which are the acts of our *power cognitive*, or *conceptive*. That power of the *mind* which we call *motive*, differeth from the power *motive* of the *body*; for the power *motive* of the *body* is that by which it

moveth other bodies, and we call *strength*: but the power motive of the *mind*, is that by which the mind giveth *animal motion* to that *body* wherein it existeth; the acts hereof are our *affections* and *passions*, of which I am to speak in general.



CHAPTER VII.

1. Of delight, pain, love, hatred. 2. Appetite, aversion, fear. 3. Good, evil, pulchritude, turpitude. 4. End, fruition. 5. Profitable, use, vain. 6. Felicity. 7. Good and evil mixed. 8. Sensual delight, and pain; joy and grief.

Of delight, pain,
love, hatred.

1. In the *eighth* section of the second chapter is shewed, *that conceptions and apparitions* are nothing *really*, but *motion* in some internal substance of the *head*; which motion *not stopping* there, but proceeding to the *heart*, of necessity must there either *help* or *hinder* the motion which is called *vital*; when it *helpeth*, it is called *delight, contentment, or pleasure*, which is nothing really but motion about the heart, as conception is nothing but motion in the head: and the *objects* that cause it are called *pleasant* or *delightful*, or by some name equivalent; the Latins have *jucundum, a juvando*, from helping; and the same delight, with reference to the object, is called *love*: but when such motion *weakeneth* or *hindereth* the vital motion, then it is called *pain*; and in relation to that which causeth it, hatred, which the Latins express sometimes by *odium*, and sometimes by *tædium*.

Appetite,
aversion, fear.

2. This motion, in which consisteth *pleasure* or *pain*, is also a *solicitation* or provocation either to draw *near* to the thing that pleaseth, or to *retire* from the thing that displeaseth; and this solicitation is the *endeavour* or internal beginning of *animal* motion, which when the object *delighteth*, is called *appetite*; when it *displeaseth*, it is called *aversion*, in respect of the displeasure *present*; but in respect of the displeasure *expected*, *fear*. So that *pleasure, love, and appetite*, which is also called desire, are *divers names* for divers considerations of the *same thing*.

Good, evil,
pulchritude,
turpitude.

3. Every man, for his own part, calleth that which *pleaseth*, and is delightful to himself, *good*; and that *evil* which *displeaseth* him: insomuch that while every man *differeth* from another in *constitution*, they differ also from one another concerning the common distinction of good and evil. Nor is there any such thing as absolute goodness, considered without relation:

for even the goodness which we apprehend in God Almighty, is *his goodness to us*. And as we call *good* and *evil* the *things* that please and displease; so call we *goodness* and *badness*, the *qualities* or powers whereby they do it: and the signs of that goodness are called by the Latins in one word *pulchritudo*, and the signs of evil, *turpitude*; to which we have no words precisely answerable.

As all conceptions we have immediately by the *sense*, are, *delight*, or *pain*, or *appetite*, or *fear*; so are all the *imaginations* after sense. But as they are weaker imaginations, so are they also weaker pleasures, or weaker pain.

End, fruition.

4. As *appetite* is the beginning of *animal* motion towards something that pleaseth us; so is the *attaining* thereof, the *end* of that motion, which we also call the *scope*, and aim, and final cause of the same: and when we attain that end, the delight we have thereby is called the *fruition*: so that *bonum* and *finis* are different names, but for different considerations of the same thing.

Profitable, use, vain.

5. And of *ends*, some of them are called *propinqui*, that is, near at hand; others *remoti*, far off: but when the ends that be nearer attaining, be compared with those that be further off, they are called not ends, but *means*, and the way to those. But for an *utmost* end, in which the ancient *philosophers* have placed *felicity*, and disputed much concerning the way thereto, there is no such thing in this world, nor way to it, more than to Utopia: for while we live, we have desires, and desire presupposeth a further end. Those things which please us, as the way or *means* to a further end, we call *profitable*; and the *fruition* of them, *use*; and those things that profit not, *vain*.

Felicity.

6. Seeing all *delight* is *appetite*, and presupposeth a *further* end, there can be *no contentment* but in *proceeding*: and therefore we are not to marvel, when we see, that as men attain to more riches, honour, or other power; so their appetite continually groweth more and more; and when they are come to the utmost degree of some kind of power, they pursue some other, as long as in any kind they think themselves behind any other: of those therefore that have attained to the highest degree of honour and riches, some have affected mastery in some art; as Nero in music and poetry, Commodus in the art of a gladiator; and such as affect not some such thing, must find diversion and recreation of their thoughts in the contention either of play or

business: and men justly complain of a great grief, that they know not what to do. *Felicity*, therefore, by which we mean continual delight, consisteth *not* in *having* prospered, but in *prospering*.

Good and evil
mixed.

7. There are few things in this world, but *either* have mixture of good and evil, *or* there is a chain of them so necessarily linked together, that the one cannot be taken without the other: as for example, the pleasures of sin, and the bitterness of punishment, are inseparable; as is also labour and honour, for the most part. Now when in the *whole chain*, the *greater part* is good, the *whole* is called *good*; and when the *evil* over-weigheth, the *whole* is called *evil*.

Sensual delight,
and pain; joy
and grief.

8. There are two sorts of pleasure, whereof the *one* seemeth to affect the *corporeal* organ of the sense, and that I call *sensual*; the *greatest* part whereof, is that by which we are invited to give continuance to our *species*; and the *next*, by which a man is invited to meat, for the preservation of his *individual* person: the *other* sort of delight is not particular to any part of the body, and is called the delight of the *mind*, and is that which we call *joy*. Likewise of *pains*, some affect the *body*, and are therefore called the *pains* of the body; and some *not*, and those are called *grief*.

CHAPTER VIII.

1, 2. Wherein consist the pleasures of sense. 3, 4. Of the imagination, or conception of power in man. 5. Honour, honourable, worth. 6. Signs of honour. 7. Reverence. 8. Passions.

Wherein consist
the pleasures of
sense.

1. Having in the [first section](#) of the precedent chapter presupposed, that motion and *agitation of the brain* which we call conception, to be continued *to the heart*, and there to be called *passion*; I have therefore obliged myself, as far forth as I am able, to search out and declare *from what* conception *proceedeth* every one of those *passions* which we commonly take notice of: for, seeing the things that please and displease, are innumerable, and work innumerable ways, men have not taken notice but of a very few, which also are many of them without name.

2. And first, we are to consider, that of conceptions there are *three sorts*, whereof one is of that which is *present*, which is *sense*; another, of that which is *past*, which is *remembrance*; and the third, of that which is *future*, which we call *expectation*: all which have been manifestly declared in the second and third chapters; and every of these conceptions is *pleasure* or *pain present*. And first for the pleasures of the *body* which affect the sense of *touch* and *taste*, as far forth as they be *organical*, their conceptions are *sense*: so also is the pleasure of all *exonerations* of nature: all which passions I have before named, *sensual pleasures*; and their contrary, *sensual pains*: to which also may be added the pleasures and displeasures of *odours*, if any of them shall be found organical, which for the most part they are not, as appeareth by this experience which every man hath, that the same smells, when they seem to proceed from others, displease, though they proceed from ourselves; but when we think they proceed from ourselves, they displease not, though they come from others: the displeasure of this is a conception of hurt thereby from those odours, as being unwholesome, and is therefore a conception of evil to come, and not present. Concerning the delight of *hearing*, it is diverse, and the organ itself not affected thereby: *simple sounds* please by *equality*, as the sound of a bell or lute: insomuch as it seems, an equality continued by the

percussion of the object upon the ear, is pleasure; the contrary is called *harshness*, such as is grating, and some other sounds, which do not always affect the body, but only sometime, and that with a kind of horror beginning at the teeth. *Harmony*, or many sounds together agreeing, please by the same reason as the *unison*, which is the sound of equal strings equally stretched. Sounds that differ in any *height*, please by *inequality and equality alternate*, that is to say, the higher note striketh twice, for one stroke of the other, whereby they strike together every second time; as is well proved by Galileo, in the first dialogue concerning local motion: where he also sheweth, that two sounds differing a *fifth*, delight the ear by an *equality* of striking *after two inequalities*; for the higher note striketh the ear thrice, while the other strikes but twice. In like manner he sheweth wherein consisteth the pleasure of concord, and the displeasure of discord, in other difference of notes. There is yet *another* pleasure and displeasure of sounds, which consisteth in *consequence of one note after another, diversified* both by *accent* and *measure*; whereof that which pleaseth is called an *air*; but for what reason one succession in tone and measure is a more pleasing air than another, I confess I know not; but I conjecture the reason to be, for that some of them imitate and revive some passion which otherwise we take no notice of, and the other not; for *no air pleaseth but for a time*, no more doth imitation. Also the pleasures of the *eye* consist in a certain *equality of colour*: for *light*, the most glorious of all colours, is made by *equal* operation of the object; whereas *colour* is *perturbed*, that is to say, unequal light, as hath been said, chapter II. [section 8](#). And therefore colours, the more equality is in them, the more resplendent they are; and as *harmony* is pleasure to the *ear*, which consisteth of *divers sounds*; so perhaps may some mixture of *divers colours* be *harmony* to the *eye*, more than another mixture. There is yet another delight by the *ear*, which happeneth only to men of skill in music, which is of another nature, and not, as these, conception of the present, but rejoicing of their own skill; of which nature are the passions of which I am to speak next.

Of the
imagination, or
conception of
power in man.

3. Conception of the *future*, is but a *supposition* of the *same*, proceeding from *remembrance* of what is past; and we so far *conceive* that anything *will be hereafter*, as we know there is *something at the present*

that hath power to produce it: and that anything hath power now to produce another thing hereafter, we cannot conceive, but by remembrance that it hath produced the like heretofore. Wherefore all conception of future, is conception of power able to produce something. Whosoever therefore expecteth pleasure to come, must conceive withal some power in himself by which the same may be attained. And because the passions, whereof I am to speak next, consist in conception of the future, that is to say, in conception of power past, and the act to come; before I go any further, I must in the next place speak somewhat concerning this power.

4. By this power I mean the same with the faculties of the *body*, *nutritive*, *generative*, *motive*, and of the *mind*, *knowledge*; and besides these, such *further* power as by them is acquired, *viz. riches*, *place* of authority, *friendship* or *favour*, and *good fortune*; which last is really nothing else but the favour of God Almighty. The *contraries* of these are *impotencies*, *infirmities*, or *defects* of the said powers respectively. And because the power of one man resisteth and hindereth the effects of the power of another, *power* simply is no more, but the *excess* of the power of one above that of another: for equal powers opposed, destroy one another; and such their opposition is called contention.

Honour,
honourable,
worth.

5. *signs* by which we know our own *power*, are those *actions* which proceed from the same; and the signs by which *other men* know it, are such *actions*, *gesture*, *countenance* and *speech*, as usually such powers produce: and the *acknowledgment* of power is called *honour*; and to honour a man inwardly, is to conceive or acknowledge that that man hath the odds or excess of that power above him with whom he contendeth or compareth himself. And honourable are those signs for which one man acknowledgeth power or excess above his concurrent in another: as for example, *beauty* of person, consisting in a lively aspect of the countenance, and other *signs* of *natural heat*, are honourable, being signs precedent of power *generative*, and much issue; as also, general reputation among those of the other sex, because signs consequent of the same. And actions proceeding from *strength of body*, and open force, are honourable, as signs consequent of power *motive*, such as are victory in battle or duel; *a d'avoir tué son homme*. Also to adventure upon great exploits and danger, as being a sign consequent of opinion

of our own strength, and that opinion a sign of the strength itself. And to teach or persuade are honourable, because they be signs of *knowledge*. And riches are honourable; as signs of the power that acquired them: and gifts, cost, and magnificence of houses, apparel, and the like, are honourable, as signs of riches. And *nobility* is honourable by reflection, as a sign of power in the ancestors: and *authority*, because a sign of the strength, wisdom, favour or riches by which it is attained. And *good fortune* or casual prosperity is honourable, because a sign of the favour of God, to whom is to be ascribed all that cometh to us by fortune, no less than that we attain unto by industry. And the contraries and defects of these signs are dishonourable; and according to the signs of honour and dishonour, so we estimate and make the value or worth of a man: for so much worth is every thing, as a man will give for the use of all it can do.

Signs of honour. 6. The *signs of honour* are those by which we perceive that one man acknowledgeth the power and worth of another; such as these, to *praise*, to *magnify*, to *bless*, to call happy, to pray or supplicate to, to thank, to offer unto or present, to obey, to hearken unto with attention, to speak to with consideration, to approach unto in decent manner, to keep distance from, to give way to, and the like, which are the honour the inferior giveth to the superior.

But the *signs of honour* from the superior to the inferior, are such as these; to *praise* or prefer him before his concurrent, to hear more willingly, to speak to him more familiarly, to admit him nearer, to employ him rather, to ask his advice rather, to take his opinions, and to give him *any gifts rather than money*; or if money, so much as may *not* imply his *need* of a *little*: for need of a little is greater poverty than need of much. And this is enough for examples of the signs of honour and power.

Reverence. 7. *Reverence* is the conception we have concerning another, that he hath the *power* to do unto us both *good* and *hurt*, but *not* the *will* to do us *hurt*.

Passions. 8. In the pleasure men have, or displeasure from the signs of honour or dishonour done unto them, consisteth the nature of the passions, whereof we are to speak in the next chapter.

CHAPTER IX.

1. Glory aspiring, false glory, vain glory. 2. Humility and dejection. 3. Shame. 4. Courage. 5. Anger. 6. Revengefulness. 7. Repentance. 8. Hope, despair, diffidence. 9. Trust. 10. Pity and hardness of heart. 11. Indignation. 12. Emulation and envy. 13. Laughter. 14. Weeping. 15. Lust. 16. Love. 17. Charity. 18. Admiration and curiosity. 19. Of the passion of them that flock to see danger. 20. Of magnanimity and pusillanimity. 21. A view of the passions represented in a race.

Glory aspiring,
false glory, vain
glory.

1. Glory, or internal gloriation or triumph of the mind, is the passion which proceedeth from the imagination or conception of our *own power* above the power of him that contendeth with us; the *signs* whereof, besides those in the countenance, and other gestures of the body which cannot be described, are, *ostentation* in words, and *insolency* in actions: and this passion, of them whom it displeaseth, is called *pride*; by them whom it pleaseth, it is termed a *just valuation* of himself. This imagination of our power or worth, may be from an assured and certain *experience* of our own actions; and then is that glory *just*, and well grounded, and begetteth an opinion of *increasing* the same by other actions to follow; in which consisteth the appetite which we call *aspiring*, or proceeding from one degree of power to another. The same passion may proceed *not* from any *conscience* of our own actions, but from fame and trust of *others*, whereby one may think well of himself, and yet be deceived; and this is *false glory*, and the aspiring consequent thereto procureth ill success. Further, the *fiction*, which is also imagination, of actions done by ourselves, which never were done, is *glorying*; but because it begetteth no appetite nor endeavour to any further attempt, it is merely *vain* and unprofitable; as when a man imagineth himself to do the actions whereof he readeth in some *romance*, or to be like unto some other man whose acts he admireth: and this is called *vain glory*; and is exemplified in the fable, by the fly sitting on the axletree, and saying to himself, What a dust do I make rise! The expression of *vain glory* is that wish, which some of the Schools mistaking for some appetite distinct from all the rest, have called *velleity*, making a new word, as they made a new passion which was not before. *Signs* of *vain glory* in

the *gesture* are, *imitation* of others, counterfeiting and usurping the signs of virtue they have not, affectation of fashions, captation of honour from their dreams, and other little stories of themselves, from their country, from their names, and from the like.

**Humility and
dejection.**

2. The passion *contrary to glory*, proceeding from apprehension of our own infirmity, is called *humility* by those by whom it is approved; by the rest, *dejection* and poorness: which conception may be well or ill grounded; if well, it produceth fear to attempt any thing rashly; if ill, it utterly cows a man, that he neither dares speak publicly, nor expect good success in any action.

Shame.

3. It happeneth sometimes, that he that hath a *good* opinion of himself, and upon good ground, may nevertheless, by reason of the *frowardness* which that passion begetteth, discover in himself some *defect* or infirmity, the remembrance whereof dejecteth him; and this passion is called *shame*; by which being cooled and checked in his *frowardness*, he is more wary for the time to come. This passion, as it is a sign of *infirmity*, which is *dishonour*; so also it is a sign of *knowledge*, which is *honour*. The sign of it is *blushing*, which appeareth less in men conscious of their own defect, because they less betray the infirmities they acknowledge.

Courage.

4. *Courage*, in a *large* signification, is the *absence* of *fear* in the presence of any evil whatsoever: but in a *strict* and more common meaning, it is *contempt* of *wounds* and *death*, when they oppose a man in the way to his end.

Anger.

5. *Anger* or sudden courage is nothing but the *appetite* or desire of *overcoming present* opposition. It hath been defined commonly to be grief proceeding from an opinion of contempt; which is confuted by the often experience which we have of being moved to anger by things inanimate, and without sense, and consequently incapable of contemning us.

Revengefulness.

6. *Revengefulness* is that passion which ariseth from an expectation or *imagination* of *making* him that hath *hurt* us, *find* his *own action hurtful* to himself, and to *acknowledge* the same; and this is the height of revenge: for though it be not hard, by returning evil for evil, to make one's adversary displeased with his own fact; yet to make him acknowledge the same, is so difficult, that many a man had rather die than do it. Revenge aimeth not at the death, but at the captivity or

subjection of an enemy; which was well expressed in the exclamation of Tiberius Cæsar, concerning one, that, to frustrate his revenge, had killed himself in prison; *Hath he escaped me?* To *kill*, is the aim of them that *hate*, to *rid* themselves out of fear: *revenge* aimeth at *triumph*, which over the dead is not.

Repentance.

7. *Repentance* is the passion which proceedeth from *opinion* or knowledge that the *action* they have done is *out of the way* to the *end* they would attain: the effect whereof is, to pursue that way no longer, but, by the consideration of the end, to direct themselves into a better. The first motion therefore in this passion is *grief*; but the expectation or conception of returning again into the way, is *joy*; and consequently, the passion of *repentance* is compounded and allayed of both: but the *predominant* is *joy*; else were the whole grief, which cannot be, forasmuch as he that proceedeth towards the end, he conceiveth good, proceedeth with appetite; and appetite is joy, as hath been said, chapter VII. [section 2](#).

**Hope, despair,
diffidence.**

8. *Hope* is *expectation* of *good* to come, as fear is the expectation of evil: but when there be causes, some that make us expect good, and some that make us expect evil, alternately working in our mind; if the causes that make us expect good, be greater than those that make us expect evil, the whole passion is hope; if contrarily, the whole is fear. Absolute *privation* of hope is *despair*, a degree whereof is *diffidence*.

Trust.

9. *Trust* is a passion proceeding from the *belief* of him from whom we *expect* or *hope* for good, so *free* from *doubt* that upon the same we pursue no other way to attain the same good; as *distrust* or diffidence is *doubt* that maketh him endeavour to provide himself by other means. And that this is the meaning of the words trust and distrust, is manifest from this, that a man never provideth himself by a second way, but when he mistrusteth that the first will not hold.

**Pity and
hardness of
heart.**

10. *Pity* is *imagination* or *fiction* of *future* calamity to *ourselves*, proceeding from the sense of *another* man's calamity. But when it lighteth on such as we think have not deserved the same, the compassion is greater, because then there appeareth more probability that the same may happen to us: for, the evil that happeneth to an innocent man, may happen to every man. But when we see a man suffer for great crimes, which we cannot

easily think will fall upon ourselves, the pity is the less. And therefore men are apt to pity those whom they love: for, whom they love, they think worthy of good, and therefore not worthy of calamity. Thence it is also, that men pity the vices of some persons at the first sight only, out of love to their aspect. The contrary of pity is *hardness of heart*, proceeding either from *slowness* of imagination, or some extreme great *opinion* of their own *exemption* from the like calamity, or from hatred of all or most men.

Indignation.

11. *Indignation* is that *grief* which consisteth in the conception of *good success* happening to them whom they think *unworthy* thereof. Seeing therefore men think all those unworthy whom they hate, they think them not only unworthy of the good fortune they have, but also of their own virtues. And of all the passions of the mind, these two, indignation and pity, are most raised and increased by eloquence: for, the *aggravation* of the *calamity*, and *extenuation* of the *fault*, augmenteth *pity*; and the *extenuation* of the *worth* of the person, together with the magnifying of his success, which are the parts of an orator, are able to turn these two passions into *fury*.

**Emulation and
envy.**

12. *Emulation* is *grief* arising from seeing *one's self* exceeded or excelled by his *concurrent*, together with *hope* to *equal* or exceed him in time to come, by his own ability. But, *envy* is the same *grief* joined with *pleasure* conceived in the imagination of some *ill* fortune that may befall him.

Laughter.

13. There is a passion that hath *no name*; but the sign of it is that distortion of the countenance which we call *laughter*, which is always *joy*: but what joy, what we think, and wherein we triumph when we laugh, is not hitherto declared by any. That it consisteth in *wit*, or, as they call it, in the *jest*, experience *confuteth*: for men laugh at mischances and indecencies, wherein there lieth no wit nor jest at all. And forasmuch as the same thing is no more ridiculous when it groweth stale or usual, whatsoever it be that moveth laughter, it must be *new* and *unexpected*. Men laugh often, especially such as are greedy of applause from every thing they do well, at their own actions performed never so little beyond their own expectations; as also at their own *jests*: and in this case it is manifest, that the passion of laughter proceedeth from a *sudden conception* of some *ability* in himself that laugheth. Also men laugh at the *infirmities* of others, by comparison wherewith their own

abilities are set off and illustrated. Also men laugh at *jests*, the *wit* whereof always consisteth in the elegant *discovering* and conveying to our minds some *absurdity* of *another*: and in this case also the passion of laughter proceedeth from the *sudden* imagination of our own odds and eminency: for what is else the recommending of ourselves to our own good opinion, by comparison with another man's infirmity or absurdity? For when a jest is broken upon ourselves, or friends of whose dishonour we participate, we never laugh thereat. I may therefore conclude, that the passion of laughter is nothing else but *sudden glory* arising from some sudden *conception* of some *eminency* in ourselves, by *comparison* with the *infirmity* of others, or with our own formerly: for men laugh at the follies of themselves past, when they come suddenly to remembrance, except they bring with them any present dishonour. It is no wonder therefore that men take heinously to be laughed at or derided, that is, triumphed over. Laughter *without offence*, must be at *absurdities* and infirmities *abstracted* from persons, and when all the company may laugh together: for laughing to one's-self putteth all the rest into jealousy and examination of themselves. Besides, it is vain glory, and an argument of little worth, to think the infirmity of another, sufficient matter for his triumph.

Weeping.

14. The passion opposite hereunto, whose signs are another distortion of the face with tears, called *weeping*, is the *sudden falling out with* ourselves, or sudden conception of defect; and therefore *children* weep often; for seeing they think that every thing ought to be given them which they desire, of necessity every repulse must be a check of their expectation, and puts them in mind of their too much weakness to make themselves masters of all they look for. For the same cause *women* are more apt to weep than men, as being not only more accustomed to have their wills, but also to measure their powers by the power and love of others that protect them. Men are apt to weep that prosecute revenge, when the revenge is suddenly stopped or frustrated by the repentance of their adversary; and such are the tears of *reconciliation*. Also revengeful men are subject to this passion upon the beholding those men they pity, and suddenly remember they cannot help. Other weeping in men proceedeth for the most part from the same cause it proceedeth from in women and children.

Lust.

15. The appetite which men call *lust*, and the fruition that appertaineth thereunto, is a *sensual* pleasure, but *not only* that; there is in it also a delight of the mind: for it consisteth of two appetites together, to *please*, and to *be pleased*; and the delight men take in delighting, is not sensual, but a pleasure or joy of the mind consisting in the imagination of the power they have so much to please. But the name *lust* is used where it is condemned; otherwise it is called by the general word *love*: for the passion is one and the same indefinite desire of different sex, as natural as hunger.

Love. 16. Of *love*, by which is understood the joy man taketh in the fruition of any *present* good, hath been already spoken of in the [first section](#), chapter VII. under which is contained the *love* men bear to one *another*, or pleasure they take in one another's company; and by which nature, men are said to be sociable. But there is another kind of love, which the Greeks call Ἔρως, and is that which we mean, when we say that a man is in love: forasmuch as this passion cannot be without diversity of sex, it cannot be denied but that it *participateth* of that indefinite *love* mentioned in the former section. But there is a great difference betwixt the desire of a man *indefinite*, and the same desire *limited ad hunc*; and this is that *love* which is the great theme of poets: but notwithstanding their praises, it must be defined by the word *need*: for it is a conception a man hath of his need of *that one person* desired. The cause of this passion is *not* always *nor* for the most part *beauty*, or other quality in the beloved, unless there be withal *hope* in the person that loveth: which may be gathered from this, that in great difference of persons, the *greater* have often fallen in love with the *meaner*; but not contrary. And from hence it is, that for the most part they have much better fortune in love, whose hopes are built upon something *in their person*, than those that trust to their *expressions* and *service*; and they that *care less*, than they that *care more*: which not perceiving, many men cast away their services, as one arrow after another, till, in the end, together with their hopes, they lose their wits.

Charity. 17. There is yet another passion sometimes called *love*, but more properly *good will* or *charity*. There can be no greater argument to a man, of his own power, than to find himself able not only to accomplish his own desires, but also to *assist* other men in theirs: and this is that conception wherein consisteth *charity*. In which, first, is

contained that *natural affection* of parents to their children, which the Greeks call Στοργή, as *also*, that affection wherewith men seek to *assist* those that adhere unto them. But the affection wherewith men many times bestow their benefits on *strangers*, is not to be called charity, but either *contract*, whereby they seek to purchase friendship; or *fear*, which maketh them to purchase peace. The opinion of Plato concerning honourable love, delivered according to his custom in the person of Socrates, in the dialogue intituled *Convivium*, is this, that a man full and pregnant with wisdom and other virtues, naturally seeketh out some beautiful person, of age and capacity to conceive, in whom he may, without sensual respects, engender and produce the like. And this is the *idea* of the then noted *love* of Socrates wise and continent, to Alcibiades young and beautiful: in which, love is not the sought honour, but the issue of his knowledge; contrary to the common love, to which though issue sometimes follows, yet men seek not that, but to please, and to be pleased. It should be therefore this charity, or desire to assist and advance others. But why then should the wise seek the ignorant, or be more charitable to the beautiful than to others? There is something in it savouring of the use of that time: in which matter though Socrates be acknowledged for continent, yet the *continent* have the passion they *contain*, as *much* and more than they that *sate* the appetite; which maketh me suspect this *platonic* love for merely sensual; but with an honourable pretence for the old to haunt the company of the young and beautiful.

Admiration and curiosity.

18. Forasmuch as all *knowledge* beginneth from *experience*, therefore also *new experience* is the beginning of *new knowledge*, and the increase of experience the beginning of the increase of knowledge. Whatsoever therefore happeneth new to a man, giveth him matter of *hope* of *knowing* somewhat that he knew *not before*. And this hope and expectation of future knowledge from anything that happeneth new and strange, is that passion which we commonly call *admiration*; and the same considered as appetite, is called *curiosity*, which is appetite of knowledge. As in the discerning of faculties, *man leaveth* all community with *beasts* at the faculty of *imposing names*; so also doth he surmount their nature at this *passion* of *curiosity*. For when a beast seeth anything new and strange to him, he considereth it so far only as to discern whether it be

likely to serve his turn, or hurt him, and accordingly approacheth nearer to it, or fleeth from it: whereas man, who in most events remembereth in what manner they were caused and begun, looketh for the cause and beginning of everything that ariseth new unto him. And from this passion of admiration and curiosity, have arisen not only the invention of names, but also supposition of such causes of all things as they thought might produce them. And from this beginning is derived all *philosophy*; as *astronomy* from the admiration of the course of heaven; *natural philosophy* from the strange effects of the elements and other bodies. And from the degrees of curiosity, proceed also the degrees of knowledge amongst men: for, to a man in the chase of riches or authority, (which in respect of knowledge are but sensuality) it is a diversity of little pleasure, whether it be the motion of the sun or the earth that maketh the day, or to enter into other contemplations of any strange accident, otherwise than whether it conduce or not to the end he pursueth. Because *curiosity* is *delight*, therefore also *novelty* is so, but especially that novelty from which a man conceiveth an *opinion* true or false of *bettering* his own estate; for, in such case, they stand affected with the hope that all gamesters have while the cards are shuffling.

Of the passion
of them that
flock to see
danger.

19. Divers other passions there be, but they want names: whereof some nevertheless have been by most men observed: for example; from what passion proceedeth it, that men take *pleasure* to *behold* from the shore the *danger* of them that are at sea in a tempest, or in fight, or from a safe castle to behold two armies charge one another in the field? It is certainly, in the whole sum, *joy*; else men would never flock to such a spectacle. Nevertheless there is in it both *joy* and *grief*: for as there is novelty and remembrance of our own security present, which is *delight*; so there is also *pity*, which is grief; but the delight is so far predominant, that men usually are content in such a case to be spectators of the misery of their friends.

Of
magnanimity
and
pusillanimity.

20. *Magnanimity* is no more than *glory*, of the which I have spoken in the first section; but *glory well grounded* upon certain experience of a power sufficient to attain his end in open manner. And *pusillanimity* is the *doubt* of that. Whatsoever therefore is a sign of *vain glory*, the same is also a sign of *pusillanimity*: for sufficient power maketh glory a spur

to one's end. To be *pleased* or *displeased* with *fame true* or *false*, is a *sign* of that same, because he that relieth on fame hath not his success in his own power. Likewise *art* and *fallacy* are signs of pusillanimity, because they depend not upon our own power, but the ignorance of others. Also *proneness* to *anger*, because it argueth difficulty of proceeding. Also *ostentation* of *ancestors*, because all men are more inclined to make shew of their own power when they have it, than of another's. To be at *enmity* and contention with *inferiors*, is a sign of the same, because it proceedeth from want of power to end the war. To *laugh* at others, because it is an affectation of glory from other men's infirmities, and not from any ability of their own. Also *irresolution*, which proceedeth from want of power enough to condemn the little difficulties that make deliberations hard.

A view of the
passions
represented in a
race.

21. The comparison of the life of man to a race, though it hold not in every part, yet it holdeth so well for this our purpose, that we may thereby both see and remember almost all the passions before mentioned. But this *race* we must suppose to have no other *goal*, nor other *garland*, but being foremost, and in it:

To endeavour, is *appetite*.
To be remiss, is *sensuality*.
To consider them behind, is *glory*.
To consider them before, is *humility*.
To lose ground with looking back, *vain glory*.
To be holden, *hatred*.
To turn back, *repentance*.
To be in breath, *hope*.
To be weary, *despair*.
To endeavour to overtake the next, *emulation*.
To supplant or overthrow, *envy*.
To resolve to break through a stop foreseen, *courage*.
To break through a sudden stop, *anger*.
To break through with ease, *magnanimity*.
To lose ground by little hindrances, *pusillanimity*.
To fall on the sudden, is disposition to *weep*.
To see another fall, is disposition to *laugh*.
To see one out-gone whom we would not, is *pity*.

To see one out-go whom we would not, is *indignation*.

To hold fast by another, is to *love*.

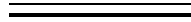
To carry him on that so holdeth, is *charity*.

To hurt one's-self for haste, is *shame*.

Continually to be out-gone, is *misery*.

Continually to out-go the next before, is *felicity*.

And to forsake the course, is to *die*.



CHAPTER X.

1. Having shewed in the precedent chapters, that sense proceedeth from the action of external objects upon the *brain*, or some internal *substance* of the *head*; and that the *passions* proceed from the alteration there made, and continued to the *heart*: it is consequent in the next place, seeing the diversity of degrees in knowledge in divers men, to be greater than may be ascribed to the divers *tempers* of their brain, to declare *what other causes* may produce such *odds*, and excess of *capacity*, as we daily observe in one man above another. As for that difference which ariseth from *sickness*, and such accidental distempers, I omit the same, as impertinent to this place, and consider it only in such as have their *health*, and *organs* well disposed. If the difference were in the natural temper of the brain, I can imagine no reason why the same should not appear first and most of all in the senses, which being equal both in the wise and less wise, infer an equal temper in the common organ (namely the brain) of all the senses.

2. But we see by experience, that *joy* and *grief* proceed *not* in *all* men from the same *causes*, and that men differ very much in the constitution of the body; whereby, that which helpeth and furthereth *vital constitution* in one, and is therefore delightful, hindereth it and crosseth it in another, and therefore causeth grief. The *difference* therefore of *wits* hath its original *from* the *different passions*, and from the *ends* to which the appetite leadeth them.

3. And first, those men whose ends are *sensual* delight, and generally are addicted to *ease*, *food*, *onerations* and *exonerations* of the body, must needs be the *less* thereby delighted with those *imaginations* that *conduce not* to those ends, such as are imaginations of *honour* and *glory*, which, as I have said before, have respect to the future: for sensuality consisteth in the pleasure of the senses, which please only for the present, and take away the inclination to observe such things as conduce to honour, and consequently maketh men less curious, and less ambitious, whereby they less consider the way either to knowledge or other power; in which two consisteth all the excellency of power cognitive. And this is it which men call *dulness*, and proceedeth from

the appetite of sensual or bodily delight. And it may well be conjectured, that such passion hath its beginning from a *grossness* and *difficulty* of the *motion* of the *spirit* about the *heart*.

4. The contrary hereunto, is that *quick ranging* of mind described, chapter IV. [section 3](#), which is joined with *curiosity* of comparing the things that come into the mind, one with another: in which comparison, a man delighteth himself either with finding unexpected *similitude* of things, otherwise much unlike, in which men place the excellency of *fancy*, and from whence proceed those grateful similies, metaphors, and other tropes, by which both *poets* and *orators* have it in their power to make things please or displease, and shew well or ill to others, as they like themselves; or else in discerning suddenly *dissimilitude* in things that otherwise appear the same. And this virtue of the mind is that by which men attain to exact and perfect *knowledge*; and the pleasure thereof consisteth in continual instruction, and in distinction of places, persons, and seasons, and is commonly termed by the name of *judgment*: for, to judge is nothing else, but to distinguish or discern: and both *fancy* and *judgment* are commonly comprehended under the name of *wit*, which seemeth to be a tenuity and agility of spirits, contrary to that restiness of the spirits supposed in those that are dull.

5. There is another defect of the mind, which men call *levity*, which betrayeth also *mobility* in the spirits, but in excess. An example whereof is in them that in the midst of any serious discourse, have their minds diverted to every little jest or witty observation; which maketh them depart from their discourse by a parenthesis, and from that parenthesis by another, till at length they either lose themselves, or make their narration like a dream, or some studied nonsense. The passion from whence this proceedeth, is *curiosity*, but with *too much equality* and indifference: for when all things make equal impression and delight, they equally throng to be expressed.

6. The virtue opposite to this defect is *gravity*, or steadiness; in which the end being the great and master-delight, directeth and keepeth in the way thereto all other thoughts.

7. The *extremity* of dullness is that *natural folly* which may be called *stolidity*: but the extreme of *levity*, though it be natural folly distinct from the other, and obvious to every man's observation, I know *not* how to call it.

8. There is a fault of the mind called by the Greeks Ἀμαθία, which is *indocibility*, or *difficulty* of being taught; the which must needs arise from a *false opinion* that they *know already* the truth of that is called in question: for certainly men are not otherwise so unequal in capacity as the *evidence* is unequal between what is taught by the mathematicians, and what is commonly discoursed of in other books: and therefore if the minds of men were all of white paper, they would almost equally be disposed to acknowledge whatsoever should be in right method, and by right ratiocination delivered to them: but when men have once acquiesced in untrue opinions, and registered them as authentical records in their minds, it is no less impossible to speak intelligibly to such men, than to write legibly upon a paper already scribbled over. The immediate *cause* therefore of *indocibility*, is *prejudice*; and of prejudice, false opinion of our own knowledge.

9. Another, and a principal defect of the mind, is that which men call *madness*, which appeareth to be nothing else but some *imagination* of some such *predominancy* above the *rest*, that we have *no passion but from it*; and this conception is nothing else but excessive *vain glory*, or *vain dejection*; which is most probable by these examples following, which proceed in appearance every one of them from *pride*, or some *dejection* of mind. As first, we have had the example of one that preached in Cheapside from a cart there, instead of a pulpit, that he himself was Christ, which was *spiritual* pride or madness. We have had also divers examples of learned madness, in which men have manifestly been distracted upon any occasion that hath put them in remembrance of their own ability. Amongst the learned men, may be remembered, I think also, those that determine of the time of the world's end, and other such the points of prophecy. And the gallant madness of Don Quixote is nothing else but an expression of such height of vain glory as reading of *romance* may produce in pusillanimous men. Also rage and madness of love, are but great indignations of them in whose brains is predominant contempt from their enemies, or their mistresses. And the *pride* taken in *form* and *behaviour*, hath made divers men run mad, and to be so accounted, under the name of fantastic.

10. And as these are the examples of extremities, so also are there examples too many of the degrees, which may therefore be well

accounted follies; as it is a degree of the *first*, for a man, without certain evidence, to think himself to be *inspired*, or to have any other effect of God's holy spirit than other godly men have. Of the *second*, for a man continually to speak his mind in a *cento* of other men's Greek or Latin sentences. Of the *third*, much of the present gallantry in love and duel. Of *rage*, a degree is *malice*; and of *fantastic* madness, *affectation*.

11. As the former examples exhibit to us madness, and the degrees thereof, proceeding from the excess of self-opinion; so also there be other examples of madness, and the degrees thereof, proceeding from *too much vain fear* and *dejection*; as in those melancholy men that have imagined themselves brittle as glass, or have had some other like imagination: and degrees hereof are all those exorbitant and causeless fears, which we commonly observe in melancholy persons.



CHAPTER XI.

1. Hitherto of the knowledge of things *natural*, and of the passions that arise naturally from them. Now forasmuch as we give names not only to things natural, but also to *supernatural*; and by all names we ought to have some meaning and conception: it followeth in the next place, to consider what thoughts and imaginations of the mind we have, when we take into our mouths the most blessed name of GOD, and the names of those *virtues* we attribute unto him; as also, what *image* cometh into the mind at hearing the name of *spirit*, or the name of *angel*, good or bad.

2. And forasmuch as God Almighty is *incomprehensible*, it followeth, that we can have *no* conception or *image* of the *Deity*, and consequently, all *his attributes* signify our *inability* and defect of power to *conceive* any thing concerning his nature, and not any conception of the same, excepting only this, that *there is a God*: for the effects we acknowledge naturally, do include a power of their producing, before they were produced; and that power presupposeth something existent that hath such power: and the thing so existing with power to produce, if it were not eternal, must needs have been produced by somewhat before it, and that again by something else before that, till we come to an eternal, that is to say, the first power of all powers, and first cause of all causes: and this is it which all men conceive by the name of GOD, implying eternity, incomprehensibility, and omnipotency. And thus all that will consider, may know *that* God is, though not *what* he is: even a man that is born blind, though it be not possible for him to have any imagination what kind of thing fire is; yet he cannot but know that somewhat there is that men call fire, because it warmeth him.

3. And whereas we attribute to God Almighty, *seeing, hearing, speaking, knowing, loving*, and the like, by which names we understand something in *men* to whom we attribute them, we understand *nothing* by them in the nature of God: for, as it is well reasoned, *Shall not the God that made the eye, see; and the ear, hear?* So it is also, if we say, shall God, which made the eye, not see without the eye; or that made

the ear, not hear without the ear; or that made the brain, not know without the brain; or that made the heart, not love without the heart? The *attributes* therefore given unto the *Deity*, are such as *signify* either *our incapacity* or *our reverence*: our incapacity, when we say incomprehensible and infinite; our reverence, when we give him those names, which amongst us are the names of those things we most magnify and commend, as omnipotent, omniscient, just, merciful, &c. And when God Almighty giveth those names to himself in the Scriptures, it is but ἀνθρώποπαθῶς, that is to say, by descending to our manner of speaking; without which we are not capable of understanding him.

4. By the name of *spirit*, we understand a *body natural*, but of such *subtily*, that it worketh not upon the senses; but that filleth up the place which the image of a visible body might fill up. Our conception therefore of spirit consisteth of *figure without colour*; and in figure is understood dimension, and consequently, to conceive a spirit, is to conceive something that hath dimension. But *spirits supernatural* commonly signify some *substance without* dimension; which two words do flatly contradict one another: and therefore when we attribute the name of spirit unto God, we attribute it not as the name of anything we conceive, no more than we ascribe unto him sense and understanding; but as a signification of our reverence, we desire to abstract from him all corporal grossness.

5. Concerning other things, which some men call *spirits incorporeal*, and some *corporeal*, it is not *possible* by *natural* means only, to come to *knowledge* of so much, as that *there are such* things. We that are Christians *acknowledge* that there be angels good and evil, and that there are spirits, and that the soul of a man is a spirit, and that those spirits are immortal: *but*, to *know* it, that is to say, to have natural evidence of the same, it is *impossible*: for, all *evidence* is *conception*, as it is said, chap. VI. [sect. 3](#), and all conception is imagination, and proceedeth from *sense*, chap. III. [sect. 1](#). And *spirits* we suppose to be those substances which work *not* upon the *sense*, and therefore not conceptible. But though the Scripture acknowledges spirits, yet doth it nowhere say, that they are incorporeal, meaning thereby, without dimension and quality; nor, I think, is that word incorporeal at all in the Bible; but it is said of the spirit, that it abideth in men; sometimes that it

dwelleth in them, sometimes that it cometh on them, that it descendeth, and goeth, and cometh; and that spirits are angels, that is to say messengers: all which words do imply *locality*; and *locality* is *dimension*; and whatsoever hath dimension, is *body*, be it never so subtile. To me therefore it seemeth, that the Scripture favoureth them more, that hold angels and spirits corporeal, than them that hold the contrary. And it is a plain *contradiction* in natural discourse, to say of the soul of man, that it is *tota in toto, et tota in qualibet parte corporis*, grounded neither upon reason nor revelation, but proceeding from the ignorance of what those things are which are called *spectra*, images, that appear in the dark to children, and such as have strong fears, and other strange imaginations, as hath been said, chapter III. [sect. 5](#), where I call them phantasms: for, taking them to be things real, without us, like bodies, and seeing them to come and vanish so strangely as they do, unlike to *bodies*; what could they call them else, but *incorporeal bodies*? which is not a name, but an absurdity of speech.

6. It is true, that the heathens, and all nations of the world, have acknowledged that there be *spirits*, which for the most part they hold to be incorporeal; whereby it might be thought, that a man by natural reason, may arrive, without the Scriptures, to the knowledge of this, *that spirits are*: but the erroneous collection thereof by the heathens, may proceed, as I have said before, from the ignorance of the cause of ghosts and phantasms, and such other apparitions. And from thence had the Grecians their number of gods, their number of *dæmons* good or bad, and for every man his *genius*; which is not the acknowledging of this truth, *that spirits are*; but a false opinion concerning the force of imagination.

7. And seeing the *knowledge* we have of *spirits*, is *not natural* knowledge, but *faith* from supernatural revelation given to the holy writers of the Scriptures; it followeth, that of inspirations also, which is the operation of spirit in us, the knowledge which we have, must all proceed from Scripture. The *signs* there set down of *inspiration*, are *miracles*, when they be great, and manifestly above the power of men to do by imposture: as for example, the inspiration of Elias was known by the miraculous burning of the sacrifice. But the *signs* to *distinguish* whether a *spirit* be *good* or *evil*, are the same by which we distinguish whether a man or a tree be good or evil, namely, *actions* and *fruit*: for

there are *lying* spirits, wherewith men are inspired sometimes, as well as with *spirits of truth*. And we are commanded in Scripture, to judge of the spirits by their doctrine, and not of the doctrine by the spirits. For miracles, our Saviour (*Matth. xxiv. 24*) hath forbidden us to rule our faith by them. And Saint Paul saith, (*Gal. i. 8*): *Though an angel from heaven preach to you otherwise, &c. let him be accursed*. Where it is plain, that we are not to judge whether the doctrine be true or not, by the angel; but whether the angel say true or no, by the doctrine. So likewise, (*1 Joh. iv. 1*): *Believe not every spirit: for false prophets are gone out into the world*. Verse 2: *Hereby shall ye know the spirit of God*. Verse 3: *Every spirit that confesseth not that Jesus Christ is come in the flesh, is not of God: and this is the spirit of Antichrist*. Verse 15: *Whosoever confesseth that Jesus is the Son of God, in him dwelleth God, and he in God*. The knowledge therefore we have of good and evil inspiration, cometh *not* by vision of an angel that may teach it, *nor* by a miracle that may seem to confirm it; *but* by conformity of doctrine with this article and fundamental point of Christian faith, which also Saint Paul (*1 Cor. iii. 11*) saith is the sole foundation, *That Jesus Christ is come in the flesh*.

8. But if *inspiration* be discerned by *this* point, and *this* point be acknowledged and believed upon the *authority* of the *Scriptures*; how (may some men ask) know we that the *Scripture* *deserveth* so great *authority*, which must be no less than that of the lively voice of God; that is, how do we know the *Scriptures* to be the *word of God*? And first, it is manifest, that if by knowledge we understand science infallible and natural, as is defined, chap. vi. [sect. 4](#), proceeding from sense, we cannot be said to know it, because it proceedeth not from the conceptions engendered by sense. And if we understand knowledge as supernatural, we cannot have it but by inspiration: and of that *inspiration* we cannot judge, but by the *doctrine*: it followeth, that we have not any way, natural or supernatural, of the *knowledge* thereof, which can properly be called *infallible science* and *evidence*. It remaineth, that the knowledge that we have that the *Scriptures* are the word of God, is only *faith*, which faith therefore is also by Saint Paul (*Heb. xi. 1*) defined to be *the evidence of things not seen*; that is to say, not otherwise evident but by faith: for, whatsoever either is evident by natural reason, or revelation supernatural, is not called faith; else should

not faith cease, no more than charity, when we are in heaven; which is contrary to the doctrine of the Scripture. And, we are *not* said to *believe*, but to *know* those things that be *evident*.

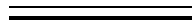
9. Seeing then the acknowledgment of Scriptures to be the word of God, is not evidence, but faith, and faith (chapter VI. [sect. 7](#)) consisteth in the trust we have of other men, it appeareth plain, that the men so trusted, are the holy men of God's church succeeding one another from the time of those that saw the wondrous works of God Almighty in the flesh. Nor doth this imply that God is not the worker or efficient cause of faith, or that faith is begotten in man without the spirit of God: for, all those good opinions which we admit and believe, though they proceed from hearing, and hearing from teaching, both which are natural, yet they are the work of God: for, all the works of nature are his, and they are attributed to the Spirit of God: as for example, *Exod. xxviii. 3: Thou shalt speak unto all cunning men, whom I have filled with the SPIRIT of wisdom, that they may make Aaron's garments for his consecration, that he may serve me in the priest's office.* Faith therefore, wherewith we believe, is the work of the Spirit of God in that sense, by which the Spirit of God giveth to one man wisdom and cunning in workmanship more than another; and by which he effecteth also in other points pertaining to our ordinary life, that one man believeth that, which, upon the same grounds, another doth not; and one man reverenceth the opinion, and obeyeth the commands of his superior, and others not.

10. And seeing our faith, that the Scriptures are the word of God, began from the confidence and trust we repose in the *church*; there can be no doubt but that their *interpretation* of the same Scriptures (when any doubt or controversy shall arise, by which this fundamental point, *that Jesus Christ is come in the flesh*, may be called in question) is *safer* for any man to trust to, than his own, whether *reasoning* or *spirit*, that is to say, his own *opinion*.

11. Now concerning men's *affections* to *Godward*, they are not the same always that are described in the chapter concerning passions. There, for to love, is to be delighted with the image or conception of the thing loved; but God is unconceivable: *to love God* therefore, in the Scripture, is to *obey his commandments*, and to *love one another*. Also *to trust God*, is different from our *trusting one another*: for, when a

man trusteth a man, (chap. ix. [sect. 9](#)) he layeth aside his own endeavours: but if we do so in our trust to God Almighty, we disobey him; and how shall we trust to him whom we know we disobey? To *trust to God Almighty* therefore, is to *refer* to his *good pleasure* all that is *above our own power* to effect: and this is *all one* with *acknowledging one* only God, which is the first commandment. And to trust *in Christ*, is no more but to acknowledge him for God; which is the fundamental article of our Christian faith: and consequently, to trust, rely, or, as some express it, to cast and roll ourselves on Christ, is the same thing with the fundamental point of faith, namely, that *Jesus Christ is the son of the living God*.

12. To *honour* God internally in the heart, is the same thing with that we ordinarily call honour amongst men: for it is nothing but the *acknowledging* of his *power*; and the signs thereof, the same with the signs of the honour due to our superiors, mentioned chapter viii. [section 6](#), viz. to *praise*, to *magnify*, to *bless*, to pray to him, to thank him, to give oblations and sacrifices to him, to give attention to his word, to speak to him in prayer with consideration, to come into his presence with humble gesture, and in decent manner, and to adorn his worship with magnificence and cost: and these are natural signs of our honouring him internally: and therefore the contrary hereof, to neglect prayer, to speak to him *extempore*, to come to church slovenly, to adorn the place of his worship worse than our own houses, to take up his name in every idle discourse, are the manifest signs of contempt of the Divine Majesty. There be other signs which are arbitrary; as, to be uncovered, as we be here, to put off their shoes, as Moses at the fiery bush, and some other of that kind, which in their own nature are indifferent, till, to avoid indecency and discord, it be otherwise determined by common consent.



CHAPTER XII.

1. It hath been declared already, how *external* objects cause *conceptions*, and conceptions, *appetite* and *fear*, which are the *first unperceived beginnings of our actions*: for *either* the actions immediately follow the first appetite, as when we do anything upon a sudden; *or else* to our first appetite there succeedeth some conception of evil to happen to us by such actions, which is fear, and which holdeth us from proceeding. And to that fear may succeed a new appetite, and to that appetite another fear alternately, till the action be either done, or some accident come between, to make it impossible; and so this alternate appetite and fear ceaseth. This *alternate succession of appetite and fear* during all the time the action is in our power to do or not to do, is that we call *deliberation*; which name hath been given it for that part of the definition wherein it is said that it lasteth so long as the action, whereof we deliberate, is in our power: for, so long we have liberty to do or not to do; and deliberation signifieth a taking away of our own liberty.

2. *Deliberation* therefore requireth in the action deliberated *two conditions*; one, that it be *future*; the other, that there be *hope* of doing it, or possibility of not doing it; for, *appetite* and *fear* are *expectations* of the future; and there is no expectation of good, without hope; or of evil, without possibility: of *necessaries* therefore there is *no deliberation*. In deliberation, the last appetite, as also the last fear, is called *will*, viz. the last appetite, will to do, or will to omit. It is all one therefore to say *will* and *last will*: for, though a man express his present inclination and appetite concerning the disposing of his goods, by words or writings; yet shall it not be counted his will, because he hath still liberty to dispose of them otherways: but when death taketh away that liberty, then it is his will.

3. *Voluntary* actions and omissions are such as have beginning in the *will*; all other are *involuntary*, or *mixed voluntary*; *involuntary*, such as he doth by necessity of nature, as when he is pushed, or falleth, and thereby doth good or hurt to another: *mixed*, such as participate of both;

as when a man is carried to prison, going is voluntary, to the prison, is involuntary: the example of him that throweth his goods out of a ship into the sea, to save his person, is of an action altogether voluntary: for, there is nothing therein involuntary, but the hardness of the choice, which is not his action, but the action of the winds: what he himself doth, is no more against his will, than to flee from danger is against the will of him that seeth no other means to preserve himself.

4. *Voluntary* also are the actions that proceed from sudden *anger*, or *other* sudden *appetite* in such men as can discern good or evil: for, in them the time precedent *is* to be judged deliberation: for then also he deliberateth in what cases it is good to strike, deride, or do any other action proceeding from anger or other such sudden passion.

5. *Appetite*, *fear*, *hope*, and the rest of the passions are *not* called *voluntary*; for they proceed *not from, but are the will*; and the will is not voluntary: for, a man can no more say he will will, than he will will will, and so make an infinite repetition of the word [*will*]; which is absurd, and insignificant.

6. Forasmuch as *will to do* is *appetite*, and *will to omit*, *fear*; the *cause* of *appetite* and *fear* is the *cause* also of our *will*: but the propounding of the benefits and of harms, that is to say, of reward and punishment, is the cause of our appetite, and of our fears, and therefore also of our wills, so far forth as we believe that such rewards and benefits as are propounded, shall arrive unto us; and consequently, our *wills* follow our *opinions*, as our *actions* follow our *wills*; in which sense they say truly, and properly, that say the world is governed by opinion.

7. When the wills of many concur to one and the same action and effect, this *concourse* of their *wills* is called *consent*; by which we must not understand one will of many men, for every man hath his several will, but many wills to the producing of one effect: but when the *wills* of two divers men *produce* such actions as are reciprocally *resistant* one to the other, this is called *contention*; and, being upon the persons one of another, *battle*: whereas actions proceeding from *consent*, are mutual *aid*.

8. When many wills are involved or included in the will of one or more consenting, (which how it may be, shall be hereafter declared) then is that involving of many wills in one or more, called *union*.

9. In *deliberations* interrupted, as they may be by *diversion* of other business, or by *sleep*, the last *appetite* of such part of the deliberation is called *intention*, or *purpose*.



CHAPTER XIII.

1. Having spoken of the powers and acts of the mind, both cognitive and motive, considered in every man by *himself*, *without relation to others*; it will fall fitly into *this* chapter, to speak of the effects of the same power *one upon another*; which effects are also the signs, by which one taketh notice what another conceiveth and intendeth. Of these signs, *some* are such as *cannot* easily be *counterfeited*; as actions and gestures, especially if they be sudden, whereof I have mentioned some; (for example, look in chapter IX.) with the several passions whereof they are signs: *others* there are which *may* be *counterfeited*; and those are *words* or *speech*; of the use and effects whereof, I am to speak in this place.

2. The first use of language, is the *expression* of our *conceptions*, that is, the begetting in one another the same conceptions that we have in ourselves; and this is called *teaching*; wherein, if the *conception* of him that teacheth continually accompany his words, *beginning* at something true in *experience*, then it begetteth the like evidence in the hearer that understandeth them, and maketh him to *know* something, which he is therefore said to *learn*: but if there be *not such evidence*, then such teaching is called *persuasion*, and begetteth no more in the hearer, than what is in the speaker's bare *opinion*. And the *signs* of two opinions contradictory one to another; namely, *affirmation* and *negation* of the same thing, is called *controversy*: but *both affirmations*, or *both negations*, *consent in opinion*.

3. The *infallible* sign of *teaching exactly*, and without error, is this, that *no man* hath *ever taught* the *contrary*: not that few, how few soever, if any; for commonly truth is on the side of a few, rather than of the multitude: but when in opinions and questions considered and discussed by many, it happeneth that not any one of the men that so discussed them differ from another, then it may be justly inferred, they know what they teach, and that otherwise they do not. And this appears most manifestly to them that have considered the divers subjects wherein they have exercised their pens, and the divers ways in which

they have proceeded, together with the diversity of the success thereof: for, those men who have taken in hand to consider nothing else but the comparison of *magnitudes, numbers, times, and motions*, and how their proportions are to one another, have thereby been the authors of all those excellencies by which we differ from such savage people as now inhabit divers places in America; and as have been the inhabitants heretofore of those countries where at this day arts and sciences do most flourish: for, from the studies of these men, have proceeded whatsoever cometh to us for ornament by *navigation*, and whatsoever we have beneficial to human society by the *division, distinction, and portraiting the face of the earth*; whatsoever also we have by the *account of times, and foresight of the course of heaven*; whatsoever by *measuring distances, planes, and solids* of all sorts; and whatsoever either *elegant or defensible in building*: all which supposed away, what do we differ from the wildest of the Indians? Yet to this day was it never heard of, that there was any *controversy* concerning any conclusion in this subject; the science whereof hath nevertheless been continually amplified and enriched by the conclusions of most difficult and profound speculation. The *reason* whereof is apparent to every man that looketh into their writings; for they proceed from most *low and humble* principles, evident even to the meanest capacity; going on *slowly*, and with most *scrupulous ratiocination*; viz. from the imposition of names, they infer the truth of their *first* propositions; and from two of the first, a *third*; and from any two of the three, a *fourth*; and so on, according to the steps of science, mentioned chapter vi. [section 4](#). On the other side, those men who have written concerning the faculties, passions, and manners of men, that is to say, of *moral philosophy*, and of *policy, government, and laws*, whereof there be infinite volumes, have been so *far from removing doubt* and controversy in the questions they have handled, *that* they have very much *multiplied the same*: nor doth any man at this day so much as pretend to *know* more than hath been delivered two thousand years ago by Aristotle: and yet every man thinks that in this subject he knoweth as much as any other; supposing there needeth thereunto no study but that accrueth unto them by natural wit; though they play, or employ their mind otherwise in the purchase of wealth or place. The reason whereof is no other, than that in their writings and discourses they take for

principles those opinions which are already vulgarly received, whether true or false; being for the most part false. There is therefore a great deal of *difference* between *teaching* and *persuading*; the sign of *this* being *controversy*; the sign of the *former*, *no controversy*.

4. There be *two sorts* of men that commonly be called *learned*: one is that sort that proceedeth *evidently* from humble principles, as is described in the last section; and those men are called *mathematici*: the *other* are they that *take up* maxims from their *education*, and from the *authority* of men, or of custom, and *take the habitual discourse of the tongue for ratiocination*; and these are called *dogmatici*. Now seeing in the last section those we call *mathematici* are absolved of the crime of breeding controversy, and they that pretend not to learning cannot be accused, the fault lieth altogether in the *dogmatics*, that is to say, those that are imperfectly learned, and with passion press to have their opinions pass everywhere for truth, without any evident demonstration either from experience, or from places of Scripture of uncontroverted interpretation.

5. The expression of those conceptions which *cause* in us the *experience* of good while we deliberate, as also of those which cause our expectation of evil, is that which we call *counselling*, and is the internal deliberation of the mind concerning what we ourselves are to do or not to do. The *consequences* of our actions are our *counsellors*, by *alternate succession* in the mind. So in the counsel which a man taketh from *other* men, the *counsellors alternately* do *make appear the consequences* of the action, and do not any of them deliberate, but furnish among them all, him that is counselled with arguments whereupon to deliberate with himself.

6. Another use of speech is *expression* of *appetite*, *intention*, and *will*; as the appetite of knowledge by *interrogation*; appetite to have a thing done by another, as *request*, *prayer*, *petition*: expressions of our purpose or intention, as *promise*, which is the affirmation or negation of some action to be done in the future: *threatening*, which is the promise of evil; and *commanding*, which is that speech by which we signify to another our *appetite* or desire *to have any thing done*, or *left undone*, for reasons contained in the will itself: for it is not properly said, *Sic volo*, *sic jubeo*, without that other clause, *Stet pro ratione voluntas*: and

when the command is a sufficient reason to move us to action, then is that command called a *law*.

7. Another use of speech is *instigation* and appeasing, by which we increase or diminish one another's passion: it is the same thing with *persuasion*; the difference not being real; for, the begetting of *opinion* and *passion* is the *same*. But whereas in *persuasion* we aim at *getting opinion from passion*; *here*, the end is, *to raise passion from opinion*. And as in raising an opinion from passion, any premises are good enough to enforce the desired conclusion; so, in raising passion from opinion, it is no matter whether the opinion be true or false, or the narration historical or fabulous; for, *not the truth*, but the *image*, maketh passion: and a tragedy, well acted, affecteth no less than a murder.

8. Though words be the *signs* we have of one another's *opinions* and intentions, because the *equivocation* of them is so *frequent according to the diversity of contexture*, and of the company wherewith they go, which, the presence of him that speaketh, our *sight* of his *actions*, and *conjecture* of his *intentions*, must help to discharge us of; it must therefore be *extremely hard* to find the *opinions* and meaning of those *men* that are *gone from us long ago*, and have left us no other signification thereof than their books, which cannot possibly be understood without *history*, to discover those aforementioned circumstances, and also without great prudence to *observe* them.

9. When it happeneth that a man signifieth unto two *contradictory* opinions, whereof the *one* is *clearly* and directly *signified*, and the *other* either *drawn* from that by *consequence*, or not known to be contradictory to it; then, when he is not present to explicate himself better, we are to take the *former* for his opinion; for that is clearly signified to be his, and directly; whereas the other might proceed from error in the deduction, or ignorance of the repugnancy. The like also is to be held in two contradictory expressions of a man's intention and will, for the same reason.

10. Forasmuch as whosoever *speaketh* to another, intendeth thereby to *make* him *understand* what he saith, if he speak unto him either in a language which he that heareth understandeth not, or use any word in other sense than he believeth is the sense of him that heareth, he *intendeth also not* to make him understand what he saith; which is a

contradiction of himself. It is therefore always to be supposed, that he which intendeth not to deceive, alloweth the private interpretation of his speech to him to whom it is addressed.

11. *Silence*, in him that *believeth* that the same shall be taken for a *sign of his intent*, is a sign thereof indeed: for, if he did not consent, the labour of speaking so much as to declare the same, is so little, as it is to be presumed he would have done it.

CONCLUSION.

Thus have we considered the nature of man so far as was requisite for the finding out the first and most simple elements wherein the compositions of politic rules and laws are lastly resolved; which was my present purpose.

DE CORPORE POLITICO:
OR THE
ELEMENTS OF LAW,
MORAL AND POLITIC,
WITH DISCOURSES UPON SEVERAL HEADS:
AS
OF THE LAW OF NATURE; OF OATHS AND COVENANTS;
OF SEVERAL KINDS OF GOVERNMENT;
WITH
THE CHANGES AND REVOLUTIONS OF THEM.

TO THE READER.

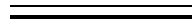
READER,
You may be pleased to take notice, that the first part of this work depends upon a former treatise of Human Nature, written by Mr. Hobbes, and by a friend of his committed to the press for the benefit of mankind. It was thought fit, that nothing of so worthy an author should be left unprinted, especially considering, that this piece is most useful

for the society of reasonable creatures, being the grounds and principles of policy, without which there would be nothing but confusion in the world. I am confident, if men's minds were but truly fixed upon the centre of this discourse, they would not prove such weathercocks, to be turned about with the wind of every false doctrine, and vain opinion. We should then be free from those disorders which threaten distraction to the soul, and destruction to the commonwealth. But let others write never so well, if our practice do not second their instructions, we may be wise enough to foresee our misery, but never know how to prevent it. What pity is it, that such rare conclusions as these are, should produce no other effect, to inform our knowledge, and confute our conversation, whilst we neglect the truth that is apprehended. Yet there is some hope, that such observers, whose wisdom hath received the stamp of goodness, will improve their skill to a real advancement of those benefits, which lie hoarded up in this curious cabinet. To whose use and behoof, these excellent notions are commended, as the best that ever were writ in this kind, and may serve for a general ground and foundation to all regular conceptions, that concern the essence and existence of man, the government of kingdoms and commonwealths, and by consequence our eternal salvation.

DE CORPORE POLITICO.



PART THE FIRST.



CHAPTER I.

1, 2. Men by nature equal. 3. By vain glory indisposed to allow equality with themselves, to others. 4. Apt to provoke another by comparisons. 5. Apt to encroach one upon another. 6. Right defined. 7. Right to the end, implieth right to the means. 8. Every man his own judge by nature. 9. Every man's strength and knowledge for his own use. 10. Every man by nature hath right to all things. 11. War and peace defined. 12. Men by nature in the state of war. 13. In manifest inequality might is right. 14. Reason dictateth peace.

Men by nature equal.

1. In a former treatise of human nature already printed, hath been set forth the whole nature of man, consisting in the powers natural of his body and mind, and may all be comprehended in these four, *strength of body, experience, reason, and passion*.

2. In this, it will be expedient to consider in what estate of security this our nature hath placed us, and what probability it hath left us, of continuing and preserving ourselves against the violence of one another. And first, if we consider how little odds there is of strength or knowledge, between men of mature age, and with how great facility he that is the weaker in strength or in wit, or in both, may utterly destroy the power of the stronger; since there needeth but little force to the taking away of a man's life, we may conclude, that men considered in mere nature, ought to admit amongst themselves equality; and that he that claimeth no more, may be esteemed moderate.

By vain glory indisposed to allow equality with themselves, to others.

3. On the other side, considering the great difference there is in men, from the diversity of their passions, how some are vainly glorious, and hope for precedency and superiority above their fellows, not only when they are equal in power, but also when they are inferior; we must needs

acknowledge that it must necessarily follow, that those men who are moderate, and look for no more but equality of nature, shall be obnoxious to the force of others, that will attempt to subdue them. And from hence shall proceed a general diffidence in mankind, and mutual fear one of another.

**Apt to provoke
another by
comparisons.**

4. Further, since men by natural passion are divers ways offensive one to another, every man thinking well of himself, and hating to see the same in others, they must needs provoke one another by words, and other signs of contempt and hatred, which are incident to all comparison, till at last they must determine the pre-eminence by strength and force of body.

**Apt to encroach
one upon
another.**

5. Moreover, considering that many men's appetites carry them to one and the same end; which end sometimes can neither be enjoyed in common, nor divided, it followeth, that the stronger must enjoy it alone, and that it be decided by battle who is the stronger. And thus the greatest part of men, upon no assurance of odds, do nevertheless, through vanity, or comparison, or appetite, provoke the rest, that otherwise would be contented with equality.

Right defined.

6. And forasmuch as necessity of nature maketh men to will and desire *bonum sibi*, that which is good for themselves, and to avoid that which is hurtful; but most of all, the terrible enemy of nature, death, from whom we expect both the loss of all power, and also the greatest of bodily pains in the losing; it is not against reason, that a man doth all he can to preserve his own body and limbs both from death and pain. And that which is not against reason, men call *right*, or *jus*, or *blameless liberty* of using our own natural power and ability. It is therefore a right of nature, that every man may preserve his own life and limbs, with all the power he hath.

**Right to the
end, implieth
right to the
means.**

7. And because where a man hath right to the end, and the end cannot be attained without the means, that is, without such things as are necessary to the end, it is consequent that it is not against reason, and therefore right, for a man to use all means, and do whatsoever action is necessary for the preservation of his body.

**Every man his
own judge by
nature.**

8. Also, every man by right of nature, is judge himself of the necessity of the means, and of the

greatness of the danger. For if it be against reason, that I be judge of mine own danger myself, then it is reason, that another man be judge thereof. But the same reason that maketh another man judge of those things that concern me, maketh me also judge of that that concerneth him. And therefore I have reason to judge of his sentence, whether it be for my benefit, or not.

Every man's strength and knowledge for his own use.

9. As a man's judgment in right of nature is to be employed for his own benefit, so also the strength, knowledge, and art, of every man is then rightly employed, when he useth it for himself; else must not a man have right to preserve himself.

Every man by nature hath right to all things.

10. Every man by nature hath right to all things, that is to say, to do whatsoever he listeth to whom he listeth, to possess, use, and enjoy all things he will and can. For seeing all things he willeth, must therefore be good unto him in his own judgment, because he willeth them, and may tend to his preservation some time or other, or he may judge so, and we have made him judge thereof, [section 8](#), it followeth, that all things may rightly also be done by him. And for this cause it is rightly said, *Natura dedit omnia omnibus*, that Nature hath given all things to all men; insomuch, that *jus* and *utile*, right and profit, is the same thing. But that right of all men to all things, is in effect no better than if no man had right to any thing. For there is little use and benefit of the right a man hath, when another as strong, or stronger than himself, hath right to the same.

War and peace defined.

11. Seeing then to the offensiveness of man's nature one to another, there is added a right of every man to every thing, whereby one man invadeth with right, and another man with right resisteth, and men live thereby in perpetual diffidence, and study how to preoccupate each other; the estate of men in this natural liberty, is the estate of war. For *war* is nothing else but that time wherein the will and contention of contending by force, is either by words or actions sufficiently declared; and the time which is not war, is *peace*.

Men by nature in the state of war.

12. The estate of hostility and war being such, as thereby nature itself is destroyed, and men kill one another, (as we know also that it is, both by the

experience of savage nations that live at this day, and by the histories of our ancestors the old inhabitants of Germany, and other now civil countries, where we find the people few, and short lived, and without the ornaments and comforts of life, which by peace and society are usually invented and procured) he therefore that desireth to live in such an estate as is the estate of liberty and right of all to all, contradicteth himself. For every man by natural necessity desireth his own good, to which this estate is contrary, wherein we suppose contention between men by nature equal, and able to destroy one another.

**In manifest
inequality
might is right.**

13. Seeing this right of protecting ourselves by our own discretion and force, proceedeth from danger, and that danger from the equality between men's forces, much more reason is there, that a man prevent such equality before the danger cometh, and before the necessity of battle. A man therefore that hath another man in his power to rule or govern, to do good to, or harm, hath right, by the advantage of this his present power, to take caution at his pleasure, for his security against that other in time to come. He therefore that hath already subdued his adversary, or gotten into his power any other, that either by infancy, or weakness, is unable to resist him, by right of nature may take the best caution, that such infant, or such feeble and subdued person can give him, of being ruled and governed by him for the time to come. For seeing we intend always our own safety and preservation, we manifestly contradict that our intention, if we willingly dismiss such a one, and suffer him at once to gather strength and be our enemy. Out of which may also be collected, that irresistible might, in the state of nature, is right.

**Reason
dictateth peace.**

14. But since it is supposed by the equality of strength, and other natural faculties of men, that no man is of might sufficient, to assure himself for any long time, of preserving himself thereby, whilst he remaineth in the state of hostility and war; reason therefore dictateth to every man for his own good, to seek after peace, as far forth as there is hope to attain the same; and strengthen himself with all the help he can procure, for his own defence against those, from whom such peace cannot be obtained; and to do all those things which necessarily conduce thereunto.

CHAPTER II.

1. The law of nature consisteth not in consent of men, but reason. 2. That every man divest himself of the right he hath to all things, is one precept of nature. 3. What it is to relinquish and transfer one's right. 4. The will to transfer, and the will to accept, both necessary to the passing away of right. 5. Right not transferred by words *de futuro* only. 6. Words *de futuro*, together with other signs of the will, may transfer right. 7. Free gift defined. 8. Contract, and the sorts of it. 9. Covenant defined. 10. Contract of mutual trust, is of no validity in the estate of hostility. 11. No covenant of men but with one another. 12. Covenant how dissolved. 13. Covenant extorted by fear, in the law of nature valid. 14. Covenant contrary to former covenant, void. 15. An oath defined. 16. Oath to be administered to every man in his own religion. 17. Oath addeth not to the obligation. 18. Covenants bind but to endeavour.

The law of nature consisteth not in consent of men, but reason.

1. What it is we call the law of nature, is not agreed upon by those, that have hitherto written. For the most part, such writers as have occasion to affirm, that anything is against the law of nature, do allege no more than this, that it is against the consent of all nations, or the wisest and most civil nations. But it is not agreed upon, who shall judge which nations are the wisest. Others make that against the law of nature, which is contrary to the consent of all mankind; which definition cannot be allowed, because then no man could offend against the law of nature; for the nature of every man is contained under the nature of mankind. But forasmuch as all men are carried away by the violence of their passion, and by evil customs do those things which are commonly said to be against the law of nature; it is not the consent of passions, or consent in some error gotten by custom, that makes the law of nature. Reason is no less of the nature of man than passion, and is the same in all men, because all men agree in the will to be directed and governed in the way to that which they desire to attain, namely, their own good, which is the work of reason: there can therefore be no other law of nature than reason, nor no other precepts of *natural law*, than those which declare unto us the ways of peace, where the same may be obtained, and of defence where it may not.

That every man divest himself of the right he hath to all things, is one

2. One precept of the law of nature therefore is this, *that every man divest himself of the right he hath to all things by nature*. For when divers men having right not only to all things else, but to one another's persons, if

precept of nature.

they use the same, there ariseth thereby invasion on the one part, and resistance on the other, which is *war*, and therefore contrary to the law of nature, the sum whereof consisteth in making peace.

What it is to relinquish and transfer one's right.

3. When a man divesteth and putteth from himself his right, he either simply relinquisheth it, or transferreth the same to another man. To *relinquish* it, is by sufficient signs to declare, that it is his will no more to do that action, which of right he might have done before. To *transfer* right to another, is by sufficient signs to declare to that other accepting thereof, that it is his will not to resist, or hinder him, according to that right he had thereto before he transferred it. For seeing that by nature every man hath right to every thing, it is impossible for a man to transfer unto another any right that he had not before. And therefore all that a man doth in transferring of right, is no more but a declaring of the will, to suffer him, to whom he hath so transferred his right, to make benefit of the same, without molestation. As for example, when a man giveth his lands or goods to another, he taketh from himself the right to enter into, and make use of the said lands or goods, or otherwise to hinder him of the use of what he hath given.

The will to transfer, and the will to accept, both necessary to the passing away of right.

4. In transferring of right, two things therefore are required: one on the part of him that transferreth, which is a sufficient signification of his will therein; the other, on the part of him to whom it is transferred, which is a sufficient signification of his acceptation thereof. Either of these failing, the right remaineth where it was: nor is it to be supposed, that he which giveth his right to one that accepteth it not, doth thereby simply relinquish it, and transfer it to whomsoever will receive it: inasmuch as the cause of transferring the same to one, rather than to another, is in the one, rather than in the rest.

Right not transferred by words *de futuro* only.

5. When there appear no other signs that a man hath relinquished, or transferred his right, but only words, it behoveth that the same be done in words, that signify the present time, or the time past, and not only the time to come. For he that saith of the time to come, as for example, tomorrow I will give, declareth evidently, that he hath not yet given. The

right, therefore, remaineth in him to-day, and so continues, till he have given actually. But he that saith, I give, presently, or have given to another anything, to have and enjoy the same to-morrow, or any other time further, hath now actually transferred the said right, which otherwise he should have had at the time that the other is to enjoy it.

Words *de futuro*, together with other signs of the will, may transfer right.

6. But because words alone are not a sufficient declaration of the mind, as hath been shown chapter XIII. [section 8](#), words spoken *de futuro*, when the will of him that speaketh them may be gathered by other signs, may be taken very often as if they were meant *de præsenti*: for when it appeareth, that he that giveth, would have his words so understood by him to whom he giveth, as if he did actually transfer his right, then he must needs be understood to will all that is necessary to the same.

Free gift defined.

7. When a man transferreth any right of his to another, without consideration of reciprocal benefit, past, present, or to come, this is called *free gift*. And in free gift, no other words can be binding, but those which are *de præsenti*, or *de præterito*: for being *de futuro* only, they transfer nothing, nor can they be understood, as if they proceeded from the will of the giver; because being a free gift, it carrieth with it no obligation greater than that which is enforced by the words. For he that promiseth to give, without any other consideration but his own affection, so long as he hath not given, deliberateth still, according as the causes of his affections continue, or diminish; and he that deliberateth, hath not yet willed, because the will is the last act of his deliberation. He that promiseth therefore, is not thereby a *donor*, but *doson*; which name was given to that Antiochus, that promised often, but seldom gave.

Contract, and the sorts of it.

8. When a man transferreth his right upon consideration of reciprocal benefit, this is not free gift, but mutual *donation*, and is called *contract*. And in all contracts, either both parties presently perform, and put each other into a certainty and assurance of enjoying what they contract for, as when men buy or sell, or barter; or one party performeth presently, and the other promiseth, as when one selleth upon trust; or else neither party performeth presently, but trust one another. And it is impossible there should be any kind of contract besides these three. For either both the contractors trust, or neither; or else one trusteth, and the other not.

**Covenant
defined.**

9. In all contracts where there is trust, the promise of him that is trusted, is called a *covenant*. And this, though it be a promise, and of the time to come, yet it doth transfer the right, when that time cometh, no less than an actual donation. For it is a manifest sign, that he which did perform, understood it was the will of him that was trusted, to perform also. Promises therefore, upon consideration of reciprocal benefit, are covenants and signs of the will, or last act of deliberation, whereby the liberty of performing, or not performing, is taken away, and consequently are obligatory. For where liberty ceaseth, there beginneth obligation.

**Contract of
mutual trust, is
of no validity in
the estate of
hostility.**

10. Nevertheless, in contracts that consist of such mutual trust, as that nothing be by either party performed for the present, when the contract is between such as are not compellable, he that performeth first, considering the disposition of men to take advantage of every thing for their benefit, doth but betray himself thereby to the covetousness, or other passion of him with whom he contracteth. And therefore such covenants are of none effect. For there is no reason why the one should perform first, if the other be likely not to perform afterward. And whether he be likely or not, he that doubteth, shall be judge himself, as hath been said chap. 1. [sect. 8](#), as long as they remain in the estate and liberty of nature. But when there shall be such power coercive over both the parties, as shall deprive them of their private judgments in this point, then may such covenants be effectual, seeing he that performeth first shall have no reasonable cause to doubt of the performance of the other, that may be compelled thereunto.

**No covenant of
men but with
one another.**

11. And forasmuch as in all covenants, and contracts, and donations, the acceptance of him to whom the right is transferred, is necessary to the essence of those covenants, donations, &c., it is impossible to make a covenant or donation to any, that by nature, or absence, are unable, or if able, do not actually declare their acceptation of the same. First of all, therefore, it is impossible for any man to make a covenant with God Almighty, further than it hath pleased him to declare who shall receive and accept of the said covenant in his name. Also it is impossible to make covenant with those living creatures, of whose wills we have no sufficient sign, for want of common language.

**Covenant how
dissolved.**

12. A covenant to do any action at a certain time and place, is then dissolved by the covenanter, when that time cometh, either by the performance, or by the violation. For a covenant is void that is once impossible. But a covenant not to do, without time limited, which is as much as to say, a covenant never to do, is dissolved by the covenanter then only, when he violateth it, or dieth. And generally, all covenants are dischargeable by the covenantee, to whose benefit, and by whose right, he that maketh the covenant is obliged. This right therefore of the covenantee relinquished, is a release of the covenant. And universally, for the same reason, all obligations are determinable at the will of the obliger.

**Covenant
extorted by fear,
in the law of
nature valid.**

13. It is a question often moved, whether such covenants oblige, as are extorted from men by fear. As for example, whether if a man for fear of death, hath promised to give a thief an hundred pounds the next day, and not discover him; whether such covenant be obligatory, or not. And though in some cases such covenant may be void, yet it is not therefore void, because extorted by fear. For there appeareth no reason, why that which we do upon fear, should be less firm than that which we do for covetousness. For both the one and the other maketh the action voluntary. And if no covenant should be good, that proceedeth from fear of death, no conditions of peace between enemies, nor any laws, could be of force, which are all consented to from that fear. For who would lose the liberty that nature hath given him, of governing himself by his own will and power, if they feared not death in the retaining of it? What prisoner in war might be trusted to seek his ransom, and ought not rather to be killed, if he were not tied by the grant of his life, to perform his promise? But after the introduction of policy and laws, the case may alter; for if by the law the performance of such a covenant be forbidden, then he that promiseth anything to a thief, not only may, but must refuse to perform it. But if the law forbid not the performance, but leave it to the will of the promiser, then is the performance still lawful: and the covenant of things lawful is obligatory, even towards a thief.

**Covenant
contrary to
former
covenant, void.**

14. He that giveth, promiseth or covenanteth to one, and after, giveth, promiseth, or covenanteth the same to another, maketh void the latter act. For it is impossible

for a man to transfer that right which he himself hath not; and that right he hath not, which he himself hath before transferred.

An oath defined.

15. An *oath* is a clause annexed to a promise, containing a renunciation of God's mercy by him that promiseth, in case he perform not as far as is lawful and possible for him to do. And this appeareth by the words which make the essence of the oath, *so help me God*. So also was it amongst the heathen. And the form of the Romans was, *Thou Jupiter kill him that breaketh, as I kill this beast*. The intention therefore of an oath being to provoke vengeance upon the *breakers* of covenant; it is to no purpose to swear by men, be they never so great, because their punishment by divers accidents may be avoided, whether they will, or no, but God's punishment not. Though it were a custom of many nations, to swear by the life of their princes; yet those princes being ambitious of divine honour, give sufficient testimony, that they believed, nothing ought to be sworn by, but the Deity.

Oath to be administered to every man in his own religion.

16. And seeing men cannot be afraid of the power they believe not, and an oath is to no purpose, without fear of him they swear by, it is necessary that he that sweareth, do it in that form which himself admitteth in his own religion, and not in that form which he useth, that putteth him to the oath. For though all men may know by nature, that there is an Almighty power, nevertheless they believe not, that they swear by him in any other form or name, than what their own, which they think the true, religion teacheth them.

Oath addeth not to the obligation.

17. And by the definition of an oath, it appeareth that it addeth not a greater obligation to perform the covenant sworn, than the covenant carrieth in itself, but it putteth a man into a greater danger, and of greater punishment.

Covenants bind but to endeavour.

18. Covenants and oaths are *de voluntariis*, that is, *de possibilibus*. Nor can the covenantee understand the covenantor to promise *impossibles*; for they fall not under deliberation: and consequently, (by chap. XIII. [sect. 10](#) of the *Treatise of Human Nature*, which maketh the covenantee interpreter) no covenant is understood to bind further, than to our best endeavour, either in performance of the thing promised, or in something equivalent.

CHAPTER III.

1. That men stand to their covenants. 2. Injury defined. 3. That injury is done only to the covenantee. 4. The signification of those names, just, unjust. 5. Justice not rightly divided into commutative, and distributive. 6. It is a law of nature, that he that is trusted, turn not that trust to the damage of him that trusteth. 7. Ingratitude defined. 8. It is a law of nature, to endeavour to accommodate one another: 9. And that man forgive upon caution for the future: 10. And that revenge ought to respect the future only: 11. That reproach and contempt declared, is against the law of nature: 12. That indifference of commerce is of the law of nature: 13. That messengers employed to procure or maintain peace, ought to be safe by the law of nature.

**That men stand
to their
covenants.**

1. It is a common saying that nature maketh nothing in vain. And it is most certain, that as the truth of a conclusion, is no more but the truth of the premises that make it; so the force of the command, or law of nature, is no more than the force of the reasons inducing thereunto. Therefore the law of nature mentioned in the former chapter, [section 2](#), namely, *That every man should divest himself of the right, &c.* were utterly vain, and of none effect, if this also were not a law of the same nature, *That every man is obliged to stand to, and perform, those covenants he maketh.* For what benefit is it to a man, that any thing be promised, or given unto him, if he that giveth, or promiseth, performeth not, or retaineth still the right of taking back what he hath given?

Injury defined.

2. The breach or violation of covenant, is that which men call *injury*, consisting in some action or omission, which is therefore called *unjust*. For it is action or omission, without *jus*, or right, which was transferred or relinquished before. There is a great similitude between that we call *injury*, or *injustice* in the actions and conversations of men in the world, and that which is called *absurd* in the arguments and disputations of the Schools. For as he, which is driven to contradict an assertion by him before maintained, is said to be reduced to an absurdity; so he that through passion doth, or omitteth that which before by covenant he promised to do, or not to omit, is said to commit injustice; and there is in every breach of covenant a contradiction properly so called. For he that covenanteth, willeth to do,

or omit, in the time to come. And he that doth any action, willeth it in that present, which is part of the future time contained in the covenant. And therefore he that violateth a covenant, willeth the doing and the not doing of the same thing, at the same time, which is a plain contradiction. And so *injury* is an *absurdity* of conversation, as absurdity is a kind of injustice in disputation.

That injury is done only to the covenantee.

3. In all violation of covenant, (to whomsoever accrueth the damage) the injury is done only to him to whom the covenant was made. For example, if a man covenant to obey his master, and the master command him to give money to a third, which he promiseth to do, and doth not, though this be to the damage of the third, yet the injury is done to the master only. For he could violate no covenant with him, with whom none was made, and therefore doth him no injury. For injury consisteth in violation of covenant by the definition thereof.

The signification of those names, just and unjust.

4. The names of *just*, *unjust*, *justice*, *injustice*, are equivocal, and signify diversly. For justice and injustice, when they be attributed to actions, signify the same thing with *no injury*, and *injury*, and denominate the action *just*, or *unjust*, but not the man so. For they denominate him *guilty*, or *not guilty*. But when justice or injustice, are attributed to men, they signify *prone*ness, and affection and inclination of nature, that is to say, passions of the mind, apt to produce just and unjust actions. So that when a man is said to be just, or unjust; not the action, but the passion and aptitude, to do such actions, is considered. And therefore a just man may have committed an unjust act; and an unjust man may have done justly, not only one, but most of his actions. For there is an *oderunt peccare* in the unjust, as well as in the just, but from different causes. For the unjust man who abstaineth from injuries for fear of punishment, declareth plainly, that the justice of his actions dependeth upon civil constitution, from whence punishments proceed, which would otherwise in the estate of nature be unjust, according to the fountain from whence they spring. This distinction therefore of *justice*, and *injustice*, ought to be remembered, that when injustice is taken for guilty, the action is unjust, but not therefore the man; and when justice is taken for *guiltlessness*, the actions are just, and yet not always the

man. Likewise when justice and injustice are taken for habits of the mind, the man may be just, or unjust, and yet not all his actions so.

Justice not
rightly divided
into
commutative,
and
distributive.

5. Concerning the justice of actions, the same is usually divided into two kinds, whereof men call the one *commutative*, and the other *distributive*; and are said to consist, the one in proportion *arithmetical*; the other in *geometrical*: and *commutative* justice, they place in permutation, as buying, selling, and bartering; *distributive*, in giving to every man according to their deserts. Which distinction is not well made, inasmuch as injury, which is the injustice of action, consisteth not in the inequality of the things changed, or distributed, but in the inequality that men, contrary to nature and reason, assume unto themselves above their fellows. Of which inequality, shall be spoken hereafter. And for *commutative* justice placed in buying and selling, though the thing bought be unequal to the price given for it, yet forasmuch as both the buyer and the seller are made judges of the value, and are thereby both satisfied, there can be no injury done on either side, neither party having trusted, or covenanted with the other. And for *distributive* justice, which consisteth in the distribution of our own benefits, seeing a thing is therefore said to be our own, because we may dispose of it at our own pleasure, it can be no injury to any man, though our liberality be farther extended towards another, than towards him; unless we be thereto obliged by covenant: and then the injustice consisteth in the violation of that covenant, and not in the inequality of distribution.

It is a law of
nature, that he
that is trusted,
turn not that
trust to the
damage of him
that trusteth

6. It happeneth many times that man benefitteth, or contributeth, to the power of another, without any covenant, but only upon confidence and trust of obtaining the grace and favour of that other, whereby he may procure a greater, or no less benefit, and assistance to himself. For by necessity of nature, every man doth in all his voluntary actions intend some good unto himself. In this case it is a law of nature, *That no man suffer him, that thus trusteth to his charity, or good affection towards him, to be in the worse estate for his trusting.* For if he shall so do, men will not dare to confer mutually to each other's defence, nor put themselves into each other's mercy upon any terms whatsoever, but rather abide the utmost and

worst event of hostility; by which general diffidence, men will not only be enforced to war, but also afraid to come so much within the danger of one another, as to make any overture of peace. But this is to be understood of those only, that confer their benefits (as I have said) upon trust only, and not for triumph or ostentation. For as when they do it upon trust, the end they aimed at, namely to be well used, is the reward; so also when they do it for ostentation, they have the reward in themselves.

Ingratitude defined.

7. But seeing in this case there passeth no covenant, the breach of this law of nature is not to be called *injury*. It hath another name, to wit, *ingratitude*.

It is a law of nature, to endeavour to accommodate one another.

8. It is also a law of nature, *That every man do help and endeavour to accommodate each other as far as may be, without danger of their persons, and loss of their means, to maintain and defend themselves*. For seeing the causes of war and desolation proceed from those passions, by which we strive to accommodate ourselves, and to leave others as far as we can behind us, it followeth, that that passion by which we strive mutually to accommodate each other, must be the cause of peace. And this passion is that charity defined chapter ix. [section 17](#).

And that man forgive, upon caution for the future.

9. And in this precept of nature, is included and comprehended also this, *That a man forgive and pardon him that hath done him wrong, upon his repentance and caution for the future*. For *pardon* is peace granted to him, that, having provoked to war, demandeth it. It is not therefore charity, but fear, when a man giveth peace to him that repenteth not, nor giveth caution for maintaining thereof in the time to come. For he that repenteth not, remaineth with the affection of an enemy; as also doth he that refuseth to give caution, and consequently, is presumed not to seek after peace, but advantage. And therefore to forgive him is not commanded in this law of nature, nor is charity, but may sometime be prudence. Otherwise, not to pardon upon repentance and caution, considering men cannot abstain from provoking one another, is never to give *peace*. And that is against the general definition of the law of nature.

And that revenge ought

10. And seeing the law of nature commandeth pardon, when there is repentance and caution for the

to respect the future only.

future, it followeth, that the same law ordaineth, *That no revenge be taken upon the consideration only of the offence past, but of the benefit to come*; that is to say, that all revenge ought to tend to amendment, either of the person offending, or of others, by the example of his punishment; which is sufficiently apparent, in that the law of nature commandeth pardon, where the future time is secured. The same is also apparent by this, that revenge when it considereth the offence past, is nothing else, but present triumph and glory, and directeth to no end: and what is directed to no end, is therefore unprofitable; and consequently the triumph of revenge, is vain glory: and whatsoever is vain, is against reason; and to hurt one another without reason, is contrary to that, which by supposition is every man's benefit, namely peace; and what is contrary to peace, is contrary to the law of nature.

That reproach and contempt declared is against the law of nature.

11. And because all signs which we shew to one another of hatred and contempt, provoke in the highest degree to quarrel and battle, (inasmuch as life itself, with the condition of enduring scorn, is not esteemed worth the enjoying, much less peace) it must necessarily be implied as a law of nature, *That no man reproach, revile, deride, or any otherwise declare his hatred, contempt, or disesteem of any other*. But this law is very little practised. For what is more ordinary than reproaches of those that are rich, towards them that are not? or of those that sit in place of judicature, towards those that are accused at the bar? although to grieve them in that manner, be no part of the punishment for their crime, nor contained in their office. But use hath prevailed, that what was lawful in the lord towards the servant whom he maintaineth, is also practised as lawful in the more mighty towards the less; though they contribute nothing towards their maintenance.

That indifference of commerce is of the law of nature.

12. It is also a law of nature, *That one man allow commerce and traffic indifferently to one another*. For he that alloweth that to one man, which he denieth to another, declareth his hatred to him, to whom he denieth. And to declare hatred is war. And upon this title was grounded the great war between the Athenians and the Peloponnesians. For would the Athenians have condescended to suffer the Megareans, their neighbours, to traffic in their ports and markets, that war had not begun.

That
messengers
employed to
procure or
maintain peace,
ought to be safe
by the law of
nature.

13. And this also is a law of nature, *That all messengers of peace, and such as are employed to procure and maintain amity between man and man, may safely come and go.* For seeing peace is the general law of nature, the means thereto, such as are these men, must in the same law be comprehended.

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CHAPTER IV.

1. A law of nature, that every man acknowledge other for his equal. 2. Another, that men allow *æqualia æqualibus*. 3. Another, that those things which cannot be divided, be used in common. 4. Another, that things indivisible and incommunicable, be divided by lot. 5. Natural lot, primogeniture, and first possession. 6. That men submit to arbitration. 7. Of an arbitrator. 8. That no man press his counsel upon any man against his will. 9. How to know suddenly what is the law of nature. 10. That the law of nature taketh place after security from others to observe the same. 11. The right of nature not to be taken away by custom, nor the law of nature abrogated by any act. 12. Why the dictates of nature are called laws. 13. Whatsoever is against conscience in a man that is his own judge, is against the law of nature. 14. Of *malum pænæ*, *malum culpæ*; virtue and vice. 15. Aptitude to society fulfilleth the law of nature.

A law of nature,
that every man
acknowledge
other for his
equal.

1. The question, which is the better man, is determinable only in the estate of government and policy, though it be mistaken for a question of nature, not only by ignorant men, that think one man's blood better than another's by nature, but also by him, whose opinions are at this day, and in these parts, of greater authority than any other human writings. For he putteth so much difference between the powers of men by nature, that he doubteth not to set down, as the ground of all his politics, that some men are by nature worthy to govern, and others by nature ought to serve. Which foundation hath not only weakened the whole frame of his politics, but hath also given men colour and pretences, whereby to disturb and hinder the peace of one another. For though there were such a difference of nature, that master and servant were not by consent of men, but by inherent virtue; yet who hath that

eminency of virtue, above others, and who is so stupid, as not to govern himself, shall never be agreed upon amongst men, who do every one naturally think himself, as able, at the least, to govern another, as another to govern him. And when there was any contention between the finer and the courser wits, (as there hath been often in times of sedition and civil war) for the most part, these latter carried away the victory; and as long as men arrogate to themselves more honour than they give to others, it cannot be imagined, how they can possibly live in peace: and consequently we are to suppose, that for peace sake, nature hath ordained this law, *That every man acknowledge other for his equal.* And the breach of this law, is that we call *pride*.

Another, that men allow *æqualia æqualibus*.

2. As it was necessary that a man should not retain his right to every thing, so also was it, that he should retain his right to some things; to his own body, for example, the right of defending, whereof he could not transfer; to the use of fire, water, free air, and place to live in, and to all things necessary for life. Nor doth the law of nature command any divesting of other rights, than of those only which cannot be retained without the loss of peace. Seeing then many rights are retained, when we enter into peace one with another, reason and the law of nature dictateth, *Whatsoever right any man requireth to retain, he allow every other man to retain the same.* For he that doth not so, alloweth not the equality mentioned in the former section. For there is no acknowledgment of worth, without attribution of the equality of benefit and respect. And this allowance of *æqualia æqualibus*, is the same thing with the allowing of *proportionalia proportionalibus*. For when a man alloweth to every man alike, the allowance he maketh, will be in the same proportion, in which are the numbers of men to whom they are made. And this is it men mean by *distributive justice*, and is properly termed *equity*. The breach of the law is that which the Greeks call Πλεονεξία, which is commonly rendered *covetousness*, but seemeth to be more precisely expressed by the word *encroaching*.

Another, that those things which cannot be divided, be used in common.

3. If there pass no other covenant, the law of nature is, *That such things as cannot be divided, be used in common, proportionably to the numbers of them that are to use the same, or without limitation, when the quantity thereof sufficeth.* For first supposing the thing to be used in

common, not sufficient for them that are to use it without limitation, if a few shall make more use thereof than the rest, that equality is not observed, which is required in the second section. And this is to be understood, as all the rest of the laws of nature, without any other covenant antecedent: for a man may have given away his right of common, and so the case be altered.

Another, that things indivisible and incommunicable, be divided by lot.

4. In those things which neither can be divided, nor used in common, the rule of nature must needs be one of these, *lot*, or *alternate use*: for besides these two ways, there can no other equality be imagined; and for alternate use, he that beginneth, hath the advantage; and to reduce that advantage to equality, there is no other way but lot, in things, therefore indivisible and incommunicable, it is the law of nature, *That the use be alternate, or the advantage given away by lot*; because there is no other way of equality. And equality is the law of nature.

Natural lot, primogeniture, and first possession.

5. There be two sorts of lots; one arbitrary, made by men, and commonly known by the names of *lot*, *chance*, *hazard*, and the like; and there is *natural lot*, such as is *primogeniture*, which is no more but the chance, or lot, of being first born, which it seemeth they considered, that call inheritance by the name of κληρονομία, which signifieth *distribution* by lot. Secondly, *prima occupatio*, first seizing, or finding of a thing, whereof no man made use before, which for the most part also is merely *chance*.

That men submit to arbitration.

6. Although men agree upon these laws of nature, and endeavour to observe the same; yet considering the passions of men, that make it difficult to understand by what actions, and circumstances of actions, those laws are broken, there must needs arise many great controversies about the interpretation thereof, by which the peace must needs be dissolved, and men return again to their former estate of hostility. For the taking away of which controversies, it is necessary that there be some common *arbitrator* and *judge*, to whose sentence both the parties in the controversies ought to stand. And therefore it is a law of nature, *That in every controversy, the parties thereto ought mutually to agree upon an arbitrator, whom they both trust; and mutually to covenant to stand to the sentence he shall*

give therein. For where every man is his own *judge*, there properly is no judge at all; as where every man carveth out his own right, it hath the same effect, as if there were no right at all: and where is no judge, there is no end of controversy: and therefore the right of hostility remaineth.

Of an arbitrator.

7. An *arbitrator* therefore, or he that is judge, is trusted by the parties to any controversy, to determine the same by the declaration of his own judgment therein. Out of which followeth first, that the judge ought not to be concerned in the controversy he endeth; for in that case he is a party, and ought by the same reason to be judged by another. Secondly, that he maketh no covenant with either of the parties, to pronounce sentence for the one, more than for the other. Nor doth he covenant so much, as that his sentence shall be just; for that were to make the parties judges of the sentence, whereby the controversy would remain still undecided. Nevertheless for the trust reposed in him, and for the equality which the law of nature requireth him to consider in the parties, he violateth that law, if for favour, or hatred to either party, he give other sentence than he thinketh right. And thirdly, that no man ought to make himself judge in any controversy between others, unless they consent and agree thereto.

That no man press his counsel upon any man against his will.

8. It is also the law of nature, *That no man obtrude or press his advice or counsel to any man, that declareth himself unwilling to hear the same.* For seeing a man taketh counsel concerning what is good or hurt of himself only, and not of his counsellor, and that counsel is a voluntary action, and therefore tendeth also to the good of the counsellor, there may be often just cause to suspect the counsellor: and though there be none, yet seeing counsel unwillingly heard, is a needless offence to him that is not willing to hear it, and offences tend all to the breach of peace, it is therefore against the law of nature to obtrude it.

How to know suddenly what is the law of nature.

9. A man that shall see these laws of nature set down and inferred with so many words, and so much ado, may think there is yet much more difficulty and subtlety required to acknowledge and do according to the said laws in every sudden occasion, when a man hath but a little time to consider. And while we consider man in most passions, as of

anger, ambition, covetousness, vain glory, and the like, that tend to the excluding of natural equality, it is true. But without these passions, there is an easy rule to know upon a sudden, whether the action I be to do, be against the law of nature, or not. And it is but this: *That a man imagine himself in place of the party with whom he hath to do, and reciprocally him in his.* Which is no more but a changing, as it were, of the scales. For every man's passion weigheth heavy in his own scale, but not in the scale of his neighbour. And this rule is very well known and expressed in this old dictate, *Quod tibi fieri non vis, alteri ne feceris.*

That the law of nature taketh place after security from others to observe the same.

10. These laws of nature, the sum whereof consisteth in forbidding us to be our own judges, and our own carvers, and in commanding us to accommodate one another, in case they should be observed by some, and not by others, would make the observers but a prey to them that should neglect them, leaving the good both without defence against the wicked, and also with a charge to assist them: which is against the scope of the said laws, that are made only for the protection and defence of them that keep them. Reason therefore, and the law of nature over and above all these particular laws, doth dictate this law in general, *That those particular laws be so far observed, as they subject us not to any incommodity, that in our own judgments may arise, by the neglect thereof in those towards whom we observe them;* and consequently requireth no more but the desire and constant intention to endeavour and be ready to observe them, unless there be cause to the contrary in other men's refusal to observe them towards us. The force therefore of the law of nature, is not *in foro externo*, till there be security for men to obey it, but is always *in foro interno*, wherein the action of obedience being unsafe, the will and readiness to perform, is taken for the performance.

The right of nature not to be taken away by custom, nor the law of nature abrogated by any act.

11. Amongst the laws of nature, customs and prescriptions are not numbered. For whatsoever action is against reason, though it be reiterated never so often, or that there be never so many precedents thereof, is still against reason, and therefore not a law of nature, but contrary to it. But consent and covenant may so alter the cases, which in the law of nature may be put, by changing the

circumstances, that that which was reason before, may afterwards be against it; and yet is reason still the law. For though every man be bound to allow equality to another, yet if that other shall see cause to renounce the same, and make himself inferior, then, if from thenceforth he consider him as inferior, he breaketh not thereby that law of nature that commandeth to allow equality. In sum, *a mans own consent may abridge him of the liberty which the law of nature leaveth him, but custom not*; nor can either of them abrogate either these, or or any other law of nature.

Why the dictates of nature are called laws.

12. And forasmuch as law, to speak properly, is a command, and these dictates, as they proceed from nature, are not commands, they are not therefore called laws, in respect of nature, but in respect of the author of nature, God Almighty.

Whatsoever is against conscience in a man, that is his own judge, is against the law of nature.

13. And seeing the laws of nature concern the conscience, not he only breaketh them that doth any action contrary, but also he whose action is conformable to them, in case he think it contrary. For though the action chance to be right, yet in his judgment he despiseth the law.

Of *malum pænæ*, *malum culpæ*; virtue and vice.

14. Every man by natural passion, calleth that good which pleaseth him for the present, or so far forth as he can foresee; and in like manner, that which displeaseth him, evil. And therefore he that foreseeeth the whole way to his preservation, which is the end that every one by nature aimeth at, must also call it good, and the contrary evil. And this is that good and evil, which not every man in passion calleth so, but all men by reason. And therefore the fulfilling of all these laws is good in reason, and the breaking of them evil. And so also the habit, or disposition, or intention to fulfil them good; and the neglect of them evil. And from hence cometh that distinction of *malum pænæ*, and *malum culpæ*; for *malum pænæ* is any pain or molestation of the mind whatsoever; but *malum culpæ* is that action which is contrary to reason and the law of nature: as also the habit of doing according to these and other laws of nature, that tend to our preservation, is that we call *virtue*; and the habit of doing the contrary, *vice*. As for example, justice is that habit by which we stand to covenants, injustice the contrary vice;

equity that habit by which we allow equality of nature, arrogancy the contrary vice; gratitude the habit whereby we requite the benefit and trust of others, ingratitude the contrary vice; temperance the habit by which we abstain from all things that tend to our destruction, intemperance the contrary vice; prudence, the same with virtue in general. As for the common opinion, that virtue consisteth in mediocrity, and vice in extremes, I see no ground for it, nor can find any such mediocrity. Courage may be virtue, when the daring is extreme, if the cause be good, and extreme fear no vice when the danger is extreme. To give a man more than his due, is no injustice, though it be to give him less: and in gifts it is not the sum that maketh liberality, but the reason. And so in all other virtues and vices. I know that this doctrine of mediocrity is Aristotle's, but his opinions concerning virtue and vice, are no other than those, which were received then, and are still by the generality of men unstudied, and therefore not very likely to be accurate.

Aptitude to society, fulfilleth the law of nature.

15. The sum of virtue is to be sociable with them that will be sociable, and formidable to them that will not. And the same is the sum of the law of nature: for in being sociable, the law of nature taketh place by way of peace and society; and to be formidable, is the law of nature in war, where to be feared is a protection a man hath from his own power: and as the former consisteth in actions of equity and justice, the latter consisteth in actions of honour. And equity, justice, and honour, contain all virtues whatsoever.

CHAPTER V.

A Confirmation out of Holy Scripture of the principal points mentioned in the two last Chapters concerning the Law of Nature.

Confirmation out of Scripture, &c.

1. The laws mentioned in the former chapters, as they are called the laws of nature, for that they are the dictates of natural reason, and also moral laws, because

they concern the manners and conversation of men, one towards another; so are they also divine laws in respect of the author thereof, God Almighty; and ought therefore to agree, or at least, not to be repugnant to the word of God revealed in Holy Scripture. In this chapter therefore, I shall produce such places of Scripture, as appear to be most consonant to the said laws.

2. And first, the word of God seemeth to place the divine law in reason, by all such texts as ascribe the same to the heart and understanding; as Psalm xl. 8: *Thy law is in my heart.* Heb. viii. 10: *After those days, saith the Lord, I will put my laws in their mind:* and Heb. x. 16, the same. Psalm xxxvii. 31, speaking of the righteous man, he saith, *The law of God is in his heart.* Psalm xix. 7, 8: *The law of God is perfect, converting the soul. It giveth wisdom to the simple, and, light unto the eyes.* Jer. xxxi. 33: *I will put my law in their inward parts, and write it in their hearts.* And (John i.) the lawgiver himself, God Almighty, is called by the name of Λόγος, which is also called (verse 4) *The light of men;* and (verse 9) *The light which lighteth every man, which cometh into the world.* All which are descriptions of natural reason.

3. And that the law divine, for so much as is moral, are those precepts which tend to peace, seemeth to be much confirmed by such places of Scripture as these: Rom. iii. 17, righteousness which is the fulfilling of the law, is called *The way of peace.* And Psalm lxxxv. 10: *Righteousness and peace shall kiss each other.* And Matth. v. 9: *Blessed are the peace-makers.* And Heb. vii. 2, *Melchisedec king of Salem* is interpreted *king of righteousness, and king of peace.* And (verse 21) our Saviour Christ is said to be *a priest for ever after the order of Melchisedec:* out of which may be inferred, that the doctrine of our Saviour Christ annexeth the fulfilling of the law to peace.

4. That the law of nature is unalterable, is intimated by this, that the priesthood of Melchisedec is everlasting; and by the words of our Saviour, (Matth. v. 18): *Heaven and earth shall pass away, but one jot or tittle of the law shall not pass till all things be fulfilled.*

5. That men ought to stand to their covenants, is taught Psalm xv, where the question being asked (verse 1), *Lord who shall dwell in thy tabernacle, &c.* It is answered (verse 4), *He that sweareth to his own hindrance, and yet changeth not.* And that men ought to be gratified,

where no covenant passeth, Deut. xxv. 4: *Thou shalt not muzzle the ox that treadeth out the corn*, which St. Paul (1 Cor. ix. 9) interpreteth not of oxen but of men.

6. That men content themselves with equality, as it is the foundation of natural law, so also is it of the second table, of the divine law, Matth. xxii. 39, 40: *Thou shalt love thy neighbour as thyself. On these two laws depend the whole law and the prophets*; which is not so to be understood, as that a man should study so much his neighbour's profit as his own, or that he should divide his goods amongst his neighbours; but that he should esteem his neighbour worthy all rights and privileges that himself enjoyeth; and attribute unto him, whatsoever he looketh should be attributed unto himself: which is no more, but that he should be humble, meek, and content with equality.

7. And that in distributing of right amongst equals, that distribution is to be made according to the proportions of the numbers, which is the giving of *æqualia æqualibus, et proportionalia proportionalibus*; we have Numb. xxvi. 53, 54, the commandment of God to Moses: *Thou shalt divide the land according to the number of names; to many thou shalt give more, to few thou shalt give less, to every one according to his number*. That decision by lot is a means of peace, Prov. xviii. 18: *The lot causeth contention to cease, and maketh partition among the mighty*.

8. That the accommodation and forgiveness of one another, which have before been put for laws of nature, are also law divine, there is no question. For they are the essence of charity, which is the scope of the whole law. That we ought not to reproach, or reprehend one another, is the doctrine of our Saviour, Matth. vii. 1: *Judge not, that ye be not judged*: (verse 3): *Why seest thou the mote that is in thy brother's eye, and seest not the beam that is in thine own eye?* Also the law that forbiddeth us to press our counsel upon others further than they admit, is a divine law. For after our charity and desire to rectify one another is rejected, to press it further, is to reprehend him, and condemn him, which is forbidden in the text last recited; as also Rom. xiv. 12, 13: *Every one of us shall give account of himself to God. Let us not therefore judge one another any more, but use your judgment rather in this, that no man put an occasion to fall, or a stumbling block before his brother*.

9. Further, the rule of men concerning the law of nature, *Quod tibi fieri non vis, alteri ne feceris*, is confirmed by the like, Matth. vii. 12: *Whatsoever therefore you would have men do unto you, that do you unto them: for this is the law and the prophets*. And Rom. ii. 1: *In that thou judgest another, thou condemnest thyself, &c.*

10. It is also manifest by the Scriptures, that these laws concern only the tribunal of our conscience; and that the actions contrary to them, shall be no further punished by God Almighty, than as they proceed from negligence, or contempt. And first, that these laws are made to the conscience, appeareth, Matth. v. 20: *For I say unto you, except your righteousness exceed the righteousness of the Scribes and Pharisees, ye shall not enter into the kingdom of heaven*. Now the Pharisees were the most exact amongst the Jews in the external performance; they therefore must want the sincerity of conscience; else could not our Saviour have required a greater righteousness than theirs. For the same reason our Saviour Christ saith (Luke, xviii. 14): *The publican departed from the temple justified, rather than the Pharisee*. And Christ saith, (Matth. xi. 30): *My yoke is easy, and my burthen light*; which proceedeth from this, that Christ required no more than our best endeavour. And Rom. xiv. 23: *He that doubteth, is condemned, if he eat*. And in innumerable places both in the Old and New Testament, God Almighty declareth, that he taketh the will for the deed, both in good and evil actions. By all which it plainly appears, that the divine law is dictated to the conscience. On the other side it is no less plain, that how many and heinous actions soever a man commit through infirmity, he shall nevertheless, whensoever he shall condemn the same in his own conscience, be freed from the punishments that to such actions otherwise belong. For, *At what time soever a sinner doth repent him of his sins from the bottom of his heart, I will put all his iniquities out of my remembrance, saith the Lord*.

11. Concerning revenge, which by the law of nature ought not to aim, as I have said chapter III. [section 10](#), at present delight, but future profit, there is some difficulty made, as if the same accorded not with the law divine, by such as object the continuance of punishment after the day of judgment, when there shall be no place, neither for amendment, nor for example. This objection had been of some force, if such punishment had been ordained after all sins were past; but considering the

punishment was instituted before sin, it serveth to the benefit of mankind, because it keepeth men in peaceable and virtuous conversation by the terror. And therefore such revenge was directed to the future only.

12. Finally, there is no law of natural reason, that can be against the law divine: for God Almighty hath given reason to a man to be a light unto him. And I hope it is no impiety to think, that God Almighty will require a strict account thereof, at the day of judgment, as of the instructions which we were to follow in our peregrination here, notwithstanding the opposition and affronts of supernaturalists now a-days, to rational and moral conversation.

CHAPTER VI.

1. That men, notwithstanding these laws, are still in the state of war, till they have security one against another. 2. The law of nature in war, is nothing but honour. 3. No security without the concord of many. 4. That concord of many cannot be maintained without power to keep them all in awe. 5. The cause why concord remaineth in a multitude of some irrational creatures, and not of men. 6. That union is necessary for the maintaining of concord. 7. How union is made. 8. Body politic defined. 9. Corporation defined. 10. Sovereign and subject defined. 11. Two sorts of bodies politic, patrimonial and commonwealth.

That men, notwithstanding these laws, are still in the state of war, till they have security one against another.

1. In chapter XII. [section 6](#), of the *Treatise of Human Nature*, it hath been shewed, that the opinions men have of the rewards and punishments which are to follow their actions, are the causes that make and govern the will to those actions. In this estate of man therefore, wherein all men are equal, and every man allowed to be his own judge, the fears they have one of another are equal, and every man's hopes consist in his own sleight and strength: and consequently when any man by his natural passion, is provoked to break these laws of nature, there is no security in any other man of his own defence but *anticipation*. And for this cause, every man's right, howsoever he be inclined to peace, of doing whatsoever

seemeth good in his own eyes, remaineth with him still, as the necessary means of his preservation. And therefore till there be security amongst men for the keeping of the law of nature one towards another, men are still in the estate of war, and nothing is unlawful to any man that tendeth to his own safety or commodity: and this safety and commodity consisteth in the mutual aid and help of one another, whereby also followeth the mutual fear of one another.

The law of nature in war, is nothing but honour.

2. It is a proverbial saying, *inter arma silent leges*. There is a little therefore to be said concerning the laws that men are to observe one towards another in time of war, wherein every man's being and well-being is the rule of his actions. Yet thus much the law of nature commandeth in war, that men satiate not the cruelty of their present passions, whereby in their own conscience they foresee no benefit to come. For that betrayeth not a necessity, but a disposition of the mind to war, which is against the law of nature. And in old time we read, that rapine was a trade of life, wherein nevertheless many of them that used it, did not only spare the lives of those they invaded, but left them also such things, as were necessary to preserve that life which they had given them; as namely their oxen and instruments for tillage, though they carried away all their other cattle and substance. And as the rapine itself was warranted in the law of nature, by the want of security otherwise to maintain themselves, so the exercise of cruelty was forbidden by the same law of nature, unless fear suggested anything to the contrary. For nothing but fear can justify the taking away of another's life. And because fear can hardly be made manifest, but by some action dishonourable, that bewrayeth the conscience of one's own weakness, all men, in whom the passion of courage or magnanimity hath been predominant, have abstained from cruelty; insomuch, that though there be in war no law, the breach whereof is injury, yet there are in war those laws, the breach whereof is dishonour. In one word, therefore, the only law of actions in war, is *honour*; and the right of war, *providence*.

No security without the concord of many.

3. And seeing natural aid is necessary for defence, as mutual fear is necessary for peace, we are to consider how great aids are required for such defence, and for the causing of such mutual fear, as men may not easily adventure on one another. And first, it is evident, that the mutual aid of

two or three men is of very little security. For the odds on the other side, of a man or two, giveth sufficient encouragement to an assault. And therefore before men have sufficient security in the help of one another, their number must be so great, that the odds of a few which the enemy may have, be no certain and sensible advantage.

That concord of many cannot be maintained without power to keep them all in awe.

4. And supposing how great a number soever of men assembled together for their mutual defence, yet shall not the effect follow, unless they all direct their actions to one and the same end; which direction to one and the same end is that which, chap. XII. [sect. 7](#), is called *consent*. This *consent*, or concord, amongst so many men, though it may be made by the fear of a present invader, or by the hope of a present conquest, or booty, and endure as long as that action endureth, nevertheless, by the diversity of judgments and passions in so many men contending naturally for honour and advantage one above another, it is impossible, not only that their consent to aid each other against an enemy, but also that the peace should last between themselves, without some mutual and common fear to rule them.

The cause why concord remaineth in a multitude of some irrational creatures, and not of men.

5. But contrary hereunto may be objected, the experience we have of certain living creatures irrational, that nevertheless continually live in such good order and government for their common benefit, and are so free from sedition and war amongst themselves, that for peace, profit, and defence, nothing more can be imaginable. And the experience we have in this, is in that little creature the bee, which is therefore reckoned amongst *animalia politica*. Why therefore may not men, that foresee the benefit of concord, continually maintain the same without compulsion, as well as they? To which I answer, that amongst other living creatures, there is no question of precedence in their own species, nor strife about honour, or acknowledgment of one another's wisdom, as there is amongst men, from whence arise envy and hatred of one towards another, and from thence sedition and war. Secondly, those living creatures aim every one at peace and food common to them all; men aim at dominion, superiority, and private wealth, which are distinct in every man, and breed contention. Thirdly, those living creatures that are without reason, have not learning enough to espy, or to think they espy, any defect in

the government; and therefore are contented therewith. But in a multitude of men, there are always some that think themselves wiser than the rest, and strive to alter what they think amiss, and divers of them strive to alter divers ways, and that causeth war. Fourthly, they want speech, and are therefore unable to instigate one another to faction, which men want not. Fifthly, they have no conception of right and wrong, but only of pleasure and pain, and therefore also no censure of one another, nor of their commander, as long as they are themselves at ease; whereas men that make themselves judges of right and wrong, are then least at quiet, when they are most at ease. Lastly, natural concord, such as is amongst those creatures, is the work of God by the way of nature; but concord amongst men is artificial, and by way of covenant. And therefore no wonder, if such irrational creatures as govern themselves in multitude, do it much more firmly than mankind, that do it by arbitrary institution.

That union is necessary for the maintaining of concord.

6. It remaineth therefore still, that consent, by which I understand the concurrence of many men's wills to one action, is not sufficient security for their common peace, without the erection of some common power, by the fear whereof they may be compelled both to keep the peace amongst themselves, and to join their strengths together, against a common enemy. And that this may be done, there is no way imaginable, but only union, which is defined, chapter XII. [section 8](#), to be the involving, or including the wills of many in the will of one man, or in the will of the greatest part of any one number of men, that is to say, in the will of one man, or of one *council*. For a council is nothing else but an *assembly* of men deliberating concerning something common to them all.

How union is made.

7. The making of union consisteth in this, that every man by covenant oblige himself to some one and the same man, or to some one and the same council, by them all named and determined, to do those actions, which the said man or council shall command them to do, and to do no action, which he or they shall forbid, or command them not to do. And further, in case it be a council, whose commands they covenant to obey, that then also they covenant, that every man shall hold that for the command of the whole council, which is the command of the greater part of those men, whereof such

council consisteth. And though the will of man being not voluntary, but the beginning of voluntary actions, is not subject to deliberation and covenant; yet when a man covenanteth to subject his will to the command of another, he obligeth himself to this, that he resign his strength and means to him, whom he covenanteth to obey. And hereby he that is to command, may by the use of all their means and strength, be able by the terror thereof, to frame the will of them all to unity and concord, amongst themselves.

Body politic defined.

8. This union so made, is that which men call now a-days, a *body politic*, or civil society; and the Greeks call it πόλις, that is to say, a city, which may be defined to be a multitude of men, united as one person, by a common power, for their common peace, defence, and benefit.

Corporation defined.

9. And as this union into a city or body politic, is instituted with common power over all the particular persons, or members thereof, to the common good of them all; so also may there be amongst a multitude of those members instituted, a subordinate union of certain men, for certain common actions to be done by those men for some common benefit of theirs, or of the whole city; as for subordinate government, for counsel, for trade, and the like. And these subordinate bodies politic are usually called *corporations*; and their power such over the particulars of their own society, as the whole city, whereof they are members, have allowed them.

Sovereign and subject defined.

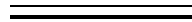
10. In all cities, or bodies politic not subordinate, but independent, that one man, or one council, to whom the particular members have given that common power, is called their *sovereign*, and his power, the sovereign power; which consisteth in the power and the strength, that every of the members have transferred to him from themselves by covenant. And because it is impossible for any man really to transfer his own strength to another, or for that other to receive it; it is to be understood, that to transfer a man's power and strength, is no more but to lay by, or relinquish his own right of resisting him to whom he so transferreth it. And every member of the body politic, is called a *subject*, to wit, to the *sovereign*.

Two sorts of bodies politic, patrimonial and commonwealth.

11. The cause in general, which moveth a man to become subject to another, is (as I have said already) the fear of not otherwise preserving himself. And a

man may subject himself to him that invadeth, or may invade him, for fear of him; or men may join amongst themselves, to subject themselves to such as they shall agree upon for fear of others. And when many men subject themselves the former way, there ariseth thence a body politic, as it were naturally. From whence proceedeth *dominion, paternal* and *despotic*. And when they subject themselves the other way, by mutual agreement amongst many, the body politic they make, is for the most part, called a *commonwealth*, in distinction from the former, though the name be the general name for them both. And I shall speak in the first place of commonwealths, and afterwards of bodies politic, patrimonial, and despotical.

THE SECOND PART.



CHAPTER I.

1. Introduction. 2. A multitude before their union, &c. 3. Express consent of every particular, &c. 4. Democratical, aristocratical, and monarchical union may be instituted for ever, or, &c. 5. Without security no private right relinquished. 6. Covenants of government, without power of coercion, are no security. 7. Power coercive, &c. 8. The sword of war, &c. 9. Decision in all debates, &c. annexed to the sword. 10. Laws civil, &c. 11. Appointment of magistrates, &c. 12. Sovereign power includeth impunity. 13. A supposed commonwealth, where laws are made first, and the commonwealth after. 14. The same refelled. 15. Mixed forms of government supposed in sovereignty. 16. That refelled. 17. Mixed government, &c. 18. Reason and experience to prove absolute sovereignty somewhere in all commonwealths. 19. Some principal, &c. marks of sovereignty.

Introduction.

1. That *Treatise of Human Nature*, which was formerly printed, hath been wholly spent in the consideration of the natural power, and the natural estate of man, namely, of his cognition and passions in the first eleven chapters, and how from thence proceed his actions; in the twelfth, how men know one another's minds: in the last, in what estate men's passions set them. In the first, second, third, fourth, and fifth chapters of the former Part of this Treatise is showed, what estate they are directed unto by the dictates of reason, that is to say, what be the principal articles of the law of nature. And lastly, how a multitude of persons natural, are united by covenants into one person civil, or body politic. In this part therefore shall be considered, the nature of a body politic, and the laws thereof, otherwise called civil laws. And whereas it hath been said in the last chapter, and [last section](#) of the former part, that there be two ways of erecting a body politic; one by arbitrary institution of many men assembled together, which is like a creation out of nothing by human wit; the other by compulsion, which is as it were a generation thereof out of natural force; I shall first

speak of such erection of a body politic, as proceedeth from the assembly and consent of a multitude.

A multitude
before their
union, &c.

2. Having in this place to consider, a multitude of men about to unite themselves into a body politic, for their security, both against one another, and against common enemies, and that by covenants; the knowledge of what covenants they must needs make, dependeth on the knowledge of the persons, and the knowledge of their end. First, for their persons they are many, and (as yet) not one; nor can any action done in a multitude of people met together, be attributed to the multitude, or truly called the action of the multitude, unless every man's hand, and every man's will, (not so much as one excepted) have concurred thereto. For multitude, though in their persons they run together, yet they concur not always in their designs. For even at that time when men are in tumult, though they agree a number of them to one mischief, and a number of them to another; yet, in the whole, they are amongst themselves in the state of hostility, and not of peace; like the seditious Jews besieged in Jerusalem, that could join against their enemies, and fight amongst themselves. Whensoever therefore any man saith, that a number of men hath done any act, it is to be understood, that every particular man in that number hath consented thereunto, and not the greatest part only. Secondly, though thus assembled with intention to unite themselves, they are yet in that estate in which every man hath right to everything, and consequently, as hath been said, chapter I. [section 10](#), in an estate of enjoying nothing. And therefore *meum* and *tuum* hath no place amongst them.

Express consent
of every
particular, &c.

3. The first thing therefore they are to do, is expressly every man to consent to something, by which they may come near to their ends, which can be nothing else imaginable, but this, that they allow the wills of the major part of their whole number, or the wills of the major part of some certain number of men by them determined and named; or lastly, the will of some one man, to involve and be taken for the wills of every man. And this done, they are united, and a *body politic*. And if the major part of their whole number be supposed to involve the wills of all the particulars, then are they said to be a *democracy*, that is to say, a government wherein the whole number, or so many of them as please,

being assembled together, are the sovereign, and every particular man a subject. If the major part of a certain number of men named or distinguished from the rest, be supposed to involve the wills of every one of the particulars, then are they said to be an *oligarchy*, or *aristocracy*, which two words signify the same thing, together with the divers passions of those that use them. For when the men that be in that office please, they are called an aristocracy, or otherwise an oligarchy, wherein those, the major part of which declare the wills of the whole multitude being assembled, are the sovereign, and every man severally a subject. Lastly, if their consent be such, that the will of one man, whom they name, shall stand for the wills of them all, then is their government or union called a *monarchy*, and that one man a sovereign, and every of the rest a subject.

**Democratical,
aristocratical,
and
monarchical
union may be
instituted for
ever.**

4. And those several sorts of unions, governments, and subjections of man's will, may be understood to be made, either absolutely, that is to say, for all future time, or for a time limited only. But forasmuch as we speak here of a body politic, instituted for the perpetual benefit and defence of them that make it; which therefore men desire should last for ever, I will omit to speak of those that be temporary, and consider of those that be for ever.

**Without
security no
private right
relinquished.**

5. The end for which one man giveth up, and relinquisheth to another, or others, the right of protecting and defending himself by his own power, is the security which he expecteth thereby, of protection and defence from those to whom he doth so relinquish it; and a man may then account himself in the estate of security, when he can foresee no violence to be done unto him, from which the doer may not be deterred by the power of that sovereign, to whom they have every one subjected themselves: and without that security, there is no reason for a man to deprive himself of his own advantages, and make himself a prey to others. And therefore when there is not such a sovereign power erected, as may afford this security, it is to be understood, that every man's right of doing whatsoever seemeth good in his own eyes, remaineth still with him; and contrariwise, where any subject hath right by his own judgment and discretion, to make use of his force, it is to be understood, that every man hath the like, and consequently, that there is

no commonwealth at all established. How far therefore in the making of a commonwealth, man subjecteth his will to the power of others, must appear from the end, namely, security. For whatsoever is necessary to be by covenant transferred, for the attaining thereof, so much is transferred, or else every man is in his natural liberty to secure himself.

Covenants of government without power of coercion, are no security.

6. Covenants agreed upon by every man assembled for the making of a commonwealth, and put in writing without erecting of a power of coercion, are no reasonable security for any of them that so covenant, nor are to be called laws, and leave men still in the estate of nature and hostility. For seeing the wills of most men are governed only by fear, and where there is no power of coercion, there is no fear, the wills of most men will follow their passions of covetousness, lust, anger, and the like, to the breaking of those covenants, whereby the rest, also, who otherwise would keep them, are set at liberty, and have no law, but from themselves.

Power coercive, &c.

7. This power of coercion, as hath been said, chap. II. [sect. 3](#), of the former part, consisteth in the transferring of every man's right of resistance against him, to whom he hath transferred the power of coercion. It followeth therefore, that no man in any commonwealth whatsoever, hath right to resist him, or them, to whom they have transferred this power coercive, or (as men use to call it) the sword of justice, supposing the not-resistance possible. For, Part I. chapter II. [sect. 18](#), covenants bind but to the utmost of our endeavour.

The sword of war, &c.

8. And forasmuch as they who are amongst themselves in security, by the means of this sword of justice, that keeps them all in awe, are nevertheless in danger of enemies from without, if there be not some means found, to unite their strengths and natural forces, in the resistance of such enemies, their peace amongst themselves is but in vain. And therefore it is to be understood as a covenant of every member to contribute their several forces for the defence of the whole, whereby to make one power as sufficient, as is possible for their defence. Now seeing that every man hath already transferred the use of his strength to him, or them, that have the sword of justice, it followeth, that the power of defence, that is to say, the sword of war, be in the same hands wherein is the sword of

justice; and consequently those two swords are but one, and that inseparably and essentially annexed to the sovereign power.

Decision in all debates, &c. annexed to the sword.

9. Moreover, seeing to have the right of the sword, is nothing else but to have the use thereof depending only on the judgment and discretion of him or them that have it, it followeth, that the power of indenture in all controversies, wherein the sword of justice is to be used; and in all deliberations concerning war, wherein the use of that sword is required, the right of resolving and determining what is to be done, belong to the same sovereign.

Laws civil, &c.

10. Further, considering it is no less, but much more necessary to prevent violence and rapine, than to punish the same when it is committed, and all violence proceedeth from controversies that arise between men concerning *meum* and *tuum*, right and wrong, good and bad, and the like, which men use every one to measure by their own judgments, it belongeth also to the judgment of the same sovereign power, to set forth and make known the common measure by which every man is to know what is his, and what another's; what is good, and what bad, and what he ought to do, and what not, and to command the same to be observed. And these measures of the actions of the subjects are those, which men call *laws politic*, or civil: the making whereof, must of right belong to him that hath the power of the sword, by which men are compelled to observe them; for otherwise they should be made in vain.

Appointment of magistrates, &c.

11. Furthermore, seeing it is impossible that any one man that hath such sovereign power, can be able, in person, to hear and determine all controversies, to be present at all deliberations concerning common good, and to execute and perform all those common actions that belong thereunto, whereby there will be necessity of magistrates and ministers of public affairs; it is consequent, that the appointment, nomination, and limitation of the same be understood, as an inseparable part of the same sovereignty, to which the sum of all judicature, and execution, hath been already annexed.

Sovereign power includeth impunity.

12. And forasmuch, as the right to use the forces of every particular member, is transferred from themselves, to their sovereign, a man will easily fall

upon this conclusion of himself, that to sovereign power, whatsoever it doth, there belongeth impunity.

**A supposed
commonwealth
where laws are
made first, and
the
commonwealth
after.**

13. The sum of these rights of sovereignty; namely, the absolute use of the sword in peace and war, the making and abrogating of laws, *supreme judicature, and decision*, in all debates judicial and deliberative, the nomination of all magistrates and ministers, with other rights contained in the same, make the sovereign power no less absolute in the commonwealth, than before commonwealth every man was absolute in himself, to do, or not to do, what he thought good; which men, that have not had the experience of that miserable estate, to which men are reduced by long war, think so hard a condition, that they cannot easily acknowledge such covenants, and subjection on their parts, as are here set down, to have been ever necessary to their peace. And therefore some have imagined, that a commonwealth may be constituted in such manner, as the sovereign power may be so limited, and moderated, as they shall think fit themselves. For example: they suppose a multitude of men to have agreed upon certain articles, which they presently call laws, declaring how they will be governed, and that done, to agree further upon some man, or number of men, to see the same articles performed, and put in execution; and to enable him, or them, thereunto, they allot unto them a provision limited, as of certain lands, taxes, penalties, and the like, than which, if mispent, they shall have no more, without a new consent of the same men that allowed the former. And thus they think they have made a commonwealth, in which it is unlawful for any private man to make use of his own sword for his security; wherein they deceive themselves.

**The same
refelled.**

14. For first, if to the revenue, it did necessarily follow, that there might be forces raised and procured at the will of him that hath such revenue; yet since the revenue is limited, so must also the forces: but limited forces against the power of an enemy, which we cannot limit, are insufficient. Whensoever therefore there happeneth an invasion greater than those forces are able to resist, and there be no other right to levy more, then is every man, by necessity of nature, allowed to make the best provision he can for himself; and thus is the private sword, and the estate of war again

reduced. But seeing revenue, without the right of commanding men, is of no use, neither in peace, nor war, it is necessary to be supposed, that he that hath the administration of those articles, which are in the former section supposed, must have also right to make use of the strengths of particular men. And what reason soever giveth him that right over any one, giveth him the same over all. And then is his right absolute. For he that hath right to all their forces, hath right to dispose of the same. Again, supposing those limited forces and revenue, either by the necessary, or negligent use of them, to fail, and that for a supply, the same multitude be again to be assembled, who shall have power to assemble them, that is to compel them to come together? If he that demandeth the supply hath that right, to wit, the right to compel them all, then is his sovereignty absolute; if not, then is every particular man at liberty to come or not; to frame a new commonwealth, or not, and so the right of the private sword returneth. But suppose them willingly, and of their own accord, assembled to consider of this supply, if now it be still in their choice, whether they shall give it, or not, it is also in their choice, whether the commonwealth shall stand or not. And therefore there lieth not upon any of them any civil obligation that may hinder them from using force, in case they think it tend to their defence. This device therefore of them that will make civil laws first, and then a civil body afterwards, (as if policy made a body politic, and not a body politic made policy) is of no effect.

Mixed forms of government supposed in sovereignty.

15. Others, to avoid the hard condition, as they take it, of absolute subjection, which, in hatred thereto, they also call slavery, have devised a government, as they think, mixed of the three sorts of sovereignty. As for example: they suppose the power of making laws, given to some great assembly democratical, the power of judicature to some other assembly, and the administration of the laws to a third, or to some one man; and this policy they call mixed monarchy, or mixed aristocracy, or mixed democracy, according as any of these three sorts do most visibly predominate. And in this estate of government, they think the use of the private sword excluded.

That refelled.

16. And supposing it were so, how were this condition, which they call *slavery*, eased thereby. For in this estate they would have no man allowed, either to be his own judge, or own carver,

or to make any laws unto himself; and as long as these three agree, they are as absolutely subject to them, as is a child to the father, or a slave to the master, in the state of nature. The ease therefore of this subjection, must consist in the disagreement of those amongst whom they have distributed the rights of sovereign power. But the same disagreement is war. The division therefore of the sovereignty, either worketh no effect to the taking away of simple subjection, or introduceth war, wherein the private sword hath place again. But the truth is, as hath been already showed in the [seventh](#), [eighth](#), [ninth](#), [tenth](#), [eleventh](#), and [twelfth](#) precedent sections, the sovereignty is indivisible. And that seeming mixture of several kinds of government, is not mixture of the things themselves, but confusion in our understandings, that cannot find out readily to whom we have subjected ourselves.

**Mixed
government,
&c.**

17. But though the sovereignty be not mixed, but be always either simple democracy, or simple aristocracy, or pure monarchy, nevertheless in the administration thereof, all those sorts of government may have place subordinate. For suppose the sovereign power be democracy, as it was sometimes in Rome, yet at the same time they may have a council aristocratical, such as was the senate; and at the same time they may have a subordinate monarch, such as was their dictator, who had, for a time, the exercise of the whole sovereignty, and such as are all generals in war. So also in monarchy there may be a council aristocratical of men, chosen by the monarch; or democratical of men, chosen by the consent, the monarch permitting, of all the particular men of the commonwealth. And this mixture is it that imposeth, as if it were the mixture of sovereignty. As if a man should think, because the great council of Venice doth nothing ordinarily but choose magistrates, ministers of state, captains, and governors of towns, ambassadors, counsellors, and the like, that therefore their part of the sovereignty is only choosing of magistrates; and that the making of war, and peace, and laws, were not theirs, but the part of such counsellors as they appointed thereto: whereas it is the part of *these* to do it but subordinately, the supreme authority thereof being in the great council that choose them.

**Reason and
experience to
prove absolute
sovereignty**

18. And as reason teacheth us, that a man, considered out of subjection to laws, and out of all covenants obligatory to others, is free to do and undo,

somewhere in
all
commonwealths
.

and deliberate as long as he listeth, every member being obedient to the will of the whole man, that liberty being nothing else but his natural power, without which he is no better than an inanimate creature, not able to help himself; so also it teacheth us, that a body politic, of what kind soever, not subject to another, nor obliged by covenants, ought to be free, and in all actions to be assisted by the members, every one in their place, or at least, not resisted by them. For otherwise, the power of a body politic, the essence whereof is the not-resistance of the members, is none, nor a body politic of any benefit. And the same is confirmed by the use of all nations and commonwealths, wherein that man or council, which is virtually the whole, hath any absolute power over every particular member; or what nation or commonwealth is there, that hath not power and right to constitute a general in their wars? But the power of a general is absolute; and consequently there was absolute power in the commonwealth, from whom it was derived. For no person, natural or civil, can transfer unto another more power than himself hath.

Some principal,
&c. marks of
sovereignty.

19. In every commonwealth, where particular men are deprived of their right to protect themselves, there resideth an absolute sovereignty, as I have already showed. But in what man, or in what assembly of men the same is placed, is not so manifest, as not to need some marks, whereby it may be discerned. And first, it is an infallible mark of absolute sovereignty in a man, or in an assembly of men, if there be no right in any other person, natural or civil, to punish that man, or to dissolve that assembly. For he that cannot of right be punished, cannot of right be resisted; and he that cannot of right be resisted, hath coercive power over all the rest, and thereby can frame and govern their actions at his pleasure, which is absolute sovereignty. Contrariwise, he that in a commonwealth is punishable by any, or that assembly that is dissolvable, is not sovereign. For a greater power is always required to punish and dissolve, than theirs who are punished or dissolved; and that power cannot be called sovereign, than which there is a greater. Secondly, that man or assembly, that by their own right not derived from the present right of any other, may make laws, or abrogate them at his or their pleasure, have the sovereignty absolute. For seeing the laws they make, are

supposed to be made by right, the members of the commonwealth, to whom they are made, are obliged to obey them, and consequently not resist the execution of them; which not-resistance, maketh the power absolute of him that ordaineth them. It is likewise a mark of this sovereignty, to have the right original of appointing magistrates, judges, counsellors, and ministers of state. For without that power, no act of sovereignty, or government, can be performed. Lastly, and generally, whosoever by his own authority independent, can do any act, which another of the same commonwealth may not, must needs be understood to have the sovereign power. For by nature men have equal right. This inequality therefore must proceed from the power of the commonwealth. He therefore that doth any act lawfully by his own authority, which another may not, doth it by the power of the commonwealth in himself, which is absolute sovereignty.

CHAPTER II.

1. Democracy precedeth all other, &c. 2.. The sovereign people covenanteth not with the subjects. 3. The sovereign, &c. cannot, &c. do injury, &c. 4. The faults of the sovereign people, &c. 5. Democracy, &c. an aristocracy of orators. 6. Aristocracy how made. 7. The body of the *optimates* not properly said to injure the subjects. 8. The election of the *optimates*, &c. 9. An elective king, &c. 10. A conditional king, &c. 11. The word people equivocal. 12. Obedience discharged by release, &c. 13. How such releases are to be understood. 14. Obedience discharged by exile: 15. By conquest: 16. By ignorance of the right of succession.

**Democracy
precedeth all
other, &c.**

1. Having spoken in general concerning instituted policy in the former chapter, I come in this, to speak of the sorts thereof in special, how every of them is instituted. The first in order of time of these three sorts, is democracy; and it must be so of necessity, because an aristocracy and a monarchy, require nomination of persons agreed upon, which agreement in a great multitude of men, must consist in the consent of the major part; and where the votes of the major part involve the votes of the rest, there is actually a democracy.

The sovereign
people
covenanteth not
with the
subjects.

2. In the making of a democracy, there passeth no covenant between the sovereign, and any subject. For while the democracy is a making, there is no sovereign with whom to contract. For it cannot be imagined, that the multitude should contract with itself, or with any one man, or number of men, parcel of itself, to make itself sovereign; nor that a multitude, considered as one aggregate, can give itself anything which before it had not. Seeing then that sovereignty democratical is not conferred by the covenant of any multitude, which supposeth union and sovereignty already made, it resteth, that the same be conferred by the particular covenants of every several man; that is to say, every man with every man, for and in consideration of the benefit of his own peace and defence, covenanteth to stand to and obey whatsoever the major part of their whole number, or the major part of such a number of them, as shall be pleased to assemble at a certain time and place, shall determine and command. And this is that which giveth being to a democracy, wherein the sovereign assembly was called of the Greeks, by the name of *Demus*, that is, the people, from whence cometh democracy. So that, where to the supreme and independent court, every man may come that will, and give his vote, there the sovereign is called the people.

The sovereign,
&c. cannot, &c.
do injury, &c.

3. Out of this that hath been said, may readily be drawn, that whatsoever the people doth to any one particular member or subject of the commonwealth, the same by him ought not to be styled injury. For first, injury, by the definition, Part I. chap. III. [sect. 2](#), is breach of covenant; but covenants, as hath been said in the precedent section, there passed none from the people to any private man; and consequently it, to wit, the people, can do him no injury. Secondly, how unjust soever the action be, that this sovereign *demus* shall do, is done by the will of every particular man subject to him, who are therefore guilty of the same. If therefore they style it *injury*, they but accuse themselves. And it is against reason for the same man, both to do and complain; implying this contradiction, that whereas he first ratified the people's acts in general, he now disalloweth the same of them in particular. It is therefore said truly, *volenti non fit injuria*. Nevertheless nothing doth hinder, but that divers

actions done by the people, may be unjust before God Almighty, as breaches of the laws of nature.

**The faults of the
sovereign
people, &c.**

4. And when it happeneth, that the people by plurality of voices, decree or command anything contrary to the law of God or nature, though the decree and command be the act of every man, not only present in the assembly, but also absent from it; yet is not the injustice of the decree, the injustice of every particular man, but only of those men, by whose express suffrages, the decree or command was passed. For a body politic, as it is a fictitious body, so are the faculties and will thereof fictitious also. But to make a particular man unjust, which consisteth of a body and soul natural, there is required a natural and very will.

**Democracy, &c.
an aristocracy
of orators.**

5. In all democracies, though the right of sovereignty be in the assembly, which is virtually the whole body; yet the use thereof is always in one, or a few particular men. For in such great assemblies, as those must be, whereinto every man may enter at his pleasure, there is no means any ways to deliberate and give counsel what to do, but by long and set orations, whereby to every man there is more or less hope given, to incline and sway the assembly to their own ends. In a multitude of speakers therefore, where always either one is eminent alone, or a few being equal amongst themselves, are eminent above the rest, that one or few must of necessity sway the whole. Insomuch, that a democracy, in effect, is no more than an aristocracy of orators, interrupted sometimes with the temporary monarchy of one orator.

**Aristocracy
how made.**

6. And seeing a democracy is by institution, the beginning both of aristocracy and monarchy, we are to consider next, how aristocracy is derived from it. When the particular members of the commonwealth growing weary of attendance at public courts, as dwelling far off, or being attentive to their private businesses, and withal, displeased with the government of the people, assemble themselves to make an aristocracy, there is no more required to the making thereof but putting to the question one by one, the names of such men as it shall consist of, and assenting to their election; and by plurality of vote, to transfer that power, which before the people had, to the number of men so named and chosen.

The body of the *optimates* not properly said to injure the subjects.

7. And from this manner of erecting an aristocracy, it is manifest, that the few, or *optimates*, have entered into no covenant with any of the particular members of the commonwealth, whereof they are sovereign; and consequently cannot do any thing to any private man, that can be called *injury* to him, howsoever their act be wicked before Almighty God, according to that which hath been said before, [section 3](#). Further, it is impossible, that the people, as one body politic, should covenant with the aristocracy or *optimates*, on whom they intend to transfer their sovereignty. For no sooner is the aristocracy erected, but the democracy is annihilated, and the covenants made unto them void.

The election of the *optimates*, &c.

8. In all aristocracies, the admission of such, as are from time to time to have vote in the sovereign assembly, dependeth on the will and decree of the present *optimates*. For they being the sovereign, have the nomination, by the [eleventh section](#) of the former chapter, of all magistrates, ministers, and counsellors of state whatsoever, and may therefore choose either to make them elective, or hereditary, at their pleasure.

An elective king, &c.

9. Out of the same democracy, the institution of a political monarch proceedeth in the same manner, as did the institution of the aristocracy, to wit, by a decree of the sovereign people, to pass the sovereignty to one man named and approved by plurality of suffrage. And if this sovereignty be truly and indeed transferred, the estate or commonwealth is an absolute monarchy, wherein the monarch is at liberty, to dispose as well of the succession, as of the possession, and not an elective kingdom. For suppose a decree be made first in this manner, that such a one shall have the sovereignty for his life, and that afterward they will choose a-new. In this case, the power of the people is dissolved, or not; if dissolved, then after the death of him that is chosen, there is no man bound to stand to the decrees of them that shall, as private men, run together to make a new election; and consequently, if there be any man, who by the advantage of the reign of him that is dead, hath strength enough to hold the multitude in peace and obedience, he may lawfully, or rather is by the law of nature obliged so to do: if this power of the people were not dissolved at the choosing of their king for life, then is the people sovereign still, and the king a minister thereof only, but so, as to put the

whole sovereignty in execution; a great minister, but no otherwise for his time, than a dictator was in Rome. In this case, at the death of him that was chosen, they that meet for a new election, have no new, but their old authority for the same. For they were the sovereign all the time, as appeareth by the acts of those elective kings, that have procured from the people, that their children might succeed them. For it is to be understood, when a man receiveth any thing from the authority of the people, he receiveth it not from the people his subjects, but from the people his sovereign. And further, though in the election of a king for his life, the people grant him the exercise of their sovereignty for that time; yet if they see cause, they may recall the same before the time. As a prince that conferreth an office for life, may nevertheless, upon suspicion of abuse thereof, recall it at his pleasure; inasmuch as offices that require labour and care, are understood to pass from him that giveth them, as *onera*, *burthens*, to them that have them; the recalling whereof are therefore not *injury*, but *favour*. Nevertheless, if in making an elective king, with intention to reserve the sovereignty, they reserve not a power at certain known and determined times and places to assemble themselves, the reservation of their sovereignty is of no effect, inasmuch as no man is bound to stand to the decrees and determinations of those that assemble themselves without the sovereign authority.

A conditional
king, &c.

10. In the former [section](#) is showed, that elective kings that exercise their sovereignty for a time, which determines with their life, either are subjects, or not sovereigns; and that it is, when the people in election of them, reserve unto themselves the right of assembling at certain times and places limited and made known; or else absolute sovereigns, to dispose of the succession at their pleasure, and that is, when the people in their election have declared no time nor place of their meeting, or have left it to the power of the elected king, to assemble and dissolve them at such times, as he himself shall think good. There is another kind of limitation of time, to him that shall be elected to use the sovereign power, which whether it hath been practised anywhere, or not, I know not, but it may be imagined, and hath been objected against the rigour of sovereign power; and it is this, that the people transfer their sovereignty upon conditions. As for example, for so long as he shall observe such and such laws, as they

then prescribe him. And here as before in elected kings, the question is to be made, whether in the electing of such a sovereign, they reserved to themselves a right of assembling at times and places limited and known, or not; if not, then is the sovereignty of the people dissolved, and they have neither power to judge of the breach of the conditions given him, nor to command any forces for the deposing of him, whom on that condition they had set up, but are in the estate of war amongst themselves, as they were before they made themselves a democracy: and consequently, if he that is elected by the advantage of the possession he hath of the public means, be able to compel them to unity and obedience, he hath not only the right of nature to warrant him, but the law of nature to oblige him thereunto. But if in electing him, they reserved to themselves a right of assembling, and appointed certain times and places to that purpose, then are they sovereign still, and may call their conditional king to account at their pleasure, and deprive him of his government, if they judge he deserve it, either by breach of the condition set him, or otherwise. For the sovereign power can by no covenant with a subject be bound to continue him in the charge he undergoeth by their command, as a burden imposed not particularly for his good, but for the good of the sovereign people.

The word
people
equivocal

11. The controversies that arise concerning the right of the people, proceed from the equivocation of the word. For the word people hath a double signification. In one sense it signifieth only a number of men, distinguished by the place of their habitation; as the *people* of England, or the *people* of France, which is no more, but the multitude of those particular persons that inhabit those regions, without consideration of any contracts or covenants amongst them, by which any one of them is obliged to the rest. In another sense, it signifieth a person civil, that is to say, either one man, or one council, in the will whereof, is included and involved the will of every one in particular. As for example, in this latter sense, the lower house of parliament is all the commons, as long as they sit there with authority and right thereto; but after they be dissolved, though they remain, they be no more the people, nor the commons, but only the aggregate, or multitude of the particular men there sitting, how well soever they agree, or concur, in opinions amongst themselves; whereupon, they that do not distinguish between these two

significations, do usually attribute such rights to a dissolved multitude, as belong only to the people virtually contained in the body of the commonwealth or sovereignty. And when a great number of their own authority flock together in any nation, they usually give them the name of the whole nation. In which sense they say the people rebelleth, or the people demandeth, when it is no more than a dissolved multitude, of which though any one man may be said to demand or have right to something, yet the heap, or multitude, cannot be said to demand or have right to anything. For where every man hath his right distinct, there is nothing left for the multitude to have right unto: and when the particulars say, this is mine, this is thine, and this is his, and have shared all amongst them, there can be nothing whereof the multitude can say, this is mine; nor are they one body, as behoveth them to be, that demand anything under the name of mine, or his: and when they say ours, every man is understood to pretend in several, and not the multitude. On the other side, when the multitude is united into a body politic, and thereby are a people in the other signification, and their wills virtually in the sovereign, there the rights and demands of the particulars do cease; and he or they that have the sovereign power, doth for them all, demand, and vindicate under the name of his, that which before they called in the plural, theirs.

**Obedience
discharged by
release, &c.**

12. We have seen how particular men enter into subjection, by transferring their rights; it followeth to consider, how such subjection may be discharged. And first, if he or they that have the sovereign power, shall relinquish the same voluntarily, there is no doubt, but every man is again at liberty to obey, or not. Likewise, if he or they retaining the sovereignty over the rest, do nevertheless exempt some one or more, from their subjection, every man so exempted, is discharged. For he or they to whom any man is obliged, hath the power to release him.

**How such
releases are to
be understood.**

13. And here it is to be understood, that when he or they that have the sovereign power, give such exemption, or privilege, to a subject, as is not separable from the sovereignty, and nevertheless directly retaineth the sovereign power, not knowing the consequence of the privilege they grant, the person or persons exempted or privileged, are not thereby released. For in contradictory significations of the will (*Human Nature*, chap. XIII. [sect. 9](#)), that which is directly signified, is to be understood for the will, before that which is drawn from it by consequence.

**Obedience
discharged by
exile.**

14. Also exile perpetual, is a release of subjection, forasmuch, as being out of the protection of the sovereignty that expelled him, he hath no means of subsisting but from himself. Now every man may lawfully defend himself, that hath no other defence; else there had been no necessity that any man should enter into voluntary subjection, as they do in commonwealths.

By conquest.

15. Likewise a man is released of his subjection by conquest. For when it cometh to pass, that the power of a commonwealth is overthrown, and any particular man thereby lying under the sword of his enemy, yieldeth himself captive, he is thereby bound to serve him that taketh him, and consequently discharged of his obligation to the former. For no man can serve two masters.

**By ignorance of
the right of
succession.**

16. Lastly, ignorance of the succession dischargeth obedience. For no man can be understood to be obliged to obey he knoweth not whom.

CHAPTER III.

1, 2. Titles to dominion: master and servant, &c. 3. Chains and other, &c. Bonds, &c. Slave defined. 4. Servants have no property against their lord, &c. 5. The master hath right to alienate his servant. 6. The servant of the servant, &c. 7. How servitude is discharged. 8. The middle lord, &c. 9. The title of man, &c. over beasts.

Titles to dominion; master and servant, &c.

1. Having set forth in the two preceding chapters, the nature of a commonwealth *institutive* by the consent of many men together, I come now to speak of dominion, or a body politic by acquisition, which is commonly called a *patrimonial* kingdom. But before I enter thereinto, it is necessary to make known upon what title one man may acquire right, that is to say, property or dominion, over the person of another. For when one man hath dominion over another, there is a little kingdom. And to be a king by acquisition, is nothing else, but to have acquired a right or dominion over many.

2. Considering men therefore again in the state of nature, without covenants or subjection one to another, as if they were but even now all at once created male and female, there be three titles only, by which one man may have right and dominion over another; whereof two may take place presently, and those are, voluntary offer of subjection, and yielding by compulsion: the third is to take place, upon the supposition of children begotten amongst them. Concerning the first of these three titles, it is handled before in the two last chapters. For from thence cometh the right of sovereigns over their subjects in a commonwealth *institutive*. Concerning the second title, which is when a man submitteth to an assailant for fear of death, thereby accrueth a right of dominion. For where every man, as it happeneth in this case, hath right to all things, there needs no more for the making of the said right effectual, but a covenant from him that is overcome, not to resist him that overcometh. And thus cometh the victor to have right of absolute dominion over the conquered. By which there is presently constituted a

little body politic, which consisteth of two persons, the one sovereign, which is called the *master*, or lord; the other subject, which is called the *servant*. And when a man hath acquired right over a number of servants so considerable, as they cannot by their neighbours be securely invaded, this body politic is a kingdom despotical.

Chains and other, &c. bonds, &c. slave defined.

3. And it is to be understood, that when a servant taken in the wars, is kept bound in natural bonds, as chains, and the like, or in prison, there hath passed no covenant from the servant to his master. For those natural bonds have no need of strengthening by the verbal bonds of covenant, and they show that the servant is not trusted. But covenant, (Part I. chapter II. [section 9](#),) supposeth trust. There remaineth therefore in the servant thus kept bound, or in prison, a right of delivering himself, if he can, by what means soever. This kind of servant is that which ordinarily and without passion, is called a *slave*. The Romans had no such distinct name, but comprehended all under the name of *servus*; whereof such as they loved and durst trust, were suffered to go at liberty, and admitted to places of office, both near to their persons, and in their affairs abroad; the rest were kept chained, or otherwise restrained with natural impediments to their resistance. And as it was amongst the Romans, so it was amongst other nations, the former sort having no other bond but a supposed covenant, without which the master had no reason to trust them; the latter being without covenant, and no otherwise tied to obedience, but by chains, or other like forcible custody.

Servants have no property against their lord, &c.

4. A master therefore is to be supposed to have no less right over those, whose bodies he leaveth at liberty, than over those he keepeth in bonds and imprisonment, and hath absolute dominion over both, and may say of his servant, that he is his, as he may of any other thing. And whatsoever the servant had, and might call his, is now the master's; for he that disposeth of the person, disposeth of all the person could dispose of: insomuch, as though there be *meum* and *tuum* amongst servants distinct from one another by the dispensation, and for the benefit of their master; yet there is no *meum* and *tuum* belonging to any of them against the master himself, whom they are not to resist, but to obey all his commands as law.

**The master
hath right to
alienate his
servant.**

5. And seeing both the servant and all that is committed to him, is the property of the master, and every man may dispose of his own, and transfer the same at his pleasure, the master may therefore alienate his dominion over them, or give the same by his last will to whom he list.

**The servant of
the servant, &c.**

6. And if it happen, that the master himself by captivity or voluntary subjection, become servant to another, then is that other master *paramount*; and those servants of him that becometh servant, are no further obliged, than their master paramount shall think good; forasmuch as he disposing of the master subordinate, disposeth of all he hath, and consequently of his servants, so that the restriction of absolute power in masters, proceedeth not from the law of nature, but from the political law of him that is their master supreme or sovereign.

**How servitude
is discharged.**

7. Servants immediate to the supreme master, are discharged of their servitude, or subjection, in the same manner that subjects are released of their allegiance in a commonwealth institutive. As first, by release. For he that captiveth, which is done by accepting what the captive transferreth to him, setteth again at liberty, by transferring back the same. And this kind of release is called *manumission*. Secondly, by exile. For that is no more but manumission given to a servant, not in the way of benefit, but punishment. Thirdly, by a new captivity, where the servant having done his endeavour to defend himself, hath thereby performed his covenant to his former master, and for the safety of his life, entering into new covenant with the conqueror, is bound to do his best endeavour to keep that likewise. Fourthly, ignorance of who is successor to his deceased master, dischargeth him of obedience: for no covenant holdeth longer than a man knoweth to whom he is to perform it. And lastly, that servant that is no longer trusted, but committed to his chains and custody, is thereby discharged of the obligation *in foro interno*, and therefore if he can get loose, may lawfully go his way.

**The middle
lord, &c.**

8. But servants subordinate, though manumitted by their immediate lord, are not thereby discharged of their subjection to their lord paramount. For the immediate master hath no property in them, having transferred his right before to another,

namely, to his own and supreme master. Nor if the chief lord should manumit his immediate servant, doth he thereby release his servants of their obligation to him that is so manumitted. For by this manumission, he recovereth again the absolute dominion he had over them before. For after a release, which is the discharge of a covenant, the right standeth as it did before the covenant was made.

**The title of
man, &c. over
beasts.**

9. This right of conquest, as it maketh one man master over another, so also maketh it a man to be master of the irrational creatures. For if a man in the state of nature be in hostility with men, and thereby have lawful title to subdue or kill, according as his own conscience and discretion shall suggest unto him for his safety and benefit, much more may he do the same to beasts; that is to say, save and preserve for his own service, according to his discretion, such as are of nature apt to obey, and commodious for use; and to kill and destroy, with perpetual war, all other, as fierce, and noisome to him. And this dominion is therefore of the law of nature, and not of the divine law positive. For if there had been no such right before the revealing of God's will in the Scripture, then should no man, to whom the Scripture hath not come, have right to make use of those his creatures, either for his food or sustenance. And it were a hard condition of mankind, that a fierce and savage beast should with more right kill a man, than a man a beast.

CHAPTER IV.

1. The dominion over the child, &c. 2. Pre-eminence of sex giveth not the child to the father, rather than to the mother. 3. The title of the father or mother, &c. 4. The child of a woman-servant, &c. 5. The right to the child given from the mother, &c. 6. The child of the concubine, &c. 7. The child of the husband and the wife, &c. 8. The father, or he or she that bringeth up the child, have absolute power over him. 9. Freedom in subjects what it is. 10. A great family is a patrimonial kingdom. 11. Succession of the sovereign power, &c. 12. Though the successor be not declared, yet there is always one to be presumed. 13. The children preferred to the succession, &c. 14. The males before the females. 15. The eldest before the rest of the brothers. 16. The brother next to the children. 17. The succession of the possessor, &c.

**The dominion
over the child,
&c.**

1. Of three ways by which a man becometh subject to another, mentioned [section 2](#), chapter the last, namely, voluntary offer, captivity and birth, the former two have been spoken of, under the name of subjects, and servants. In the next place, we are to set down the third way of subjection, under the name of children, and by what title one man cometh to have propriety in a child, that proceedeth from the common generation of two; to wit, of male and female. And considering men again dissolved from all covenants one with another, and that (Part I. chap. iv. [sect. 2](#)) every man by the law of nature, hath right or propriety to his own body, the child ought rather to be the propriety of the mother, of whose body it is part, till the time of separation, than of the father. For the understanding therefore of the right that a man or woman hath to his or their child, two things are to be considered; first, what title the mother, or any other, originally hath, to a child new born: secondly, how the father, or any other man, pretendeth by the mother.

**Pre-eminence of
sex giveth not
the child to the
father, rather
than to the
mother.**

2. For the first, they that have written of this subject, have made generation to be a title of dominion over persons, as well as the consent of the persons themselves. And because generation giveth title to two, namely, father and mother, whereas dominion is indivisible, they therefore ascribe dominion over the child to the father only, *ob præstantiam sexûs*; but they show not, neither can I find out by what coherence, either generation inferreth dominion, or advantage of so much strength, which, for the most part, a man hath more than a woman, should generally and universally entitle the father to a propriety in the child, and take it away from the mother.

**The title of the
father or
mother, &c.**

3. The title to dominion over a child, proceedeth not from the generation, but from the preservation of it; and therefore in the estate of nature, the mother, in whose power it is to save or destroy it, hath right thereto by that power, according to that which hath been said, Part I. chapter i. [sect. 13](#). And if the mother shall think fit to abandon, or expose her child to death, whatsoever man or woman shall find the child so exposed, shall have the same right which the mother had before; and for this same reason, namely, for the power not of generating, but preserving. And though the child thus preserved, do in time acquire strength, whereby he might

pretend equality with him or her that hath preserved him, yet shall that pretence be thought unreasonable, both because his strength was the gift of him, against whom he pretendeth, and also because it is to be presumed, that he which giveth sustenance to another, whereby to strengthen him, hath received a promise of obedience in consideration thereof. For else it would be wisdom in men, rather to let their children perish, while they are infants, than to live in their danger or subjection, when they are grown.

The child of a woman servant, &c.

4. For the pretences which a man may have to dominion over a child by the right of the mother, they be of divers kinds. One by the absolute subjection of the mother; another, by some particular covenant from her, which is less than a covenant of such subjection. By absolute subjection, the master of the mother, hath right to her child, according to [section 6](#), chapter III, whether he be the father thereof, or not. And thus the children of the servant are the goods of the master *in perpetuum*.

The right to the child given from the mother, &c.

5. Of covenants that amount not to subjection between a man and woman, there be some which are made for a time; they are covenants of cohabitation, or else of copulation only. And in this latter case, the children pass by covenants particular. And thus in the copulation of the Amazons with their neighbours, the fathers by covenant had the male children only, the mothers retaining the females.

The child of the concubine, &c.

6. And covenants of cohabitation are either for society of bed, or for society of all things; if for society of bed only, then is the woman called *a concubine*. And here also the child shall be his or hers, as they shall agree particularly by covenant. For although for the most part, a concubine is supposed to yield up the right of her children to the father, yet doth not concubinate enforce so much.

The child of the husband and the wife, &c.

7. But if the covenants of cohabitation be for society of all things, it is necessary that but one of them govern and dispose of all that is common to them both; without which, as hath been often said before, society cannot last. And therefore the man, to whom for the most part the woman yieldeth the government, hath for the most part, also, the sole right and dominion over the children. And the man is called the husband, and the woman

the wife. But because sometimes the government may belong to the wife only, sometimes also the dominion over the children shall be in her only. As in the case of a sovereign queen, there is no reason that her marriage should take from her the dominion over her children.

The father, or he or she that bringeth up the child, have absolute power over him.

8. Children therefore, whether they be brought up and preserved by the father, or by the mother, or by whomsoever, are in most absolute subjection to him or her, that so bringeth them up, or preserveth them. And they may alienate them, that is, assign his or her dominion, by selling, or giving them, in adoption or servitude to others; or may pawn them for hostages, kill them for rebellion, or sacrifice them for peace, by the law of nature, when he or she, in his or her conscience, think it to be necessary.

Freedom in subjects what it is.

9. The subjection of them who institute a commonwealth amongst themselves, is no less absolute, than the subjection of servants. And therein they are in equal estate. But the hope of those is greater than the hope of these. For he that subjecteth himself uncompelled, thinketh there is reason he should be better used, than he that doth it upon compulsion; and coming in freely, calleth himself, though in subjection, a *freeman*; whereby it appeareth, that liberty is not any exemption from subjection and obedience to the sovereign power, but a state of better hope than theirs, that have been subjected by force and conquest. And this was the reason, that the name which signifieth children in the Latin tongue, is *liberi*, which also signifieth *freemen*. And yet in Rome, nothing at that time was so obnoxious to the power of others, as children in the family of their fathers. For both the state had power over their life without consent of their fathers, and the father might kill his son by his own authority, without any warrant from the state. Freedom therefore in commonwealths is nothing but the honour of equality of favour with other subjects, and servitude the estate of the rest. A freeman therefore may expect employments of honour, rather than a servant. And this is all that can be understood by the liberty of the subject. For in all other senses, liberty is the state of him that is not subject.

A great family is a patrimonial kingdom.

10. Now when a father that hath children, hath servants also, the children, not by the right of the child, but by the natural indulgence of the parents, are such

freemen. And the whole, consisting of the father or mother, or both, and of the children, and of the servants, is called a *family*, wherein the father or mother of the family is sovereign of the same, and the rest, both children and servants equally, subjects. The same family, if it grow by multiplication of children, either by generation, or adoption; or of servants, either by generation, conquest, or voluntary submission, to be so great and numerous, as in probability it may protect itself, then is that family called a *patrimonial kingdom*, or monarchy by acquisition, wherein the sovereignty is in one man, as it is in a monarch made by *political institution*. So that whatsoever rights be in the one, the same also be in the other. And therefore I shall no more speak of them as distinct, but of monarchy in general.

**Succession of
the sovereign
power, &c.**

11. Having showed by what right the several sorts of commonwealths, democracy, aristocracy, and monarchy, are erected, it followeth, to show by what right they are continued. The right by which they are continued, is called the right of succession to the sovereign power; whereof there is nothing to be said in a democracy, because the sovereign dieth not, as long as there be subjects alive: nor in an aristocracy, because it cannot easily fall out, that the *optimates* should every one fail at once; and if it should so fall out, there is no question, but the commonwealth is thereby dissolved. It is therefore in a monarchy only, that there can happen a question concerning the succession. And first, forasmuch as a monarch, which is absolute sovereign, hath the dominion in his own right, he may dispose thereof at his own will. If therefore by his last will, he shall name his successor, the right passeth by that will.

**Though the
successor be not
declared, yet
there is always
one to be
presumed.**

12. Nor if the monarch die without any will concerning the succession declared, it is not therefore to be presumed, it was his will, his subjects, which are to him as his children and servants, should return again to the state of anarchy, that is, to war and hostility. For that were expressly against the law of nature, which commandeth to procure peace, and to maintain the same. It is therefore to be conjectured with reason, that it was his intention to bequeath them peace, that is to say, a power coercive, whereby to keep them from sedition amongst themselves; and rather in the form of a monarchy,

than any other government; forasmuch as he, by the exercise thereof in his own person, hath declared, that he approveth the same.

**The children
preferred to the
succession, &c.**

13. Further, it is to be supposed, his intention was, that his own children should be preferred in the succession, when nothing to the contrary is expressly declared, before any other. For men naturally seek their own honour, and that consisteth in the honour of their children after them.

**The males
before the
females.**

14. Again, seeing every monarch is supposed to desire to continue the government in his successors, as long as he may; and that generally men are endued with greater parts of wisdom and courage, by which all monarchies are kept from dissolution, than women are; it is to be presumed, where no express will is extant to the contrary, he preferreth his male children before the female. Not but that women may govern, and have in divers ages and places governed wisely, but are not so apt thereto in general, as men.

**The eldest
before the rest
of the brothers.**

15. Because the sovereign power is indivisible, it cannot be supposed, that he intended the same should be divided, but that it should descend entirely upon one of them, which is to be presumed, should be the eldest, assigned thereto by the lot of nature, because he appointed no other lot for the decision thereof. Besides, what difference of ability soever there may be amongst the brethren, the odds shall be adjudged to the elder, because no subject hath authority otherwise to judge thereof.

**The brother
next to the
children.**

16. And for want of issue in the possessor, the brother shall be presumed successor. For by the judgment of nature, next in blood is next in love; and next in love is next to preferment.

**The succession
of the possessor,
&c.**

17. And as the succession followeth the first monarch, so also it followeth him or her that is in possession; and consequently, the children of him in possession, shall be preferred before the children of his father, or predecessor.

CHAPTER V.

1. The utility of the commonwealth, &c. 2. The loss of liberty, &c. 3. Monarchy approved by, &c. 4. Monarchy less subject to passion, &c. 5, 6. Subjects in monarchy, &c. 7. Laws in monarchy less changeable, &c. 8. Monarchies less subject to dissolution.

The utility of
the
commonwealth,
&c.

1. Having set forth the nature of a Body Politic, and the three sorts thereof, democracy, aristocracy, and monarchy; in this chapter shall be declared, the *conveniences*, and *inconveniences*, that arise from the same, both in general, and of the said several sorts in particular. And first, seeing a body politic is erected only for the ruling and governing of particular men, the benefit and damage thereof, consisteth in the benefit or damage of being ruled. The benefit is that for which a body politic was instituted, namely, the peace and preservation of every particular man, than which it is not possible there can be a greater, as hath been touched before, Part I. chapter I. [section 12](#). And this benefit extendeth equally both to the *sovereign*, and to the *subjects*. For he or they that have the sovereign power, have but the defence of their persons, by the assistance of the particulars; and every particular man hath his defence by their union in the sovereign. As for other benefits, which pertain not to their safety and sufficiency, but to their well and delightful being, such as are superfluous riches, they so belong to the sovereign, as they must also be in the subject; and so to the subject, as they must also be in the sovereign. For the riches and treasure of the sovereign, is the dominion he hath over the riches of his subjects. If therefore the sovereign provide not so as that particular men may have means, both to preserve themselves, and also to preserve the public; the common or sovereign treasure can be none. And on the other side, if it were not for a common and public treasure belonging to the sovereign power, men's private riches would sooner serve to put them into confusion and war, than to secure and maintain them. Insomuch, as the profit of the sovereign and subject goeth always together. That distinction therefore of government, that there is one government for the good of him that governeth, and another for the good of them that be governed; whereof the former is *despotical*, that is lordly; the other, a government of *freemen*, is not right. No more is the opinion of them

that hold it to be no city, which consisteth of a master and his servants. They might as well say, it were no city, that consisted in a father and his own issue, how numerous soever they were. For to a master that hath no children, the servants have in them all those respects, for which men love their children. For they are his strength and his honour. And his power is no greater over them, than over his children.

The loss of
liberty, &c.

2. The inconvenience arising from government in general to him that governeth, consisteth partly in the continual care and trouble about the business of other men, that are his subjects; and partly, in the danger of his person. For the head always is that part, not only where the care resideth, but also against which the stroke of an enemy most commonly is directed. To balance this incommmodity, the sovereignty, together with the necessity of this care and danger, comprehendeth so much honour, riches, and means, whereby to delight the mind, as no private man's wealth can attain unto. The inconveniences of government in general to a subject are none at all, if well considered, but in appearance. There be two things that may trouble his mind, or two general grievances; the one is, loss of liberty; the other, the uncertainty of *meum* and *tuum*. For the first, it consisteth in this, that a subject may no more govern his own actions according to his own discretion and judgment, or, which is all one, conscience, as the present occasions from time to time shall dictate to him; but must be tied to do according to that will only, which once for all he had long ago laid up, and involved in the wills of the major part of an assembly, or in the will of some one man. But this is really no inconvenience. For, as it hath been showed before, it is the only means, by which we have any possibility of preserving ourselves. For if every man were allowed this liberty of following his conscience, in such difference of consciences, they would not live together in peace an hour. But it appeareth a great inconvenience to every man in particular, to be debarred of this liberty, because every one apart considereth it as in himself, and not as in the rest; by which means, liberty appeareth in the likeness of rule and government over others. For where one man is at liberty, and the rest bound, there that one hath government; which honour, he that understandeth not so much, demanding by the name simply of liberty, thinketh it a great grievance and injury to be denied it. For the second grievance concerning *meum* and *tuum*, it is also none,

but in appearance only; it consisteth in this, that the sovereign power taketh from him that which he used to enjoy, knowing no other propriety, but use and custom. But without such sovereign power, the right of men is not propriety to anything, but a community, no better than to have no right at all, as hath been showed, Part I. chapter I. [section 10](#). Propriety therefore being derived from the sovereign power, is not to be pretended against the same, especially, when by it every subject hath his propriety against every other subject, which when sovereignty ceaseth, he hath not, because in that case they return to war amongst themselves. Those levies therefore which are made upon men's estates, by the sovereign authority, are no more but the price of that peace and defence which the sovereignty maintaineth for them. If this were not so, no money nor forces for the wars, nor any other public occasion, could justly be levied in the world. For neither king, nor democracy, nor aristocracy, nor the estates of any land, could do it, if the sovereignty could not. For in all those cases, it is levied by virtue of the sovereignty. Nay more, by the three estates here, the land of one man may be transferred to another, without crime of him from whom it was taken, and without pretence of public benefit, as hath been done; and this without injury, because done by the sovereign power. For the power whereby it is done, is no less than sovereign, and cannot be greater. Therefore this grievance for *meum* and *tuum* is not real, unless more be exacted than is necessary; but it seemeth a grievance, because to them that either know not the right of sovereignty, or to whom that right belongeth, it seemeth an injury; and injury, how little soever the damage, is always grievous, as putting us in mind of our disability to help ourselves, and into envy of the power to do us wrong.

Monarchy
approved by,
&c.

3. Having spoken of the inconveniences of the subject, by government in general, let us consider the same in the three several sorts thereof, namely, *democracy*, *aristocracy* and *monarchy*; whereof the two former are in effect but one. For, as I have showed before, democracy is but the government of a few orators. The comparison therefore will be between monarchy and aristocracy: and to omit that the world, as it was created, so also it is governed by one God Almighty; and that all the ancients have preferred monarchy before other governments, both in opinion, because they feigned a monarchical government amongst their gods,

and also by their custom; for that in the most ancient times all people were so governed: and that paternal government, which is monarchy, was instituted in the beginning from the creation; and that other governments have proceeded from the dissolution thereof, caused by the rebellious nature of mankind, and be but pieces of broken monarchies cemented by human wit, I will insist only on this comparison, upon the inconveniences that may happen to the subjects in consequence to each of these governments.

Monarchy less
subject to
passion, &c.

4. And first, it seemeth inconvenient there should be committed so great a power to one man, as that it might be lawful to no other man or men to resist the same; and some think it inconvenient *eo nomine*, because he hath the power. But this reason we may not by any means admit, for it maketh it inconvenient to be ruled by Almighty God, who without question hath more power over every man, than can be conferred upon any monarch. This inconvenience therefore must be derived not from the power, but from the affections and passions which reign in every one, as well monarch as subject, by which the monarch may be swayed to use that power amiss: and because an aristocracy consisteth of men, if the passions of many men be more violent when they are assembled together, than the passions of one man alone, it will follow, that the inconvenience arising from passions will be greater in an *aristocracy*, than a *monarchy*. But there is no doubt, when things are debated in great assemblies, but every man delivering his opinion at large without interruption, endeavoureth to make whatsoever he is to set forth for good, better; and what he would have apprehended as evil, worse, as much as is possible, to the end his counsel may take place; which counsel also is never without aim at his own benefit, or honour; every man's end being some good to himself. Now this cannot be done without working on the passions of the rest. And thus the passions of these that are singly moderate, are altogether vehement; even as a great many coals, though but warm asunder, being put together, inflame one another.

Subjects in
monarchy, &c.

5. Another inconvenience of monarchy, is this, that the monarch, besides the riches necessary for the defence of the commonwealth, may take so much more from the subjects, as may enrich his children, kindred and favourites, to what

degree he pleaseth; which though it be indeed an inconvenience, if he should so do, yet is the same both greater in an aristocracy, and also more likely to come to pass, for there not one only, but many have children, kindred, and friends to raise. And in that point they are as twenty monarchs for one, and likely to set forward one another's designs mutually, to the oppression of all the rest. The same also happeneth in a democracy, if they all do agree; otherwise they bring a worse inconvenience; to wit, sedition.

6. Another inconvenience of monarchy, is the power of dispensing with the execution of justice, whereby the family and friends of the monarch, may, with impunity, commit outrages upon the people, or oppress them with extortion. But in aristocracies, not only one, but many have power of taking men out of the hands of justice, and no man is willing his kindred or friends should be punished according to their demerits. And therefore they understand amongst themselves without further speaking, as a tacit covenant, *hodie mihi, cras tibi*.

**Laws in
monarchy less
changeable, &c.**

7. Another inconvenience of monarchy, is the power of altering laws. Concerning which, it is necessary that such a power be, that laws may be altered, according as men's manners change, or as the conjuncture of all circumstances within and without the commonwealth shall require; the change of law being then inconvenient, when it proceedeth from the change, not of the occasion, but of the minds of him or them, by whose authority the laws are made. Now it is manifest enough of itself, that the mind of one man is not so variable in that point, as are the decrees of an assembly. For not only they have all their natural changes, but the change of any one man may be enough, with eloquence and reputation, or by solicitation and faction, to make that law to-day, which another by the very same means, shall abrogate to-morrow.

**Monarchies less
subject to
dissolution.**

8. Lastly, the greatest inconvenience that can happen to a commonwealth, is the aptitude to dissolve into civil war; and to this are monarchies much less subject, than any other governments. For where the union, or band of a commonwealth, is one man, there is no distraction; whereas in assemblies, those that are of different opinions, and give different counsel, are apt to fall out amongst themselves, and to cross the designs of the commonwealth for one another's sake: and when they cannot

have the honour of making good their own devices, they yet seek the honour to make the counsels of their adversaries prove vain. And in this contention, when the opposite factions happen to be anything equal in strength, they presently fall to war. Wherein necessity teacheth both sides, that an absolute monarch, to wit, a general, is necessary both for their defence against one another, and also for the peace of each faction within itself. But this aptitude to dissolution, is to be understood for an inconvenience in such aristocracies only where the affairs of state are debated in great and numerous assemblies, as they were anciently in Athens, and in Rome; and not in such as do nothing else in great assemblies, but choose magistrates and counsellors, and commit the handling of state affairs to a few; such as is the aristocracy of Venice at this day. For these are no more apt to dissolve from this occasion, than monarchies, the counsel of state being both in the one and the other alike.

CHAPTER VI.

1. A difficulty concerning absolute subjection to man, arising from our absolute subjection to God Almighty, propounded. 2. That this difficulty is only amongst those Christians that deny the interpretation of the Scripture to depend upon the sovereign authority of the commonwealth. 3. That human laws are not made to govern the consciences of men, but their words and actions. 4. Places of Scripture to prove obedience due from Christians to their sovereign in all things. 5. A distinction propounded between a fundamental point of faith, and a superstruction. 6. An explication of the points of faith, that be fundamental. 7. That the belief of those fundamental points, is all that is required to salvation, as of faith. 8. That other points not fundamental, are not necessary to salvation as matter of faith; and that no more is required by way of faith to the salvation of one man, than to the salvation of another. 9. That superstructions are not points of the faith necessary to a Christian. 10. How faith and justice concur to salvation. 11. That in Christian commonwealths, obedience to God and man stand well together. 12. This tenet, whatsoever is against the conscience, is sin, interpreted. 13. That all men do confess the necessity of submitting of controversies to some human authority. 14. That Christians under an infidel are discharged of the injustice of disobeying him, in that which concerneth the faith necessary to salvation, by not resisting.

**A difficulty
concerning**

1. Having showed, that in all commonwealths whatsoever, the necessity of peace and government

**absolute
subjection to
man, arising
from our
absolute
subjection to
God Almighty,
propounded.**

requireth, that there be existent some power, either in one man, or in one assembly of men, by the name of the power sovereign, which it is not lawful for any member of the same commonwealth to disobey; there occurreth now a difficulty, which, if it be not removed, maketh it unlawful for a man to put himself under the command of such absolute sovereignty as is required thereto. And the difficulty is this; we have amongst us the Word of God for the rule of our actions: now if we shall subject ourselves to men also, obliging ourselves to do such actions as shall be by them commanded, when the commands of God and man shall differ, we are to obey God, rather than man; and consequently, the covenant of general obedience to man is unlawful.

**That this
difficulty is only
amongst those
Christians that
deny the
interpretation
of Scripture to
depend upon
the sovereign
authority of the
commonwealth.**

2. This difficulty hath not been of very great antiquity in the world. There was no such *dilemma* amongst the Jews; for their civil law, and divine law, was one and the same law of Moses; the interpreters whereof were the priests, whose power was subordinate to the power of the king; as was the power of Aaron, to the power of Moses. Nor is it a controversy that was ever taken notice of amongst the Grecians, Romans, or other Gentiles: for amongst these their several civil laws were the rules whereby not only righteousness and virtue, but also religion, and the external worship of God, was ordered and approved; that being esteemed the true worship of God, which was κατὰ τὰ νόμιμα, according to the laws civil. Also those Christians that dwell under the temporal dominion of the bishop of Rome, are free from this question; for that they allow unto him, their sovereign, to interpret the Scriptures, which are the law of God, as he in his own judgment shall think right. This difficulty therefore remaineth amongst, and troubleth those Christians only, to whom it is allowed, to take for the sense of the Scripture, that which they make thereof, either by their own private interpretation, or by the interpretation of such as are not called thereunto by public authority; they that follow their own interpretation continually, demanding liberty of conscience; and those that follow the interpretation of others not ordained thereunto by the

sovereign of the commonwealth, requiring a power in matters of religion either above the power civil, or at least not depending on it.

That human laws are not made to govern the consciences of men, but their words & actions.

3. To take away this scruple of conscience, concerning obedience to human laws, amongst those that interpret to themselves the word of God in the Holy Scriptures, I propound to their consideration, first, that no human law is intended to oblige the conscience of a man, unless it break out into action, either of the tongue, or other part of the body. The law made thereupon would be of none effect, because no man is able to discern, but by word or other action whether such law be kept or broken. Nor did the apostles themselves pretend dominion over men's consciences, concerning the faith they preached, but only persuasion and instruction. And therefore St. Paul saith (2 Cor. i. 24), writing to the Corinthians, concerning their controversies, that he and the rest of the apostles had no dominion over their faith, but were helpers of their joy.

Places of Scripture to prove obedience due from Christians to their sovereign in all things.

4. And for the actions of men which proceed from their consciences, the regulating of which actions is the only means of peace, if they might not stand with justice, it were impossible that justice towards God, and peace amongst men, should stand together in that religion that teacheth us, that *justice and peace shall kiss each other*, and in which we have so many precepts of absolute obedience to human authority; as Matth. xxiii. 2, 3, we have this precept: *The Scribes and Pharisees sit in Moses' seat; all therefore whatsoever they bid you observe, that observe and do*. And yet were the Scribes and Pharisees not priests, but men of temporal authority. Again Luke xi. 17: *Every kingdom divided against itself shall be desolate*; and is not that kingdom divided against itself, where the actions of every one shall be ruled by his private opinion, or conscience, and yet those actions such as give occasion of offence and breach of peace? Again Rom. xiii. 5: *Wherefore you must be subject, not because of wrath only, but also for conscience sake*. Titus iii. 1: *Put them in remembrance, that they be subject to principalities and powers*. 1 Peter ii. 13, 14: *Submit yourselves unto all manner of ordinance of man, for the Lord's sake, whether it be unto the king, as unto the superior, or unto governors, as unto them that are sent by him for the punishment of evil doers*. Jude,

verse 8: *These dreamers also that defile the flesh, and despise government, and speak evil of them that are in authority.* And forasmuch as all subjects in commonwealths are in the nature of children and servants, that which is a command to them, is a command to all subjects. But to these St. Paul saith (Colos. iii. 20, 22): *Children, obey your parents in all things; servants, be obedient to your masters according to the flesh in all things.* And verse 23: *Do it heartily as to the Lord.* These places considered, it seemeth strange to me, that any man in a Christian commonwealth, should have any occasion to deny his obedience to public authority, upon this ground, that *it is better to obey God than man.* For though St. Peter and the apostles did so answer the council of the Jews, that forbad them to preach Christ, there appeareth no reason that Christians should allege the same against their Christian governors, that command them to preach Christ. To reconcile this seeming contradiction of simple obedience to God, and simple obedience to man, we are to consider a Christian subject, as under a Christian sovereign, or under an infidel.

**A distinction
propounded
between a
fundamental
point of faith
and a
superstruction.**

5. And under a Christian sovereign we are to consider, what actions we are forbidden by God Almighty to obey them in, and what not. The actions we are forbidden to obey them in, are such only, as imply a denial of that faith which is necessary to our salvation: for otherwise there can be no pretence of disobedience; for why should a man incur the danger of a temporal death, by displeasing of his superior, if it were not for fear of eternal death hereafter? It must therefore be enquired, what those propositions and articles be, the belief whereof our Saviour or his apostles have declared to be such, as without believing them, a man cannot be saved; and then all other points, that are now controverted, and made distinction of sects, Papists, Lutherans, Calvinists, Arminians, &c. (as in old time, the like made Paulists, Apollonians, and Cephassians), must needs be such, as a man needeth not for the holding thereof, deny obedience to his superiors. And for the points of faith necessary to salvation, I shall call them *fundamental*, and every other point a *superstruction*.

**An explication
of the points of**

6. And without all controversy, there is not any more necessary point to be believed for man's salvation than

faith, that be
fundamental.

this, that *Jesus is the Messiah*, that is, *the Christ*; which proposition is explicated in sundry sorts, but still the same in effect; as, that *he is God's anointed*; for that is signified by the word Christ: that *he was the true and lawful king of Israel, the son of David, the Saviour of the world, the redeemer of Israel, the salvation of God, he that should come into the world, the son of God*, and, which I desire by the way to have noted, against the now sect of Arians, *the begotten Son of God*, Acts iii. 13; Heb. v. 5: *The only begotten Son of God*, John i. 14, 18; John iii. 16, 18; 1 John iv. 9: *That he was God*, John i. 1; John xx. 28: *That the fulness of the Godhead dwelt in him bodily*, Coloss. ii. 9: Moreover, *the Holy One, the Holy One of God, the forgiver of sins, that he is risen from the dead*. These are explications, and parts of that general article, that *Jesus is the Christ*. This point therefore, and all the explications thereof are fundamental: as also all such as be evidently inferred from thence; as, BELIEF IN GOD THE FATHER: John xii. 44: *He that believeth in me, believeth not in me, but in him that sent me*; 1 John ii. 23: *He that denieth the Son, hath not the Father*: BELIEF IN GOD THE HOLY GHOST, of whom Christ saith, John xiv. 26: *But the Comforter, which is the Holy Ghost, whom the Father will send in my name*: and John xv. 26: *But when the Comforter shall come, whom I will send unto you from the Father, even the Spirit of truth*: BELIEF OF THE SCRIPTURES, by which we believe those points and of the immortality of the soul, without which we cannot believe he is a Saviour.

That the belief
of those
fundamental
points, is all
that is required
to salvation, as
of faith.

7. And as these are the fundamental points of faith necessary to salvation; so also are they only necessary as matter of faith, and only essential to the calling of a Christian; as may appear by many evident places of Holy Scripture: John v. 39: *Search the Scriptures, for in them ye think ye have eternal life, and they are they which testify of me*. Now, forasmuch as by the *Scripture*, is meant there the Old Testament (the New being then not written), the belief of that which was written concerning our Saviour in the Old Testament, was sufficient belief for the obtaining of eternal life: but in the Old Testament, there is nothing revealed concerning Christ, but that he is the Messiah, and such things as belong to the fundamental points thereupon depending. And therefore those *fundamental* points are

sufficient to salvation as of faith. And John vi. 28, 29: *Then said they unto him, What shall we do, that we might work the works of God? Jesus answered and said unto them. This is the work of God, that ye believe in him, whom he hath sent. So that the point to be believed is, That Jesus Christ came forth from God, and he which believeth it, worketh the works of God.* John xi. 26, 27: *Whosoever liveth and believeth in me, shall never die. Believest thou this? She said unto him, Yea, Lord, I believe that thou art the Christ, the Son of God, which should come into the world. Hence followeth, He that believeth this, shall never die.* John xx. 31: *But these things are written, that ye might believe, that Jesus is the Christ, the Son of God; and that believing, ye might have life through his name.* By which appeareth, that this fundamental point is all that is required, as of faith to our salvation. 1 John iv. 2: *Every spirit that confesseth that Jesus Christ is come in the flesh, is of God:* 1 John v. 1: *Whosoever believeth that Jesus is the Christ, is born of God; and (verse 5) Who is he that overcometh the world, but he that believeth, that Jesus is the Son of God: and verse 13: These things have I written unto you that believe in the name of the Son of God, that ye may know that ye have eternal life.* Acts, viii. 36, 37: *The eunuch said, Here is water, what doth hinder me to be baptized? And Philip said unto him, If thou believest with all thy heart, thou mayest. He answered and said, I believe that Jesus Christ is the Son of God.* This point therefore was sufficient for the reception of man into baptism, that is to say, to Christianity. And Acts, xvi. 29-31: *The keeper of the prison fell down before Paul and Silas, and said, Sirs, what shall I do to be saved? And they said, Believe in the Lord Jesus Christ.* And the sermon of St. Peter, upon the day of Pentecost, was nothing else but an explication, that *Jesus was the Christ.* And when they had heard him, they asked him, *What shall we do? He said unto them, (Acts, ii. 38): Amend your lives, and be baptized every one of you in the name of Jesus Christ for the remission of sins.* Rom. x. 9: *If thou shalt confess with thy mouth the Lord Jesus, and shalt believe in thy heart, that God raised him up from the dead, thou shalt be saved.* To these places may be added, that wheresoever our Saviour Christ doth approve the faith of any man, the proposition believed, if the same be to be collected out of the text, is always some of these fundamental points before mentioned, or something equivalent: as the faith of the centurion (Matth. viii. 8):

Speak the word only, and my servant shall be healed; believing he was omnipotent: the faith of the woman, which had an issue of blood, (Matth. ix. 21): *If I may but touch the hem of his garment*; implying, he was the Messiah: the faith required of the blind men, (Matth. ix. 28): *Believe you that I am able to do this?* the faith of the Canaanitish woman, (Matth. xv. 22), that he was the *Son of David*, implying the same. And so it is in every one of those places, none excepted, where our Saviour commendeth any man's faith, which because they are too many to insert here, I omit, and refer them to his inquisition that is not otherwise satisfied. And as there is no other faith required, so there was no other preaching: for the prophets of the Old Testament preached no other; and John the Baptist preached only the approach of the kingdom of heaven, that is to say, of the kingdom of Christ. The same was the commission of the apostles (Matth. x. 7): *Go preach, saying, The kingdom of heaven is at hand*. And Paul preaching amongst the Jews, (Acts, xviii. 5), did but testify unto the Jews, that *Jesus was the Christ*. And the heathens took notice of Christians no otherwise, but by this name, that they believed *Jesus to be a king*, crying out, (Acts, xvii. 6, 7): *These are they that have subverted the state of the world, and here they are, whom Jason hath received. And these all do against the decrees of Cæsar, saying, that there is another king, one Jesus*. And this was the sum of the predictions, the sum of the confessions of them that believed, as well men as devils. This was the title of his cross, *Jesus of Nazareth, king of the Jews*; this the occasion of the crown of thorns, sceptre of reed, and a man to carry his cross; this was the subject of the *Hosannas*; and this was the title, by which our Saviour, commanding to take another man's goods, bade them say, *The Lord hath need*; and by this title he purged the temple of the profane market kept there. Nor did the apostles themselves believe any more than that *Jesus was the Messiah*, nor understand so much; for they understood the Messiah to be no more than a temporal king, till after our Saviour's resurrection. Furthermore, this point, that *Christ is the Messiah*, is particularly set forth for *fundamental* by that word, or some other equivalent thereunto in divers places. Upon the confession of Peter (Matth. xvi. 16): *Thou art the Christ, the son of the living God*, our Saviour (verse 18) saith, *Upon this rock will I build my church*. This point therefore is the whole foundation of Christ's church. St. Paul saith, (Rom. xv. 20) *I so*

enforced myself to preach the Gospel, not where Christ was named, lest I should have built upon another man's foundation. St. Paul, (1 Cor. iii. 10) when he had reprehended the Corinthians for their sects, and curious doctrines and questions, he distinguisheth between fundamental points, and superstruction; and saith, I have laid the foundation, and another buildeth thereupon; but let every man take heed how he buildeth upon it. For other foundation can no man lay than that which is laid, which is Jesus Christ. Coloss. ii. 6, 7: As you have received Christ Jesus the Lord, so walk in him, rooted and builded in him, and stablished in the faith.

That other points not fundamental, are not necessary to salvation as matters of faith; and that no more is required by way of faith to the salvation of one man than to the salvation of another.

8. Having showed this proposition, *Jesus is the Christ*, to be the only fundamental and necessary point of faith, I shall set down a few places more, to show, that other points, though they may be true, are not so necessary to be believed, as that a man may not be saved, though he believe them not. And first, if a man could not be saved without assent of the heart to the truth of all controversies, which are now in agitation concerning religion, I cannot see, how any man living can be saved; so full of subtilty, and curious knowledge it is to be so great a divine. Why therefore should a man think that our Saviour, who (Matth. xi. 30), saith, that his yoke is easy, should require a matter of that difficulty? or how are little children said to believe, (Matth. xviii. 6); or how could the good thief be thought sufficiently catechised upon the cross? or St. Paul so perfect a Christian presently upon his conversion? and though there may be more obedience required in him that hath the fundamental points explicated unto him, than in him that hath received the same but implicitly; yet there is no more faith required for salvation in one man, than another. For if it be true, that *Whosoever shall confess with his mouth the Lord Jesus, and believe in his heart, that God raised him from the dead, shall be saved*; as it is, Rom. x. 9, and that *Whosoever believeth that Jesus is the Christ, is born of God*; the belief of that point is sufficient for the salvation of any man whosoever he be, forasmuch as concerneth faith. And seeing he that believeth not that *Jesus is the Christ*, whatsoever he believe else, cannot be saved; it followeth, that

there is no more required of the salvation of one man, than another, in matter of faith.

That
superstrutions
are not points of
the faith
necessary to a
Christian.

9. About these points fundamental, there is little controversy amongst Christians, though otherwise of different sects amongst themselves. And therefore the controversies of religion, are altogether about points unnecessary to salvation; whereof some are doctrines raised by human ratiocination, from the points *fundamental*. As for example; such doctrines as concern the manner of the real presence, wherein are mingled tenets of faith concerning the omnipotency and divinity of Christ, with the tenets of Aristotle and the Peripatetics concerning substance and accidents, species, hypostasis, and the subsistence and migration of accidents from place to place; words some of them without meaning, and nothing but the canting of Grecian sophisters. And these doctrines are condemned expressly, Col. ii. 8, where after St. Paul had exhorted them to *be rooted and builded in Christ*, he giveth them this further caveat: *Beware lest there be any man that spoil you through philosophy and vain deceits, through the traditions of men, according to the rudiments of the world*. And such are such doctrines, as are raised out of such places of the Scriptures, as concern not the foundation, by men's natural reason; as about the concatenation of causes, and the manner of God's predestination; which are also mingled with philosophy: as if it were possible for men that know not in what manner God seeth, heareth, or speaketh, to know nevertheless the manner how he intendeth, and predestineth. A man therefore ought not to examine by reason any point, or draw any consequence out of Scripture by reason, concerning the nature of God Almighty, of which reason is not capable. And therefore St. Paul, (Rom. xii. 3) giveth a good rule, *That no man presume to understand above that which is meet to understand, but that he understand according to sobriety*: which they do not, who presume out of Scripture, by their own interpretation, to raise any doctrine to the understanding, concerning those things which are incomprehensible. And this whole controversy concerning the predestination of God, and the free-will of man, is not peculiar to Christian men. For we have huge volumes of this subject, under the name of *fate* and *contingency*, disputed between the Epicureans and the Stoics, and consequently it is not matter of faith,

but of philosophy: and so are also all the questions concerning any other point, but the foundation before named; and God receiveth a man, which part of the question soever he holdeth. It was a controversy in St. Paul's time, whether a Christian Gentile might eat freely of any thing which the Christian Jews did not; and the Jew condemned the Gentile that he did eat, to whom St. Paul saith, (Rom. xiv. 3): *Let not him that eateth not, judge him that eateth; for God hath received him.* And verse 6, in the question concerning the observing of holy days, wherein the Gentiles and Jews differed, he saith unto them, *He that observeth the day, observeth it to the Lord; and he that observeth not the day, observeth it not to the Lord.* And they who strive concerning such questions, and divide themselves into sects, are not therefore to be accounted zealous of the faith, their strife being but carnal, which is confirmed by St. Paul (1 Cor. iii. 4): *When one saith, I am of Paul, and another, I am of Appollos, are ye not carnal?* For they are not questions of faith, but of wit, wherein, carnally, men are inclined to seek the mastery one of another. For nothing is truly a point of faith, but that *Jesus is the Christ*; as St. Paul testifieth, (1 Cor. ii. 2): *For I esteemed not the knowledge of any thing amongst you, save Jesus Christ, and him crucified.* And 1 Tim. vi. 20, 21: *O Timotheus, keep that which is committed unto thee, and avoid profane and vain babblings, and opposition of science falsely so called, which while some profess, they have erred concerning the faith.* 2 Tim. ii. 16: *Shun profane and vain babblings, &c.* Verse 17, 18: *Of which sort is Hymenæus and Philetus, which as concerning the truth, have erred, saying, that the resurrection is past already.* Whereby St. Paul showed, that the raising of questions by human ratiocination, though it be from the fundamental points themselves, is not only not [necessary](#), but most dangerous to the faith of a Christian. Out of all these places, I draw only this conclusion in general, that neither the points now in controversy amongst Christians of different sects, or in any point that ever shall be in controversy, excepting only those that are contained in this article, *Jesus is the Christ*, are necessary to salvation, as of faith; though in matter of obedience, a man may be bound not to oppose the same.

How faith and justice concur to salvation.

10. Although to the obtaining of salvation, there be required no more, as hath been already declared, out of the Holy Scriptures, as matter of faith, but the belief of

those fundamental articles before set forth; nevertheless, there are required other things, as matter of obedience. For, as it is not enough in temporal kingdoms, to avoid the punishment which kings may inflict, to acknowledge the right and title of the king, without obedience also to his laws: so also it is not enough, to acknowledge our Saviour Christ to be the king of heaven, in which consisteth Christian faith, unless also we endeavour to obey his laws, which are the laws of the kingdom of heaven, in which consisteth Christian obedience. And forasmuch as the laws of the kingdom of heaven, are the laws of nature, as hath been showed, Part I. chapter v., not only faith, but also the observation of the law of nature, (which is that for which a man is called just or righteous, in that sense, in which justice is taken not for the absence of guilt, but for the endeavour and constant will to do that which is just) not only faith, but this justice, which also from the effect thereof, is called repentance, and sometimes works, is necessary to salvation. So that faith and justice do both concur thereto; and in the several acceptation of this word (justification) are properly said both of them to justify; and the want of either of them is properly said to condemn. For not only he that resisteth a king upon doubt of his title, but also he that doth it upon the inordinateness of his passions, deserveth punishment. And when faith and works are separated, not only the faith is called dead without works, but also works are called dead works without faith. And therefore St. James, (chapter ii. 17), saith, *Even so the faith, if it have no works, is dead in itself*; and verse 26: *For as the body without the spirit is dead, even so faith without works is dead*. And St. Paul, (Heb. vi. 1), calleth works without faith, *dead works*, where he saith, *Not laying again the foundation of repentance from dead works*. And by these dead works, is understood not the obedience and justice of the inward man, but the *opus operatum*, or external action, proceeding from fear of punishment, or from vain-glory, and desire to be honoured of men: and these may be separated from faith, and conduce no way to a man's justification. And for that cause, St. Paul, (Rom. iv.) excludeth the righteousness of the law, from having part in the justification of a sinner. For by the law of Moses, which is applied to men's actions, and requireth the absence of guilt, all men living are liable to damnation; and therefore no man is justified by works, but by faith only. But if works be taken for the endeavour to do them, that is, if the will be taken

for the deed, or internal for external righteousness, then do works contribute to salvation. And then taketh place that of St. James, (chap. ii. 24): *Ye see then, how that of works a man is justified, and not of faith only.* And both of these are joined to salvation, as in St. Mark i. 15: *Repent and believe the gospel.* And Luke xviii. 18-22, when a certain ruler asked our Saviour, what he ought to do to inherit eternal life, he propounded to him the keeping of the commandments; which when the ruler said he had kept, he propounded to him the faith, *Sell all that thou hast, and follow me.* And John iii. 36: *He that believeth in the Son, hath everlasting life. And He that obeyeth not the Son, shall not see life.* Where he manifestly joineth obedience and faith together. And Rom. i. 17: *The just shall live by faith;* not every one, but *the just.* For also *the devils believe and tremble.* But though both faith and justice (meaning still by justice, not absence of guilt, but the good intentions of the mind, which is called righteousness by God, that taketh the will for the deed) be both of them said to justify, yet are their parts in the act of justification to be distinguished. For justice is said to justify, not because it absolveth, but because it denominates him just, and setteth him in an estate, or capacity of salvation, whensoever he shall have faith. But faith is said to justify, that is, to absolve, because by it a just man is absolved of, and forgiven his unjust actions. And thus are reconciled the places of St. Paul and St. James, that *Faith only justifieth,* and *a man is not justified by faith only;* and showed how faith and repentance must concur to salvation.

**That in
Christian
commonwealths
, obedience to
God and man
stand well
together.**

11. These things considered, it will easily appear, that under the sovereign power of a Christian commonwealth, there is no danger of damnation from simple obedience to human laws; for in that the sovereign alloweth Christianity, no man is compelled to renounce that faith, which is enough for his salvation, that is to say, the fundamental points. And for other points, seeing they are not necessary to salvation, if we conform our actions to the laws, we do not only what we are allowed, but also what we are commanded by the law of nature, which is the moral law taught by our Saviour himself. And it is part of that obedience which must concur to our salvation.

**This tenet,
whatsoever is
against the
conscience is
sin, interpreted.**

12. And though it be true, whatsoever a man doth against his conscience, is sin; yet the obedience in these cases, is neither sin, nor against the conscience. For the conscience being nothing else but a man's settled judgment and opinion, when he hath once transferred his right of judging to another, that which shall be commanded, is no less his judgment, than the judgment of that other. So that in obedience to laws, a man doth still according to his own conscience, but not his private conscience. And whatsoever is done contrary to private conscience, is then a sin, when the laws have left him to his own liberty, and never else. And then whatsoever a man doth, not only believing it is ill done, but doubting whether it be ill or not, is done ill, in case he may lawfully omit the doing.

**That all men do
confess the
necessity of
submitting of
controversies to
some human
authority.**

13. And as it hath been proved, that a man must submit his opinions in matter of controversy to the authority of the commonwealth; so also is the same confessed by the practice of every one of them that otherwise deny it. For who is there differing in opinion from another, and thinking himself to be in the right, and the other in the wrong, that would not think it reasonable, if he be of the same opinion that the whole state alloweth, that the other should submit his opinion also thereunto; or that would not be content, if not that one or a few men, yet all the divines of a whole nation, or at least an assembly of all those he liketh, should have the power to determine all the controversies of religion? or, who is there that would not be content, to submit his opinions, either to the pope, or to a general council, or to a provincial council, or to a presbytery of his own nation? And yet in all these cases he submitteth himself to no greater than human authority. Nor can a man be said to submit himself to Holy Scripture, that doth not submit himself to some or other for the interpretation thereof. Or, why should there be any church government at all instituted, if the Scripture itself could do the office of a judge in controversies of faith? But the truth is apparent, by continual experience, that men seek not only liberty of conscience, but of their actions; nor that only, but a further liberty of persuading others to their opinions; nor that only, for every man desireth, that the sovereign

authority should admit no other opinions to be maintained, but such as he himself holdeth.

That Christians under an infidel are discharged of the injustice of disobeying him, in that which concerneth the faith necessary to salvation, by not resisting.

14. The difficulty therefore of obeying both God and man in a Christian commonwealth is none: all the difficulty resteth in this point, whether he that hath received the faith of Christ, having before subjected himself to the authority of an infidel, be discharged of his obedience thereby, or not, in matters of religion. In which case it seemeth reasonable to think, that since all covenants of obedience are entered into for the preservation of a man's life, if a man be content without resistance to lay down his life, rather than obey the commands of an infidel, in so hard a case he hath sufficiently discharged himself thereof. For no covenant bindeth further than to endeavour; and if a man cannot assure himself to perform a just duty, when thereby he is assured of present death, much less can it be expected that a man should perform that, for which he believeth in his heart he shall be damned eternally. And thus much concerning the scruple of conscience, that may arise concerning obedience to human laws, in them that interpret the law of God to themselves. It remaineth, to remove the same scruple from them, that submit their controversies to others not ordained thereunto by the sovereign authority. And this I refer to the chapter following.

CHAPTER VII.

1. The question propounded, who are the magistrates in the kingdom of Christ.
2. The question exemplified, in the controversies between Moses and Aaron, and between Moses and Corah.
3. Amongst the Jews, the power temporal and spiritual in the same hand.
4. Parallel of the twelve princes of Israel, and the twelve apostles.
5. Parallel of seventy elders, and seventy disciples.
6. The hierarchy of the church in our Saviour's time, consisted in the twelve, and in the seventy.
7. Why Christ ordained no priests for sacrifices, as Moses did.
8. The hierarchy of the church in the apostles' time, apostles, bishops, and priests.
9. The preaching of the gospel was not commanding, but persuading.
10. Excommunication. Sovereigns immediate rulers ecclesiastical under Christ.
11. That no man hath any just pretence of religion against obedience to commonwealth. God speaketh to man by his vicegerents.

**The question
propounded,
who are the
magistrates in
the kingdom of
Christ.**

1. In the former chapter have been removed those difficulties opposing our obedience to human authority, which arise from misunderstanding of our Saviour's title and laws: in the former whereof, namely, his title, consisteth our faith; and in the latter, our justice. Now they who differ not amongst themselves concerning his title and laws, may nevertheless have different opinions concerning his magistrates, and the authority he hath given them. And this is the cause, why many Christians have denied obedience to their princes, pretending that our Saviour Christ hath not given this magistracy to them, but to others. As for example: some say, to the pope universally; some, to a synod aristocratical; some, to a synod democratical in every several commonwealth; and the magistrates of Christ being they by whom he speaketh, the question is, whether he speak unto us by the pope, or by convocations of bishops and ministers, or by them that have the sovereign power in every commonwealth.

**The question
exemplified, in
the
controversies
between Moses
and Aaron, and
between Moses
and Corah.**

2. This controversy was the cause of those two mutinies, that happened against Moses in the wilderness. The first by Aaron and his sister Miriam, who took upon them to censure Moses, for marrying an Ethiopian woman. And the state of the question between them and Moses, they set forth (Numb. xii. 2) in these words: *What hath the Lord spoken but only by Moses? hath he not spoken also by us? And the Lord heard this, &c.*, and punished the same in Miriam, forgiving Aaron upon his repentance. And this is the case of all them that set up the priesthood against the sovereignty. The other was of Corah, Dathan, and Abiram, who with two hundred and fifty captains gathered themselves together against Moses, and against Aaron. The state of their controversy was this, whether God were not with the multitude, as well as with Moses, and every man as holy as he. For (Numb. xvi. 3) thus they say, *You take too much upon you, seeing all the congregation is holy; every one of them, and the Lord is amongst them: wherefore then lift ye yourselves above the congregation of the Lord?* And this is the case of them that set up their private consciences, and unite themselves to take the government of religion out of the hands of him or them, that have the sovereign

power of the commonwealth: which how well it pleaseth God, may appear by the hideous punishment of Corah and his accomplices.

Amongst the Jews, the power temporal and spiritual in the same hand.

3. In the government therefore of Moses there was no power, neither civil, nor spiritual, that was not derived from him. Nor in the state of Israel under kings, was there any earthly power, by which those kings were compellable to any thing, or any subject allowed to resist them in any case whatsoever. For though the prophets by extraordinary calling, did often admonish and threaten them, yet they had no authority over them. And therefore amongst the Jews, the power spiritual and temporal, was always in the same hand.

Parallel of the twelve princes of Israel, and the twelve apostles.

4. Our Saviour Christ, as he was the rightful king of the Jews in particular, as well as king of the kingdom of Heaven, in the ordaining of magistrates, received that form of policy which was used by Moses. According to the number of the children of Jacob, Moses took unto him by the appointment of God (Numb. i. 4) twelve men, every one of the chief of their tribe, which were to assist him in the muster of Israel. And these twelve, verse 44, are called the *princes of Israel, twelve men, every one for the house of their fathers*; which are said also (Numb. vii. 2), *to be heads over the houses of their fathers, and princes of the tribes, and over them that were numbered*. And these were every one equal amongst themselves. In like manner our Saviour took unto him twelve apostles, to be next unto him in authority, of whom he saith (Matth. xix. 28), *When the Son of Man shall sit in the throne of his majesty, ye which follow me in the regeneration, shall sit also upon twelve thrones, and judge the twelve tribes of Israel*. And concerning the equality of the twelve apostles amongst themselves, our Saviour saith (Matth. xx. 25), *Ye know that the Lords of the Gentiles have domination over them, &c. Verse 26: But it shall not be so amongst you; but whosoever will be greatest among you, let him be your servant*. And Matth. xxiii. 11: *He that is greatest among you, let him be your servant*. And a little before, verse 8, *Be not called Rabbi; for one is your doctor, Christ, and all ye are brethren*. And Acts i. in choosing of Matthias to be an apostle, though St. Peter used the part of a *prolocutor*, yet did no man take upon him the authority of election, but referred the same to lot.

Parallel of the seventy elders & seventy disciples.

5. Again, Moses had the command of God, Numb. xi. 16: *Gather to me seventy men of the elders of Israel, whom thou knowest that they are the elders of the people, and governors over them, and bring them unto the tabernacle, &c.* And Moses, verse 24, did accordingly. And these were chosen to help Moses in bearing the burthen of the government, as appeareth, verse 17 of the same chapter. And as the twelve princes of the tribes were according to the number of Jacob's children; so were the seventy elders according to the number of the persons that went down with Jacob into Egypt. In like manner our Saviour in his kingdom of Heaven, the church, out of the whole number of those that believed in him, ordained seventy persons, which peculiarly were called the seventy disciples, to whom he gave power to preach the Gospel and baptize.

The hierarchy of the church in our Saviour's time, consisted in the twelve, and in the seventy.

6. In our Saviour's time therefore, the hierarchy of the church consisted, besides himself that was the head, of twelve apostles, who were equal amongst themselves, but ordained over others, as were the twelve heads of the tribes, and seventy disciples, who had every one of them power to baptize and teach, and help to govern the whole flock.

Why Christ ordained no priests for sacrifices, as Moses did.

7. And whereas in the commonwealth instituted by Moses, there was not only a high-priest for the present, but also a succession and order of priests; it may be demanded, why our Saviour Christ did not ordain the like? To which may be answered, that the high-priesthood, forasmuch as concerneth the authority thereof, was in the person of Christ, as he was Christ, that is king. So also was it in Moses, Aaron having the ministerial part only. For notwithstanding that Aaron was the high-priest, yet the consecration of him belonged (Exod. xxix. 1) to Moses. All the utensils of sacrifice, and other holy things, were ordered by Moses; and in sum, the whole Levitical law was delivered by God by the hand of Moses, who was to Aaron a God, and Aaron to him a mouth. And for the ministerial part, there could no high-priest be ordained but himself; for seeing our Saviour was himself the sacrifice, who but himself could offer him up? And for the celebration of that

sacrifice for ever after, our Saviour annexed the priesthood to those whom he had appointed to govern in the church.

The hierarchy
of the church, in
the apostles'
time, apostles,
bishops, and
priests.

8. After the ascension of our Saviour, the apostles dispersed themselves for the spreading of the Gospel, and continually as they converted any number of men, in any city or region, to the faith, they chose out such as they thought fittest, to direct them in matter of conversation and life, according to Christ's law, and to explicate unto them, that mystery of Christ come in the flesh, that is to say, to unfold unto them at large the office of the Messiah. And of those elders, some were subordinate to others, according as the apostles, who ordained them, thought meet. So St. Paul gave power unto Titus, to ordain elders in Crete, and to redress things that were amiss. So that Titus was both an elder, and ordained elders (Tit. i. 5): *For this cause I left thee in Crete, that thou shouldest continue to redress the things that remain, and ordain elders in every city*; where the word is καταστήσας, that is constitute; whereby it appeareth, that in the apostles' times, one elder had authority over another, to ordain and rule them. For 1 Tim. v. 19, Timothy an elder, is made judge of accusations against other elders. And Acts xiv. 23, the disciples are said to ordain elders, for all the congregations of the cities they had preached in. And though the word there be χειροτονήσαντες, yet it signifieth not election by holding up of hands, but simply and absolutely ordination. For the ordinary choosing of magistrates amongst the Grecians, which were all either popularly governed, or else by *oligarchy*, being performed by holding up of hands, made that word be taken simply, for an election or ordination, howsoever made. And thus in the primitive church, the hierarchy of the church, was apostles, elders that governed other elders, and elders that ruled not, but their office was to preach, to administer the sacraments, to offer up prayers and thanksgiving in the name of the people. But at that time there appeared no distinction between the names of bishop and elder. But immediately after the apostles' time, the word bishop was taken to signify such an elder as had the government of elders, and other elders were called by the name of priests, which signifieth the same that elder doth. And thus the government of bishops hath a divine pattern in the twelve rulers, and seventy elders of Israel, in the twelve

apostles and seventy disciples of our Saviour, in the ruling elders, and not ruling elders, in the time of the apostles.

The preaching
of the gospel
was not
commanding,
but persuading.

9. And thus much of the magistrates over Christ's flock in the primitive church. For the office of a minister, or ministress, was to be subject to the flock, and to serve them in those things which appertain to their temporal business. The next thing to be considered is the authority which our Saviour gave them, either over those whom they had converted, or those whom they were about to convert. And for these latter, which as yet were without the church, the authority which our Saviour gave to his apostles was no more but this, to preach unto them that Jesus was the Christ, and to explicate the same in all points, that concern the kingdom of heaven, and to persuade men to embrace our Saviour's doctrine, but by no means to compel any man to be subject to them: for seeing the laws of the kingdom of heaven, as hath been showed, Part I, chap. v. [sect. 10](#), are dictated to the conscience only, which is not subject to compulsion and constraint, it was not congruent to the style of the King of Heaven to constrain men to submit their actions to him, but to advise them only; nor for him that professeth the sum of his law to be love, to extort any duty from us with fear of temporal punishment. And therefore as the mighty men in the world, that hold others in subjection by force, are called in Scripture by the name of hunters; so our Saviour calleth those whom he appointed to draw the world unto him, by subduing their affections, *fishers*. And therefore he saith to Peter and Andrew, (Matth. iv. 19): *Follow me, and I will make ye fishers of men*. And Luke x. 3: *Behold*, saith Christ, *I send ye forth as lambs amongst wolves*. And it were to no end to give them the right of compelling, without strengthening the same with greater power than of *lambs amongst wolves*. Moreover, Matth. x, where our Saviour giveth a commission to his apostles, to go forth and convert the nations to the faith, he giveth them no authority of *coercion* and punishment, but only saith, (verse 14, 15) *Whosoever shall not receive you, nor hear your words, when ye depart out of that house, or that city, shake off the dust of your feet. It shall be easier for the land of Sodom and Gomorrah in the day of judgment, than for that city*. Whereby it is manifest, that all that the apostles could do by their authority, was no more than to renounce communion with them, and

leave their punishment to God Almighty, in the day of judgment. Likewise the comparisons of the kingdom of heaven to the seed, Matth. xiii. 3, and to the leaven, Matth. xiii. 33, doth intimate unto us that the increase thereof ought to proceed from internal operation of God's word preached, and not from any law or compulsion of them that preach it. Moreover our Saviour himself saith (John xviii. 36), *That his kingdom is not of this world*; and consequently his magistrates derive not from him any authority of punishing men in this world. And therefore also, Matth. xxvi. 52, after St. Peter had drawn his sword in his defence, our Saviour saith, *Put up thy sword into his place. For all that take the sword, shall perish by the sword.* And, verse 54, *How then shall the Scriptures be fulfilled, which say, that it must be so?* showing out of the Scriptures, that the kingdom of Christ was not to be defended by the sword.

**Excommunicati
on. Sovereigns
immediate
rulers
ecclesiastical
under Christ.**

10. But concerning the authority of the apostles or bishops over those who were already converted and within the church, there be that think it greater than over them without. For some have said, (Bellarmin. *Lib. de Rom. Pont. cap. 29.*) *Though the law of Christ deprive no prince of his dominion, and Paul did rightly appeal unto Cæsar, whilst kings were infidels and out of the church; yet when they became Christians, and of their own accord underwent the laws of the gospel, presently as sheep to a shepherd, and as members to the head, they became subject to the prelate of the ecclesiastical hierarchy.* Which, whether it be true or not, is to be considered by that light which we have from the Holy Scripture, concerning the power of our Saviour and his apostles, over such as they had converted. But our Saviour, as he imitated the commonwealth of the Jews in his magistrates, the twelve and the seventy; so did he also in the censure of the church, which was *excommunication*; but amongst the Jews, the church did put the excommunicated persons from the congregation, which they might do by their power temporal; but our Saviour and his apostles, who took upon them no such power, could not forbid the excommunicated person to enter into any place and congregation, into which he was permitted to enter, by the prince, or sovereign of the place. For that had been to deprive the sovereign of his authority. And therefore the excommunication of a person subject to an earthly power, was but a

declaration of the church, which did excommunicate, that the person so excommunicated was to be reputed still as an infidel, but not to be driven by their authority, out of any company, he might otherwise lawfully come into. And this is it our Saviour saith (Matth. xviii. 17): *If he refuse to hear the church, let him be unto thee as an heathen man and a publican.* So that the whole effect of excommunicating a Christian prince, is no more than he or they that so excommunicate him depart and banish themselves out of his dominion. Nor can they thereupon discharge any of his subjects of their obedience to him; for that were to deprive him of his dominion; which they may not do, for being out of the church. It is confessed by them that make this objection, and proved in the former section, that our Saviour gave no authority to his apostles to be judges over them. And therefore in no case can the sovereign power of a commonwealth be subject to any authority ecclesiastical, besides that of Christ himself. And though he be informed concerning the kingdom of heaven, and subject himself thereto at the persuasions of persons ecclesiastical, yet is he not thereby subject to their government and rule. For if it were by their authority he took that yoke upon him, and not by their persuasion, then by the same authority he might cast it off. But this is unlawful. For if all the churches in the world should renounce the Christian faith, yet is not this sufficient authority for any of the members to do the same. It is manifest therefore, that they who have sovereign power, are immediate rulers of the church under Christ, and all other but subordinate to them. If that were not, but kings should command one thing upon pain of death, and priests another, upon pain of damnation, it would be impossible that peace and religion should stand together.

That no man hath any just pretence of religion against obedience to commonwealth. God speaketh to man by his vicegerents.

11. And therefore there is no just cause for any man to withdraw his obedience from the sovereign state, upon pretence that Christ hath ordained any state ecclesiastical above it. And though kings take not upon them the ministerial priesthood, yet are they not so merely laic, as not to have sacerdotal jurisdiction. To conclude this chapter, since God speaketh not in these days to any man by his private interpretation of the Scriptures, nor by the interpretation of any power above, or not depending on the sovereign power of every commonwealth, it remaineth, that he

speaketh by his vice-gods, or lieutenants here on earth, that is to say, by sovereign kings, or such as have sovereign authority as well as they.

CHAPTER VIII.

1. The things that dispose to rebellion, discontent, pretence, and hope of success. 2. Discontent that disposeth to sedition, consisteth partly in fear of want, or punishment: 3. Partly in ambition. 4. Six heads of pretences to rebellion. 5. The first of them, that men ought to do nothing against conscience, confuted. 6. The second, that sovereigns are subject to their own laws, confuted. 7. The third, that the sovereignty is divisible, confuted. 8. The fourth, that subjects have a propriety distinct from the dominion of the sovereign, confuted. 9. The fifth, that the people is a person distinct from the sovereign, confuted. 10. The sixth, that tyrannicide is lawful, confuted. 11. Four heads of hope of success in rebellion. 12. Two things necessary to an author of rebellion, much eloquence, and little wisdom. 13. That the authors of rebellion necessarily are to be men of little wisdom. 14. That the same are necessarily eloquent. 15. In what manner they concur to their common effects.

The things that dispose to rebellion, discontent, pretence, and hope of success.

1. Hitherto of the causes why, and the manner how, men have made commonwealth. In this chapter I shall show briefly by what causes, and in what manner, they be again destroyed; not meaning to say anything concerning the dissolution of a commonwealth, from foreign invasions, which is as it were the violent death thereof. I shall speak only of sedition, which is also the death of the commonwealth, but like to that which happeneth to a man from sickness and distemper. To dispose men to sedition, three things concur. The first is discontent; for as long as a man thinketh himself well, and that the present government standeth not in his way to hinder his proceeding from well to better, it is impossible for him to desire the change thereof. The second is pretence of right; for though a man be discontent, yet if in his own opinion there be no just cause of stirring against, or resisting the government established, nor any pretence to justify his resistance, and to procure aid, he will never show it. The third is hope of success; for it were madness to attempt without hope, when to fail, is to die the death of a traitor. Without these three, discontent, pretence, and hope, there can be no rebellion: and when the same are all together, there wanteth

nothing thereto, but a man of credit to set up the standard, and to blow the trumpet.

Discontent that disposeth to sedition, consisteth partly in fear of want, or punishment:

2. And as for discontent, it is of two sorts: for it consisteth either in bodily pain present or expected, or else in trouble of the mind; which is the general division of pleasure and pain, *Human Nature*, chap. vii. [sect. 8](#). The presence of bodily pain disposeth not to sedition; the fear of it doth. As for example; when a great multitude, or heap of people, have concurred to a crime worthy of death, they join together, and take arms to defend themselves for fear thereof. So also the fear of want, or in present want, the fear of arrests and imprisonment dispose to sedition. And therefore great exactions, though the right thereof be acknowledged, have caused great seditions. As in the time of Henry VII. the seditions of the Cornish men, that refused to pay a subsidy, and, under the conduct of the Lord Audley, gave the King battle upon Blackheath; and that of the northern people, who in the same king's time, for demanding a subsidy granted in parliament, murdered the Earl of Northumberland in his house.

Partly in ambition.

3. Thirdly, the other sort of discontent, which troubleth the mind of them who otherwise live at ease, without fear of want, or danger of violence, ariseth only from a sense of their want of that power, and that honour and testimony thereof, which they think is due unto them. For all joy and grief of mind consisting (as hath been said, *Human Nature*, chap. ix. [sect. 21](#)) in a contention for precedence to them with whom they compare themselves; such men must needs take it ill, and be grieved with the state, as find themselves postposed to those in honour, whom they think they excel in virtue and ability to govern. And this is it for which they think themselves regarded but as slaves. Now seeing freedom cannot stand together with subjection, liberty in a commonwealth is nothing but government and rule, which because it cannot be divided, men must expect in common; and that can be no where but in the popular state, or democracy. And Aristotle saith well, (lib. vi. cap. 2 of his *Politics*), *The ground or intention of a democracy, is liberty*. Which he confirmeth in these words: *For men ordinarily say this, that no man can partake of liberty, but only in a popular commonwealth*. Whosoever therefore in a monarchical estate, where the sovereign power is absolutely in one

man, claimeth liberty, claimeth (if the hardest construction should be made thereof) either to have the sovereignty in his turn, or to be colleague with him that hath it, or to have the monarchy changed into a democracy. But if the same be construed, with pardon of that unskilful expression, according to the intention of him that claimeth, then doth he thereby claim no more but this, that the sovereign should take notice of his ability and deserving, and put him into employment and place of subordinate government, rather than others that deserve less. And as one claimeth, so doth another, every man esteeming his own desert greatest. Amongst all those that pretend to, or are ambitious of such honour, a few only can be served, unless it be in a *democracy*; the rest therefore must be discontent. And so much of the first thing that disposeth to rebellion, namely, discontent, consisting in fear and ambition.

**Six heads of
pretences to
rebellion.**

4. The second thing that disposeth to rebellion, is *pretence of right*. And that is when men have an opinion, or pretend to have an opinion, that in certain cases they may lawfully resist him or them that have the sovereign power, or deprive him or them of the means to execute the same. Of which pretences, there be six special cases. One is, when the command is against their conscience, and they believe it is unlawful for a subject at the command of the sovereign power to do any action, which he thinketh in his own conscience not lawful for him to do, or to omit any action, which he thinketh not lawful for him to omit. Another is, when the command is against the laws, and they think the sovereign power in such sort obliged to his own laws, as the subject is; and that when he performeth not his duty, they may resist his power. A third is, when they receive commands from some man or men, and a *supersedeas* to the same from others, and think the authority is equal, as if the sovereign power were divided. A fourth is, when they are commanded to contribute their persons or money to the public service, and think they have a propriety in the same distinct from the dominion of the sovereign power; and that therefore they are not bound to contribute their goods and persons, no more than every man shall of himself think fit. A fifth, when the commands seem hurtful to the people; and they think, every one of them, that the opinion and sense of the people, is the same with the opinion of himself, and those that consent with him;

calling by the name of people, any multitude of his own faction. The sixth is, when the commands are grievous; and they account him that commandeth grievous things a tyrant; and tyrannicide, that is, the killing of a tyrant, not only lawful, but also laudable.

The first of them, that men ought to do nothing against conscience, confuted.

5. All these opinions are maintained in the books of the *dogmatics*, and divers of them taught in public chairs, and nevertheless are most incompatible with peace and government, and contradictory to the necessary and demonstrable rules of the same. And for the first, namely, that a man may lawfully do or omit any thing against his conscience, and from whence arise all seditions concerning religion and ecclesiastical government, it hath been plainly declared in the two last chapters, that such opinion is erroneous. For those two chapters have been wholly spent, to prove, that Christian religion not only forbiddeth not, but also commandeth, that in every commonwealth, every subject should in all things to the uttermost of his power obey the commands of him or them that is the sovereign thereof, and that a man in so obeying, doth according to his conscience and judgment, as having deposited his judgment in all controversies in the hands of the sovereign power; and that this error proceedeth from the ignorance of what and by whom God Almighty speaketh.

The second, that sovereigns are subject to their own laws, confuted.

6. As for the second opinion, which is this, that the sovereign is in such sort obliged to his own laws, as the subject is; the contrary thereof hath been showed, Part II. chapter I. [sections 7-12](#), by which it appeareth, that the sovereign power is not to be resisted; that it carrieth the sword both of war and justice; that it hath the right of deciding all controversies, both judicial and deliberative; that it hath the making of all the laws civil; that it appointeth magistrates and public ministers, and that it implieth an universal impunity. How then can he or they be said to be subject to the laws which they may abrogate at their pleasure, or break without fear of punishment? And this error seemeth to proceed from this, that men ordinarily understand not aright, what is meant by this word law, confounding law and covenant, as if they signify the same thing. But law implieth a command; covenant is but a promise. And not every command is a law, but only (*Human Nature*, chap. XIII. [sect. 6](#)) when the command is the reason we have of doing the action

commanded. And then only is the reason of our actions in the command, when the omitting is therefore hurtful, because the action was commanded, not because it was hurtful of itself; and doing contrary to a command, were not at all hurtful, if there were not a right in him that commandeth to punish him that so doth. He or they that have all punishments in their own disposing, cannot be so commanded, as to receive hurt for disobeying, and consequently no command can be a law unto them. It is an error therefore to think, that the power which is virtually the whole power of the commonwealth, and which in whomsoever it resideth, is usually called supreme or sovereign, can be subject to any law but that of God Almighty.

The third, that the sovereignty is divisible, confuted.

7. The third opinion, *that the sovereign power may be divided*, is no less an error than the former, as hath been proved, Part II. chapter I. [sect. 15](#). And if there were a commonwealth, wherein the rights of sovereignty were divided, we must confess with Bodin, Lib. II. chap. I. *De Republica*, that they are not rightly to be called commonwealths, but the corruption of commonwealths. For if one part should have power to make the laws for all, they would by their laws at their pleasure, forbid others, to make peace or war, to levy taxes, or to yield fealty and homage without their leave; and they that had the right to make peace and war, and command the *militia*, would forbid the making of other laws, than what themselves liked. And though monarchies stand long, wherein the right of sovereignty hath seemed so divided, because monarchy of itself is a durable kind of government, yet monarchs have been thereby divers times thrust out of their possession. But the truth is, that the right of sovereignty is such, as he or they that have it, cannot, though they would, give away any part thereof, and retain the rest. As for example; if we should suppose the people of Rome to have had the absolute sovereignty of the Roman state, and to have chosen them a council by the name of the senate, and that to this senate they had given the supreme power of making laws, reserving nevertheless to themselves, in direct and express terms, the whole right and title of the sovereignty; which may easily happen amongst them that see not the inseparable connexion between the sovereign power, and the power of making laws: I say, this grant of the people to the senate is of no effect, and the power of making laws is in the people still. For the senate

understanding it to be the will and intention of the people, to retain the sovereignty, ought not to take that for granted, which was contradictory thereto, and passed by error. For (*Human Nature*, chap. XIII. [sect. 9](#)) in contradictory promises, that which is directly promised, is preferred before that which is opposite thereunto by consequence; because the consequence of a thing is not always obscured, as is the thing itself. The error concerning mixed government hath proceeded from want of understanding of what is meant by this word *body politic*, and how it signifieth not the concord, but the union of many men. And though in the chapters of subordinate corporations, a corporation being declared to be one person in law, yet the same hath not been taken notice of in the body of a commonwealth or city, nor have any of those innumerable writers of politics, observed any such union.

The fourth, that subjects have a propriety distinct from the dominion of the sovereign, confuted.

8. The fourth opinion, to wit, that subjects have their *meum, tuum, and suum*, in property, not only by virtue of the sovereign power over them all, distinct from one another, but also against the sovereign himself, by which they would pretend to contribute nothing to the public, but what they please, hath been already confuted, by proving the absoluteness of the sovereignty, and more particularly, Part II. chapter v. [sect. 2](#); and ariseth from this, that they understand not ordinarily that before the institution of sovereign power, *meum* and *tuum*, implied no propriety, but a community, where every man had right to every thing, and was in state of war with every man.

The fifth, that the people is a person distinct from the sovereign, confuted.

9. The fifth opinion, *That the people is a distinct body from him or them that have the sovereignty over them*, is an error already confuted, Part II. chap. II. [sect 11](#), where it is showed, that when men say, *the people rebelleth*, it is to be understood of those particular persons only, and not of the whole nation. And when the people claimeth any thing otherwise than by the voice of the sovereign power, it is not the claim of the people, but only of those particular men, that claim in their own persons; and this error ariseth from the equivocation of the word *people*.

The sixth, that tyrannicide is lawful, confuted.

10. Lastly, for the opinion, *that tyrannicide is lawful*, meaning by a tyrant any man in whom resideth the right of sovereignty, is no less false and pernicious to

human society, than frequent in the writings of those moral philosophers, Seneca and others, so greatly esteemed amongst us. For when a man hath the right of sovereignty, he cannot justly be punished, as hath been often showed already, and therefore much less deposed, or put to death. And howsoever he might deserve punishment, yet punishment is unjust without judgment preceding, and judgment unjust without power of judicature, which a subject hath not over a sovereign. But this doctrine proceedeth from the Schools of Greece, and from those that writ in the Roman state, in which not only the name of a tyrant, but of a king, was hateful.

**Four heads of
hope of success
in rebellion.**

11. Besides *discontent*, to the disposing of a man to rebellion, and pretence, there is required, in the third place, *hope of success*, which consisteth in four points: I. That the discontented have mutual intelligence; II. That they have sufficient number; III. That they have arms; IV. That they agree upon a head. For these four must concur to the making of one body of rebellion, in which intelligence is the life, number the limbs, arms the strength, and a head the unity, by which they are directed to one and the same action.

**Two things
necessary to an
author of
rebellion, much
eloquence, and
little wisdom.**

12. The authors of rebellion, that is, the men that breed these dispositions to rebel in others, of necessity must have in them these three qualities: I. To be discontented themselves; II. To be men of mean judgment and capacity; and, III. To be eloquent men, or good orators. And as for their discontent, from whence it may proceed, hath been already declared. And for the second and third, I am to show now, first, how they may stand together; for it seemeth a contradiction, to place small judgment and great eloquence, or, as they call it, powerful speaking, in the same man: and then in what manner they concur, to dispose other men to sedition.

**That the
authors of
rebellion
necessarily, are
to be men of
little wisdom.**

13. It was noted by Sallust, that in Catiline, who was author of the greatest sedition that ever was in Rome, there was *Eloquentiæ satis, sapientiæ parum; eloquence sufficient, but little wisdom*. And perhaps this was said of Catiline, as he was Catiline: but it was true of him as an author of sedition. For the conjunction of these two qualities made him not Catiline, but seditious. And that it may be

understood, how want of *wisdom*, and store of *eloquence*, may stand together, we are to consider, what it is we call wisdom, and what eloquence. And therefore I shall here again remember some things, that have been said already, *Human Nature*, chap. v. vi. It is manifest that wisdom consisteth in knowledge. Now of knowledge there are two kinds; whereof the one is the remembrance of such things, as we have conceived by our senses, and of the order in which they follow one another. And this *knowledge* is called *experience*; and the wisdom that proceedeth from it, is that ability to conjecture by the present, of what is past, and to come, which men call *prudence*. This being so, it is manifest presently, that the author of sedition, whosoever he be, must not be prudent. For if he consider and take his experiences aright, concerning the success which they have had, who have been the movers and authors of sedition, either in this or any other state, he shall find, that for one man that hath thereby advanced himself to honour, twenty have come to a reproachful end. The other kind of knowledge, is the remembrance of the names or appellations of things, and how every thing is called, which is, in matters of common conversation, a remembrance of pacts and covenants of men made amongst themselves, concerning how to be understood of one another. And this kind of knowledge is generally called science, and the conclusions thereof truth. But when men remember not how things are named, by general agreement, but either mistake and misname things, or name them aright by chance, they are not said to have science, but opinion, and the conclusions thence proceeding, are uncertain, and for the most part erroneous. Now that science in particular, from which proceed the true and evident conclusions of what is right and wrong, and what is good and hurtful to the being, and well-being of mankind, the Latins call *sapientia*, and we by the general name of wisdom. For generally, not he that hath skill in geometry, or any other science speculative, but only he that understandeth what conduceth to the good and government of the people, is called a wise man. Now that no author of sedition can be wise in this acceptation of the word, is sufficiently proved, in that it hath been already demonstrated, that no pretence of sedition can be right or just. And therefore the authors of sedition must be ignorant of the right of state, that is to say, unwise. It remaineth therefore, that they be such, as name things, not according to their true and generally

agreed upon names, but call right and wrong, good and bad, according to their passions, or according to the authorities of such as they admire, as Aristotle, Cicero, Seneca, and others of like authority, who have given the names of right and wrong, as their passions have dictated; or have followed the authority of other men, as we do theirs. It is required therefore in an author of sedition, that he think right, that which is wrong; and profitable, that which is pernicious; and consequently that there be in him *sapientiæ parum*, little wisdom.

**That the same
are necessarily
eloquent.**

14. Eloquence is nothing else but the power of winning belief of what we say. And to that end we must have aid from the passions of the hearer. Now to demonstration and teaching of the truth, there are required long deductions, and great attention, which is unpleasant to the hearer. Therefore they which seek not truth, but belief, must take another way, and not only derive what they would have to be believed, from somewhat believed already, but also, by aggravations and extenuations, make good and bad, right and wrong, appear great or less, according as shall serve their turns. And such is the power of eloquence, as many times a man is made to believe thereby, that he sensibly feeleth smart and damage, when he feeleth none, and to enter into rage and indignation, without any other cause, than what is in the words and passion of the speaker. This considered, together with the business that he hath to do, who is the author of rebellion, namely, to make men believe that their rebellion is just, their discontents grounded upon great injuries, and their hopes great; there needeth no more to prove, there can be no author of rebellion, that is not an eloquent and powerful speaker, and withal, as hath been said before, a man of little wisdom. For the faculty of speaking powerfully, consisteth in a habit gotten of putting together passionate words, and applying them to the present passions of the hearer. are not able to effect.

**In what manner
they concur to
their common
effects.**

15. Seeing then eloquence and want of discretion concur to the stirring of rebellion, it may be demanded, what part each of these acteth therein? The daughters of Pelias, king of Thessaly, desiring to restore their old decrepit father to the vigour of his youth, by the counsel of Medea, chopped him in pieces, and set him a boiling with I know not what herbs in a cauldron, but could not revive him again. So when eloquence

and want of judgment go together, want of judgment, like the daughters of Pelias, consenteth, through eloquence, which is as the witchcraft of Medea, to cut the commonwealth in pieces, upon pretence or hope of reformation, which when things are in combustion, they are not able to effect.

CHAPTER IX.

1. The law over sovereigns, *salus populi*. 2. That sovereigns ought to establish the religion they hold for best. 3. That to forbid unnatural copulation, promiscuous use of women, &c. is the law of nature. 4. That to leave man as much liberty as may be, &c. is the duty of a sovereign by the law of nature. 5. *Meum* and *tuum*, to be set out to the subjects, distinct from one another, &c. a duty of sovereigns by the law of nature. 6. An extraordinary power for judging the abuses of magistrates, necessary, &c. 7. The suppressing of popularity, &c. necessary, &c. 8. The instruction of youth, &c. necessary, &c. 9. Avoiding of unnecessary war, a necessary duty of the sovereign, &c.

**The law over
sovereigns *salus
populi*.**

1. Having hitherto set forth how a body politic is made, and how it may be destroyed, this place requireth to say something concerning the preservation of the same, not purposing to enter into the particulars of the art of government, but to sum up the general heads, wherein such art is to be employed, and in which consisteth the duty of him or them that have the sovereign power. For the duty of a sovereign consisteth in the good government of the people. And although the acts of sovereign power be no injuries to the subjects who have consented to the same by their implicit wills, yet when they tend to the hurt of the people in general, they be breaches of the law of nature, and of the divine law; and consequently, the contrary acts are the duties of sovereigns, and required at their hands to the utmost of their endeavour, by God Almighty, under the pain of eternal death. And as the art and duty of sovereigns consist in the same acts, so also doth their profit. For the end of art, is profit; and governing to the profit of the subjects, is governing to the profit of the sovereign, as hath been showed Part II. chapter v. [section 1](#). And these three: 1. The law over them that have sovereign

power: 2. Their duty: 3. Their profit: are one and the same thing contained in this sentence, *Salus populi suprema lex*. By which must be understood, not the mere preservation of their lives, but generally their benefit and good. So that this is the general law for sovereigns, *That they procure, to the uttermost of their endeavour, the good of the people*.

That sovereigns ought to establish the religion they hold for best.

2. And forasmuch as eternal is better than temporal good, it is evident, that they who are in sovereign authority, are by the law of nature obliged to further the establishing of all such doctrines and rule, and the commanding of all such actions, as in their conscience they believe to be the true way thereunto. For unless they do so, it cannot be said truly, that they have done the uttermost of their endeavour.

That to forbid unnatural copulation, promiscuous use of women, &c. is the law of nature.

3. For the temporal good of the people, it consisteth in four points: 1. Multitude: 2. Commodity of living: 3. Peace amongst themselves: 4. Defence against foreign power. Concerning multitude, it is the duty of them that are in sovereign authority, to increase the people, in as much as they are governors of mankind under God Almighty, who having created but one man, and one woman, declared, that it was his will they should be multiplied and increased afterwards. And seeing this is to be done by ordinances concerning copulation, they are by the law of nature bound to make such ordinances concerning the same, as may tend to the increase of mankind. And hence it cometh, that in them who have sovereign authority, not to forbid such copulations as are against the use of nature; not to forbid the promiscuous use of women, not to forbid one woman to have many husbands, not to forbid marriages within certain degrees of kindred and affinity, are against the law of nature. For though it be not evident, that a private man living under the law of natural reason only, doth break the same, by doing any of the things aforesaid; yet it is manifestly apparent, that being so prejudicial as they are to the improvement of mankind, that not to forbid the same, is against the law of natural reason in him, that hath taken into his hands any portion of mankind to improve.

That to leave man as much liberty as may

4. The commodity of living consisteth in liberty and wealth. By liberty, I mean, that there be no prohibition

be, &c. is the
duty of a
sovereign by the
law of nature.

without necessity of any thing to any man, which was lawful to him in the law of nature; that is to say, that there be no restraint of natural liberty, but what is necessary for the good of the commonwealth, and that well-meaning men may not fall into the danger of laws, as into snares, before they be aware. It appertaineth also to this liberty, that a man may have commodious passage from place to place, and not be imprisoned or confined with the difficulty of ways, and want of means for transportation of things necessary. And for the wealth of people, it consisteth in three things, the well ordering of trade, procuring of labour, and forbidding the superfluous consuming of food and apparel. All those therefore that are in sovereign authority, and have taken upon them the government of people, are bound by the law of nature to make ordinances consisting in the points afore named, as being contrary to the law of nature, unnecessarily, either for one's own fancy, to enthrall, or tie men so, as they cannot move without danger; or to suffer them whose maintenance is our benefit, to want anything necessary for them, by our negligence.

Meum and
tuum, to be set
out to the
subjects,
distinct from
one another,
&c. a duty of
sovereigns by
the law of
nature.

5. For maintaining of peace at home, there be so many things necessarily to be considered, and taken order in, as there be several causes concurring to sedition. And first, it is necessary to set out to every subject, his propriety, and distinct lands and goods, upon which he may exercise and have the benefit of his own industry, and without which men would fall out amongst themselves, as did the herdsmen of Abraham and Lot, every man encroaching and usurping as much of the common benefit as he can, which tendeth to quarrel and sedition. Secondly, to divide the burthens and charges of the commonwealth proportionably. Now there is a *proportionably* to every man's ability, and there is a *proportionably* to his benefit by commonwealth: and this latter is it, which is according to the law of nature. For the burdens of the commonwealth being the price that we pay for the benefit thereof, they ought to be measured thereby. And there is no reason, when two men equally enjoying, by the benefit of the commonwealth, their peace and liberty, to use their industry to get their livings, whereof one spareth, and layeth up somewhat, the other spendeth all he gets, why they

should not equally contribute to the common charge. That seemeth therefore to be the most equal way of dividing the burden of public charge, when every man shall contribute according to what he spendeth, and not according to what he gets. And this is then done, when men pay the commonwealth's part in the payments they make for their own provision. And this seemeth not only most equal, but also least sensible, and least to trouble the mind of them that pay it. For there is nothing so aggravateth the grief of parting with money to the public, as to think they are over-rated, and that their neighbours whom they envy, do thereupon insult over them, and this disposeth them to resistance, and, after that such resistance hath produced a mischief, to rebellion.

**An
extraordinary
power for
judging the
abuses of
magistrates,
necessary, &c.**

6. Another thing necessary for the maintaining of peace, is the due execution of justice, which consisteth principally in the right performance of their duties, which are the magistrates, ordained for the same by and under the authority of the sovereign power, which being private men in respect of the sovereign, and consequently such as may have private ends, whereby they may be corrupted with gifts, or intercession of friends, ought to be kept in awe by an higher power, lest people, grieved by their injustice, should take upon them to make their own revenges, to the disturbance of the common peace; which can by no way be avoided in the principal and immediate magistrates, without the judicature of the sovereign himself, or some extraordinary power delegated by him. It is therefore necessary, that there be a power extraordinary, as there shall be occasion from time to time, for the syndication of judges and other magistrates, that shall abuse their authority, to the wrong and discontent of the people; and a free and open way for the presenting of grievances to him or them that have the sovereign authority.

**The suppressing
of popularity,
&c. necessary,
&c.**

7. Besides these considerations, by which are prevented the discontents that arise from oppression, there ought to be some means for the keeping under of those, that are disposed to rebellion by ambition; which consist principally in the constancy of him that hath the sovereign power, who ought therefore constantly to grace and encourage such, as being able to serve the commonwealth, do nevertheless contain themselves within the bounds of modesty, without repining at the authority of such as are employed, and without aggravating the errors, which, as men, they may commit, especially when they suffer not in their own particular; and constantly to show displeasure, and dislike of the contrary. And not only so, but also to ordain severe punishments for such, as shall by reprehension of public actions, affect popularity and applause amongst the multitude, by which they may be enabled to have a faction in the commonwealth at their devotion.

**The instruction
of youth, &c.
necessary, &c.**

8. Another thing necessary, is the rooting out of the consciences of men, all those opinions which seem to justify and give pretence of right to rebellious actions; such as are the opinions, that a man can do nothing lawfully against his

private conscience; that they who have the sovereignty, are subject to the civil laws; that there is any authority of subjects, whose negative may hinder the affirmative of the sovereign power; that any subject hath a propriety distinct from the dominion of the commonwealth; that there is a body of the people without him or them that have the sovereign power; and that any lawful sovereign may be resisted under the name of a tyrant; which opinions are they, which, Part II. chap. VIII. [sect. 5-10](#), have been declared to dispose men to rebellion. And because opinions which are gotten by education, and in length of time, are made habitual, cannot be taken away by force, and upon the sudden; they must therefore be taken away also by time and education. And seeing the said opinions have proceeded from private and public teaching, and those teachers have received them from grounds and principles, which they have learned in the Universities, from the doctrine of Aristotle, and others, who have delivered nothing concerning morality and policy demonstratively; but being passionately addicted to popular government, have insinuated their opinions by eloquent sophistry. There is no doubt, if the true doctrine concerning the law of nature, and the properties of a body politic, and the nature of law in general, were perspicuously set down and taught in the Universities, but that young men, who come thither void of prejudice, and whose minds are as white paper, capable of any instruction, would more easily receive the same, and afterward teach it to the people, both in books and otherwise, than now they do the contrary.

Avoiding of
unnecessary
war, a necessary
duty of the
sovereign, &c.

9. The last thing contained in that supreme law, *salus populi*, is their defence; and consisteth partly in the obedience and unity of the subjects, of which hath been already spoken, and in which consisteth the means of levying soldiers, and of having money, arms, ships, and fortified places in readiness for defence; and partly, in the avoiding of unnecessary wars. For such commonwealths, or such monarchs, as affect war for itself, that is to say, out of ambition, or of vain-glory, or that make account to revenge every little injury, or disgrace done by their neighbours, if they ruin not themselves, their fortune must be better than they have reason to expect.

CHAPTER X.

1. All expressions, &c. concerning future actions, are either covenant, counsel, or command. 2. The difference between a law and a covenant. 3. The command of him whose command is law in one thing, is law in every thing. 4. The difference between law and counsel. 5. The difference between *jus* and *lex*. 6. The division of laws, &c. 7. That the divine moral law, and the law of nature, is the same. 8. That the civil laws are the common measure of right and wrong, &c. 9. Martial law is civil law. 10. Written laws, &c. Unwritten, &c. Customs and opinions, &c.

All expressions,
&c. concerning
future actions,
are either
covenant,
counsel, or
command.

1. Thus far concerning the Nature of Man, and the constitution and properties of a Body Politic. There remaineth only for the last chapter, to speak of the nature and sorts of law. And first it is manifest, that all laws are declarations of the mind, concerning some action future to be done, or omitted. And all declarations and expressions of the mind concerning future actions and omissions, are either *promissive*, as *I will do, or not do*; or *provisive*, as for example, *If this be done or not done, this will follow*; or *imperative*, as *Do this, or do it not*. In the first sort of these expressions, consisteth the nature of a covenant; in the second, consisteth counsel; in the third, command.

The difference
between a law
and a covenant.

2. It is evident when a man doth, or forbeareth to do any action, if he be moved thereto by this only consideration, that the same is good or evil in itself; and that there be no reason why the will or pleasure of another, should be of any weight in his deliberation, that then neither to do nor omit the action deliberated, is any breach of law. And consequently, whatsoever is a law to a man, respecteth the will of another, and the declaration thereof. But a covenant is a declaration of a man's own will. And therefore a law and a covenant differ: and though they be both obligatory, and a law obligeth no otherwise than by virtue of some covenant made by him who is subject thereunto, yet they oblige by several sorts of promises. For a covenant obligeth by promise of an action, or omission especially named and limited; but a law bindeth by a promise of obedience in general, whereby the action to be done, or left undone, is referred to the determination of him, to whom the covenant is made. So that the difference between a covenant and a law,

standeth thus: in simple covenant, the action to be done, or not done, is first limited and made known, and then followeth the promise to do or not do; but in a law, the obligation to do or not to do, precedeth, and the declaration what is to be done, or not done, followeth after.

The command of him whose command is law in one thing, is law in every thing.

3. And from this may be deduced, that which to some may seem a *paradox*, *That the command of him, whose command is a law in one thing, is a law in every thing*. For seeing a man is obliged to obedience before what he is to do be known, he is obliged to obey in general, that is to say, in every thing.

The difference between law and counsel.

4. That the counsel of a man is no law to him that is counselled, and that he who alloweth another to give him counsel, doth not thereby oblige himself to follow the same, is manifest enough. And yet men usually call counselling, by the name of governing; not that they are not able to distinguish between them, but because they envy many times those men that are called to counsel, and are therefore angry with them that they are counselled. But if to counsellors there should be given a right to have their counsel followed, then are they no more counsellors, but masters of them whom they counsel; and their counsels no more counsels, but laws. For the difference between a law and a counsel being no more but this, that in counsel the expression is, *Do, because it is best*; in a law, *Do, because I have a right to compel you*; or *Do, because I say, do*; when counsel should give the reason of the action it adviseth to, because the reason thereof itself is no more counsel, but a law.

The difference between *jus* & *lex*.

5. The names *lex* and *jus*, that is to say, law and right, are often confounded, and yet scarce are there any two words of more contrary signification. For right is that liberty which law leaveth us, and laws those restraints by which we agree mutually to abridge one another's liberty. Law and right therefore are no less different than restraint and liberty, which are contrary; and whatsoever a man doth, that liveth in a commonwealth *jure*, he doth it *jure civili*, *jure naturæ*, and *jure divino*. For whatsoever is against any of these laws, cannot be said to be *jure*. For the civil law cannot make that to be done *jure*, which is against the law *divine*, or of *nature*. And therefore whatsoever any subject doth, if it be not contrary to the civil law, and whatsoever a sovereign doth, if it be not against the

law of nature, he doth it *jure divino*, by *divine right*. But to say, *lege divinâ*, by *divine law*, is another thing. For the laws of God and nature allowing greater liberty than is allowed by the law civil; for subordinate laws do still bind more than superior laws, the essence of law being not to loose, but to bind, a man may be commanded that by a law civil, which is not commanded by the law of nature, nor by the law divine. So that of things done *lege*, that is to say, by command of the law, there is some place for a distinction between *lege divinâ*, and *lege civili*. As when a man giveth an alms, or helpeth him that is in need, he doth it not *lege civili*, but *lege divinâ*, by the divine law, the precept whereof is *charity*. But for things that are done *jure*, nothing can be said to be done *jure divino*, that is not also *jure civili*, unless it be done by them that having sovereign power, are not subject to the civil law.

The division of laws, &c.

6. The differences of laws, are according to the differences, either of the authors and lawmakers, or of the promulgation, or of those that are subject to them. From the difference of the authors, or lawmakers, cometh the division of law into *divine*, *natural*, and *civil*. From the difference of promulgation, proceedeth the division of laws into *written* and *unwritten*. And from the difference of the persons to whom the law appertaineth, it proceedeth, that some laws are called simply laws, and some penal. As for example, *thou shalt not steal*, is simply a law; but this, *he that stealeth an ox, shall restore four-fold*, is a penal, or as others call it, a judicial law. Now in those laws, which are simply laws, the commandment is addressed to every man; but in penal laws the commandment is addressed to the magistrate, who is only guilty of the breach of it, when the penalties ordained, are not inflicted; to the rest appertained nothing, but to take notice of their danger.

That the divine moral law, and the law of nature, is the same.

7. As for the first division of law into *divine*, *natural*, and *civil*, the first two branches are one and the same law. For the law of nature, which is also the moral law, is the law of the author of nature, God Almighty; and the law of God taught by our Saviour Christ, is the moral law. For the sum of God's law is, *Thou shalt love God above all, and thy neighbour as thyself*; and the same is the sum of the law of nature, as hath been showed, Part I. chap. v. And although the doctrine of our Saviour be of three parts, *moral*, *theological*, and *ecclesiastical*; the former part only,

which is the moral, is of the nature of a law universal; the latter part is a branch of the law civil; and the theological, which containeth those articles concerning the divinity and kingdom of our Saviour, without which there is no salvation, is not delivered in the nature of laws, but of counsel and direction, how to avoid the punishment, which by the violation of the moral law, men are subject to. For it is not infidelity that condemneth, though it be faith that saveth, but the breach of the law and commandments of God, written first in man's heart, and afterwards in tables, and delivered to the Jews by the hands of Moses.

That the civil laws are the common measure of right and wrong, &c.

8. In the state of nature, where every man is his own judge, and differeth from other concerning the names and appellations of things, and from those differences arise quarrels and breach of peace, it was necessary there should be a common measure of all things, that might fall in controversy. As for example; of what is to be called right, what good, what virtue, what much, what little, what *meum* and *tuum*, what a pound, what a quart, &c. For in these things private judgments may differ, and beget controversy. This common measure, some say, is *right reason*: with whom I should consent, if there were any such thing to be found or known *in rerum naturâ*. But commonly they that call for *right reason* to decide any controversy, do mean their own. But this is certain, seeing *right reason* is not existent, the reason of some man or men must supply the place thereof; and that man or men, is he or they, that have the sovereign power, as hath been already proved; and consequently the civil laws are to all subjects the measures of their actions, whereby to determine, whether they be right or wrong, profitable or unprofitable, virtuous or vicious; and by them the use and definition of all names not agreed upon, and tending to controversy, shall be established. As for example, when upon occasion of some strange and deformed birth, it shall not be decided by Aristotle, or the philosophers, whether the same be a man, or no, but by the laws; the civil law containing in it the ecclesiastical, as a part thereof, proceeding from the power of ecclesiastical government, given by our Saviour to all Christian sovereigns, as his immediate vicars, as hath been said Part II. chap. VII. [sect. 10](#).

Martial law is civil law.

9. But seeing it hath been said, that all laws are either natural or civil, it may be demanded, to which of

these shall be referred that law, which is called martial law, and by the Romans, *disciplina militaris*? And it may seem to be the same with the law of nature; because the laws by which a multitude of soldiers are governed in an army are not constant, but continually changing with the occasion; and that is still a law, which is reason for the present, and reason is the law of nature. It is nevertheless true, that martial law is civil law, because an army is a body politic, the whole power whereof is in the General, and the laws thereof made by him; and though they still follow and change as reason requireth, yet it is not, as the reason of every private man, but as the reason of the General requireth.

Written laws,
Unwritten, &c.
Customs, and
Opinions, &c.

10. When he or they in whom is the sovereign power of a commonwealth, are to ordain laws for the government and good order of the people, it is not possible they should comprehend all cases of controversy that may fall out, or perhaps any considerable diversity of them: but as time shall instruct them by the rising of new occasions, so are also laws from time to time to be ordained: and in such cases where no special law is made, the law of nature keepeth its place, and the magistrates ought to give sentence according thereunto, that is to say, according to natural reason. The constitutions therefore of the sovereign power, by which the liberty of nature is abridged, are written, because there is no other way to take notice of them; whereas the laws of nature are supposed to be written in men's hearts. Written laws therefore are the constitutions of a commonwealth expressed; and unwritten, are the laws of natural reason. Custom of itself maketh no laws. Nevertheless when a sentence hath been once given, by them that judge by their natural reason, whether the same be right or wrong, it may attain to the vigour of a law; not because the like sentence hath of custom been given in the like case, but because the sovereign power is supposed tacitly to have approved such sentence for right, and thereby it cometh to be a law, and numbered amongst the written laws of the commonwealth. For if custom were sufficient to introduce a law, then it would be in the power of every one that is deputed to hear a cause, to make his errors laws. In the like manner, those laws that go under the title of *responsa prudentum*, that is to say, the opinions of lawyers, are not therefore laws, because *responsa prudentum*, but because they are admitted by the sovereign. And from this may be collected, that when

there is a case of private contract between the sovereign and the subject, a precedent against reason shall not prejudice the cause of the sovereign; no precedent being made a law, but upon supposition that the same was reasonable from the beginning.

And thus much concerning the elements and general grounds of laws natural and politic. As for the law of nations, it is the same with the law of nature. For that which is the law of nature between man and man, before the constitution of commonwealth, is the law of nations between sovereign and sovereign, after.

OF
LIBERTY AND NECESSITY:

A TREATISE,
WHEREIN ALL CONTROVERSY CONCERNING
PREDESTINATION, ELECTION, FREE-WILL, GRACE,
MERITS, REPROBATION, &c.
IS FULLY DECIDED AND CLEARED.

IN ANSWER TO A TREATISE
WRITTEN BY THE BISHOP OF LONDONDERRY,
ON THE SAME SUBJECT.

TO THE SOBER AND DISCREET READER.

It made St. Chrysostom tremble whenever he reflected on the proportion, which those that went the *narrow* way, bore to those which marched in the *broad*, how *many* were the called, and how *few* the chosen, how many they were that were created for and in a capacity of eternal beatitude, and how few attained it. This consideration certainly would make a man look upon the Holy Scriptures, among Christians, as the greatest indulgence of heaven, being all the directions it hath been pleased to afford poor *man* in so difficult a journey as that of his eternal bliss or misery. But when a man cometh to look into those transcendant writings, he finds them to be the works of a sort of innocent harmless men, that had little acquaintance or familiarity with the world, and consequently not much interested in the troubles and quarrels of several countries; that though they are all but necessary, yet were they written occasionally, rather than out of design; and lastly, that their main business is, to abstract man from this world, and to persuade him to prefer the bare hope of what he can neither *see*, *hear*, nor *conceive*, before all the present enjoyments this world can afford. This begat a reverence and esteem to them in all those who endeavour to work out their salvation out of them. But if a man, not weighing them in themselves, shall consider the practices of those, who pretend to be the interpreters of them, and to make them fit meat for the people; how that instead of renouncing the world, they endeavour to raise themselves into the greatest promotions, leisure, and luxury; that they make them the decoys of the people, to carry on designs and intrigues of state, and study the enjoyments of this world more than any other people: he will find some grounds to conclude, the practices of such men to be the greatest disturbance, burden, and vexation of the Christian part of the world. The complaint is as true as sad; instead of acquainting the

credulous vulgar, with the main end of their functions, and the great business of their embassy, what a great measure of felicity is prepared for them, and how easily it may be forfeited; they involve their consciences in the briars of a thousand needless scruples, they spin out volumes out of half sentences, nay, out of points and accents, and raise endless controversies about things, (were men free from passion and prejudice), in themselves clear enough: and when they have canvassed their questions, till they are weary themselves, and have wearied hearers and readers, and all they have to do with, every one sits down under his own vine, and hugs his own apprehensions; so that after all their pains, bandings, and implacable adhesion to parties, the inconvenience remains still, and we as far from any solid conviction, as at first setting out.

The controversies betwixt *Rome* and the *Reformation* are long since beaten out of the pit, by other combatants of their own brood; so that if we speak of *Protestant* and *Catholic*, they are in a manner content to sit down with their present acquiescence: for as to conviction, he certainly is a rare *proselyte*, at whose conversion, *interest*, *humour*, *discontent*, *inclination*, are not admitted to the debate.

But to come yet nearer our purpose, let us consider our own fractions of fractions of *religion* here in England, where if that saying, that *it is better to live where nothing is lawful, than where all things*, be as true in *religion* as *policy*, posterity may haply feel the sad consequence of it. What, I pray, is the effect of so many *sermons*, *teachings*, *preachings*, *exercises*, and *exercising of gifts*, *meetings*, *disputations*, *conferences*, *conventicles*, *printed books*, written with so much distraction and presumption upon God Almighty, and abuse of his Holy Word? Marry this: it is the seminary of many vexatious, endless, and fruitless controversies, the consequence whereof are jealousies, heart-burnings, exasperation of parties, the introduction of factions and national quarrels into matters of religion, and consequently all the calamities of war and devastation. Besides, they are good lawful diversions for the duller sort of *citizens*, who contract diseases for want of motion; they supply the building of pyramids among the Egyptians, by diverting the thoughts of the people from matters of state, and consequently from rebellion.

They find work for *printers*, &c. if the parties interested are troubled with the itch of popularity, and will suffer themselves to be scratched out of somewhat by way of contribution to the impression. Hence is the *stationer's* shop furnished, and thence the *minister's* study in the country, who having found out the humour of his auditory, consults with his stationer, on what books his money is best bestowed; who very gravely, it may be, will commend *Cole upon the Philippians* before the excellent, but borrowed, *Caryl upon Job*. But as to any matter of conviction, we see every one *acquiesces* in his own sentiments, every one hears the teacher who is most to his humour; and when he hath been at church, and pretends to have sat at his feet, comes home and censures him as he pleases.

To be yet a little more particular, what shall we think of those vast and involuble volumes concerning *predestination*, *free-will*, *free-grace*, *election*, *reprobation*, &c., which fill not only our libraries, but the world with their noise and disturbance, whereof the least thing we are to expect is *conviction*; every side endeavouring to make good their own grounds, and keep the cudgels in their hands as long as they can? What stir is there between the Molinists and Jansenists about *grace* and *merits*; and yet both pretend St. Augustin!

Must we not expect, that the Jesuits will, were it for no other end but to vindicate that reputation of learning they have obtained in the world, endeavour to make good their tenets, though the other were the truer opinion? Is truth then retired to that inaccessible rock that admits no approaches? Or are we all turned Ixions, and instead of enjoying that Juno, entertain ourselves with the *clouds* of our own persuasions; of which unnatural coition, what other issue can there be but Centaurs and monstrous opinions? To these questions I shall not presume to answer, but in the words of this great author, who answering the charge of *impiety* laid upon the holding of necessity, says thus; *If we consider the greatest part of mankind, not as they should be, but as they are, that is as men, whom either the study of acquiring wealth and preferment, or whom the appetite of sensual delights, or the impatience of meditating, or the rash embracing of wrong principles, have made unapt to discuss the truth of things, I must confess, &c.*

Certainly we have some reason to expect an effectual cure from this man, since he hath so fortunately found out the disease. Now if he in so

few sheets hath performed more than all the voluminous works of the *priests and ministers*, and that in points of soul-concernment and Christian interest, as *predestination, free-will, grace, merits, election, reprobation, necessity, and liberty* of actions, and others, the main hinges of human *salvation*; and to do this, being a person, whom not only the averseness of his nature to engage himself in matters of controversy of this kind, but his severer study of the *mathematics*, might justly exempt from any such skirmishes; we may not stick to infer, that the *black-coats*, generally taken, are a sort of ignorant *tinkers*, who in matters of their own profession, such as is the *mending and soldering* of men's *consciences*, have made more *holes* than they found; nay, what makes them more impardonable, they have neither the gratitude nor ingenuity to acknowledge this repairer of their breaches, and assertor of their reputation, who hath now effected what they all this while have been tampering about. I know this author is little beholden to the *ministers*, and they make a great part of the nation; and besides them, I know there are many illiterate, obstinate, and unconvincible spirits: yet I dare advance this proposition, how bold soever it may seem to some; that this book, how little and contemptible soever it may seem, contains more evidence and conviction in the matters it treats of, than all the volumes, nay libraries, which the *priests, jesuits, and ministers* have, to our great charge, distraction, and loss of precious time, furnished us with. Which if so, I shall undertake for any rational man, that all the controversial labours concerning religion in the world, all the polemical treatises of the most ancient or modern, shall never breed any maggots of scruples, or dissatisfactions in his brains, nor shall his eyes or head ever ache with turning them over; but he shall be so resolved in mind, as never to importune God Almighty with impertinent addresses, nor ever become any of those enthusiastical *spiritati*, who, as the most learned Mr. White says, *expound Scripture without sense or reason*, and are not to be disputed with but with the same success as men write on sand, and trouble their neighbours with their dreams, revelations, and spiritual whimsies. No! here is solid conviction, at least so far as the metaphysical mysteries of our religion will admit. If God be *omnipotent*, he is *irresistible*; if so, *just* in all his actions, though we, who have as much capacity to measure the justice of God's actions as a man born blind to judge of

colours, haply may not discern it. What then need any man trouble his head, whether he be predestinated or no? Let him live justly and honestly according to the *religion* of his *country*, and refer himself to God for the rest, since he is the potter, and may do what he please with the vessel. But I leave the reader to find his satisfaction in the treatise itself, since it may be I derogate from it by saying so much before it. This book, I doubt not, will find no worse entertainment than the *Leviathan*, both in regard of its bulk, and that it doth not strike so home at the *ministers* and *Catholic* party as that did. And yet here we must complain of want of sufficiency or ingenuity to acknowledge the truths or confute the errors of that book; which till it is done, we shall not count the author an heretic. On this side the sea, besides the dirt and slander cast on him in *sermons* and private meetings, none hath put anything in print against him, but Mr. Rosse; one who may be said to have had so much learning, as to have been perpetually barking at the works of the most learned. How he hath been received beyond seas I know not, but certainly, not without the regret of the *Catholics*; who building their *church* on other foundations than those of the *Scriptures*, and pretending *infallibility*, *certitude*, and *unity* in *religion*, cannot but be discontented that these prerogatives of religion are taken away, not only from *tradition*, that is to say, from the *church*, but also from the *Scriptures*, and are invested in the *supreme power* of the nation, be it of what persuasion it will.

Thus much, Reader, I have thought fit to acquaint thee with, that thou mightest know what a jewel thou hast in thy hands, which thou must accordingly value, not by the bulk, but the preciousness. Thou hast here in a few sheets what might prove work enough for many thousand sermons and exercises; and more than the *catechisms* and *confessions* of a thousand *assemblies* could furnish thee with: thou hast what will cast an eternal blemish on all the *cornered caps* of *priests* and *jesuits*, and all the *black and white caps* of the *canting tribe*; to be short, thou art now acquainted with that man, who, in matters of so great importance as those of thy salvation, furnishes thee with better instructions, than any thou hast ever yet been acquainted with, what *profession*, *persuasion*, *opinion*, or *church* soever thou art of; of whom and his works make the best use thou canst. Farewell.

pm hrdbl

TO THE
LORD MARQUIS OF NEWCASTLE.

RIGHT HONOURABLE,

I had once resolved to answer my Lord Bishop's objections to my book *DE CIVE* in the first place, as that which concerns me most; and afterwards to examine his Discourse of *LIBERTY* and *NECESSITY*, which, because I had never uttered my opinion of it, concerned me the less. But seeing it was your Lordship's and my Lord Bishop's desire that I should begin with the *latter*, I was contented so to do, and here I present and submit it to your Lordship's judgment.

And first I assure your Lordship I find in it no new argument neither from *Scripture* nor from *reason*, that I have not often heard before, which is as much as to say, I am not surprised.

The *preface* is a handsome one, but it appeareth even in that, that he hath mistaken the question. For whereas he says thus, *If I be free to write this Discourse, I have obtained the cause*: I deny that to be true, for it is enough to his freedom of writing, that he had not written it, unless he would himself. If he will obtain the cause, he must prove that before he writ it, it was not necessary he should prove it afterward. It may be his Lordship thinks it all one to say, *I was free* to write it, and, *It was not necessary* I should write it. But I think otherwise. For he is *free* to do a thing, that may do it if he have the will to do it, and may forbear, if he have the will to forbear. And yet if there be a *necessity* that he shall have the *will* to do it, the action is necessarily to follow: and if there be a *necessity* that he shall have the *will* to forbear, the forbearing also will be necessary. The question therefore is not, whether a man be a *free agent*, that is to say, whether he can write or forbear, speak or be silent, according to his *will*; but, whether the *will* to write, and the *will* to forbear, come upon him according to his *will*, or

according to anything else in his own power. I acknowledge this *liberty*, that I *can* do if I *will*; but to say, I can *will* if I *will*, I take to be an absurd speech. Wherefore I cannot grant my Lord the cause upon his *preface*.

In the next place, he maketh certain distinctions of *liberty*, and says he meaneth not *liberty* from sin, nor from *servitude*, nor from *violence*; but, from *necessity*, *necessitation*, *inevitability*, and *determination to one*.

It had been better to *define* liberty, than thus to *distinguish*. For I understand never the more what he means by *liberty*; and though he say he means *liberty* from *necessitation*, yet I understand not how such a *liberty* can be, and it is a taking of the question without proof. For what is else the question between us, but whether *such* a liberty be possible or not?

There are in the same place other distinctions: as a liberty of *exercise only*, which he calls a *liberty of contradiction*, namely of doing not good, or evil *simply*, but of doing this or that good, or this or that evil *respectively*, and a *liberty of specification and exercise also*, which he calls a liberty of *contrariety*, namely a liberty not only to do good or evil, but also to do or not do this or that good or evil.

And with these *distinctions* his Lordship says he *clears the coast*, whereas in truth, he darkeneth his own meaning and the question, not only with the jargon of *exercise only*, *specification also*, *contradiction*, *contrariety*, but also with pretending distinction where none is: for how is it possible that the *liberty* of doing or not doing this or that good or evil, can consist, as he says it does in God and good angels, without a liberty of doing or not doing good or evil?

The next thing his Lordship does, after clearing of the coast, is the dividing of his forces, as he calls them, into two squadrons, *one* of places of *Scriptures*, the *other* of *reasons*, which allegory he useth, I suppose, because he addresseth the discourse to your Lordship, who is a military man. All that I have to say touching this, is, that I observe a great part of those his *forces* do look and *march* another way, and some of them *fight* amongst themselves.

And the first place of *Scripture*, taken from Numb. xxx. 13, is one of those that look another way; the words are, *If a wife make a vow, it is left to her husband's choice either to establish it or make it void*. For it

proves no more but that the husband is a *free* and *voluntary agent*, but not that his *choice* therein is not *necessitated* or not *determined* to what he shall choose, by precedent *necessary* causes.

For if there come into the husband's mind greater good by establishing than abrogating such a vow, the establishing will follow necessarily; and if the evil that will follow in the husband's opinion outweigh the good, the contrary must needs follow: and yet in this following of one's *hopes* and *fears*, consisteth the nature of *election*. So that a man may both choose this, and cannot but choose this, and consequently *choosing* and *necessity* are joined together.

The second place of Scripture is Joshua, xxiv. 15. The third is 2 Sam. xxiv. 12, whereby it is clearly proved, that there is *election* in *man*, but not proved that such *election* was not *necessitated* by the *hopes*, and *fears*, and considerations of *good* and *bad* to follow, which depend not on the *will*, nor are subject to *election*. And therefore one answer serves all such places, if there were a thousand.

But his Lordship supposing, it seems, I might answer, as I have done, that *necessity* and *election* might stand together, and instance in the actions of *children*, *fools*, or *brute beasts*, whose *fancies*, I might say, are *necessitated* and *determined* to *one*; before these his proofs out of Scripture, desires to prevent that instance, and therefore says that the actions of *children*, *fools*, *madmen*, and *beasts*, are indeed *determined*, but that they proceed not from *election*, nor from *free*, but from *spontaneous agents*. As for example, that the *bee*, when it maketh honey, does it *spontaneously*; and when the *spider* makes his web, he does it *spontaneously*, but not by *election*.

Though I never meant to ground my answer upon the experience of what *children*, *fools*, *madmen*, and *beasts* do; yet that your Lordship may understand what can be meant by *spontaneous*, and how it differeth from *voluntary*, I will answer that *distinction*, and show that it *fighteth* against its fellow arguments.

Your Lordship therefore is to consider, that all *voluntary* actions, where the thing that induceth the *will* is not *fear*, are called also *spontaneous*, and said to be done by a man's *own* accord. As when a man giveth money voluntarily to another for merchandise, or out of affection, he is said to do it of his own accord, which in Latin is *sponte*, and therefore the action is *spontaneous*; though to give one's money

willingly to a thief to avoid killing, or throw it into the sea to avoid drowning, where the motive is *fear*, be not called *spontaneous*. But every *spontaneous* action is not therefore *voluntary*, for *voluntary* presupposes some precedent *deliberation*, that is to say, some *consideration*, and *meditation*, of what is likely to *follow*, both upon the doing, and abstaining from the action deliberated of; whereas many actions are done of our *own* accord, and are therefore *spontaneous*, for which nevertheless, as my Lord thinks, we never *consulted* nor *deliberated* in ourselves. As when making no question nor any the least doubt in the world, but the thing we are about is good, we *eat* and *walk*, or in anger *strike* or *revile*, which my Lord thinks spontaneous, but not voluntary nor elective actions, and with *such* kind of actions, he says *necessitation* may stand, but not with such as are *voluntary*, and proceed upon *election* and *deliberation*. Now if I make it appear to your Lordship, that those actions, which, he says, proceed from *spontaneity*, and which he ascribes to *children*, *fools*, *madmen*, and *beasts*, proceed from *election* and *deliberation*, and that actions *inconsiderate*, *rash*, and *spontaneous*, are ordinarily found in those, that are by themselves and many more thought as *wise*, or wiser than ordinarily men are, then my Lord Bishop's argument concludeth, that *necessity* and *election* may stand together, which is contrary to that which he intendeth by all the rest of his arguments to prove.

And first your Lordship's own experience furnishes you with proof enough, that *horses*, *dogs*, and other brute *beasts*, do *demur* oftentimes upon the way they are to take, the horse retiring from some strange figure that he sees, and coming on again to avoid the spur. And what else doth a man that *deliberateth*, but one while *proceed* toward action, another while *retire* from it, as the *hope* of greater *good* draws him, or the *fear* of greater evil *drives* him away.

A *child* may be so young as to do what it does without all *deliberation*, but that is but till it have the chance to be hurt by doing of somewhat, or till it be of age to understand the rod: for the actions, wherein he hath once had a check, shall be *deliberated* on the second time.

Fools and *madmen* manifestly *deliberate* no less than the *wisest* men, though they make not so good a *choice*, the images of things being by disease altered.

For *bees* and *spiders*, if my Lord Bishop had had so little to do as to be a spectator of their actions, he would have confessed not only *election*, but *art*, *prudence*, and *policy*, in them, very near equal to that of mankind. Of *bees*, Aristotle says, *their life is civil*.

Again, his Lordship is deceived, if he think any *spontaneous* action, after once being checked in it, differs from an action *voluntary* and *elective*: for even the setting of a man's foot, in the posture for *walking*, and the action of ordinary *eating*, was once *deliberated* of how and when it should be done, and though afterward it became *easy* and *habitual*, so as to be done without *forethought*; yet that does not hinder but that the act is *voluntary*, and proceedeth from *election*. So also are the *rashest* actions of *choleric* persons *voluntary* and upon *deliberation*: for who is there but very young children, that hath not *considered* when and how far he *ought*, or safely *may* strike or revile? Seeing then his Lordship agrees with me, that such actions are *necessitated*, and the *fancy* of those that do them *determined* to the action they do, it follows out of his Lordship's own doctrine, that the liberty of *election* does not take away the *necessity* of *electing* this or that *individual* thing. And thus one of his arguments fights against another.

The second argument from Scripture, consisteth in histories of men that did one thing, when if they would, they might have done another; the places are two: one is 1 Kings iii. 10, where the history says, God was pleased that Solomon, who might, if he would, have asked *riches*, or *revenge*, did nevertheless ask *wisdom* at God's hands: the other is the words of St. Peter to Ananias, Acts v. 4: *After it was sold, was it not in thine own power?*

To which the answer is the same with that I answered to the former places, that they prove there is *election*, but do not disprove the *necessity*, which I maintain, of what they so elect.

The fourth argument (for to the third and fifth I shall make but one answer) is to this effect; *If the decrees of God, or his foreknowledge, or the influence of the stars, or the concatenation of causes, or the physical or moral efficacy of causes, or the last dictate of the understanding, or whatsoever it be, do take away true liberty, then Adam before his fall had no true liberty. Quicquid ostendes mihi sic incredulus odi.*

That which I say *necessitateth and determinateth every action*, that his Lordship may no longer doubt of my meaning, *is the sum of all things, which being now existent, conduce and concur to the production of that action hereafter, whereof if any one thing now were wanting, the effect could not be produced.* This *concourse of causes*, whereof every one is *determined* to be such as it is by a like *concourse of former causes*, may well be called (in respect they were all set and ordered by the eternal cause of all things, God Almighty) the *decree of God*.

But that the *foreknowledge* of God should be a cause of any thing, cannot be truly said, seeing foreknowledge is knowledge, and knowledge depends on the existence of the things known, and not they on it.

The *influence of the stars* is but a small part of the whole cause, consisting of the *concourse of all agents*.

Nor does the *concourse of all causes* make one simple *chain* or concatenation, but an innumerable number of chains, joined together, not in all parts, but in the first link God Almighty; and consequently the whole cause of an event, doth not always depend on one single chain, but on many together.

Natural efficacy of objects does *determine voluntary agents*, and *necessitates the will*, and consequently the *action*; but for *moral efficacy*, I understand not what he means.

The last dictate of the judgment, concerning the good or bad, that may follow on any action, is not properly the *whole cause*, but the last part of it, and yet may be said to produce the effect *necessarily*, in such manner as the last feather may be said to break a horse's back, when there were so many laid on before as there wanted but that one to do it.

Now for his *argument*, that *if the concourse of all the causes necessitate the effect, that then it follows, Adam had no true liberty*: I deny the consequence; for I make not only the *effect*, but also the *election*, of that particular effect *necessary*, inasmuch as the will itself, and each propension of a man during his deliberation, is as much necessitated, and depends on a sufficient cause, as any thing else whatsoever. As for example, it is no more necessary that fire should burn, than that a man or other creature, whose limbs be moved by fancy, should have *election*, that is *liberty*, to do what he hath a fancy to

do, though it be not in his *will* or *power* to *choose* his *fancy*, or choose his *election* and *will*.

This doctrine, because my Lord Bishop says he hates, I doubt had better been suppressed, as it should have been, if both your Lordship and he had not pressed me to an answer.

The arguments of greatest consequence, are the third and the fifth, and they fall both into one, namely: *If there be a necessity of all events, that it will follow, that praise and reprehension, and reward and punishment, are all vain and unjust; and that if God should openly forbid, and secretly necessitate the same action, punishing men for what they could not avoid, there would be no belief among them of heaven and hell.*

To oppose hereunto I must borrow an answer from St. Paul, Rom. ix. 20, 21. From the eleventh verse of the chapter to the eighteenth, is laid down the very same objection in these words: *When they, meaning Esau and Jacob, were yet unborn, and had done neither good nor evil, that the purpose of God according to election, not by works, but by him that calleth, might remain firm, it was said unto her (viz. Rebecca) that the elder should serve the younger, &c. What then shall we say? Is there injustice with God? God forbid. It is not therefore in him that willeth, nor in him that runneth, but in God that sheweth mercy. For the Scripture saith to Pharaoh, I have stirred thee up that I might show my power in thee, and that my name might be set forth in all the earth. Therefore whom God willeth, he hath mercy on, and whom he willeth he hardeneth.* Thus you see the [case put](#) by St. Paul, is the same with that of my Lord Bishop, and the same objection in these words following:

Thou wilt ask me then, why does God yet complain, for who hath resisted his will?

To this therefore the Apostle answers, not by denying it was God's *will*, or that the decree of God concerning Esau was not before he had sinned, or that Esau was not necessitated to do what he did; but thus: *Who art thou, O man, that interrogatest God? Shall the work say to the workman, why hast thou made me thus? Hath not the potter power over the clay, of the same stuff to make one vessel to honour, another to dishonour?* According therefore to this answer of St. Paul, I answer my Lord's objection, and say, the *power* of God alone without other helps is sufficient *justification* of any action he doth. That which men make

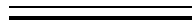
amongst themselves here by pacts and covenants, and call by the name of justice, and according whereunto men are accounted and termed rightly *just* or *unjust*, is not that by which God Almighty's actions are to be measured or called just, no more than his counsels are to be measured by human wisdom. That which he does, is made just by his doing it; just, I say, in him, though not always just in us.

For a man that shall command a thing openly, and plot secretly the hindrance of the same, if he punish him that he so commandeth, for not doing it, it is unjust. So also, his counsels are therefore not in vain, because they be his, whether we see the use of them or not. When God afflicted Job, he did object no sin unto him, but justified his afflicting of him, by telling him of his *power*: (Job xl. 9:) *Hast thou, saith God, an arm like mine?* (Job xxviii. 4): *Where wert thou when I laid the foundations of the earth?* and the like. So our Saviour, (John ix. 3) concerning the man that was born blind, said, it was not for his sin, or for his parents' sin, but that the power of God might be shown in him. *Beasts* are subject to death and torments, yet they cannot sin: it was God's will they should be so. *Power irresistible justifies all actions, really and properly*, in whomsoever it be found; less power does not, and because such power is in God only, he must needs be just in all actions, and we, that not comprehending his counsels, call him to the bar, commit injustice in it.

I am not ignorant of the usual reply to his answer, by distinguishing between *will* and *permission*, as that God Almighty does indeed sometimes *permit* sins, and that he also foreknoweth that the sin he permitteth, shall be committed, but does not *will* it, nor *necessitate* it.

I know also they distinguish the action from the sin of the action, saying, that God Almighty does indeed cause the *action*, whatsoever action it be, but not the *sinfulness* or *irregularity* of it, that is, the *discordance* between the *action* and the *law*. Such distinctions as these dazzle my understanding; I find no difference between the *will* to have a thing done, and the *permission* to do it, when he that permitteth can hinder it, and knows that it will be done unless he hinder it. Nor find I any difference between an *action* and the *sin* of that action; as for example, between the killing of Uriah, and the sin of David in killing Uriah, nor when *one* is *cause* both of the *action* and of the *law*, how *another* can be cause of the *disagreement* between them, no more than

how one man making a longer and a shorter garment, another can make the inequality that is between them. This I know; God cannot sin, because his doing a thing makes it just, and consequently, no sin; as also because whatsoever can sin, is subject to another's law, which God is not. And therefore it is blasphemy to say, God can sin; but to say, that God can so order the world, as a sin may be necessarily caused thereby in a man, I do not see how it is any dishonour to him. Howsoever, if such or other *distinctions* can make it clear, that St. Paul did not think Esau's or Pharaoh's actions proceeded from the *will* and *purpose* of God, or that proceeding from his will, could not therefore without injustice be blamed or punished, I will, as soon as I understand them, turn unto my Lord's opinion: for I now hold nothing in all this question betwixt us, but what seemeth to me, not obscurely, but most expressly said in this place by St. Paul. And thus much in answer to his places of Scripture.



TO THE ARGUMENTS FROM REASON.

Of the arguments from *reason*, the first is that which his Lordship saith is drawn from Zeno's beating of his man, which is therefore called *argumentum baculinum*, that is to say, a wooden argument. The story is this; Zeno held, that all actions were necessary; his man therefore being for some fault beaten, excused himself upon the necessity of it: to avoid this excuse, his master pleaded likewise the necessity of beating him. So that not he that maintained, but he that derided the necessity, was beaten, contrary to that his Lordship would infer. And the argument was rather withdrawn than drawn from the story.

The second argument is taken from certain inconveniences which his Lordship thinks would follow such an opinion. It is true that ill use might be made of it, and therefore your Lordship and my Lord Bishop ought, at my request, to keep private what I say here of it. But the inconveniences are indeed none, and what use soever be made of truth, yet truth is truth, and now the question is not, what is fit to be preached, but, what is true.

The first inconvenience he says, is this; *That the laws, which prohibit any action, will be unjust.*

2. *That all consultations are vain.*

3. *That admonitions to men of understanding, are of no more use, than to children, fools, and madmen.*

4. *That, praise, dispraise, reward and punishment, are in vain.*

5, 6. *That counsels, acts, arms, books, instruments, study, tutors, medicines, are in vain.*

To which arguments his Lordship expecting I should answer, by saying, the ignorance of the event were enough to make us use the means, adds, as it were a reply to my answer foreseen, these words: *Alas! how should our not knowing the event be a sufficient motive to make us use the means?* Wherein his Lordship says right, but my answer is not that which he expecteth: I answer,

First, that the *necessity* of an *action* doth not make the *laws*, that prohibit it, *unjust*. To let pass, that not the *necessity*, but the *will* to break the *law*, maketh the action *unjust*, because the *law* regardeth the *will*, and no other precedent causes of action. And to let pass, that no *law* can possibly be *unjust*, inasmuch as every man maketh, by his consent, the law he is bound to keep, and which consequently must be just, unless a man can be unjust to himself. I say, what *necessary* cause soever precede an *action*, yet if the action be *forbidden*, he that doth it *willingly* may justly be punished. For instance, suppose the law on pain of death prohibit stealing, and that there be a man, who by the strength of temptation is *necessitated* to steal, and is thereupon put to death, does not this punishment deter others from theft? Is it not a cause that others steal not? Doth it not frame and make their wills to justice?

To make the *law*, is therefore to make a *cause* of *justice*, and to *necessitate* justice; and consequently, it is no injustice to make such a law.

The intention of the *law* is not to grieve the *delinquent*, for that which is past, and not to be undone; but to make him and others *just*, that else would not be so, and respecteth not the evil act *past*, but the *good to come*; insomuch as without the good intention for the future, no past act of a delinquent could justify his killing in the sight of God. But you will say, how is it just to kill one man to amend another, if what were done were *necessary*? To this I answer, that men are justly killed,

not for that their *actions* are not *necessitated*, but because they are *noxious*, and they are spared and preserved whose actions are not noxious. For where there is no law, there no killing nor anything else can be unjust; and by the right of nature, we destroy, without being unjust, all that is noxious, both beasts and men; and for beasts we kill them justly, when we do it in order to our own preservation, and yet my Lord himself confesseth, that their actions, as being only *spontaneous*, and not *free*, are all *necessitated* and determined to that one thing they shall do. For men, when we make societies or commonwealths, we lay not down our right to kill, excepting in certain cases, as murder, theft or other offensive action; so that the right, which the *commonwealth* hath to put a man to death for crimes, is not created by the *law*, but remains from the first right of *nature*, which every man hath to preserve himself; for that the law doth not take the right away in the case of criminals, who were by the law excepted. Men are not therefore put to death, or punished, for that their theft proceedeth from *election*; but because it was *noxious* and contrary to men's preservation, and the punishment conducing to the preservation of the rest, inasmuch as to punish those that do voluntary hurt, and none else, frameth and maketh men's *wills* such as men would have them. And thus it is plain, that from the *necessity* of a *voluntary* action, cannot be inferred the *injustice* of the *law* that forbiddeth it, or the magistrate that punisheth it.

Secondly, I deny that it maketh *consultations* to be in *vain*; it is the *consultation* that *causeth* a man, and *necessitateth* him to *choose* to do one thing rather than another: so that unless a man say that that cause is in vain which necessitateth the effect, he cannot infer the superfluousness of consultation out of the necessity of the election proceeding from it. But it seemeth his Lordship reasons thus: If I must do this rather than that, I shall do this rather than that, though I consult not at all; which is a false proposition and a false consequence, and no better than this: If I shall live till to-morrow, I shall live till to-morrow, though I run myself through with a sword to-day. If there be a *necessity* that an action shall be done, or that any effect shall be brought to pass, it does not therefore follow, that there is nothing necessarily requisite as a means to bring it to pass; and therefore when it is determined, that one thing shall be chosen before another, it is determined also for what *cause* it shall so be chosen, which cause, for the most part, is

deliberation or *consultation*, and therefore consultation is not in vain, and indeed the less in vain by how much the election is more necessitated, if *more* and *less* had any place in *necessity*.

The same answer is to be given to the third supposed inconvenience, namely, that *admonitions* are in *vain*; for the admonitions are parts of consultation, the admonitor being a counsellor for the time to him that is admonished.

The fourth pretended inconvenience is, that *praise*, *dispraise*, *reward*, and *punishment* will be in *vain*. To which I answer, that for *praise* and *dispraise*, they depend not at all on the *necessity* of the action praised or dispraised. For what is it else to *praise*, but to say a thing is good? Good, I say, for me, or for somebody else, or for the state and commonwealth? And what is it to say an action is good, but to say it is as I would wish? or as another would have it, or according to the will of the state? that is to say, according to the law. Does my Lord think that no action can please me, or him, or the commonwealth, that should proceed from *necessity*? Things may be therefore *necessary*, and yet *praise-worthy*, as also *necessary*, and yet *dispraised*, and neither of them both in vain, because *praise* and *dispraise*, and likewise *reward* and *punishment*, do by example make and conform the will to good and evil. It was a very great praise in my opinion, that Velleius Paterculus (Lib. ii. 35) gives Cato, where he says that he was good by *nature*, *et quia aliter esse non potuit*.

To the fifth and sixth inconveniences, that *counsels*, *arts*, *arms*, *instruments*, *books*, *study*, *medicines*, and the like, would be *superfluous*, the same answer serves as to the former, that is to say, that this consequence, *if the effect shall necessarily come to pass, then it shall come to pass without its causes*, is a false one, and those things named counsels, arts, arms, &c. are the causes of these effects.

His Lordship's *third* argument consisteth in other *inconveniences*, which he saith will follow, namely, *impiety* and *negligence* of religious duties, as repentance, and *zeal* to God's service, &c.

To which I answer as to the rest, that they follow not. I must confess, if we consider the greatest part of mankind, not as they should be, but as they are, that is, as men, whom either the study of acquiring wealth, or preferment, or whom the appetite of sensual delights, or the impatience of meditating, or the rash embracing of wrong principles,

have made unapt to discuss the truth of things: I must, I say, confess that the dispute of this question will rather hurt than help their piety; and therefore if his Lordship had not desired this answer, I should not have written it, nor do I write it but in hopes your Lordship and his will keep it private. Nevertheless in very truth, the *necessity* of events does not of itself draw with it any *impiety* at all. For *piety* consisteth only in two things; one, that we honour God in our hearts, which is, that we think as highly of his *power* as we can, for to honour anything is nothing else but to think it to be of great power; the other is, that we signify that honour and esteem by our words and actions, which is called *cultus*, or *worship of God*. He therefore that thinketh that all things proceed from God's *eternal will*, and consequently are *necessary*, does he not think God *omnipotent*? Does he not esteem of his *power* as highly as is possible? which is to honour God as much as may be in his heart. Again, he that thinketh so, is he not more apt by *external* acts and words to acknowledge it, than he that thinketh otherwise? yet is this external acknowledgment the same thing which we call *worship*. So that this opinion fortifies *piety* in both kinds, external and internal; therefore is far from destroying it. And for *repentance*, which is nothing else but a glad returning into the right way, after the grief of being out of the way; though the cause that made him go astray were necessary, yet there is no reason why he should not grieve; and, again though the cause why he returned into the way were necessary, there remained still the causes of joy. So that the *necessity* of the actions taketh away neither of those parts of *repentance*, grief for the error, and joy for returning.

And for *prayer*, whereas he saith that the *necessity* of things destroy *prayer*, I deny it; for though *prayer* be none of the *causes* that move God's *will*, his will being unchangeable, yet since we find in God's word, he will not give his blessings but to those that ask, the motive of prayer is the same. *Prayer* is the gift of God no less than the *blessing*, and the prayer is decreed together in the same decree wherein the blessing is decreed. It is manifest that *thanksgiving* is no cause of the blessing past, and that which is past is sure and necessary, yet even amongst men thanks is in use as an acknowledgment of the benefit past, though we should expect no new benefit for our gratitude. And prayer to God Almighty is but thanksgiving for God's blessings in general, and

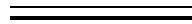
though it precede the particular thing we ask, yet it is not a cause or means of it, but a signification that we expect nothing but from God, in such manner, as he, not as we, will; and our Saviour by word of mouth bids us pray, *thy will*, not our will, *be done*, and by example teaches us the same; for he prayed thus, *Father if it be thy will, let this cup pass*, &c. The end of prayer, as of thanksgiving, is not to *move* but to *honour* God Almighty, in acknowledging that what we ask can be effected by him only.

The fourth argument from reason is this: the order, beauty, and perfection of the world requireth that in the universe should be agents of all sorts; some necessary, some free, some contingent. He that shall make all things necessary, or all things free, or all things contingent, doth overthrow the beauty and perfection of the world.

In which argument I observe, first a *contradiction*; for seeing he that *maketh* anything, in that he maketh it, maketh it to be *necessary*; it followeth that he that maketh all things, maketh all things necessarily to be: as if a workman make a garment, the garment must necessarily be; so if God make every thing, every thing must necessarily be. Perhaps the beauty of the world requireth, though we know it not, that some agents should work without deliberation (which his lordship calls *necessary* agents) and some agents with deliberation (and those both he and I call *free* agents) and that some agents should work, and we not know how (and their effects we both call *contingents*); but this hinders not but that he that electeth may have his *election* necessarily determined to *one* by *former* causes, and that which is *contingent*, and imputed to fortune, be nevertheless *necessary* and depend on *precedent* necessary causes. For by *contingent*, men do not mean that which hath *no* cause, but that which hath not for cause anything that we perceive; as for example, when a traveller meets with a shower, the journey had a cause, and the rain had a cause sufficient to produce it; but because the journey caused not the rain, nor the rain the journey, we say they were contingent one to another. And thus you see that though there be three sorts of events, *necessary*, *contingent*, and *free*, yet they may be *all* necessary without destruction of the beauty or perfection of the universe.

To the first argument from reason, which is, *That if liberty be taken away, the nature and formal reason of sin is taken away*; I answer by

denying the consequence: the nature of sin consisteth in this, that the *action* done proceed from our *will* and be against the *law*. A judge in judging whether it be sin or no, which is done against the law, looks at no higher cause of the action, than the will of the doer. Now when I say the action was *necessary*, I do not say it was done *against* the will of the doer, but *with* his will, and *necessarily*, because man's will, that is every volition or act of the will and purpose of man had a *sufficient*, and therefore a *necessary* cause, and consequently every *voluntary* action was *necessitated*. An action therefore may be *voluntary* and a *sin*, and nevertheless be *necessary*; and because God may afflict by a right derived from his *omnipotence*, though sin were not, and because the example of punishment on voluntary sinners, is the cause that produceth justice, and maketh sin less frequent, for God to punish such sinners, as I have said before, is no injustice. And thus you have my answer to his Lordship's objections both out of Scripture, and from reason.



CERTAIN DISTINCTIONS, WHICH HIS LORDSHIP SUPPOSING
MIGHT BE BROUGHT TO EVADE HIS
ARGUMENTS, ARE BY HIM REMOVED.

He says a man may perhaps answer, that the *necessity* of things held by him, is not a *stoical* necessity, but a *Christian* necessity, &c. But this *distinction* I have not used, nor indeed ever heard before, nor could I think any man could make *stoical* and *Christian* two kinds of *necessity*, though they may be two kinds of *doctrine*. Nor have I drawn my answer to his Lordship's arguments from the authority of any sect, but from the nature of the things themselves.

But here I must take notice of certain words of his Lordship's in this place, as making against his own tenet. *Where all the causes*, saith he, *being joined together, and subordinate one to another, do make but one total cause, if any one cause, much more the first, in the whole series or subordination of causes, be necessary, it determines the rest, and without doubt maketh the effect necessary*. For that which I call the

necessary cause of any effect, is the *joining* together of all causes subordinate to the first, into one total cause. *If any of these*, saith he, *especially the first, produce its effect necessarily, then all the rest* are determined. Now it is manifest, that the first cause is a necessary cause of all the effects that are next and immediate to it, and therefore by his Lordship's own reason all effects are necessary.

Nor is that distinction of necessary in respect of the *first cause*, and necessary in respect of *second causes*, mine; it does, as his Lordship well notes, imply a contradiction. But the distinction of *free* into *free from compulsion*, and *free from necessitation*, I acknowledge. For to be *free from compulsion* is to do a thing so as *terror* be not the cause of his *will* to do it; for a man is then only said to be compelled, when fear makes him willing to it: as when a man willingly throws his goods into the sea to save himself, or submits to his enemy for fear of being killed. Thus all men that do anything for *love*, or *revenge*, or *lust*, are *free from compulsion*, and yet their actions may be as necessary as those that are done by compulsion; for sometimes other passions work as forcibly as fear. But *free from necessitation*, I say, no man can be, and it is that which his Lordship undertook to disprove.

This *distinction*, his Lordship says, uses to be *fortified* by two reasons, but they are not mine. The first he says, is, that it is granted by all divines, that an *hypothetical necessity*, or necessity upon supposition, may stand with *liberty*. That you may understand this, I will give you an example of *hypothetical necessity*. If *I shall live, I shall eat*. This is an *hypothetical necessity*. Indeed it is a necessary proposition, that is to say, it is necessary that that proposition should be true whensoever uttered, but it is not the necessity of the thing, nor is it therefore necessary that the man should live, nor that the man should eat. I do not use to *fortify* my distinctions with such reasons; let his Lordship confute them how he will, it contents me; but I would have your Lordship take notice hereby, how easy and plain a thing, but withal false, with the grave usage of such terms as *hypothetical necessity*, and *necessity upon supposition*, and such like terms of Schoolmen, may be obscured and made to seem *profound learning*.

The second reason that may confirm the distinction of *free from compulsion*, and *free from necessitation*, he says is, that God and good angels do good necessarily, and yet are more free than we. This reason,

though I had no need of, yet I think it so far forth good, as it is true that God and good angels do good necessarily, and yet are free; but because I find not in the articles of our faith, nor in the decrees of our church, set down in what manner I am to conceive God and good angels to work by necessity, or in what sense they work *freely*, I suspend my sentence in that point, and am content that there be a *freedom from compulsion*, and yet no *freedom from necessitation*, as hath been proved, in that a man may be necessitated to some action without threats and without fear of danger. But how my Lord can avoid the consisting together of *freedom* and *necessity*, supposing God and good angels are freer than men, and yet do good necessarily, that we must examine: *I confess, saith he, that God and good angels are more free than we, that is, intensively in degree of freedom, not extensively in the latitude of the object, according to a liberty of exercise not of specification.*

Again, we have here two distinctions that are no distinctions, but made to seem so by terms invented by I know not whom to cover ignorance, and blind the understanding of the reader: for it cannot be conceived that there is any liberty greater, than for a man to do what he will. One heat may be more intensive than another, but not one liberty than another; he that can do what he will, hath all liberty possible, and he that cannot, hath none at all. Also *liberty*, as his Lordship says the Schools call it, of *exercise*, which is as I have said before, a liberty to do or not to do, cannot be without a *liberty*, which they call, of *specification*, that is to say, a liberty to do, or not to do this or that in particular. For how can a man conceive he hath liberty to do anything, that hath not liberty to do this, or that, or somewhat in particular? If a man be forbidden in Lent to eat this, and that, and every other particular kind of flesh, how can he be understood to have a liberty to eat flesh, more than he that hath no licence at all? You may by this again see the vanity of distinctions used in the *Schools*, and I do not doubt but that the imposing of them, by authority of *doctors* in the *Church*, hath been a great cause that men have laboured, though by sedition and evil courses, to shake them off; for nothing is more apt to beget hatred, than the tyrannizing over men's reason and understanding, especially when it is done, not by the Scriptures, but by the pretence of learning, and more judgment than that of other men.

In the next place his Lordship bringeth two arguments against distinguishing between *free from compulsion* and *free from necessitation*.

The first is, that *election* is opposite not only to *coaction* or *compulsion*, but also *necessitation* or determination to one. This is it he was to prove from the beginning, and therefore bringeth no new argument to prove it; and to those brought formerly, I have already answered. And in this place I deny again, that election is opposite to either; for when a man is compelled, for example, to subject himself to an enemy or to die, he hath still election left him, and a deliberation to bethink which of the two he can better endure. And he that is led to prison by force, hath election, and may deliberate whether he will be hauled and trained on the ground, or make use of his own feet: likewise when there is no *compulsion*, but the strength of *temptation* to do an evil action, being greater than the motives to *abstain*, it necessarily determines him to the doing of it; yet he deliberates while sometimes the motives to do, sometimes the motives to forbear, are working on him, and consequently he *electeth* which he will. But commonly when we see and know the strength that moves us, we acknowledge *necessity*; but when we see not, or mark not the force that moves us, we then think there is none, and that it is not *causes* but *liberty* that produceth the action. Hence it is that they think he does not choose this, that of necessity chooses it; but they might as well say, fire doth not burn, because it burns of necessity.

The second argument is not so much an argument as a distinction, to show in what sense it may be said that *voluntary* actions are *necessitated*, and in what sense not. And therefore his Lordship allegeth, as from the authority of the *Schools*, and that which rippeth up the bottom of the *question*, that there is a double act of the *will*. The one, he says, is *actus imperatus*, an act done at the command of the will, by some inferior faculty of the soul; as to open or shut one's eyes; and this act may be compelled: the other, he says, is *actus elicited*, an act allured or drawn forth by allurement out of the will, as to *will*, to *choose*, to *elect*; this he says cannot be compelled. Wherein, letting pass that metaphorical speech of attributing command and subjection to the faculties of the soul, as if they made a commonwealth or family within themselves, and could speak one to another, which is very improper in

searching the truth of a question, you may observe, first, that to compel a *voluntary* act, is nothing else but to will it; for it is all one to say, my will commands the shutting of my eyes, or the doing of any other action; and to say, I have the will to shut my eyes: so that *actus imperatus*, here, might as easily have been said in English a *voluntary action*, but that they that invented the term, understood not anything it signified.

Secondly, you may observe, that *actus elicitus*, is exemplified by these words, to *will*, to *elect*, to *choose*, which are all one, and so to will is here made an act of the will; and indeed as the will is a faculty or power in a man's soul, so to will is an act of it according to that power; but as it is absurdly said, that to dance is an act allured or drawn by fair means out of the ability to dance; so is it also to say, that to will is an act allured or drawn out of the power to will, which power is commonly called the will. Howsoever it be, the sum of his Lordship's distinction is, that a *voluntary* act may be done by *compulsion*, that is to say, by foul means, but to will that, or any act, cannot be but by *allurement*, or fair means. Now seeing fair means, allurements, and enticements, produce the action which they do produce, as *necessarily* as foul means and threatening; it follows, that to *will* may be made as *necessary* as anything that is done by *compulsion*. So that distinction of *actus imperatus* and *actus elicitus* are but words, and of no effect against necessity.

His Lordship in the rest of his discourse, reckoneth up the opinion of certain professions of men, touching the causes wherein the necessity of things, which they maintain, consisteth. And first he saith, the *astrologer* deriveth his *necessity* from the *stars*; secondly, that the *physician* attributeth it to the *temper* of the body. For my part, I am not of their opinion, because, neither the stars alone, nor the temperature of the patient alone, is able to produce any effect, without the concurrence of all other agents. For there is hardly any one action, how casual soever it seem, to the causing whereof concur not whatsoever is *in rerum naturâ*, which because it is a great paradox, and depends on many antecedent speculations, I do not press in this place. Thirdly, he disputeth against the opinion of them that say, *external objects* presented to men of such and such temperatures, do make their actions *necessary*; and says, the power such objections have over us, proceeds

from our own fault: but that is nothing to the purpose, if such fault of ours proceedeth from causes not in our own power, and therefore that opinion may hold true for all that answer.

Further he says, *prayer, fasting, &c.* may alter our *habits*; it is true, but when they do so, they are *causes* of the contrary *habit*, and make it *necessary*, as the former habit had been necessary, if *prayer, fasting, &c.* had not been. Besides, we are not moved or disposed to prayer or any other action, but by outward objects, as pious company, godly preachers, or something equivalent. Fourthly, he says a resolved mind is not easily surprised, as the mind of Ulysses, who when others wept, alone wept not; and of the philosopher, that abstained from striking, because he found himself angry; and of him that poured out the water when he was thirsty, and the like. Such things I confess have, or may have been done, and do prove only that it was not necessary for Ulysses then to weep, nor for that philosopher to strike, nor for that other man to drink; but it does not prove that it was not necessary for Ulysses then to abstain, as he did, from weeping, nor for the philosopher to abstain, as he did, from striking, nor for the other man to forbear drinking, and yet that was the thing his Lordship ought to have proved. Lastly his Lordship confesses, that the *dispositions* of objects may be *dangerous* to *liberty*, but cannot be *destructive*. To which I answer, it is impossible: for *liberty* is never in any other danger than to be lost; and if it cannot be lost, which he confesses, I may infer, it can be in no danger at all.

The fourth opinion his Lordship rejecteth, is of them that make the will necessarily to follow the last dictate of the understanding; but it seems his Lordship understands that tenet in another sense than I do; for he speaketh as if they that held it, did suppose men must dispute the sequel of every action they do, great and small, to the least grain; which is a thing his Lordship, with reason, thinks untrue. But I understand it to signify, that the *will* follows the *last* opinion or *judgment* immediately preceding the *action*, concerning whether it be good to do it or not, whether he have weighed it long before, or not at all, and that I take to be the meaning of them that hold it. As for example, when a man strikes, his will to strike follows necessarily that thought he had of the sequel of his stroke, immediately before the lifting up of his hand. Now if it be understood in that sense, the *last* dictate of the understanding

does *necessitate* the *action*, though not as the whole cause, yet as the last cause, as the last feather necessitates the breaking of a horse's back, when there are so many laid on before, as there needed but the addition of one to make the weight sufficient.

That which his Lordship allegeth against this, is first, out of a poet, who in the person of Medea says,

“Video meliora, proboque,
Deteriora sequor.”

But that saying, as pretty as it is, is not true; for though Medea saw many reasons to forbear killing her children, yet the last dictate of her judgment was, that the present revenge on her husband outweighed them all, and thereupon the wicked action *necessarily* followed. Then the story of the Roman, who of two competitors, said, one had the better reason, but the other must have the office. This also maketh against his Lordship, for the last dictate of his judgment that had the bestowing of the office, was this, that it was better to take a great bribe, than reward a great merit.

Thirdly, he objects that things nearer the sense, move more powerfully than reason; what followeth thence but this, the sense of the present good is commonly more immediate to the action, than the foresight of the evil consequence to come? Fourthly, whereas his Lordship says, that do what a man can, he shall sorrow more for the death of his son than for the sin of his soul, makes nothing to the last dictate of the understanding; but it argues plainly, that sorrow for sin is not *voluntary*, and by consequence, that *repentance* proceedeth from causes.

The last part of this discourse containeth his Lordship's opinions about reconciling *liberty* with the *prescience* and *decrees* of God, otherwise than some *divines* have done, against whom, he says, he had formerly written a treatise, out of which he repeateth only two things: one is, *That we ought not to desert a certain truth, for not being able to comprehend the certain manner of it.* And I say the same, as for example, that his Lordship ought not to desert this certain truth, *that there are certain and necessary causes which make every man to will what he willeth, though he do not yet conceive in what manner the will*

of man is *caused*. And yet I think the manner of it is not very hard to conceive, seeing we see daily, that *praise, dispraise, reward, and punishment, good and evil*, sequels of men's *actions* retained in *memory*, do frame and make us to the *election* of whatsoever it be that we elect, and that the memory of such things proceeds from the *senses*, and *sense* from the operation of the objects of sense, which are external to us, and governed only by God Almighty; and by consequence all *actions*, even of *free and voluntary* agents, are necessary.

The other thing that he repeateth, is, that the best way to reconcile *contingence* and *liberty* with *prescience* and the *decrees* of *God*, is to subject future *contingencies* to the *aspect of God*. The same is also my opinion, but contrary to what his Lordship all this while laboured to prove. For hitherto he held *liberty* and *necessity*, that is to say, *liberty* and the *decrees* of *God*, irreconcilable, unless the *aspect of God*, which word appeareth now the first time in this discourse, signify somewhat else besides *God's will* and *decree*, which I cannot understand. But he adds that we must subject them, according to that *presentiality* which they have in eternity, which he says cannot be done by them that conceive *eternity* to be an *everlasting succession*, but only by them that conceive it as an *indivisible point*. To which I answer, that as soon as I can conceive *eternity* to be an *indivisible point*, or anything but an *everlasting succession*, I will renounce all that I have written on this subject. I know St. Thomas Aquinas calls *eternity*, *nunc stans*, an *ever-abiding now*; which is easy enough to say, but though I fain would, yet I could never conceive it: they that can, are more happy than I. But in the mean time his Lordship alloweth all men to be of my opinion, save only those that can conceive in their minds a *nunc stans*, which I think are none. I understand as little how it can be true his Lordship says, that God is not *just*, but *justice* itself; not *wise*, but *wisdom* itself; not *eternal*, but *eternity* itself; nor how he concludes thence, that *eternity* is a *point indivisible*, and not a *succession*, nor in what sense it can be said, that an *infinite point*, and wherein is no *succession*, can comprehend all *time*, though time be *successive*. These phrases I find not in the Scripture; I wonder therefore what was the design of the Schoolmen to bring them up, unless they thought a man could not be a true Christian unless his understanding be first strangled with such hard sayings. And thus much for answer to his Lordship's

discourse, wherein I think not only his *squadrons of arguments*, but also his *reserve of distinctions*, are defeated. And now your Lordship shall have my doctrine concerning the same question, with my *reasons* for it, positively, and as briefly as I can, without any terms of *art*, in plain English.

MY OPINION ABOUT LIBERTY AND NECESSITY.

First I conceive, that when it cometh into a man's mind to do or not to do some certain action, if he have no time to *deliberate*, the doing it or abstaining *necessarily* follow the *present* thought he hath of the *good* or *evil* consequence thereof to himself. As for example, in sudden *anger*, the *action* shall follow the thought of *revenge*; in sudden *fear*, the thought of *escape*. Also when a man hath time to *deliberate*, but deliberates not, because never anything appeared that could make him doubt of the consequence, the *action* follows his opinion of the *goodness* or *harm* of it. These actions I call VOLUNTARY, my Lord, if I understand him aright that calls them SPONTANEOUS. I call them *voluntary*, because those *actions* that follow immediately the *last* appetite, are *voluntary*, and here where is one only appetite, that one is the last. Besides, I see it is reasonable to punish a *rash* action, which could not be justly done by man to man, unless the same were *voluntary*. For no *action* of a man can be said to be without *deliberation*, though never so sudden, because it is supposed he had time to *deliberate* all the precedent time of his life, whether he should do that kind of action or not. And hence it is, that he that killeth in a sudden passion of *anger*, shall nevertheless be justly put to *death*, because all the time, wherein he was able to consider whether to kill were good or evil, shall be held for one continual *deliberation*, and consequently the killing shall be judged to proceed from *election*.

Secondly, I conceive when a man *deliberates* whether he shall do a thing or not do it, that he does nothing else but consider whether it be better for himself to do it or not to do it. And to *consider* an action, is to imagine the *consequences* of it, both *good* and *evil*. From whence is to be inferred, that *deliberation* is nothing else but *alternate* imagination of the *good* and *evil* sequels of an *action*, or, which is the same thing, alternate *hope* and *fear*, or alternate *appetite* to do or quit the action of which he *deliberateth*.

Thirdly, I conceive that in all *deliberations*, that is to say, in all alternate *succession* of contrary *appetites*, the last is that which we call

the WILL, and is immediately next before the doing of the action, or next before the doing of it become impossible. All other *appetites* to do, and to quit, that come upon a man during his deliberations, are called *intentions* and *inclinations*, but not *wills*, there being but one *will*, which also in this case may be called the *last will*, though the *intentions* change often.

Fourthly, I conceive that those *actions*, which a man is said to do upon *deliberation*, are said to be *voluntary*, and done upon *choice* and *election*, so that *voluntary* action, and action proceeding from *election* is the same thing; and that of a *voluntary agent*, it is all one to say, he is *free*, and to say, he hath not made an end of *deliberating*.

Fifthly, I conceive *liberty* to be rightly defined in this manner: *Liberty is the absence of all the impediments to action that are not contained in the nature and intrinsical quality of the agent.* As for example, the water is said to descend *freely*, or to have *liberty* to descend by the channel of the river, because there is no impediment that way, but not across, because the banks are impediments. And though the water cannot ascend, yet men never say it wants the *liberty* to ascend, but the *faculty* or *power*, because the impediment is in the nature of the water, and intrinsical. So also we say, he that is tied, wants the *liberty* to go, because the impediment is not in him, but in his bands; whereas we say not so of him that is sick or lame, because the impediment is in himself.

Sixthly, I conceive that nothing taketh beginning from *itself*, but from the *action* of some other immediate *agent* without itself. And that therefore, when first a man hath an *appetite* or *will* to something, to which immediately before he had no appetite nor will, the *cause* of his *will*, is not the *will* itself, but *something* else not in his own disposing. So that whereas it is out of controversy, that of *voluntary* actions the *will* is the *necessary* cause, and by this which is said, the *will* is also *caused* by other things whereof it disposeth not, it followeth, that *voluntary* actions have all of them *necessary* causes, and therefore are *necessitated*.

Seventhly, I hold that to be a *sufficient cause*, to which nothing is wanting that is needful to the producing of the *effect*. The same also is a *necessary* cause. For if it be possible that a *sufficient* cause shall not bring forth the *effect*, then there wanteth somewhat which was needful

to the producing of it, and so the *cause* was not *sufficient*; but if it be impossible that a *sufficient* cause should not produce the *effect*, then is a *sufficient* cause a *necessary* cause, for that is said to produce an effect *necessarily* that cannot but produce it. Hence it is manifest, that whatsoever is produced, is produced *necessarily*; for whatsoever is produced hath had a *sufficient* cause to produce it, or else it had not been; and therefore also *voluntary* actions are *necessitated*.

Lastly, that ordinary *definition* of a *free agent*, namely, *that a free agent is that, which, when all things are present which are needful to produce the effect, can nevertheless not produce it*, implies a contradiction, and is nonsense; being as much as to say, the cause may be *sufficient*, that is to say, *necessary*, and yet the *effect* shall not follow.

MY REASONS.

For the first five points, wherein it is explicated I, what *spontaneity* is; II, what *deliberation* is; III, what *will*, *propension*, and *appetite* are; IV, what a *free agent* is: V, what *liberty* is; there can no other proof be offered but every man's own experience, by reflection on himself, and remembering what he useth in his mind, that is, what he himself meaneth when he saith an action is *spontaneous*, a man *deliberates*; such is his *will*, that *agent* or that *action* is *free*. Now he that reflecteth so on himself, cannot but be satisfied, that *deliberation* is the *consideration of the good and evil sequels of an action to come*; that by *spontaneity* is meant *inconsiderate action*, or else nothing is meant by it; that *will* is the *last act of our deliberation*; that a *free agent* is he *that can do if he will, and forbear if he will*; and that *liberty* is the *absence of external impediments*. But to those that out of custom speak not what they conceive, but what they hear, and are not able, or will not take the pains to consider what they think when they hear such words, no argument can be sufficient, because *experience* and *matter of fact* are not verified by other men's arguments, but by every man's own *sense* and *memory*. For example, how can it be proved that to *love* a thing and to think it *good* is all one, to a man that doth not mark his own meaning

by those words? Or how can it be proved that *eternity* is not *nunc stans*, to a man that says those words by custom, and never considers how he can conceive the thing in his mind?

Also the sixth point, that a man cannot imagine anything to begin *without a cause*, can no other way be made known, but by trying how he can imagine it; but if he try, he shall find as much reason, if there be no cause of the thing, to conceive it should begin at one time as another, that he hath equal reason to think it should begin at all times, which is impossible, and therefore he must think there was some special cause why it began then, rather than sooner or later; or else that it began never, but was *eternal*.

For the seventh point, which is, that all *events* have *necessary* causes, it is there proved, in that they have *sufficient* causes. Further let us in this place also suppose any event never so casual, as the throwing, for example, *ames ace* upon a pair of dice, and see, if it must not have been *necessary* before it was thrown. For seeing it was thrown, it had a *beginning*, and consequently a *sufficient* cause to produce it, consisting partly in the *dice*, partly in outward things, as the posture of the parts of the *hand*, the measure of *force* applied by the caster, the posture of the parts of the *table*, and the like. In sum, there was nothing wanting which was necessarily requisite to the producing of that particular cast, and consequently the cast was necessarily thrown; for if it had not been thrown, there had wanted somewhat requisite to the throwing of it, and so the cause had not been *sufficient*. In the like manner it may be proved that every other accident, how *contingent* soever it seem, or how *voluntary* soever it be, is produced *necessarily*, which is that that my Lord Bishop disputes against. The same may be proved also in this manner. Let the case be put, for example, of the weather. *It is necessary that to-morrow it shall rain or not rain*. If therefore it be not *necessary* it shall rain, it is *necessary* it shall not rain, otherwise there is no necessity that the proposition, *it shall rain or not rain*, should be true. I know there be some that say, it may necessarily be true that one of the two shall come to pass, but not, singly that it shall rain, or that it shall not rain, which is as much to say, *one* of them is *necessary*, yet neither of them is *necessary*; and therefore to seem to avoid that absurdity, they make a distinction, that neither of them is true *determinate*, but *indeterminate*; which distinction either signifies no more but this, one

of them is true, but we know not which, and so the necessity remains, though we know it not; or if the meaning of the distinction be not that, it hath no meaning, and they might as well have said, one of them is true *Titirice*, but neither of them, *Tu patulice*.

The last thing, in which also consisteth the whole controversy, namely that there is no such thing as an agent, *which when all things requisite to action are present, can nevertheless forbear to produce it*; or, which is all one, that there is no such thing as *freedom from necessity*, is easily inferred from that which hath been before alleged. For if it be an *agent*, it can *work*; and if it *work*, there is nothing wanting of what is requisite to produce the *action*, and consequently the cause of the action is *sufficient*; and if *sufficient*, then also *necessary*, as hath been proved before.

And thus you see how the *inconveniences*, which his Lordship objecteth must follow upon the holding of *necessity*, are avoided, and the *necessity* itself *demonstratively* proved. To which I could add, if I thought it good logic, the *inconvenience* of denying *necessity*, as that it destroyeth both the *decrees* and the *prescience* of God Almighty; for whatsoever God hath *purposed* to bring to pass by *man*, as an instrument, or foreseeeth shall come to pass; a man, if he have *liberty*, such as his Lordship affirmeth, from *necessitation*, might frustrate, and make not to come to pass, and God should either not *foreknow* it, and not *decree* it, or he should *foreknow* such things shall be, as shall never be, and *decree* that which shall never *come to pass*.

This is all that hath come into my mind touching this question since I last considered it. And I humbly beseech your Lordship to communicate it only to my Lord Bishop. And so praying God to prosper your Lordship in all your designs, I take leave, and am,

My most noble and most obliging Lord,

Your most humble servant,

THOMAS HOBBS.

Rouen, Aug. 20, 1652.^[A]

A. In the first edition of 1654 this date is 1646.

AN
ANSWER
TO A BOOK PUBLISHED BY
DR. BRAMHALL,

LATE BISHOP OF DERRY;

CALLED THE
“CATCHING OF THE LEVIATHAN.”

TOGETHER WITH AN
HISTORICAL NARRATION CONCERNING
HERESY,

AND THE PUNISHMENT THEREOF.

TO THE READER.

As in all things which I have written, so also in this piece, I have endeavoured all I can to be perspicuous; but yet your own attention is always necessary. The late Lord Bishop of Derry published a book called *The Catching of the Leviathan*, in which he hath put together divers sentences picked out of my *Leviathan*, which stand there plainly and firmly proved, and sets them down without their proofs, and without the order of their dependance one upon another; and calls them atheism, blasphemy, impiety, subversion of religion, and by other names of that kind. My request unto you is, that when he cites my words for erroneous, you will be pleased to turn to the place itself, and see whether they be well proved, and how to be understood. Which labour his Lordship might have saved you, if he would have vouchsafed as well to have weighed my arguments before you, as to have shown you my conclusions. His book containeth two chapters, the one concerning Religion, the other concerning Politics. Because he does not so much as offer any refutation of any thing in my *Leviathan* concluded, I needed not to have answered either of them. Yet to the first I here answer, because the words *atheism*, *impiety*, and the like, are words of the greatest defamation possible. And this I had done sooner, if I had sooner known that such a book was extant. He wrote it ten years since, and yet I never heard of it till about three months since; so little talk there was of his Lordship's writings. If you want leisure or care of the questions between us, I pray you condemn me not upon report. To judge and not examine is not just.

Farewell.

T. HOBBS.

AN ANSWER,
ETC.

THAT THE HOBBIAN PRINCIPLES ARE DESTRUCTIVE TO
CHRISTIANITY AND ALL RELIGION.

J. D. The image of God is not altogether defaced by the fall of man, but that there will remain some practical notions of God and goodness; which when the mind is free from vagrant desires, and violent passions, do shine as clearly in the heart, as other speculative notions do in the head. Hence it is, that there was never any nation so barbarous or savage throughout the whole world, which had not their God. They who did never wear clothes upon their backs, who did never know magistrate but their father, yet have their God, and their religious rights and devotions to him. Hence it is, that the greatest atheists in any sudden danger do unwittingly cast their eyes up to heaven, as craving aid from thence, and in a thunder creep into some hole to hide themselves. And they who are conscious to themselves of any secret crimes, though they be secure enough from the justice of men, do yet feel the blind blows of a guilty conscience, and fear Divine vengeance. This is acknowledged by T. H. himself in his lucid intervals. *That we may know what worship of God natural reason doth assign, let us begin with his attributes, where it is manifest in the first place, that existency is to be attributed to him.* To which he addeth, *infiniteness, incomprehensibility, unity, ubiquity.* Thus for attributes; next for actions. *Concerning external actions, wherewith God is to be worshipped, the most general precept of reason is, that they be signs of honour; under which are contained prayers, thanksgivings, oblations, and sacrifices.*

T. H. Hitherto his Lordship discharges me of atheism. What need he to say that *all nations, how barbarous soever, yet have their Gods and religious rites, and atheists are frightened with thunder, and feel the blind blows of conscience?* It might have been as apt a preface to any other of

his discourses as this. I expect therefore in the next place to be told, that I deny again my afore-recited doctrine.

J. D. Yet, to let us see how inconsistent and irreconcilable he is with himself, elsewhere reckoning up all the laws of nature at large, even twenty in number, he hath not one word that concerneth religion, or hath the least relation in the world to God. As if a man were like the colt of a wild ass in the wilderness, without any owner or obligation. Thus in describing the laws of nature, this great clerk forgetteth the God of nature, and the main and principal laws of nature, which contain a man's duty to his God, and the principal end of his creation.

T. H. After I had ended the discourse he mentions of the laws of nature, I thought it fittest in the last place, once for all, to say they were the laws of God, then when they were delivered in the word of God; but before, being not known by men for any thing but their own natural reason, they were but theorems, tending to peace, and those uncertain, as being but conclusions of particular men, and therefore not properly laws. Besides, I had formerly in my book *De Cive*, cap. iv, proved them severally, one by one, out of the Scriptures: which his Lordship had read and knew. It was therefore an unjust charge of his to say, I had not one word in them that concerns religion, or that hath the least relation in the world to God; and this upon no other ground than that I added not to every article, *this law is in the Scripture*. But why he should call me (ironically) a great clerk, I cannot tell. I suppose he would make men believe, I arrogated to myself all the learning of a great clerk, bishop, or other inferior minister. A learned bishop, is that bishop that can interpret all parts of Scripture truly, and congruently to the harmony of the whole; that has learnt the history and laws of the Church, down from the apostles' time to his own; and knows what is the nature of a law civil, divine, natural, and positive; and how to govern well the parochial ministers of his diocese, so that they may both by doctrine and example keep the people in the belief of all articles of faith necessary to salvation, and in obedience to the laws of their country. This is a learned bishop. A learned minister, is he that hath learned the way by which men may be drawn from avarice, pride, sensuality, profaneness, rebellious principles, and all other vices, by eloquent and powerful disgracing of them, both from Scripture and from reason; and can terrify men from vice, by discreet uttering of the punishments

denounced against wicked men, and by deducing, rationally, the damage they receive by it in the end. In one word, he is a learned minister that can preach such sermons as St. Chrysostom preached to the Antiochians, when he was presbyter in that city. Could his Lordship find in my book, that I arrogated to myself the eloquence or wisdom of St. Chrysostom, or the ability of governing the church? It is one thing to know what is to be done, another thing to know how to do it. But his Lordship was pleased to use any artifice to disgrace me in any kind whatsoever.

J. D. Perhaps he will say that he handleth the laws of nature there, only so far as may serve to the constitution or settlement of a commonwealth. In good time, let it be so. He hath devised us a trim commonwealth, which is founded neither upon religion towards God, nor justice towards man; but merely upon self-interest, and self-preservation. Those rays of heavenly light, those natural seeds of religion, which God himself hath imprinted in the heart of man, are more efficacious towards preservation of a society, whether we regard the nature of the thing, or the blessing of God, than all his *pacts*, and *surrenders*, and *translations of power*. He who unteacheth men their duty to God, may make them eye-servants, so long as their interest doth oblige them to obey; but is no fit master to teach men conscience and fidelity.

T. H. He has not yet found the place where I contradict either the existence, or infiniteness, or incomprehensibility, or unity, or ubiquity of God. I am therefore yet absolved of atheism. But I am, he says, inconsistent and irreconcilable with myself; that is, I am (though he says not so) he thinks, a forgetful blockhead. I cannot help that: but my forgetfulness appears not here. Even his Lordship, where he says, “those rays of heavenly light, those seeds of religion, which God himself hath imprinted in the heart of man (meaning natural reason), are more efficacious to the preservation of society, than all the *pacts*, *surrenders*, and *translating of power*,” had forgotten to except the old pact of the Jews, and the new pact of Christians. But pardoning that, did he hope to make any wise man believe, that when this nation very lately was an anarchy, and dissolute multitude of men, doing every one what his own reason or imprinted light suggested, they did again out of the same light call in the king, and peace again, and ask pardon for the

faults, which that their illumination had brought them into, rather than out of fear of perpetual danger and hope of preservation?

J. D. Without religion, societies are like but soapy bubbles, quickly dissolved. It was the judgment of as wise a man as T. H. himself, though perhaps he will hardly be persuaded to it, that Rome owed more of its grandeur to religion, than either to strength or stratagems. *We have not exceeded the Spaniards in number, nor the Gauls in strength, nor the Carthaginians in craft, nor the Grecians in art, &c. but we have overcome all nations by our piety and religion.*

T. H. Did not his Lordship forget himself here again, in approving this sentence of Tully, which makes the idolatry of the Romans, not only better than the idolatry of other nations; but also better than the religion of the Jews, whose law Christ himself says he came not to destroy but to fulfil? And that the Romans overcame both them and other nations by their piety, when it is manifest that the Romans overran the world by injustice and cruelty, and that their victories ought not to be ascribed to the piety of the Romans, but to the impiety as well of the Jews as of other nations? But what meant he by saying “Tully was as wise a man as T. H. himself, though perhaps he will hardly be persuaded to it?” Was that any part of the controversy? No: then it was out of his way. God promiseth to assist good men in their way, but not out of their way. It is therefore the less wonder that his Lordship was in this place deserted of the light, which God imprints in the hearts of rudest savages.

J. D. Among his laws he inserteth *gratitude* to men as the third precept of the law of nature; but of the gratitude of mankind to their Creator, there is a deep silence. If men had sprung up from the earth in a night, like mushrooms or excrescences, without all sense of honour, justice, conscience, or gratitude, he could not have vilified the human nature more than he doth.

T. H. My Lord discovers here an ignorance of such method as is necessary for lawful and strict reasoning, and explication of the truth in controversy. And not only that, but also how little able he is to fix his mind upon what he reads in other men’s writings. When I had defined ingratitude universally, he finds fault that I do not mention ingratitude towards God, as if his Lordship knew not that an universal comprehends all the particulars. When I had defined equity universally,

why did he not as well blame me for not telling what that equity is in God? He is grateful to the man of whom he receives a good turn, that confesseth, or maketh appear he is pleased with the benefit he receiveth. So also gratitude towards God is to confess his benefits. There is also, in gratitude towards men, a desire to requite their benefits; so there is in our gratitude towards God, so far to requite them, as to be kind to God's ministers, which I acknowledged in making sacrifices a part of natural divine worship; and the benefit of those sacrifices is the nourishment of God's ministers. It appears therefore, that the bishop's attention in reading my writings, was either weak in itself, or weakened by prejudice.

J. D. From this shameful omission or preterition of the main duty of mankind, a man might easily take the height of T. H. his religion. But he himself putteth it past all conjectures. His principles are brim full of prodigious impiety. *In these four things, opinions of ghosts, ignorance of second causes, devotion to what men fear, and taking of things casual for prognostics, consisteth the natural seed of religion;* the culture and improvement whereof, he referreth only to *policy*. Human and divine politics, are but politics. And again, *mankind hath this from the conscience of their own weakness, and the admiration of natural events, that the most part of men believe that there is an invisible God, the maker of all visible things.* And a little after he telleth us, that *superstition proceedeth from fear without right reason, and atheism from an opinion of reason without fear;* making atheism to be more reasonable than superstition. What is now become of that divine worship which natural reason did assign unto God, the honour of existence, infiniteness, incomprehensibility, unity, ubiquity? What is now become of that dictate or precept of reason, concerning *prayers, thanksgivings, oblations, sacrifices,* if uncertain opinions, ignorance, fear, mistakes, the conscience of our own weakness, and the admiration of natural events, be the only seeds of religion?

He proceedeth further, that *atheism itself, though it be an erroneous opinion, and therefore a sin, yet it ought to be numbered among the sins of imprudence or ignorance.* He addeth, that *an atheist is punished not as a subject is punished by his king, because he did not observe laws: but as an enemy, by an enemy, because he would not accept laws.* His reason is, because *the atheist never submitted his will to the will of*

God, whom he never thought to be. And he concludeth that man's obligation to obey God proceedeth from his weakness, (De Cive, xv. 7: vol. II. p. 336): *Manifestum est obligationem ad prestandam ipsi (Deo) obedientiam, incumbere hominibus propter imbecilitatem*. First, it is impossible that should be a sin of mere ignorance or imprudence, which is directly contrary to the light of natural reason. The laws of nature need no new promulgation, being imprinted naturally by God in the heart of man. *The law of nature was written in our hearts by the finger of God, without our assent; or rather, the law of nature is the assent itself*. Then if nature dictate to us that there is a God, and that this God is to be worshipped in such and such a manner, it is not possible that atheism should be a sin of mere ignorance.

Secondly, a rebellious subject is still a subject *de jure*, though not *de facto*; by right, though not by deed: and so the most cursed atheist that is, ought by right to be the subject of God, and ought to be punished not as a just enemy, but as a disloyal traitor. Which is confessed by himself: *this fourth sin* (that is, of those who do not by word and deed confess one God, the supreme King of Kings) *in the natural kingdom of God is the crime of high treason, for it is a denial of Divine power, or atheism*. Then an atheist is a traitor to God, and punishable as a disloyal subject, not as an enemy.

Lastly, it is an absurd and dishonourable assertion, to make our obedience to God to depend upon our weakness, because we cannot help it, and not upon our gratitude, because we owe our being and preservation to him. *Who planteth a vineyard, and eateth not of the fruit thereof? And who feedeth a flock, and eateth not of the milk of the flock?* And again, *Thou art worthy, O Lord, to receive glory, and honour and power; for thou hast created all things, and for thy pleasure they are and were created*. But it were much better, or at least not so ill, to be a downright atheist, than to make God to be such a thing as he doth, and at last thrust him into the Devil's office, to be the cause of all sin.

T. H. Though this bishop, as I said, had but a weak attention in reading, and little skill in examining the force of an argument, yet he knew men, and the art, without troubling their judgments, to win their assents by exciting their passions. One rule of his art was to give his reader what he would have him swallow, a part by itself, and in the

nature of news, whether true or not. Knowing that the unlearned, that is most men, are content to believe, rather than be troubled with examining, therefore, a little before, he put these words, *T. H. no friend to religion*, in the margin. And in this place, before he offer at any confutation, he says my principles are brim full of *prodigious impieties*. And at the next paragraph, in the margin, he puts that *I excuse atheism*. This behaviour becomes neither a bishop, nor a Christian, nor any man that pretends to good education. Fear of invisible powers, what is it else in savage people, but the fear of somewhat they think a God? What invisible power does the reason of a savage man suggest unto him, but those phantasms of his sleep, or his distemper, which we frequently call ghosts, and the savages thought gods; so that the fear of a God, though not of the true one, to them was the beginning of religion, as the fear of the true God was the beginning of wisdom to the Jews and Christians? Ignorance of second causes made men fly to some first cause, the fear of which bred devotion and worship. The ignorance of what that power might do, made them observe the order of what he had done; that they might guess by the like order, what he was to do another time. This was their prognostication. What prodigious impiety is here? How confutes he it? Must it be taken for impiety upon his bare calumny? I said superstition was fear without reason. Is not the fear of a false God, or fancied demon, contrary to right reason? And is not atheism boldness grounded on false reasoning, such as is this, *the wicked prosper, therefore there is no God*? He offers no proof against any of this; but says only I make atheism to be more reasonable than superstition; which is not true: for I deny that there is any reason either in the atheist or in the superstitious. And because the atheist thinks he has reason, where he has none, I think him the more irrational of the two. But all this while he argues not against any of this; but enquires only, what is become of my natural worship of God, and of his existency; infiniteness, incomprehensibility, unity, and ubiquity. As if whatsoever reason can suggest, must be suggested all at once. First, all men by nature had an opinion of God's existency; but of his other attributes not so soon, but by reasoning, and by degrees. And for the attributes of the true God, they were never suggested but by the Word of God written. In that I say atheism is a sin of ignorance, he says I excuse it. The prophet David says, *the fool hath said in his heart, there is no God*. Is it not

then a sin of folly? It is agreed between us, that right reason dictates, there is a God. Does it not follow, that denying of God is a sin proceeding from misreasoning. If it be not a sin of ignorance, it must be a sin of malice. Can a man malice that which he thinks has no being? But may not one think there is a God, and yet maliciously deny him? If he think there is a God, he is no atheist; and so the question is changed into this, whether any man that thinks there is a God, dares deliberately deny it? For my part I think not. For upon what confidence dares any man, deliberately I say, oppose the Omnipotent? David saith of himself, *My feet were ready to slip when I saw the prosperity of the wicked.* Therefore it is likely the feet of men less holy slip oftener. But I think no man living is so daring, being out of passion, as to hold it as his opinion. Those wicked men that for a long time proceeded so successfully in the late horrid rebellion, may perhaps make some think they were constant and resolved atheists: but I think rather that they forgot God, than believed there was none. He that believes there is such an atheist, comes a little too near that opinion himself; nevertheless if words spoken in passion signify a denial of a God, no punishment preordained by law, can be too great for such an insolence; because there is no living in a commonwealth with men, to whose oaths we cannot reasonably give credit. As to that I say, *an atheist is punished by God not as a subject by his king, but as an enemy;* and to my argument for it, namely, *because he never acknowledged himself God's subject,* he opposeth, that if nature dictate that there is a God, and to be worshipped in such and such manner, then atheism is not a sin of mere ignorance: as if either I or he did hold that nature dictates the manner of God's worship, or any article of our creed, or whether to worship with or without a surplice. Secondly, he answers that a rebel is still a subject *de jure*, though not *de facto*: and it is granted. But though the king lose none of his right by the traitor's act, yet the traitor loseth the privilege of being punished by a precedent law; and therefore may be punished at the king's will, as Ravallac was for murdering Henry IV of France. An open enemy and a perfidious traitor are both enemies. Had not his Lordship read in the Roman story, how Perseus and other just enemies of that state were wont to be punished? But what is this trifling question to my *excusing of atheism*? In the seventh paragraph of chapter xv. of my book *De Cive*, he found the words in Latin, which he here citeth.

And to the same sense I have said in my *Leviathan*, that the right of nature whereby God reigneth over men, is to be derived not from his creating them, as if he required obedience, as of gratitude; but from his irresistible power. This he says is absurd and dishonourable. Whereas first all power is honourable, and the greatest power is most honourable. Is it not a more noble tenure for a king to hold his kingdom, and the right to punish those that transgress his laws, from his power, than from the gratitude or gift of the transgressor. There is nothing therefore here of dishonour to God Almighty. But see the subtilty of his disputing. He saw he could not catch *Leviathan* in this place, he looks for him in my book *De Cive*, which is Latin, to try what he could fish out of that: and says I make our obedience to God, depend upon our weakness; as if these words signified the *dependence*, and not the *necessity* of our submission, or that *incumbere* and *dependere* were all one.

J. D. For *T. H.* his God is not the God of Christians, nor of any rational men. Our God is every where, and seeing he hath no parts, he must be wholly here, and wholly there, and wholly every where. So nature itself dictateth. *It cannot be said honourably of God that he is in a place; for nothing is in a place, but that which hath proper bounds of its greatness.* But *T. H.* his God is not wholly every where. *No man can conceive that any thing is all in this place, and all in another place at the same time, for none of these things ever have or can be incident to sense.* So far well, if by *conceiving* he mean *comprehending*; but then follows, *That these are absurd speeches taken upon credit, without any signification at all, from deceived philosophers, and deceived or deceiving Schoolmen.* Thus he denieth the ubiquity of God. A *circumscriptive*, a *definitive*, and a *repletive* being in a place, is some heathen language to him.

T. H. Though I believe the omnipotence of God, and that he can do what he will, yet I dare not say how every thing is done, because I cannot conceive nor comprehend either the Divine substance, or the way of its operation. And I think it impiety to speak concerning God any thing of my own head, or upon the authority of philosophers or Schoolmen, which I understand not, without warrant in the Scripture: and what I say of omnipotence, I say also of ubiquity. But his Lordship is more valiant in this place, telling us that God is *wholly here*, and

wholly there, and wholly every where; because he has no parts. I cannot comprehend nor conceive this. For methinks it implies also that the whole world is also in the whole God, and in every part of God. Nor can I conceive how any thing can be called *whole*, which has no parts, nor can I find anything of this in the Scripture. If I could find it there, I could believe it; and if I could find it in the public doctrine of the Church, I could easily abstain from contradicting it. The Schoolmen say also, that the soul of man (meaning his upper soul, which they call the rational soul) is also *wholly in the whole man*, and *wholly in every part* of the man. What is this, but to make the human soul the same thing in respect of man's body, that God is in respect of the world? These his Lordship calls here rational men, and some of them which applaud this doctrine, would have the high court of parliament corroborate such doctrines with a law. I said in my *Leviathan*, that it is no honourable attribute to God, to say he is *in a place*, because infinite is not confined within a place. To which he replies, *T. H. his God is not wholly every where*. I confess the consequence. For I understand in *English*, he that says any thing to be *all here*, means that *neither all nor any of the same thing is elsewhere*. He says further, I take a *circumscriptive, a definitive, and a repletive* being in a place to be heathen language. Truly, if this dispute were at the bar, I should go near to crave the assistance of the court, lest some trick might be put upon me in such obscurity. For though I know what these Latin words singly signify, yet I understand not how any thing is in a *place definitively* and not *circumscriptively*. For *definitively* comes from *definio*, which is to set bounds. And therefore to be in a place definitively, is when the bounds of the *place* are every way marked out. But to be in a place circumscriptively, is when the bounds of the place are described round about. To be in a place repletively, is to fill a place. Who does not see that this distinction is canting and fraud? If any man will call it pious fraud, he is to prove the piety as clearly as I have here explained the fraud. Besides, no fraud can be pious in any man, but him that hath a lawful right to govern him whom he beguileth; whom the Bishop pretends to govern, I cannot tell. Besides, his Lordship ought to have considered, that every Bishop is one of the great Council, trusted by the King to give their advice with the Lords temporal, for the making of good laws, civil and ecclesiastical, and not to offer them such obscure

doctrines, as if, because they are not versed in School-divinity, therefore they had no learning at all, nor understood the English tongue. Why did the divines of England contend so much heretofore to have the Bible translated into English, if they never meant any but themselves should read it? If a lay-man be publicly encouraged to search the Scriptures for his own salvation, what has a divine to do to impose upon him any strange interpretation, unless, if he make him err to damnation, he will be damned in his stead?

J. D. Our God is immutable without any shadow of turning by change, to whom all things are present, nothing past, nothing to come. But *T. H.* his God is measured by time, losing something that is past, and acquiring something that doth come every minute. That is as much as to say, that our God is infinite, and his God is finite; for unto that which is actually infinite, nothing can be added, neither time nor parts. Hear himself: *Nor do I understand what derogation it can be to the Divine perfection, to attribute to it potentiality, that is in English, power* (so little doth he understand what potentiality is) *and successive duration.* And he chargeth it upon us as a fault, that we will not have eternity to be an *endless succession of time.* How, *successive duration, and an endless succession of time in God?* Then God is not infinite, then God is older to-day than he was yesterday. Away with blasphemies! Before, he destroyed the ubiquity of God, and now he destroyeth his eternity.

T. H. I shall omit both here and henceforth his preambulatory, impertinent, and uncivil calumnies. The thing he pretends to prove is this. That it is a derogation to the Divine power to attribute to it potentiality (that is in English power) and successive duration. One of his reasons is, God is infinite, and nothing can be added to infinite, neither of time nor of parts: it is true. And therefore I said, God is infinite and eternal, without beginning or end, either of time or place; which he has not here confuted, but confirmed. He denies potentiality and power to be all one, and says I little understand what potentiality is. He ought therefore in this place to have defined what potentiality is: for I understand it to be the same with *potentia*, which is in English power. There is no such word as potentiality in the Scriptures, nor in any author of the Latin tongue. It is found only in School-divinity, as a word of art, or rather as a word of craft, to amaze and puzzle the laity.

And therefore I no sooner read than interpreted it. In the next place he says, as wondering: *How, an endless succession of time in God!* Why not? *God's mercy endureth for ever*, and surely God endureth as long as his mercy; therefore there is duration in God, and consequently endless succession of time. *God who in sundry times and divers manners spake in time past, &c.* But in a former dispute with me about free-will, he hath defined eternity to be *nunc stans*, that is an *ever standing now*, or *everlasting instant*. This he thinks himself bound in honour to defend. What reasonable soul can digest this? We read in Scripture, that a thousand years with God, is but as yesterday. And why? but because he sees as clearly to the end of a thousand years, as to the end of a day. But his Lordship affirms, that both a thousand years and a day are but one instant, the same *standing now*, or eternity. If he had showed an holy text for this doctrine, or any text of the book of *Common Prayer* (in the Scripture and book of *Common Prayer* is contained all our religion), I had yielded to him; but School-divinity I value little or nothing at all. Though in this he contradict also the School-men, who say the soul is eternal only *a parte post*, but God is eternal both *a parte post*, and *a parte ante*. Thus there are parts in eternity; and eternity being, as his Lordship says, the Divine substance, the Divine substance has parts, and *nunc stans* has parts. Is not this darkness? I take it to be the kingdom of darkness, and the teachers of it (especially of this doctrine, that God, who is not only *optimus*, but also *maximus*, is no greater than to be wholly contained in the least atom of earth, or other body, and that his whole duration is but an instant of time) to be either grossly ignorant or ungodly deceivers.

J. D. Our God is a perfect, pure, simple, indivisible, infinite essence; free from all composition of matter and form, of substance and accidents. All matter is finite, and he who acteth by his infinite essence, needeth neither organs nor faculties (*id est, no power, note that*), nor accidents, to render him more complete. But T. H. his God is a divisible God, a compounded God, that hath matter, or qualities, or accidents. Hear himself. I argue thus: *The Divine substance is indivisible; but eternity is the Divine substance. The major is evident, because God is actus simplicissimus; the minor is confessed by all men, that whatsoever is attributed to God, is God.* Now listen to his answer: *The major is so far from being evident, that actus simplicissimus signifieth*

nothing. *The minor is said by some men, thought by no man; whatsoever is thought is understood.* The major was this, *the Divine substance is indivisible.* Is this far from being evident? Either it is indivisible, or divisible. If it be not indivisible, then it is divisible, then it is materiate, then it is corporeal, then it hath parts, then it is finite by his own confession. *Habere partes, aut esse totum aliquid, sunt attributa finitorum.* Upon this silly conceit he chargeth me for saying, that *God is not just, but justice itself; not eternal, but eternity itself; which he calleth unseemly words to be said of God.* And he thinketh he doth me a great courtesy in not adding *blasphemous and atheistical.* But his bolts are so soon shot, and his reasons are such vain imaginations, and such drowsy phantasies, that no sober man doth much regard them. Thus he hath already destroyed the ubiquity, the eternity, and the simplicity of God. I wish he had considered better with himself, before he had desperately cast himself upon these rocks.

But *paulo majora canamus.* My next charge is, that he destroys the very being of God, and leaves nothing in his place, but an empty name. For by taking away all incorporeal substances, he taketh away God himself. The very name, saith he, of an incorporeal substance, is a contradiction. And to say that an angel or spirit, is an incorporeal substance, is to say in effect, that there is no angel or spirit at all. By the same reason to say, that God is an incorporeal substance, is to say there is no God at all. Either God is incorporeal; or he is finite, and consists of parts, and consequently is no God. This, that there is no incorporeal spirit, is that main root of atheism, from which so many lesser branches are daily sprouting up.

T. H. God is indeed a perfect, pure, simple, infinite substance; and his name incommunicable, that is to say, not divisible into this and that individual God, in such manner as the name of man is divisible into Peter and John. And therefore God is individual; which word amongst the Greeks is expressed by the word indivisible. Certain heretics in the primitive church, because special and individual are called particulars, maintained that Christ was a particular God, differing in number from God the Father. And this was the doctrine that was condemned for heresy in the first council of Nice, by these words, *God hath no parts.* And yet many of the Latin fathers, in their explications of the Nicene creed, have expounded the word *consubstantial*, by the community of

nature, which different species have in their genus, and different individuals in the species; as if Peter and John were *consubstantial*, because they agree in one human nature; which is contrary, I confess, to the meaning of the Nice fathers. But that in a substance infinitely great, it should be impossible to consider any thing as not infinite, I do not see it there condemned. For certainly he that thinks God is in every part of the church, does not exclude him out of the churchyard. And is not this a considering of him by parts? For dividing a thing which we cannot reach nor separate one part thereof from another, is nothing else but considering of the same by parts. So much concerning indivisibility from natural reason; for I will wade no further, but rely upon the Scriptures. God is nowhere said in the Scriptures to be indivisible, unless his Lordship meant division to consist only in separation of parts, which I think he did not. St. Paul indeed saith (1 Cor. i. 13): *Is Christ divided?* Not that the followers of Paul, Apollos, and Cephas, followed some one part, some another of Christ; but that thinking differently of his nature, they made as it were different kinds of him. Secondly, his Lordship expounds simplicity, by not being compounded of matter and form, or of substance and accidents, unlearnedly. For nothing can be so compounded. The matter of a *chair* is *wood*; the form is the figure it hath, apt for the intended use. Does his Lordship think the chair compounded of the wood and the figure? A man is rational: does it therefore follow that reason is a part of the man? It was Aristotle deceived him, who told him that *a rational living creature*, is the definition of a man, and that the definition of a man was his essence; and therefore the Bishop and other Schoolmen, from this that the word rational is a part of these words, *man is a rational living creature*, concluded that the essence of man was a part of the man, and a *rational man* the same thing with a rational soul. I should wonder how any man, much more a doctor of divinity, should be so grossly deceived, but that I know naturally the generality of men speak the words of their masters by rote, without having any ideas of the things, which the words signify. Lastly, he calls God an *essence*. If he mean by *essence* the same with *ens*, τὸ ὄν, I approve it. Otherwise, what is *essence*? There is no such word in the Old Testament. The Hebrew language, which has no word answerable to the copulative *est*, will not bear it. The New Testament hath οὐσία, but never for *essence*, nor for *substance*, but

only for riches. I come now to his argument in mood and figure, which is this, *the Divine substance is indivisible*. That is the *major*. *Eternity is the Divine substance*. That is the *minor*. *Ergo*, the Divine substance is indivisible. The major, he says, is evident, because God is *actus simplicissimus*. The minor is confessed, he thinks, by all men, because whatsoever is attributed to God, is God. To this I answered, that the major was so far from being evident, that *actus simplicissimus* signifieth nothing, and that the minor was understood by no man. First, what is *actus* in the *major*? Does any man understand *actus* for a substance, that is, for a thing subsisting by itself? Is not *actus*, in English, either an *act* or an *action*, or nothing? Or is any of these *substance*? If it be evident, why did he not explain *actus* by a definition? And as to the minor, though all men in the world understand that the *Eternal* is God, yet no man can understand that the *eternity* is God. Perhaps he and the Schoolmen mean by *actus*, the same that they do by *essentia*. What is the *essence* of a *man*, but his *humanity*; or of God, but his *Deity*; of *great*, but *greatness*; and so of all other denominating attributes? And the words, God and Deity, are of different signification. John Damascene, a father of the church, expounding the Nicene creed, denies plainly that the Deity was incarnate; but all true Christians hold that God was incarnate. Therefore God and the Deity signify divers things; and therefore *eternal* and *eternity* are not the same, no more than a wise man and his wisdom are the same; nor God and his justice the same thing: and universally it is false, that the attribute in the abstract is the same with the substance, to which it is attributed. Also it is universally true of God, that the attribute in the concrete, and the substance to which it is attributed, is not the same thing.

I come now to his next period or paragraph, wherein he would fain prove, that by denying incorporeal substance, I take away God's existence. The words he cites here are mine: *to say an angel or spirit is an incorporeal substance, is to say in effect there is no angel nor spirit at all*. It is true also, that to say that God is an incorporeal substance, is to say in effect there is no God at all. What alleges he against it, but the School-divinity which I have already answered? Scripture he can bring none, because the word incorporeal is not found in Scripture. But the Bishop, trusting to his Aristotelian and Scholastic learning, hath

hitherto made no use of Scripture, save only of these texts: 1 Cor. ix. 7: *Who hath planted a vineyard, and eateth not of the fruit thereof; or who feedeth a flock, and eateth not of the milk of the flock?* and Rev. iv. 11: *Thou art worthy, O Lord, to receive glory, honour, and power: for thou hast created all things, and for thy pleasure they were created:* thereby to prove that the right of God to govern and punish mankind is not derived from his omnipotence. Let us now see how he proves incorporeity by his own reason without Scripture. *Either God*, he saith, *is incorporeal or finite*. He knows I deny both, and say he is *corporeal* and *infinite*: against which he offers no proof, but only, according to his custom of disputing, calls it the root of atheism; and interrogates me, what real thing is left in the world, if God be incorporeal, but body and accidents? I say there is nothing left but corporeal substance. For I have denied, as he knew, that there is any reality in accidents; and nevertheless maintain God's existence, and that he is a most pure, and most simple corporeal spirit. Here his Lordship catching nothing, removes to the eternity of the Trinity, which these my grounds, he says, destroy. How so? I say the Trinity, and the persons thereof, are that one pure, simple, and eternal corporeal spirit; and why does this destroy the Trinity, more than if I had called it incorporeal? He labours here and seeketh somewhat to refresh himself in the word *person*; by the same grounds, he saith, *every king hath as many persons as there be justices of peace in his kingdom, and God Almighty hath as many persons as there be kings*. Why not? For I never said that all those kings were that God; and yet God giveth that name to the kings of the earth. For the signification of the word *person*, I shall expound it by and by in another place. Here ends his Lordship's School-argument; now let me come with my Scripture-argument. St. Paul, concerning Christ (Col. ii. 9) saith thus: *In him dwelleth all the fulness of the Godhead bodily*. This place Athanasius, a great and zealous doctor in the Nicene Council, and vehement enemy of Arius the heretic, who allowed Christ to be no otherwise God, than as men of excellent piety were so called, expoundeth thus: *The fulness of the Godhead dwelleth in him bodily*, (Greek $\sigma\omega\mu\alpha\tau\iota\kappa\omega\varsigma$), *id est* $\theta\epsilon\iota\kappa\omega\varsigma$, *id est*, *realiter*. So there is one Father for corporality, and that God was in Christ in such manner as body is in body. Again, there were in the primitive church a sort of heretics who maintained that Jesus Christ had not a true real body, but was only a

phantasm or spright, such as the Latins call *spectra*. Against the head of this sect, whose name I think was Apelles, Tertullian wrote a book, now extant amongst his other works, intituled *De Carne Christi*; wherein after he had spoken of the nature of phantasms, and showed that they had nothing of reality in them, he concludeth with these words, “whatsoever is not *body*, is *nothing*.” So here is on my side a plain text of Scripture, and two ancient and learned Fathers. Nor was this doctrine of Tertullian condemned in the Council of Nice; but the division of the divine substance into God the Father, God the Son, and God the Holy Ghost. For these words, *God has no parts*, were added, for explication of the word *consubstantial*, at the request of the dissenting Fathers, and are further explained both in Athanasius his creed, in these words, *not three Gods but one God*, and by the constant attribute ever since of the *individual* Trinity. The same words nevertheless do condemn the Anthropomorphites also; for though there appeared no Christians that professed that God had an organical body, and consequently that the persons were three individuals, yet the Gentiles were all Anthropomorphites, and there condemned by these words, *God has no parts*.

And thus I have answered his accusation concerning the eternity and existence of the Divine substance, and made it appear that in truth, the question between us, is whether God be a phantasm (*id est*, an idol of the fancy, which St. Paul saith is nothing) or a corporeal spirit, that is to say, something that has magnitude.

In this place I think it not amiss, leaving for a little while this theological dispute, to examine the signification of those words which have occasioned so much diversity of opinion in this kind of doctrine.

The word *substance*, in Greek ὑπόστασις, ὑποσταν, ὑποσταμενον, signify the same thing, namely, a ground, a base, any thing that has existence or subsistence *in itself*, anything that upholdeth that which else would fall, in which sense God is properly the hypostasis, base, and substance that upholdeth all the world, having subsistence not only *in himself*, but *from himself*; whereas other substances have their subsistence only in themselves, not from themselves. But metaphorically, faith is called (Heb. xi. 1) a substance, because it is the foundation or base of our hope; for faith failing, our hope falls. And (2 Cor. ix. 4) St. Paul having boasted of the liberal promise of the

Corinthians towards the Macedonians, calls that promise the ground, the hypostasis of that his boasting. And (Heb. i. 3) Christ is called the image of the substance (the hypostasis) of his Father, and for the proper and adequate signification of the word hypostasis, the Greek Fathers did always oppose it to apparition or phantasm; as when a man seeth his face in the water, his real face is called the hypostasis of the phantastic face in the water. So also in speaking, the thing understood or named is called hypostasis, in respect of the name; so also a body coloured is the hypostasis, substance and subject of the colour; and in like manner of all its other accidents. Essence and all other abstract names, are words artificial belonging to the art of logic, and signify only the manner how we consider the substance itself. And of this I have spoken sufficiently in my *Leviathan* (vol. III. [page 672](#)). *Body* (Latin, *corpus*, σῶμα) is that substance which hath magnitude indeterminate, and is the same with corporeal substance; but *a body* is that which hath magnitude determinate, and consequently is understood to be *totum* or *integrum aliquid*. *Pure* and *simple body*, is body of one and the same kind, in every part throughout; and if mingled with body of another kind, though the total be compounded or mixed, the parts nevertheless retain their simplicity, as when water and wine are mixed, the parts of both kinds retain their simplicity. For water and wine can not both be in one and the same place at once.

Matter is the same with *body*; but never without respect to a body which is made thereof. *Form* is the aggregate of all accidents together, for which we give the matter a new name; so *albedo*, *whiteness*, is the form of *album*, or *white body*. So also humanity is the essence of man, and Deity the essence of Deus.

Spirit is thin, fluid, transparent, invisible body. The word in Latin signifies breath, air, wind, and the like. In Greek πνεῦμα from πνέω, *spiro*, *flo*.

I have seen, and so have many more, two waters, one of the river, the other a mineral water, so like that no man could discern the one from the other by his sight; yet when they have been both put together, the whole substance could not by the eye be distinguished from milk. Yet we know that the one was not mixed with the other, so as every part of the one to be in every part of the other, for that is impossible, unless two bodies can be in the same place. How then could the change be

made in every part, but only by the activity of the mineral water, changing it every where to the sense, and yet not being every where, and in every part of the water? If then such gross bodies have so great activity, what shall we think of spirits, whose kinds be as many as there be kinds of liquor, and activity greater? Can it then be doubted, but that God, who is an infinitely fine Spirit, and withal intelligent, can make and change all species and kinds of body as he pleaseth? But I dare not say, that this is the way by which God Almighty worketh, because it is past my apprehension: yet it serves very well to demonstrate, that the omnipotence of God implieth no contradiction; and is better than by pretence of magnifying the fineness of the Divine substance, to reduce it to a spright or phantasm, which is nothing.

A *person* (Latin, *persona*) signifies an intelligent substance, that acteth any thing in his own or another's name, or by his own or another's authority. Of this definition there can be no other proof than from the use of that word, in such Latin authors as were esteemed the most skilful in their own language, of which number was Cicero. But Cicero, in an epistle to Atticus, saith thus: *Unus sustineo tres personas, mei, adversarii, et judicis*: that is, "I that am but one man, sustain three persons; mine own person, the person of my adversary, and the person of the judge." Cicero was here the substance intelligent, one man; and because he pleaded for himself, he calls himself his own person: and again, because he pleaded for his adversary, he says, he sustained the person of his adversary: and lastly, because he himself gave the sentence, he says, he sustained the person of the judge. In the same sense we use the word in English vulgarly, calling him that acteth by his own authority, his own person, and him that acteth by the authority of another, the person of that other. And thus we have the exact meaning of the word *person*. The Greek tongue cannot render it; for *πρόσωπον* is properly a face, and, metaphorically, a vizard of an actor upon the stage. How then did the Greek Fathers render the word *person*, as it is in the blessed Trinity? Not well. Instead of the word *person* they put *hypostasis*, which signifies substance; from whence it might be inferred, that the three persons in the Trinity are three Divine substances, that is, three Gods. The word *πρόσωπον* they could not use, because face and vizard are neither of them honourable attributes of God, nor explicative of the meaning of the Greek church. Therefore the

Latin (and consequently the English) church, renders *hypostasis* every where in Athanasius his creed by *person*. But the word *hypostatical union* is rightly retained and used by divines, as being the union of two hypostases, that is, of two substances or natures in the person of Christ. But seeing they also hold the soul of our Saviour to be a substance, which, though separated from his body, subsisted nevertheless in itself, and consequently, before it was separated from his body upon the cross, was a distinct nature from his body, how will they avoid this objection, that then Christ had three natures, three hypostases, without granting, that *his resurrection was a new vivification, and not a return of his soul out of Heaven into the grave*? The contrary is not determined by the church. Thus far in explication of the words that occur in this controversy. Now I return again to his Lordship's discourse.

J. D. When they have taken away all incorporeal spirits, what do they leave God himself to be? He who is the fountain of all being, from whom and in whom all creatures have their being, must needs have a real being of his own. And what real being can God have among bodies and accidents? For they have left nothing else in the universe. Then *T. H.* may move the same question of God, which he did of devils. *I would gladly know in what classes of entities, the Bishop ranketh God?* Infinite being and participated being are not of the same nature. Yet to speak according to human apprehension, (apprehension and comprehension differ much: *T. H.* confesseth that natural reason doth dictate to us, that God is infinite, yet natural reason cannot comprehend the infiniteness of God) I place him among incorporeal substances or spirits, because he hath been pleased to place himself in that rank, *God is a Spirit*. Of which place *T. H.* giveth his opinion, that it is unintelligible, and all others of the same nature, *and fall not under human understanding*.

They who deny all incorporeal substances, can understand nothing by God, but either nature, (not *naturam naturantem*, that is, a real author of nature, but *naturam naturatam*, that is, the orderly concurrence of natural causes, as *T. H.* seemeth to intimate,) or a fiction of the brain, without real being, cherished for advantage and politic ends, as a profitable error, howsoever dignified with the glorious title of *the eternal cause of all things*.

T. H. To his Lordship's question here: *What I leave God to be?* I answer, I leave him to be a most pure, simple, invisible spirit corporeal. By corporeal I mean a substance that has magnitude, and so mean all learned men, divines and others, though perhaps there be some common people so rude as to call nothing body, but what they can see and feel. To his second question: *What real being He can have amongst bodies and accidents?* I answer, the being of a spirit, not of a spright. If I should ask any the most subtile distinguisher, what middle nature there were between an infinitely subtile substance, and a mere thought or phantasm, by what name could he call it? He might call it perhaps an incorporeal substance; and so *incorporeal* shall pass for a middle nature between *infinitely subtile* and *nothing*, and be less subtile than infinitely subtile, and yet more subtile than a thought. It is granted, he says, that the nature of God is incomprehensible. Doth it therefore follow, that we may give to the Divine substance what negative name we please? Because he says, the whole Divine substance is here and there and every where throughout the world, and that the soul of a man is here and there and every where throughout man's body; must we therefore take it for a mystery of Christian religion, upon his or any other Schoolman's word, without the Scripture, which calls nothing a mystery but the incarnation of the eternal God? Or is incorporeal a mystery, when not at all mentioned in the Bible, but to the contrary it is written, *That the fulness of the Deity was bodily in Christ?* When the nature of the thing is incomprehensible, I can acquiesce in the Scripture: but when the signification of words is incomprehensible, I cannot acquiesce in the authority of a Schoolman.

J. D. We have seen what his principles are concerning the Deity, they are full as bad or worse concerning the Trinity. Hear himself: *A person is he that is represented as often as he is represented. And therefore God who has been represented, that is personated thrice, may properly enough be said to be three persons, though neither the word Person nor Trinity be ascribed to him in the Bible.* And a little after: *To conclude, the doctrine of the Trinity, as far as can be gathered directly from the Scripture, is in substance this, that the God who is always one and the same, was the person represented by Moses, the person represented by his Son incarnate, and the person represented by the apostles. As represented by the apostles, the holy spirit by which they spake is God.*

As represented by his Son, that was God and man, the Son is that God. As represented by Moses and the High-priests, the Father, that is to say, the Father of our Lord Jesus Christ, is that God. From whence we may gather the reason why those names, Father, Son, and Holy Ghost, in the signification of the Godhead, are never used in the Old Testament. For they are persons, that is, they have their names from representing, which could not be till divers persons had represented God, in ruling or in directing under him.

Who is so bold as blind Bayard? The emblem of a little boy attempting to lade all the water out of the sea with a cockle-shell, doth fit T. H. as exactly as if it had been shaped for him, who thinketh to measure the profound and inscrutable mysteries of religion, by his own silly, shallow conceits. What is now become of the great adorable mystery of the blessed undivided Trinity? It is shrunk into nothing. Upon his grounds there was a time when there was no Trinity: and we must blot these words out of our creed, *the Father eternal, the Son eternal, and the Holy Ghost eternal*: and these other words out of our Bibles, *Let us make man after our image*: unless we mean that this was a consultation of God with Moses and the apostles. What is now become of the eternal generation of the Son of God, if this sonship did not begin until about four thousand years after the creation were expired? Upon these grounds every king hath as many *persons*, as there be justices of peace and petty constables in his kingdom. Upon this account God Almighty hath as many *persons*, as there have been sovereign princes in the world since Adam. According to this reckoning each one of us, like so many Geryons, may have as many *persons* as we please to make procurations. Such bold presumption requireth another manner of confutation.

T. H. As for the words recited, I confess there is a fault in the ratiocination, which nevertheless his Lordship hath not discovered, but no impiety. All that he objecteth is, that it followeth hereupon, that there be as many persons of a king, as there be petty constables in his kingdom. And so there are, or else he cannot be obeyed. But I never said that a king, and every one of his persons, are the same substance. The fault I here made, and saw not, was this; I was to prove that it is no contradiction, as Lucian and heathen scoffers would have it, to say of God, he was one and three. I saw the true definition of the word *person*

would serve my turn in this manner; God, in his own person, both created the world, and instituted a church in Israel, using therein the ministry of Moses: the same God, in the person of his Son God and man, redeemed the same world, and the same church; the same God, in the person of the Holy Ghost, sanctified the same church, and all the faithful men in the world. Is not this a clear proof that it is no contradiction to say that God is three persons and one substance? And doth not the church distinguish the persons in the same manner? See the words of our catechism. Question. *What dost thou chiefly learn in these articles of thy belief?* Answer. *First, I learn to believe in God the Father, that hath made me and all the world; Secondly, in God the Son, who hath redeemed me and all mankind; Thirdly, in God the Holy Ghost, that hath sanctified me and all the elect people of God.* But at what time was the church sanctified? Was it not on the day of Pentecost, in the descending of the Holy Ghost upon the apostles? His Lordship all this while hath catched nothing. It is I that catched myself, for saying, instead of *by the ministry of Moses*, in the person of Moses. But this error I no sooner saw, than I no less publicly corrected than I had committed it, in my *Leviathan* converted into Latin, which by this time I think is printed beyond the seas with this alteration, and also with the omission of some such passages as strangers are not concerned in. And I had corrected this error sooner, if I had sooner found it. For though I was told by Dr. Cosins, now Bishop of Durham, that the place above-cited was not applicable enough to the doctrine of the Trinity, yet I could not in reviewing the same espy the defect, till of late, when being solicited from beyond sea, to translate the book into Latin, and fearing some other man might do it not to my liking, I examined this passage and others of the like sense more narrowly. But how concludes his Lordship out of this, that I put out of the creed these words, *the Father eternal, the Son eternal, the Holy Ghost eternal?* Or these words, *let us make man after our image*, out of the Bible? Which last words neither I nor Bellarmine put out of the Bible, but we both put them out of the number of good arguments to prove the Trinity; for it is no unusual thing in the Hebrew, as may be seen by Bellarmine's quotations, to join a noun of the plural number with a verb of the singular. And we may say also of many other texts of Scripture alleged to prove the Trinity, that they are not so firm as that high article

requireth. But mark his Lordship's Scholastic charity in the last words of this period: *such bold presumption requireth another manner of confutation*. This bishop, and others of his opinion, had been in their element, if they had been bishops in Queen Mary's time.

J. D. Concerning God the Son, forgetting what he had said elsewhere, where he calleth him *God and man*, and *the Son of God incarnate*, he doubteth not to say, that *the word* hypostatical *is canting*. As if the same person could be both God and man without a personal, that is, an hypostatical union of the two natures of God and man.

T. H. If Christian profession be (as certainly it is in England) a law; and if it be of the nature of a law to be made known to all men that are to obey it, in such manner as they may have no excuse for disobedience from their ignorance; then, without doubt, all words unknown to the people, and as to them insignificant, are canting. The word *substance* is understood by the vulgar well enough, when it is said of a body, but in other sense not at all, except for their riches. But the word *hypostatical* is understood only by those, and but few of those that are learned in the Greek tongue, and is properly used, as I have said before, of the union of the two natures of Christ in one person. So likewise *consubstantial* in the Nicene creed, is properly said of the Trinity. But to an Englishman that understands neither Greek nor Latin, and yet is as much concerned as his Lordship was, the word *hypostatical* is no less canting than *eternal now*.

J. D. He alloweth every man who is commanded by his lawful sovereign, *to deny Christ with his tongue before men*.

T. H. I allow it in some cases, and to some men, which his Lordship knew well enough, but would not mention. I alleged for it, in the place cited, both reason and Scripture, though his Lordship thought it not expedient to take notice of either. If it be true that I have said, why does he blame it? If false, why offers he no argument against it, neither from Scripture nor from reason? Or why does he not show that the text I cite is not applicable to the question, or not well interpreted by me? First, he barely cites it, because he thought the words would sound harshly, and make a reader admire them for impiety. But I hope I shall so well instruct my reader ere I leave this place, that this his petty art will have no effect. Secondly, the cause why he omitted my arguments was, that he could not answer them. Lastly, the cause why he urgeth neither

Scripture nor reason against it was, that he saw none sufficient. My argument from Scripture was this, (*Leviathan*, vol. III. p. 493) taken out of 2 Kings v. 17-19, where Naaman the Syrian saith to Elisha the prophet: *Thy servant will henceforth offer neither burnt-offering nor sacrifice to other Gods, but unto the Lord. In this thing the Lord pardon thy servant, that when my master goeth into the house of Rimmon to worship there, and he leaneth on my hand, and I bow myself in the house of Rimmon: when I bow myself in the house of Rimmon, the Lord pardon thy servant in this thing. And he said unto him, Go in peace.* What can be said to this? Did not Elisha say it from God? Or is not this answer of the prophet a permission? When St. Paul and St. Peter commanded the Christians of their time to obey their princes, which then were heathens and enemies of Christ, did they mean they should lose their lives for disobedience? Did they not rather mean they should preserve both their lives and their faith, believing in Christ as they did, by this denial of the tongue, having no command to the contrary? If in this kingdom a Mahometan should be made by terror to deny Mahomet and go to church with us, would any man condemn this Mahometan? A denial with the mouth may perhaps be prejudicial to the power of the church; but to retain the faith of Christ stedfastly in his heart, cannot be prejudicial to his soul that hath undertaken no charge to preach to wolves, whom they know will destroy them. About the time of the Council of Nice, there was a canon made (which is extant in the history of the Nicene Council) concerning those that being Christians had been seduced, not terrified, to a denial of Christ, and again repenting, desired to be readmitted into the church; in which canon it was ordained, that those men should be no otherwise readmitted than to be in the number of the catechised, and not to be admitted to the communion till a great many years' penitence. Surely the church then would have been more merciful to them that did the same upon terror of present death and torments.

Let us now see what his Lordship might, though but colourably, have alleged from Scripture against it. There be three places only that seem to favour his Lordship's opinion. The first is where Peter denied Christ, and weepeth. The second is, Acts v. 29: *Then Peter and the other Apostles answered and said, we ought to obey God rather than men.*

The third is, Luke xii. 9: *But he that denieth me before men, shall be denied before the angels of God.*

For answer to these texts, I must repeat what what I have written, and his Lordship read in my *Leviathan*, p. 656. *For an unlearned man that is in the power of an idolatrous king, or state, if commanded on pain of death to worship before an idol, doing it, he detesteth the idol in his heart, he doth well; though if he had the fortitude to suffer death, rather than worship it, he should do better. But if a pastor, who, as Christ's messenger, has undertaken to teach Christ's doctrine to all nations, should do the same, it were not only a sinful scandal in respect of other Christian men's consciences, but a perfidious forsaking of his charge.* In which words I distinguish between a pastor and one of the sheep of his flock. St. Peter sinned in denying Christ; and so does every pastor, that denieth Christ, having undertaken the charge of preaching the gospel in the kingdom of an infidel, where he could expect at the undertaking of his charge no less than death. And why, but because he violates his trust in doing contrary to his commission. St. Peter was an apostle of Christ, and bound by his voluntary undertaking of that office not only to confess Christ, but also to preach him before those infidels who, he knew, would like wolves devour him. And therefore, when Paul and the rest of the apostles were forbidden to preach Christ, they gave this answer, *We ought to obey God rather than men.* And it was to his disciples only which had undertaken that office, that Christ saith, *he that denieth me before men, shall be denied before the angels of God.* And so I think I have sufficiently answered this place, and showed that I do not allow the denying of Christ, upon any colour of torments, to his Lordship, nor to any other that has undertaken the office of a preacher. Which if he think right, he will perhaps in this case put himself into the number of those whom he calls merciful doctors: whereas now he extends his severity beyond the bounds of common equity. He has read Cicero, and perhaps this story in him. The senate of Rome would have sent Cicero to treat of peace with Marcus Antonius; but when Cicero had showed them the just fear he had of being killed by him, he was excused; and if they had forced him to it, and he by terror turned enemy to them, he had in equity been excusable. But his Lordship, I believe, did write this more valiantly than he would have acted it.

J. D. He deposeth Christ from his true kingly office, making his *kingdom not to commence or begin before the day of judgment. And the regimen, wherewith Christ governeth his faithful in this life, is not properly a kingdom, but a pastoral office, or a right to teach. And a little after, Christ had not kingly authority committed to him by his Father in this world, but only consiliary and doctrinal.*

T. H. How do I take away Christ's kingly office? He neither draws it by consequence from my words, nor offers any argument at all against my doctrine. The words he cites are in the contents of chap. xvii. De Cive (vol. ii). In the body of the chapter it is thus: *The time of Christ's being upon the earth is called, in Scripture, the regeneration often, but the kingdom never. When the Son of God comes in majesty, and all the angels with him, then he shall sit on the seat of majesty. My kingdom is not of this world. God sent not his Son that he should judge the world. I came not to judge the world, but to save the world. Man, who made me a judge or divider amongst you? Let thy kingdom come.* And other words to the same purpose. Out of which it is clear that Christ took upon him no regal power upon earth before his assumption. But at his assumption his Apostles asked him if he would then restore the kingdom to Israel, and he answered, it was not for them to know. So that hitherto Christ had not taken that office upon him, unless his Lordship think that the kingdom of God, and the kingdom of Christ, be two distinct kingdoms. From the Assumption ever since, all true Christians say daily in their prayers, *Thy kingdom come.* But his Lordship had perhaps forgot that. But when then beginneth Christ to be a king? I say it shall be then, when he comes again in majesty with all the angels. And even then he shall reign (as he is man) under his Father. For St. Paul saith (1 Cor. xv. 25, 26): *He must reign till he hath put all enemies under his feet; the last enemy that shall be destroyed, is death.* But when shall God the Father reign again? St. Paul saith in the same chapter, verse 28: *When all things shall be subdued unto him, then shall the Son also himself be subject unto him that put all things under him, that God may be all in all.* And verse 24: *Then cometh the end, when he shall have delivered up the kingdom to God, even the Father; when he shall have put down all rule, authority, and power.* This is at the resurrection. And by this it is manifest, that his Lordship was not so well versed in Scripture as he ought to have been.

J. D. He taketh away his priestly or propitiatory office. And although this act of our redemption be not always in Scripture called a sacrifice and oblation, but sometimes a price; yet by price we are not to understand anything, by the value whereof he could claim right to a pardon for us from his offended Father, but that price which God the Father was pleased in mercy to demand. And again: Not that the death of one man, though without sin, can satisfy for the offences of all men in the rigour of justice, but in the mercy of God, that ordained such sacrifices for sin, as he was pleased in mercy to accept. He knoweth no difference between one who is mere man, and one who was both God and man; between a Levitical sacrifice, and the all-sufficient sacrifice of the cross; between the blood of a calf, and the precious blood of the Son of God.

T. H. Yes, I know there is a difference between blood and blood, but not any such as can make a difference in the case here questioned. Our Saviour's blood was most precious, but still it was human blood; and I hope his Lordship did never think otherwise, or that it was not accepted by his Father for our redemption.

J. D. And touching the prophetical office of Christ, I do much doubt whether he do believe in earnest, that there is any such thing as prophecy in the world. He maketh very little difference between a prophet and a madman, and a demoniac. And if there were nothing else, says he, that bewrayed their madness, yet that very arrogating such inspiration to themselves is argument enough. He maketh the pretence of inspiration in any man to be, and always to have been, an opinion pernicious to peace, and tending to the dissolution of all civil government. He subjecteth all prophetical revelations from God, to the sole pleasure and censure of the sovereign prince, either to authorize them, or to exauctorate them. So as two prophets prophesying the same thing at the same time, in the dominions of two different princes, the one shall be a true prophet, the other a false. And Christ, who had the approbation of no sovereign prince, upon his grounds, was to be reputed a false prophet everywhere. Every man therefore ought to consider who is the sovereign prophet; that is to say, who it is that is God's vicegerent upon earth, and hath next under God the authority of governing Christian men; and to observe for a rule that doctrine, which in the name of God he hath commanded to be taught, and thereby to

examine and try out the truth of those doctrines which pretended prophets, with miracle or without, shall at any time advance, &c. And if he disavow them, then no more to obey their voice; or if he approve them, then to obey them as men, to whom God hath given a part of the Spirit of their sovereign. Upon his principles the case holdeth as well among Jews and Turks and Heathens, as Christians. Then he that teacheth transubstantiation in France, is a true prophet; he that teacheth it in England, a false prophet; he that blasphemeth Christ in Constantinople, a true prophet; he that doth the same in Italy, a false prophet. Then Samuel was a false prophet to contest with Saul, a sovereign prophet: so was the man of God, who submitted not to the more Divine and prophetic spirit of Jeroboam. And Elijah for reproving Ahab. Then Micaiah had but his deserts, to be clapped up in prison, and fed with bread of affliction, and water of affliction, for daring to contradict *God's vicegerent upon earth*. And Jeremiah was justly thrown into a dungeon, for prophesying against Zedekiah his liege lord. If his principles were true, it were strange indeed, that none of all these princes, nor any other that ever was in the world, should understand their own privileges. And yet more strange, that God Almighty should take the part of such rebellious prophets, and justify their prophecies by the event, if it were true that *none but the sovereign in a Christian* (the reason is the same for Jewish) *commonwealth, can take notice, what is or what is not the word of God.*

T. H. To remove his Lordship's doubt in the first place, I confess there was true prophesy and true prophets in the church of God, from Abraham down to our Saviour, the greatest prophet of all, and the last of the Old Testament, and first of the New. After our Saviour's time, till the death of St. John the apostle, there were true prophets in the church of Christ, prophets to whom God spake supernaturally, and testified the truth of their mission by miracles. Of those that in the Scripture are called prophets without miracles, (and for this cause only, that they spake in the name of God to men, and in the name of men to God), there are, have been, and shall be in the church, innumerable. Such a prophet was his Lordship, and such are all pastors in the Christian church. But the question here is of those prophets that from the mouth of God foretell things future, or do other miracle. Of this kind I deny there has been any since the death of St. John the Evangelist. If any

man find fault with this, he ought to name some man or other, whom we are bound to acknowledge that they have done a miracle, cast out a devil, or cured any disease by the sole invocation of the Divine Majesty. We are not bound to trust to the legend of the Roman saints, nor to the history written by Sulpitius of the life of St. Martin, or to any other fables of the Roman clergy, nor to such things as were pretended to be done by some divines here in the time of king James. Secondly, he says I make little difference between a *prophet*, and a *madman* or *demoniac*; to which I say, he accuses me falsely. I say only thus much, *that I see nothing at all in the Scripture that requireth a belief, that demoniacs were any other thing than madmen.* And this is also made very probable out of Scripture, by a worthy divine, Mr. Mede. But concerning prophets, I say only that the Jews, both under the Old Testament and under the New, took them to be all one with *madmen* and *demoniacs*; and prove it out of Scripture by many places, both of the Old and New Testament. Thirdly, that the pretence or arrogating to one's-self Divine inspiration, is argument enough to show a man is *mad*, is my opinion; but his Lordship understands not *inspiration* in the same sense that I do. He understands it properly of God's breathing into a man, or pouring into him the Divine substance, or Divine graces. And in that sense, he that arrogateth inspiration unto himself, neither understands what he saith, nor makes others to understand him: which is properly madness in some degree. But I understand *inspiration* in the Scripture metaphorically, for God's guidance of our minds to truth and piety. Fourthly, whereas he says, I make the pretence of *inspiration* to be pernicious to peace; I answer, that I think his Lordship was of my opinion; for he called those men, which in the late civil war pretended the spirit, and new light, and to be the only faithful men, *fanatics*; for he called them in his book, and did call them in his life-time, *fanatics*. And what is a *fanatic* but a *madman*? And what can be more pernicious to peace, than the revelations that were by these *fanatics* pretended? I do not say there were not doctrines of other men, not called *fanatics*, as pernicious to peace as their's were, and in great part a cause of those troubles. Fifthly, from that I make prophetic revelations subject to the examination of the lawful sovereign, he inferreth, that two prophets prophecy the same thing at the same time, in the dominions of two different princes, the one shall be a true prophet, the other a false. This

consequence is not good: for seeing they teach different doctrines, they cannot both of them confirm their doctrine with miracles. But this I prove, in the place (vol. iii. p. 426) he citeth, that whether either of their doctrines shall be taught publicly or not, it is in the power of the sovereign of the place only to determine. Nay, I say now further, if a prophet come to any private man in the name of God, that man shall be judge whether he be a true prophet or not, before he obey him. See 1 John, iv. 1. Sixthly, whereas he says that, upon my grounds, Christ was to be reputed a false prophet every where, because his doctrine was received no where; his Lordship had read my book more negligently, than was fit for one that would confute it. My ground is this; that Christ in right of his Father was king of the Jews, and consequently supreme prophet, and judge of all prophets. What other princes thought of his prophesies, is nothing to the purpose. I never said that princes can make doctrines or prophesies true or false; but I say every sovereign prince has a right to prohibit the public teaching of them, whether false or true. But what an oversight is it in a divine, to say that Christ had the approbation of no sovereign prince, when he had the approbation of God, who was king of the Jews, and Christ his viceroy, and the whole Scripture written (John, xx. 31) to prove it; when his miracles declared it; when Pilate confessed it; and when the apostles' office was to proclaim it? Seventhly, if we must not consider, in points of Christian faith, who is the sovereign prophet, that is, who is next under Christ our supreme head and governor, I wish his Lordship would have cleared, ere he died, these few questions. Is there not need of some judge of controverted doctrines? I think no man can deny it, that has seen the rebellion that followed the controversy here between Gomar and Arminius. There must therefore be a judge of doctrines. But, says the Bishop, not the king. Who then? Shall Dr. Bramhall be this judge? As profitable an office as it is, he was more modest than to say that. Shall a private layman have it? No man ever thought that. Shall it be given to a Presbyterian minister? No; it is unreasonable. Shall a synod of Presbyterians have it? No; for most of the Presbyters in the primitive church were undoubtedly subordinate to bishops, and the rest were bishops. Who then? A synod of bishops? Very well. His Lordship being too modest to undertake the whole power, would have been contented with the six-and-twentieth part. But, suppose it in a synod of bishops,

who shall call them together? The king. What if he will not? Who should excommunicate him, or if he despise your excommunication, who shall send forth a writ of *significavit*? No; all this was far from his Lordship's thoughts. The power of the clergy, unless it be upheld legally by the king, or illegally by the multitude, amounts to nothing. But for the multitude, Suarez and the Schoolmen will never gain them, because they are not understood. Besides there be very few bishops that can act a sermon, which is a puissant part of *rhetoric*, so well as divers Presbyterians, and fanatic preachers can do. I conclude therefore, that his Lordship could not possibly believe that the supreme judicature in matter of religion could any where be so well placed as in the head of the church, which is the king. And so his Lordship and I think the same thing; but because his Lordship knew not how to deduce it, he was angry with me because I did it. He says, further, that *by my principles, he that blasphemeth Christ at Constantinople, is a true prophet*: as if a man that blasphemeth Christ, to approve his blasphemy can procure a miracle. For by my principles, no man is a prophet whose prophesy is not confirmed by God with a miracle. In the last place, out of this, that the lawful sovereign is the judge of prophesy, he deduces that then Samuel and other prophets were false prophets, that contested with their sovereigns. As for Samuel, he was at that time the judge, that is to say, the sovereign prince in Israel, and so acknowledged by Saul. For Saul received the kingdom from God himself, who had right to give and take it, by the hands of Samuel. And God gave it to himself only, and not to his seed; though if he had obeyed God, he would have settled it also upon his seed. The commandment of God was, that he should not spare Agag. Saul obeyed not. God therefore sent to Samuel to tell him that he was rejected. For all this, Samuel went not about to resist Saul. That he caused Agag to be slain, was with Saul's consent. Lastly, Saul confesses his sin. Where is this contesting with Saul? After this God sent Samuel to anoint David, not that he should depose Saul, but succeed him, the sons of Saul having never had a right of succession. Nor did ever David make war on Saul, or so much as resist him, but fled from his persecution. But when Saul was dead, then indeed he claimed his right against the house of Saul. What rebellion or resistance could his Lordship find here, either in Samuel or in David? Besides, all these transactions are supernatural, and oblige not to imitation. Is there

any prophet or priest now, that can set up in England, Scotland, or Ireland, another king by pretence of prophecy or religion? What did Jeroboam to the man of God (1 Kings xiii.) that prophesied against the altar in Bethel without first doing a miracle, but offer to seize him for speaking, as he thought, rashly of the king's act; and after the miraculous withering of his hand, desire the prophet to pray for him? The sin of Jeroboam was not his distrust of the prophet, but his idolatry. He was the sole judge of the truth which the man of God uttered against the altar, and the process agreeable to equity. What is the story of Elijah and Ahab (1 Kings xviii.), but a confirmation of the right even of Ahab to be judge of prophecy? Elijah told Ahab, he had transgressed the commandment of God. So may any minister now tell his sovereign, so he do it with sincerity and discretion. Ahab told Elijah he troubled Israel. Upon this controversy Elijah desired trial. Send, saith he, and assemble all Israel; assemble also the prophets of Baal, four hundred and fifty. Ahab did so. The question is stated before the people thus: if the Lord be God, follow him; but if Baal, follow him. Then upon the altars of God and Baal were laid the wood and the bullocks; and the cause was to be judged by fire from heaven, to burn the sacrifices; which Elijah procured, the prophets of Baal could not procure. Was not this cause here pleaded before Ahab? The sentence of Ahab is not required; for Elijah from that time forward was no more persecuted by Ahab, but only by his wife, Jezabel. The story of Micaiah (2 Chron. xviii.) is this. Ahab King of Israel consulted the prophets, four hundred in number, whether he should prosper or not, in case he went with Jehoshaphat, king of Judah, to fight against the Syrians at Ramoth-gilead. The prophet Micaiah was also called, and both the kings, Ahab and Jehoshaphat, sat together to hear what they should prophecy. There was no miracle done. The four hundred pronounced victory; Micaiah alone the contrary. The king was judge, and most concerned in the event; nor had [he](#) received any revelation in the business. What could he do more discreetly than to follow the counsel of four hundred, rather than of one man? But the event was contrary; for he was slain; but not for following the counsel of the four hundred, but for his murder of Naboth, and his idolatry. It was also a sin in him, that he afflicted Micaiah in prison. But an unjust judgment does not take away from any king his right of judicature. Besides, what is all this, or that of Jeremiah

which he cites last, to the question of who is judge of Christian doctrine?

J. D. Neither doth he use God the Holy Ghost, more favourably than God the Son. Where St. Peter saith, holy men of God spake as they were moved by the Holy Spirit; he saith, *By the spirit, is meant the voice of God in a dream or vision supernatural*; which dreams or visions, he maketh to be no more than *imaginations which they had in their sleep, or in an extasy, which in every true prophet were supernatural, but in false prophets were either natural or feigned*, and more likely to be false than true. To say, *God hath spoken to him in a dream, is no more than to say, he dreamed that God spake to him, &c.* To say, *he hath seen a vision or heard a voice, is to say, that he hath dreamed between sleeping and waking*. So St. Peter's Holy Ghost, is come to be their own imaginations, which might be either feigned, or mistaken, or true. As if the Holy Ghost did enter only at their eyes, and at their ears, not into their understandings, nor into their minds; or as if the Holy Ghost did not seal unto their hearts the truth and assurance of their prophecies. Whether a new light be infused into their understandings, or new graces be inspired into their heart, they are wrought, or caused, or created immediately by the Holy Ghost; and so are his *imaginations*, if they be supernatural.

T. H. For the places of my *Leviathan* he cites, they are all, as they stand, both true and clearly proved. The setting of them down by fragments is no refutation; nor offers he any arguments against them. His consequences are not deduced. I never said that the Holy Ghost was an imagination, or a dream, or a vision, but that the Holy Ghost spake most often in the Scripture by dreams and visions supernatural. The next words of his, *as if the Holy Ghost did enter only at their eyes, and at their ears, not into their understandings, nor into their minds*, I let pass, because I cannot understand them. His last words, *Whether new light, &c.* I understand and approve.

J. D. But he must needs fall into these absurdities, who maketh but a jest of inspiration. *They who pretend Divine inspiration to be a supernatural entering of the Holy Ghost into a man, are, as he thinks, in a very dangerous dilemma; for if they worship not the men whom they conceive to be inspired, they fall into impiety; and if they worship them, they commit idolatry.* So mistaking the Holy Ghost to be

corporeal, something that is blown into a man, and the graces of the Holy Ghost to be corporeal graces. And the words, *inpoured or infused virtue*, and, *inblown or inspired virtue*, are as absurd and as insignificant, as a round quadrangle. He reckons it as a common error, that *faith and sanctity are not attained by study and reason, but by supernatural inspiration or infusion*. And layeth this for a firm ground; *faith and sanctity are indeed not very frequent, but yet they are not miracles, but brought to pass by education, discipline, correction, and other natural ways*. I would see the greatest Pelagian of them all, fly higher.

T. H. I make here no jest of inspiration. Seriously, I say, that in the proper signification of the words *inspiration* and *infusion*, to say virtue is inspired, or infused, is as absurd as to say a quadrangle is round. But metaphorically, for God's bestowing of faith, grace, or other virtue, those words are intelligible enough.

J. D. Why should he trouble himself about the Holy Spirit, who acknowledgeth no spirit, but either a subtle fluid body, or a ghost, or other idol or phantasm of the imagination; who knoweth no inward grace or intrinsical holiness? *Holy is a word which in God's kingdom answereth to that, which men in their kingdoms use to call public, or the king's*. And again, *wheresoever the word, holy, is taken properly, there is still something signified of propriety gotten by consent*. His holiness is a relation, not a quality; for inward sanctification, or real infused holiness, (in respect whereof the third person is called the Holy Ghost, because he is not only holy in himself, but also maketh us holy), he is so great a stranger to it, that he doth altogether deny it, and disclaim it.

T. H. The word *holy* I had defined in the words which his Lordship here sets down, and by the use thereof in the Scripture made it manifest, that that was the true signification of the word. There is nothing in learning more difficult than to determine the signification of words. That difficulty excuses him. He says that *holiness*, in my sense, is a relation, not a quality. All the learned agree that quality is an accident: so that in attributing to God *holiness*, as a quality, he contradicts himself. For he has in the beginning of this his discourse denied, and rightly, that any accident is in God; saying, whatsoever is in God is the Divine substance. He affirms also, that to attribute any

accident to God, is to deny the simplicity of the Divine substance. And thus his Lordship makes God, as I do, a corporeal spirit. Both here, and throughout, he discovers so much ignorance, as had he charged me with error only, and not with atheism, I should not have thought it necessary to answer him.

J. D. We are taught in our creed to believe the catholic or universal church. But *T. H.* teacheth us the contrary: *That if there be more Christian churches than one, all of them together are not one church personally.* And more plainly: *Now if the whole number of Christians be not contained in one commonwealth, they are not one person, nor is there an universal church, that hath any authority over them.* And again: *The universal church is not one person, of which it can be said, that it hath done, or decreed, or ordained, or excommunicated, or absolved.* This doth quite overthrow all the authority of general councils.

All other men distinguish between the church and the commonwealth; only *T. H.* maketh them to be one and the same thing. *The commonwealth of Christian men, and the church of the same, are altogether the same thing, called by two names for two reasons. For the matter of the church and of the commonwealth is the same, namely, the same Christian men; and the form is the same, which consisteth in the lawful power of convocating them.* And hence he concludeth, that every *Christian commonwealth is a church endowed with all spiritual authority.* And yet more fully: *The church if it be one person, is the same thing with the commonwealth of Christians; called a commonwealth, because it consisteth of men united in one person their sovereign; and a church, because it consisteth in Christian men united in one Christian sovereign.* Upon which account there was no Christian church in these parts of the world, for some hundreds of years after Christ, because there was no Christian sovereign.

T. H. For answer to this period, I say only this; that taking the church, as I do, in all those places, for a company of Christian men on earth incorporated into one person, that can speak, command, or do any act of a person, all that he citeth out of what I have written is true; and that all private conventicles, though their belief be right, are not properly called churches; and that there is not any one universal church here on earth, which is a person indued with authority universal to govern all

Christian men on earth, no more than there is one universal sovereign prince or state on earth, that hath right to govern all mankind. I deny also that the whole clergy of a Christian kingdom or state being assembled, are the representative of that church further than the civil laws permit; or can lawfully assemble themselves, unless by the command or by the leave of the sovereign civil power. I say further, that the denial of this point tendeth in England towards the taking away of the king's supremacy in causes ecclesiastical. But his Lordship has not here denied any thing of mine, because he has done no more but set down my words. He says further, that this doctrine destroys the authority of all general councils; which I confess. Nor hath any general council at this day in this kingdom the force of a law, nor ever had, but by the authority of the king.

J. D. Neither is he more orthodox concerning the holy Scriptures: *hitherto*, that is, for the books of Moses, *the power of making the Scripture canonical, was in the civil sovereign*. The like he saith of the Old Testament, made canonical by Esdras. And of the New Testament, that *it was not the apostles which made their own writings canonical, but every convert made them so to himself*: yet with this restriction, that *until the sovereign ruler had prescribed them, they were but counsel and advice, which whether good or bad, he that was counselled might without injustice refuse to observe, and being contrary to the laws established, could not without injustice observe*. He maketh the primitive Christians to have been in a pretty condition. Certainly the gospel was contrary to the laws then established. But most plainly, *The word of the interpreter of the Scripture is the word of God*. And the same is *the interpreter of the Scripture, and the sovereign judge of all doctrines*, that is, the sovereign magistrate, *to whose authority we must stand no less, than to theirs, who at first did commend the Scripture to us for the canon of faith*. Thus if Christian sovereigns, of different communications, do clash one with another, in their interpretation, or misinterpretation of Scripture, as they do daily, then the word of God is contradictory to itself; or that is the word of God in one commonwealth, which is the word of the Devil in another commonwealth. And the same thing may be true, and not true at the same time: which is the peculiar privilege of T. H. to make contradictories to be true together.

T. H. There is no doubt but by what authority the Scripture or any other writing is made a law, by the same authority the Scriptures are to be interpreted, or else they are made law in vain. But to obey is one thing, to believe is another; which distinction perhaps his Lordship never heard of. To obey is to do or forbear as one is commanded, and depends on the will; but to believe, depends not on the will, but on the providence and guidance of our hearts that are in the hands of God Almighty. Laws only require obedience; belief requires teachers and arguments drawn either from reason, or from some thing already believed. Where there is no reason for our belief, there is no reason we should believe. The reason why men believe, is drawn from the authority of those men whom we have no just cause to mistrust, that is, of such men to whom no profit accrues by their deceiving us, and of such men as never used to lie, or else from the authority of such men whose promises, threats, and affirmations, we have seen confirmed by God with miracles. If it be not from the king's authority that the Scripture is law, what other authority makes it law? Here some man being of his Lordship's judgment, will perhaps laugh and say, it is the authority of God that makes them law. I grant that. But my question is, on what authority they believe that God is the author of them? Here his Lordship would have been at a nonplus, and turning round, would have said the authority of the Scripture makes good that God is their author. If it be said we are to believe the Scripture upon the authority of the universal church, why are not the books we call Apocrypha the word of God as well as the rest? If this authority be in the church of England, then it is not any other than the authority of the head of the church, which is the king. For without the head the church is mute. The authority therefore is in the king; which is all that I contended for in this point. As to the laws of the Gentiles, concerning religion in the primitive times of the church, I confess they were contrary to Christian faith. But none of their laws, nor terrors, nor a man's own will, are able to take away faith, though they can compel to an external obedience; and though I may blame the *Ethnic* princes for compelling men to speak what they thought not, yet I absolve not all those that have had the power in Christian churches from the same fault. For I believe, since the time of the first four general councils, there have been more Christians burnt and killed in the Christian church by ecclesiastical

authority, than by the heathen emperors' laws, for religion only without sedition. All that the Bishop does in this argument is but a heaving at the King's supremacy. Oh, but, says he, if two kings interpret a place of Scripture in contrary senses, it will follow that both senses are true. It does not follow. For the interpretation, though it be made by just authority, must not therefore always be true. If the doctrine in the one sense be necessary to salvation, then they that hold the other must die in their sins, and be damned. But if the doctrine in neither sense be necessary to salvation, then all is well, except perhaps that they will call one another atheists, and fight about it.

J. D. All the power, virtue, use, and efficacy, which he ascribeth to the holy sacraments, is to be *signs or commemorations*. As for any sealing, or confirming, or conferring of grace, he acknowledged! nothing. The same he saith particularly of baptism: upon which grounds a cardinal's red hat, or a serjeant-at-arms his mace, may be called sacraments as well as baptism, or the holy eucharist, if they be only signs and commemorations of a benefit. If he except, that baptism and the eucharist are of Divine institution; but a cardinal's red hat or a serjeant-at-arms his mace are not: he saith truly, but nothing to his advantage or purpose, seeing he deriveth all the authority of the word and sacraments, in respect of subjects, and all our obligation to them, from the authority of the sovereign magistrate, without which these words, *Repent and be baptized in the name of Jesus*, are but counsel, no command. And so a serjeant-at-arms his mace, and baptism, proceed both from the same authority. And this he saith upon this silly ground, *that nothing is a command, the performance whereof tendeth to our own benefit*. He might as well deny the Ten Commandments to be commands, because they have an advantageous promise annexed to them, *Do this and thou shalt live*; and *cursed is every one that continueth not in all the words of this law to do them*.

T. H. Of the sacraments I said no more, than that they are *signs or commemorations*. He finds fault that I add not *seals, confirmations*, and that they *confer grace*. First, I would have asked him, if a seal be any thing else besides a sign, whereby to remember somewhat, as that we have promised, accepted, acknowledged, given, undertaken somewhat. Are not other *signs*, though without a *seal*, of force sufficient to convince me or oblige me? A writing obligatory, or release, signed only

with a man's name, is as obligatory as a bond signed and sealed, if it be sufficiently proved, though peradventure it may require a longer process to obtain a sentence; but his Lordship I think knew better than I do the force of bonds and bills; yet I know this, that in the court of heaven there is no such difference between saying, signing, and sealing, as his Lordship seemeth here to pretend. I am baptized for a commemoration that I have enrolled myself. I take the sacrament of the Lord's Supper to commemorate that Christ's body was broken, and his blood shed for my redemption. What is there more intimated concerning the nature of these sacraments, either in the Scripture or in the book of Common Prayer? Have bread and wine and water in their own nature, any other quality than they had before the consecration? It is true that the consecration gives these bodies a new relation, as being a giving and dedicating of them to God, that is to say a making of them holy, not a changing of their quality. But as some silly young men returning from France affect a broken English, to be thought perfect in the French language; so his Lordship, I think, to seem a perfect understander of the unintelligible language of the Schoolmen, pretends an ignorance of his mother-tongue. He talks here of *command* and *counsel*, as if he were no Englishman, nor knew any difference between their significations. What Englishman, when he commandeth, says more than, *Do this*; yet he looks to be obeyed, if obedience be due unto him. But when he says, *Do this, and thou shalt have such or such a reward*, he encourages him, or advises him, or bargains with him; but commands him not. Oh, the understanding of a Schoolman!

J. D. Sometimes he is for holy orders, and giveth to the pastors of the church the right of ordination and absolution, and infallibility, too much for a particular pastor, or the pastors of one particular church. *It is manifest, that the consecration of the chiefest doctors in every church, and imposition of hands, doth pertain to the doctors of the same church. And, it cannot be doubted of, but the power of binding and loosing was given by Christ to the future pastors, after the same manner as to his present apostles. And, our Saviour hath promised this infallibility in those things which are necessary to salvation, to his apostles, until the day of judgment, that is to say, to the apostles, and pastors to be consecrated by the apostles successively, by the imposition of hands.*

But at other times he casteth all this meal down with his foot. *Christian sovereigns are the supreme pastors, and the only persons whom Christians now hear speak from God, except such as God speaketh to in these days supernaturally.* What is now become of the promised infallibility? And, *it is from the civil sovereign that all other pastors derive their right of teaching, preaching, and all other functions pertaining to that office; and they are but his ministers in the same manner as the magistrates of towns, or judges in courts of justice, and commanders of armies.* What is now become of their ordination? Magistrates, judges, and generals, need no precedent qualifications. He maketh *the pastoral authority of sovereigns to be jure divino, of all other pastors jure civili:* he addeth, *neither is there any judge of heresy among subjects, but their own civil sovereign.*

Lastly, *the church excommunicateth no man but whom she excommunicateth by the authority of the prince.* And, *the effect of excommunication hath nothing in it, neither of damage in this world, nor terror upon an apostate, if the civil power did persecute or not assist the church: and in the world to come, leaves them in no worse estate, than those who never believed. The damage rather redoundeth to the church. Neither is the excommunication of a Christian subject, that obeyeth the laws of his own sovereign, of any effect.* Where is now their power of binding and loosing?

T. H. Here his Lordship condemneth, first my too much kindness to the pastors of the church; as if I ascribed infallibility to every particular minister, or at least to the assembly of the pastors of a particular church. But he mistakes me; I never meant to flatter them so much. I say only that the ceremony of consecration, and imposition of hands, belongs to them; and that also no otherwise than as given them by the laws of the commonwealth. The bishop consecrates, but the king both makes him bishop and gives him his authority. The head of the church not only gives the power of consecration, dedication, and benediction, but may also exercise the act himself if he please. Solomon did it; and the book of canons says, that the King of England has all the right that any good king of Israel had; it might have added, that any other king or sovereign assembly had in their own dominions. I deny that any pastor or any assembly of pastors in any particular church, or all the churches on earth though united, are infallible: yet I say, the pastors of a Christian

church assembled are, in all such points as are *necessary to salvation*. But about what points are *necessary to salvation*, he and I differ. For I, in the forty-third chapter of my *Leviathan*, have proved that this article, *Jesus is the Christ*, is the *unum necessarium*, the only article necessary to salvation; to which his Lordship hath not offered any objection. And he, it seems, would have necessary to salvation every doctrine he himself thought so. Doubtless in this article, *Jesus is the Christ*, every church is infallible; for else it were no church. Then he says, I overthrow this again by saying that Christian sovereigns are the *supreme pastors*, that is, heads of their own churches; *That they have their authority jure divino; that all other pastors have it jure civili*. How came any Bishop to have authority over me, but by letters patent from the king? I remember a parliament wherein a bishop, who was both a good preacher and a good man, was blamed for a book he had a little before published in maintenance of the *jus divinum* of bishops; a thing which before the reformation here, was never allowed them by the pope. Two *jus divinums* cannot stand together in one kingdom. In the last place he mislikes that the church should excommunicate by authority of the king, that is to say, by authority of the head of the church. But he tells not why. He might as well dislike that the magistrates of the realm should execute their offices by the authority of the head of the realm. His Lordship was in a great error, if he thought such encroachments would add any thing to the wealth, dignity, reverence, or continuance of his order. They are pastors of pastors, but yet they are the sheep of him that is on earth their sovereign pastor, and he again a sheep of that supreme pastor which is in heaven. And if they did their pastoral office, both by life and doctrine, as they ought to do, there could never arise any dangerous rebellion in the land. But if the people see once any ambition in their teachers, they will sooner learn that, than any other doctrine; and from ambition proceeds rebellion.

J. D. It may be some of T. H. his disciples desire to know what hopes of heavenly joys they have upon their master's principles. They may hear them without any great contentment: *There is no mention in Scripture, nor ground in reason, of the cælum empyræum*, that is, the heaven of the blessed, where the saints shall live eternally with God. And again, *I have not found any text that can probably be drawn to prove any ascension of the saints into heaven, that is to say, into any*

cælum empyræum. But he concludeth positively, that *Salvation shall be upon earth, when God shall reign at the coming of Christ in Jerusalem*. And again, *In short, the kingdom of God is a civil kingdom, &c.* called also *the kingdom of heaven, and the kingdom of glory*. All the Hobbians can hope for, is, to be restored to the same condition which Adam was in before his fall. So saith T. H. himself: *From whence may be inferred, that the elect, after the resurrection, shall be restored to the estate wherein Adam was before he had sinned*. As for the beatifical vision, he defineth it to be a word unintelligible.

T. H. This *cælum empyræum* for which he pretendeth so much zeal, where is it in the Scripture, where in the book of Common Prayer, where in the canons, where in the homilies of the church of England, or in any part of our religion? What has a Christian to do with such language? Nor do I remember it in Aristotle. Perhaps it may be in some Schoolman or commentator on Aristotle, and his Lordship makes it in English *the heaven of the blessed*, as if *empyræum* signified *that which belongs to the blessed*. St. Austin says better; that after the day of judgment all that is not heaven shall be hell. Then for *beatifical vision*, how can any man understand it, that knows from the Scripture that no man ever saw or can see God. Perhaps his Lordship thinks that the happiness of the life to come is not real, but a vision. As for that which I say (*Leviathan*, p. 625), I have answered to it already.

J. D. But considering his other principles, I do not marvel much at his extravagance in this point. To what purpose should a *cælum empyræum*, or heaven of the blessed, serve in his judgment, who maketh the blessed angels that are the inhabitants of that happy mansion, to be either idols of the brain, that is in plain English, nothing, or thin, subtile, fluid bodies, destroying the angelical nature. *The universe being the aggregate of all bodies, there is no real part thereof that is not also body*. And elsewhere, *Every part of the universe is body, and that which is not body, is no part of the universe*. And because the universe is all, that which is no part of it is nothing, and consequently nowhere. How? By this doctrine he maketh not only the angels, but God himself to be nothing. Neither doth he salve it at all, by supposing erroneously angels to be corporeal spirits, and by attributing the name of incorporeal spirit to God, as being a name of more honour, in whom we consider not what attribute best expresseth his nature, which is

incomprehensible, but what best expresseth our desire to honour him. Though we be not able to comprehend perfectly what God is, yet we are able perfectly to comprehend what God is not, that is, he is not imperfect, and therefore he is not finite, and consequently he is not corporeal. This were a trim way to honour God indeed, to honour him with a lie. If this that he says here be true, that *every part of the universe is a body, and whatsoever is not a body is nothing*, then, by this doctrine, if God be not a body, God is nothing: not an incorporeal spirit, but *one of the idols of the brain*, a mere nothing, though they think they dance under a net, and have the blind of God's incomprehensibility between them and discovery.

T. H. This of *incorporeal substance* he urged before, and there I answered it. I wonder he so often rolls the same stone. He is like Sisyphus in the poet's hell, that there rolls a heavy stone up a hill, which no sooner he brings to day-light, than it slips down again to the bottom, and serves him so perpetually. For so his Lordship rolls this and other questions with much ado, till they come to the light of Scripture, and then they vanish; and he vexing, sweating, and railing, goes to it again, to as little purpose as before. From that I say of the universe, he infers, that I make God to be nothing: but infers it absurdly. He might indeed have inferred that I make him a corporeal, but yet a pure spirit. I mean by the universe, the aggregate of all things that have being in themselves; and so do all men else. And because God has a being, it follows that he is either the whole universe, or part of it. Nor does his Lordship go about to disprove it, but only seems to wonder at it.

J. D. To what purpose should a *cælum empyræum* serve in his judgment, who denieth the immortality of the soul? *The doctrine is now, and hath been a long time, far otherwise; namely, that every man hath eternity of life by nature, inasmuch as his soul is immortal.* Who supposeth that *when a man dieth, there remaineth nothing of him but his carcase*? Who maketh the word *soul* in Holy Scripture to signify always either the life, or the living creature; and expoundeth the casting of body and soul into hell-fire, to be *the casting of body and life into hell-fire*? Who maketh this orthodox truth, that the souls of men are substances distinct from their bodies, to be *an error contracted by the contagion of the demonology of the Greeks, and a window that gives*

entrance to the dark doctrine of eternal torments? Who expoundeth these words of Solomon (*Then shall the dust return to the earth as it was, and the spirit shall return to God that gave it*) thus, *God only knows what becometh of a man's spirit when he expireth*? He will not acknowledge that there is a spirit, or any substance distinct from the body. I wonder what they think doth keep their bodies from stinking.

T. H. He comes here to that which is a great paradox in School-divinity. The grounds of my opinion are the canonical Scripture, and the texts which I cited I must again recite, to which I shall also add some others. My doctrine is this: first, *that the elect in Christ, from the day of judgment forward, by virtue of Christ's passion and victory over death, shall enjoy eternal life, that is, they shall be immortal*. Secondly, *that there is no living soul separated in place from the body, more than there is a living body separated from the soul*. Thirdly, *that the reprobate shall be revived to judgment, and shall die a second death in torments, which death shall be everlasting*. Now let us consider what is said to these points in the Scripture, and what is the harmony therein of the Old and New Testament.

And first, because the word *immortal soul*, is not found in the Scriptures, the question is to be decided by evident consequences from the Scripture. The Scripture saith of God expressly (1 Tim. vi. 16) that *He only hath immortality, and dwelleth in inaccessible light*. Hence it followeth that the soul of man is not of its own nature immortal, but by grace, that is to say, by the gift of God. And then the question will be, whether this grace or gift of God were bestowed on the soul in the creation and conception of the man, or afterwards by his redemption. Another question will be, in what sense immortality of torments can be called a gift, when all gifts suppose the thing given to be grateful to the receiver. To the first of these, Christ himself saith (Luke xiv. 13, 14): *When thou makest a feast, call the poor, the maimed, the lame, the blind: and thou shalt be blessed, for they cannot recompense thee: for thou shalt be recompensed at the resurrection of them that be just*. It follows hence that the reward of the elect is not before the resurrection. What reward then enjoys a separated soul in heaven, or any where else, till that day come, or what has he to do there till the body rise again? Again, St. Paul says (Rom. ii. 6-8): *God will render to every man according to his works. To them, who by patient continuance in well*

doing seek for honour, glory, and immortality, eternal life. But unto them that be contentious, and do not obey the truth, but obey unrighteousness, indignation and wrath. Here it is plain that God gives eternal life only to well doers, and to them that seek, not to them that have already, immortality. Again (2 Tim. i. 10): *Christ hath abolished death, and brought life and immortality to light, through the Gospel.* Therefore before the Gospel of Christ, nothing was immortal but God. And St. Paul, speaking of the day of judgment (1 Cor. xv. 54), saith, that *this mortal shall put on immortality, and that then death is swallowed up in victory.* There was no immortality of any thing mortal till death was overcome, and that was at the resurrection. And John, viii. 51: *Verily, verily, if a man keep my sayings he shall never see death;* that is to say, he shall be immortal. But it is nowhere said, that he which keeps not Christ's sayings shall never see death, nor be immortal: and yet they that say that the wicked, body and soul, shall be tormented everlastingly, do therein say they are immortal. Matth. x. 28: *Fear not them that can kill the body, but are not able to kill the soul; but fear him that is able to destroy both soul and body in hell.* Man cannot kill a soul; for the man killed shall revive again. But God can destroy the soul and body in hell, as that it shall never return to life. In the Old Testament (Gen. vii. 4) we read: *I will destroy every living substance that I have made, from off the face of the earth;* therefore, if the souls of them that perished in the Flood were substances, they were also destroyed in the Flood, and were not immortal. Matth. xxv. 41: *Depart from me, ye cursed, into everlasting fire, prepared for the devil and his angels.* These words are to be spoken in the day of judgment, which judgment is to be in the clouds. And there shall stand the men that are reprobated alive, where souls, according to his Lordship's doctrine, were sent long before to hell. Therefore at that present day of judgment they had one soul by which they were there alive, and another soul in hell. How his Lordship could have maintained this, I understand not. But by my doctrine, that the soul is not a separated substance, but that the man at his resurrection shall be revived by God, and raised to judgment, and afterwards body and soul destroyed in hell-fire, which is the second death, there is no such consequence or difficulty to be inferred. Besides, it avoids the unnecessary disputes about where the soul of Lazarus was for four days he lay dead. And the order of the

divine process is made good, of not inflicting torments before the condemnation pronounced.

Now as to the harmony of the two Testaments, it is said in the Old (Gen. ii. 17): *In the day that thou eatest of the tree of knowledge, dying thou shalt die: moriendo morieris*: that is, when thou art dead thou shalt not revive; for so hath Athanasius expounded it. Therefore Adam and Eve were not immortal by their creation. Then (Gen. iii. 22): *Behold the man is become as one of us: now lest he put forth his hand and take also of the tree of life, and eat, and live for ever, &c.* Here they had had an immortality by the gift of God if they had not sinned. It was therefore sin that lost them eternal life. He therefore that redeemed them from sin was the author of their immortality, which consequently began in the day of judgment, when Adam and Eve were again made alive by admission to the new tree of life, which was Christ.

Now let us compare this with the New Testament; where we find these words (1 Cor. xv. 21): *since by man came death, by man came also the resurrection of the dead*. Therefore all the immortality of the soul, that shall be after the resurrection, is by Christ, and not by the nature of the soul. Verse 22: *As by Adam all die, even so in Christ shall all be made alive*. Therefore since we died by Adam's sin, so we shall live by Christ's redemption of us, that is, after the resurrection. Again (verse 23): *But every man in his own order; Christ the first-fruits, afterwards they that are Christ's, at his coming*. Therefore none shall be made alive till the coming of Christ. Lastly, as when God had said, *that day that thou eatest of the tree of knowledge of good and evil, thou shalt die*, though he condemned him then, yet he suffered him to live a long time after; so when Christ had said to the thief on the cross, *this day thou shalt be with me in Paradise*, yet he suffered him to lie dead till the general resurrection, for no man rose again from the dead before our Saviour's coming, and conquering death.

If God bestowed immortality on every man then when he made him, and he made many to whom he never purposed to give his saving grace, what did his Lordship think that God gave any man immortality with purpose only to make him capable of immortal torments? It is a hard saying, and I think cannot piously be believed. I am sure it can never be proved by the canonical Scripture.

But though I have made it clear that it cannot be drawn by lawful consequence from Scripture, that man was created with a soul immortal, and that the elect only, by the grace of God in Christ, shall both bodies and souls from the resurrection forward be immortal; yet there may be a consequence well drawn from some words in the rites of burial, that prove the contrary, as these: *Forasmuch as it hath pleased Almighty God of his great mercy, to take unto himself the soul of our dear brother here departed, &c.* And these: *Almighty God, with whom do live the spirits of them that depart hence in the Lord:* which are words authorised by the church. I wonder his Lordship, that had so often pronounced them, took no notice of them here. But it often happens that men think of those things least, which they have most perfectly learnt by rote. I am sorry I could not, without deserting the sense of Scripture and mine own conscience, say the same. But I see no just cause yet, why the church should be offended at it. For the church of England pretendeth not, as doth the church of Rome, to be above the Scripture; nor forbiddeth any man to read the Scripture; nor was I forbidden, when I wrote my *Leviathan*, to publish anything which the Scriptures suggested. For when I wrote it, I may safely say there was no lawful church in England, that could have maintained me in, or prohibited me from writing anything. There was no bishop; and though there was preaching, such as it was, yet no common prayer. For extemporary prayer, though made in the pulpit, is not common prayer. There was then no church in England, that any man living was bound to obey. What I write here at this present time I am forced to in my defence, not against the church, but against the accusations and arguments of my adversaries. For the church, though it excommunicates for scandalous life, and for teaching false doctrines, yet it professeth to impose nothing to be held as faith, but what may be warranted by Scripture: and this the church itself saith in the twentieth of the Thirty-nine Articles of religion. And therefore I am permitted to allege Scripture at any time in the defence of my belief.

J. D. But they that in one case are grieved, in another must be relieved. If perchance T. H. hath given his disciples any discontent in his doctrine of *heaven* and the *holy angels*, and the *glorified souls of the saints*, he will make them amends in his doctrine of *hell*, and the *devils*, and the *damned spirits*. First of the devils; he fancieth that all those

devils which our Saviour did cast out, were phrenzies; and all *demoniacs*, or persons possessed, *no other than madmen*: and to justify our Saviour's speaking to a disease as to a person, produceth the example of enchanter. But he declareth himself most clearly upon this subject, in his animadversions upon my reply to his defence of fatal destiny. *There are in the Scripture two sorts of things which are in English translated devils. One is that which is called Satan, Diabolus Abaddon, which signifieth in English an enemy, an accuser, and a destroyer of the church of God; in which sense the devils are but wicked men. The other sort of devils are called in the Scripture Dæmonia, which are the feigned Gods of the heathen, and are neither bodies nor spiritual substances, but mere fancies, and fictions of terrified hearts, feigned by the Greeks, and other heathen people, which St. Paul calleth nothings.* So T. H. hath killed the great infernal Devil, and all his black angels, and left no devils to be feared, but devils incarnate, that is, wicked men.

T. H. As for the first words cited (*Leviathan*, vol. iii. p. 68) I refer the reader to the place itself; and for the words concerning Satan, I leave them to the judgment of the learned.

J. D. And for *hell*, he describeth the *kingdom of Satan*, or the *kingdom of darkness*, to be a *confederacy of deceivers*. He telleth us that the places, which set forth the torments of hell in holy Scripture, *do design metaphorically a grief and discontent of mind, from the sight of that eternal felicity in others, which they themselves, through their own incredulity and disobedience, have lost.* As if metaphorical descriptions did not bear sad truths in them, as well as literal; as if final desperation were no more than a little fit of grief or discontent; and a guilty conscience were no more than a transitory passion; as if it were a loss so easily to be borne, to be deprived for evermore of the beatifical vision; and lastly, as if the damned, besides that unspeakable loss, did not likewise suffer actual torments, proportionable in some measure to their own sins, and God's justice.

T. H. That metaphors bear sad truths in them, I deny not. It is a sad thing to lose this present life untimely. Is it not therefore much more a sad thing to lose an eternal happy life? And I believe that he which will venture upon sin, with such danger, will not stick to do the same

notwithstanding the doctrine of eternal torture. Is it not also a sad truth, that the kingdom of darkness should be a confederacy of deceivers?

J. D. Lastly, for the damned spirits, he declareth himself every where, that their sufferings are not eternal. *The fire shall be unquenchable, and the torments everlasting; but it cannot be thence inferred, that he who shall be cast into that fire, or be tormented with those torments, shall endure and resist them, so as to be eternally burnt and tortured, and yet never be destroyed nor die. And though there be many places, that affirm everlasting fire, into which men may be cast successively one after another for ever; yet I find none that affirm that there shall be an everlasting life therein of any individual person.* If he had said, and said only, that the pains of the damned may be lessened, as to the degree of them, or that they endure not for ever, but that after they are purged by long torments from their dross and corruptions, as gold in the fire, both the damned spirits and the devils themselves should be restored to a better condition; he might have found some ancients (who are therefore called *the merciful doctors*) to have joined with him; though still he should have wanted the suffrage of the Catholic church.

T. H. Why does not his Lordship cite some place of Scripture here to prove, that all the reprobates which are dead, live eternally in torment? We read indeed, that everlasting torments were prepared for the Devil and his angels, whose natures also are everlasting; and that the *Beast* and the *false prophet* shall be tormented everlastingly; but not that every reprobate shall be so. They shall indeed be cast into the same fire; but the Scripture says plainly enough, that they shall be both body and soul destroyed there. If I had said that the devils themselves should be restored to a better condition, his Lordship would have been so kind as to have put me into the number of the *merciful doctors*. Truly, if I had had any warrant for the possibility of their being less enemies to the church of God than they have been, I would have been as merciful to them as any doctor of them all. As it is, I am more merciful than the Bishop.

J. D. But his shooting is not at rovers, but altogether at random, without either precedent or partner. All that *eternal fire*, all those torments which he acknowledgeth, is but this, that *after the resurrection, the reprobate shall be in the estate that Adam and his*

posterity were in, after the sin committed, saving that God promised a redeemer to Adam and not to them: adding, that they shall live as they did formerly, marry and give in marriage; and consequently engender children perpetually after the resurrection, as they did before: which he calleth an immortality of the kind, but not of the persons of men. It is to be presumed, that in those their second lives, knowing certainly from T. H. that there is no hope of redemption for them from corporal death upon their well-doing, nor fear of any torments after death for their ill-doing, they will pass their times here as pleasantly as they can. This is all the damnation which T. H. fancieth.

T. H. This he has urged once before, and I answered to it, that the whole paragraph was to prove, that for any text of Scripture to the contrary, men might, after the resurrection, live as Adam did on earth; and that, notwithstanding the text of St. Luke, (chap. xx. 34-36), *Marry and propagate*. But that they shall do so, is no assertion of mine. His Lordship knew I held, that after the resurrection there shall be at all no wicked men; but the elect (all that are, have been, and hereafter shall be) shall live on earth. But St. Peter (2 Epist. iii. 13) says, there shall then be *a new heaven and a new earth*.

J. D. In sum I leave it to the free judgment of the understanding reader, by these few instances which follow, to judge what the Hobbian principles are in point of religion. *Ex ungue leonem*.

First, that no man needs to put himself to any hazard for his faith, but may safely comply with the times. *And for their faith it is internal and invisible. They have the licence that Naaman had, and need not put themselves into danger for it.*

Secondly, he alloweth subjects, being commanded by their sovereign, to deny Christ. *Profession with the tongue is but an external thing, and no more than any other gesture, whereby we signify our obedience: and wherein a Christian, holding firmly in his heart the faith of Christ, hath the same liberty which the prophet Elisha allowed to Naaman, &c. who by bowing before the idol Rimmon, denied the true God as much in effect, as if he had done it with his lips.* Alas, why did St. Peter weep so bitterly for denying his master, out of fear of his life or members? It seems he was not acquainted with these Hobbian principles. And in the same place he layeth down this general conclusion: *This we may say, that whatsoever a subject is compelled to,*

in obedience to his sovereign, and doth it not in order to his own mind, but in order to the laws of his country, that action is not his, but his sovereign's; nor is it he, that in this case denieth Christ before men, but his governor and the law of his country. His instance, in a Mahometan commanded by a Christian prince to be present at divine service, is a weak mistake, springing from his gross ignorance in case-divinity, not knowing to distinguish between an erroneous conscience, as the Mahometan's is, and a conscience rightly informed.

T. H. In these his two first instances, I confess his Lordship does not much belie me. But neither does he confute me. Also I confess my ignorance in his case-divinity, which is grounded upon the doctrine of the Schoolmen; who to decide cases of conscience, take in, not only the Scriptures, but also the decrees of the popes of Rome, for the advancing of the dominion of the Roman church over consciences; whereas the true decision of cases of consciences ought to be grounded only on Scripture, or natural equity. I never allowed the denying of Christ with the tongue in all men, but expressly say the contrary (*Leviathan*, vol. iii. p. 656) in these words: *For an unlearned man that is in the power of an idolatrous king or state, if commanded on pain of death to worship before an idol, he detesteth the idol in his heart, he doth well; though if he had the fortitude to suffer death rather than worship it, he should do better. But if a pastor, who as Christ's messenger has undertaken to teach Christ's doctrine to all nations, should do the same, it were not only a sinful scandal in respect of other Christian men's consciences, but a perfidious forsaking of his charge.* Therefore St. Peter, in denying Christ, sinned, as being an apostle. And it is sin in every man that should now take upon him to preach against the power of the Pope, to leave his commission unexecuted for fear of the fire; but in a mere traveller, not so. The three children and Daniel were worthy champions of the true religion. But God requireth not of every man to be a champion. As for his Lordship's words of *complying with the times*, they are not mine, but his own spiteful paraphrase.

J. D. Thirdly, if this be not enough, he giveth licence to a Christian to commit idolatry, or at least to do an idolatrous act, for fear of death or corporal danger. *To pray unto a king voluntarily for fair weather, or for anything which God only can do for us, is Divine worship, and idolatry. On the other side, if a king compel a man to it by the terror of death, or*

other great corporal punishment, it is not idolatry. His reason is, because it is not a sign, that he doth inwardly honour him as a God, but that he is desirous to save himself from death, or from a miserable life. It seemeth T. H. thinketh there is no Divine worship but internal: and that it is lawful for a man to value his own life or his limbs more than his God. How much is he wiser than the three children, or Daniel himself, who were thrown, the first into a fiery furnace, the last into the lions' den, because they refused to comply with the idolatrous decree of their sovereign prince?

T. H. Here also my words are truly cited. But his Lordship understood not what the word *worship* signifies; and yet he knew what I meant by it. To think highly of God, as I had defined it, is to honour him. But *to think* is internal. To worship, is to signify that honour, which we inwardly give, by signs *external*. This understood, as by his Lordship it was, all he says to it, is but a cavil.

J. D. A fourth aphorism may be this, *that, which is said in the Scripture, it is better to obey God than man, hath place in the kingdom of God by pact, and not by nature.* Why? Nature itself doth teach us it is better to obey God than men. Neither can he say that he intended this only of obedience in the use of indifferent actions and gestures, in the service of God, commanded by the commonwealth: for that is to obey both God and man. But if Divine law and human law clash one with another, without doubt it is evermore better to obey God than man.

T. H. Here again appears his unskilfulness in reasoning. Who denies, but it is always, and in all cases, better to obey God than man? But there is no law, neither Divine nor human, that ought to be taken for a law, till we know what it is; and if a Divine law, till we know that God hath commanded it to be kept. We agree that the Scriptures are the word of God. But they are a law by pact, that is, to us who have been baptized into the covenant. To all others it is an invitation only to their own benefit. It is true that even nature suggesteth to us that the law of God is to be obeyed rather than the law of man. But nature does not suggest to us that the Scripture is the law of God, much less how every text of it ought to be interpreted. But who then shall suggest this? Dr. Bramhall? I deny it. Who then? The stream of divines? Why so? Am I, that have the Scripture itself before my eyes, obliged to venture my eternal life upon their interpretation, how learned soever they pretend to

be, when no counter-security, that they can give me, will save me harmless? If not the stream of divines, who then? The lawful assembly of pastors, or of bishops? But there can be no lawful assembly in England without the authority of the King. The Scripture, therefore, what it is, and how to be interpreted, is made known unto us here, by no other way than the authority of our sovereign lord both in temporals and spirituals, the King's Majesty. And where he has set forth no interpretation, there I am allowed to follow my own, as well as any other man, bishop or not bishop. For my own part, all that know me, know also it is my opinion, that the best government in religion is by episcopacy, but in the King's right, not in their own. But my Lord of Derry, not contented with this, would have the utmost resolution of our faith to be into the doctrine of the Schools. I do not think that all the bishops be of his mind. If they were, I would wish them to stand in fear of that dreadful sentence, *all covet, all lose*. I must not let pass these words of his Lordship, *if Divine law and human law clash one with another, without doubt it is better evermore to obey God than man*. Where the king is a Christian, believes the Scripture, and hath the legislative power both in church and state, and maketh no laws concerning Christian faith, or Divine worship, but by the counsel of his bishops whom he trusteth in that behalf; if the bishops counsel him aright, what clashing can there be between the Divine and human laws? For if the civil law be against God's law, and the bishops make it clearly appear to the king that it clasheth with Divine law, no doubt he will mend it by himself, or by the advice of his parliament; for else he is no professor of Christ's doctrine, and so the clashing is at an end. But if they think that every opinion they hold, though obscure and unnecessary to salvation, ought presently to be law, then there will be clashings innumerable, not only of laws, but also of swords, as we have found it too true by late experience. But his Lordship is still at this, that there ought to be, for the Divine laws, that is to say for the interpretation of Scripture, a legislative power in the church, distinct from that of the King, which under him they enjoy already. This I deny. Then for clashing between the civil laws of infidels with the law of God, the apostles teach that those their civil laws are to be obeyed, but so as to keep their faith in Christ entirely in their hearts; which is an obedience easily performed. But I do not believe that Augustus Cæsar

or Nero was bound to make the holy Scripture law; and yet unless they did so, they could not attain to eternal life.

J. D. His fifth conclusion may be, that the sharpest and most successful sword, in any war whatsoever, doth give sovereign power and authority to him that hath it, to approve or reject all sorts of theological doctrines, concerning the kingdom of God, not according to their truth or falsehood, but according to that influence which they have upon political affairs. Hear him: *but because this doctrine will appear to most men a novelty, I do but propound it, maintaining nothing in this or any other paradox of religion, but attending the end of that dispute of the sword concerning the authority (not yet amongst my countrymen decided) by which all sorts of doctrine are to be approved or rejected, &c. For, the points of doctrine concerning the kingdom of God, have so great influence upon the kingdom of man, as not to be determined, but by them that under God have the sovereign power.*

“————— Careat successibus opto,
Quisquis ab eventu facta notanda putat.”

Let him evermore want success who thinketh actions are to be judged by their events. This doctrine may be plausible to those who desire to fish in troubled waters. But it is justly hated by those which are in authority, and all those who are lovers of peace and tranquillity.

The last part of this conclusion smelleth rankly of Jeroboam (1 Kings xii. 26-28): *Now shall the kingdom return to the house of David, if this people go up to do sacrifice in the house of the Lord at Jerusalem; whereupon the king took counsel, and made two calves of gold, and said unto them, it is too much for you to go up to Jerusalem, behold thy Gods, O Israel, which brought thee out of the land of Egypt.* But by the just disposition of Almighty God, this policy turned to a sin, and was the utter destruction of Jeroboam and his family. It is not good jesting with edge-tools, nor playing with holy things: where men make their greatest fastness, many times they find most danger.

T. H. His Lordship either had a strange conscience, or understood not English. Being at Paris when there was no bishop nor church in England, and every man writ what he pleased, I resolved (when it should please God to restore the authority ecclesiastical) to submit to that authority, in whatsoever it should determine. This his Lordship construes for a temporizing and too much indifferency in religion; and says further, that the last part of my words do smell of Jeroboam. To the contrary, I say my words were modest, and such as in duty I ought to use. And I profess still, that whatsoever the church of England (the church, I say, not every doctor) shall forbid me to say in matter of faith, I shall abstain from saying it, excepting this point, *that Jesus Christ, the Son of God, died for my sins.* As for other doctrines, I think it unlawful, if the church define them, for any member of the church to contradict them.

J. D. His sixth paradox is a rapper: *The civil laws are the rules of good and evil, just and unjust, honest and dishonest; and therefore what the lawgiver commands, that is to be accounted good, what he forbids, bad.* And a little after: *Before empires were, just and unjust were not, as whose nature is relative to a command, every action in its*

own nature is indifferent. That is, just or unjust proceedeth from the right of him that commandeth. Therefore lawful kings make those things which they command just, by commanding them, and those things which they forbid, unjust by forbidding them. To this add his definition of a sin, *that which one doth, or omitteth, saith, or willeth, contrary to the reason of the commonwealth, that is, the (civil) laws*. Where by the laws he doth not understand the written laws, elected and approved by the whole commonwealth, but the verbal commands or mandates of him that hath the sovereign power, as we find in many places of his writings. *The civil laws are nothing else but the commands of him, that is endowed with sovereign power in the commonwealth, concerning the future actions of his subjects. And the civil laws are fastened to the lips of that man who hath the sovereign power.*

Where are we? In Europe? or in Asia, where they ascribed a divinity to their kings, and, to use his own phrase, made *them mortal gods; O king, live for ever*? Flatterers are the common moths of great palaces, where Alexander's friends are more numerous than the king's friends. But such gross, palpable, pernicious flattery as this is, I did never meet with, so derogatory both to piety and policy. What deserveth he who should do his uttermost endeavour to poison a common fountain, whereof all the commonwealth must drink? He doth the same who poisoneth the mind of a sovereign prince.

Are the civil laws the rules of good and bad, just and unjust, honest and dishonest? And what, I pray you, are the rules of the civil law itself? Even the law of God and Nature. If the civil laws swerve from these more authentic laws, they are Lesbian rules. *What the lawgiver commands is to be accounted good, what he forbids, bad.* This was just the garb of the Athenian sophisters, as they are described by Plato. Whatsoever pleased the great beast, the multitude, they call holy, and just, and good. And whatsoever the great beast disliked, they called evil, unjust, profane. But he is not yet arrived at the height of his flattery. *Lawful kings make those things, which they command, just by commanding them.* At other times, when he is in his right wits, he talketh of sufferings, and *expecting their reward in heaven. And going to Christ by martyrdom. And if he had the fortitude to suffer death he should do better.* But I fear all this was but said in jest. How should they expect their reward in heaven, if his doctrine be true, *that there is*

no reward in heaven? Or how should they be martyrs, if his doctrine be true, that *none can be martyrs, but those who conversed with Christ upon earth?* He addeth, *before empires were, just and unjust were not.* Nothing could be written more false in his sense, more dishonourable to God, more inglorious to the human nature; than that God should create man, and leave him presently without any rules, to his own ordering of himself, as the ostrich leaveth her eggs in the sand. But in truth there have been empires in the world ever since Adam. And Adam had a law written in his heart by the finger of God, before there was any civil law. Thus they do endeavour to make goodness, and justice, and honesty, and conscience, and God himself, to be empty names, without any reality, which signify nothing, further than they conduce to a man's interest. Otherwise he would not, he could not, say, that *every action as it is invested with its circumstances, is indifferent in its own nature.*

T. H. My sixth paradox he calls a rapper. A rapper, a swapper, and such like terms, are his Lordship's elegancies. But let us see what this rapper is: it is this; the civil laws are the rules of good and evil, just and unjust, honest and dishonest. Truly, I see no other rules they have. The Scriptures themselves were made law to us here, by the authority of the commonwealth, and are therefore part of the law civil. If they were laws in their own nature, then were they laws over all the world, and men were obliged to obey them in America, as soon as they should be shown there, though without a miracle, by a friar. What is unjust, but the transgression of a law? *Law* therefore was before unjust: and the law was made known by sovereign power before it was a law: therefore *sovereign power* was antecedent both to *law* and *injustice*. Who then made unjust but sovereign kings or sovereign assemblies? Where is now the wonder of this rapper, *that lawful kings make those things which they command just, by commanding them, and those things which they forbid unjust, by forbidding them?* Just and unjust were surely made. If the king made them not, who made them else? For certainly the breach of a civil law is a sin against God. Another calumny which he would fix upon me, is, that I make the King's verbal commands to be laws. How so? Because I say, *the civil laws are nothing else but the commands of him that hath the sovereign power, concerning the future actions of his subjects.* What verbal command of a king can arrive at the ears of all his subjects, which it must do ere it

be a law, without the seal of the person of the commonwealth, which is here the Great Seal of England? Who, but his Lordship, ever denied that the command of England was a law to Englishmen? Or that any but the King had authority to affix the Great Seal of England to any writing? And who did ever doubt to call our laws, though made in Parliament, the King's laws? What was ever called a law, which the King did not assent to? Because the King has granted in divers cases not to make a law without the advice and assent of the lords and commons, therefore when there is no parliament in being, shall the Great Seal of England stand for nothing? What was more unjustly maintained during the Long Parliament, besides the resisting and murdering of the King, than this doctrine of his Lordship's? But the Bishop endeavoured here to make the multitude believe I maintain, that the King sinneth not, though he bid hang a man for making his apparel otherwise than he appointed, or his servant for negligent attendance. And yet he knew I distinguished always between the King's natural and politic capacity. What name should I give to this wilful slander? But here his Lordship enters into passion, and exclaims: *Where are we, in Europe or in Asia? Gross, palpable, pernicious flattery, poisoning of a commonwealth, poisoning the King's mind.* But where was his Lordship when he wrote this? One would not think he was in France, nor that this doctrine was written in the year 1658, but rather in the year 1648, in some cabal of the King's enemies. But what did put him into this fit of choler? Partly, this very thing, that he could not answer my reasons; but chiefly, that he had lost upon me so much School-learning in our controversy touching *Liberty and Necessity*: wherein he was to blame himself, for believing that the obscure and barbarous language of School-divinity, could satisfy an ingenuous reader, as well as plain and perspicuous English. Do I flatter the King? Why am I not rich? I confess his Lordship has not flattered him here.

J. D. Something there is which he hath a confused glimmering of, as the blind man sees *men walking like trees*, which he is not able to apprehend and express clearly. We acknowledge, that though the laws or commands of a sovereign prince be erroneous, or unjust, or injurious, such as a subject cannot approve for good in themselves; yet he is bound to acquiesce, and may not oppose or resist, otherwise than by prayers and tears, and at the most by flight. We acknowledge that the

civil laws have power to bind the conscience of a Christian, in themselves, but not from themselves, but from him who hath said, *Let every soul be subject to the higher powers*. Either they bind Christian subjects to do their sovereign's commands, or to suffer for the testimony of a good conscience. We acknowledge that in doubtful cases, *semper præsumitur pro rege et lege*, the sovereign and the law are always presumed to be in the right. But in plain evident cases, which admit no doubt, it is always better to obey God than man. Blunderers, whilst they think to mend one imaginary hole, make two or three real ones. They who derive the authority of the Scriptures or God's law from the civil laws of men, are like those who seek to underprop the heavens from falling, with a bulrush. Nay, they derive not only the authority of the Scripture, but even the law of nature itself, from the civil law. *The laws of nature (which need no promulgation) in the condition of nature are not properly laws, but qualities which dispose men to peace and obedience. When a commonwealth is once settled, then are they actually laws, and not before.* God help us, into what times are we fallen, when the immutable laws of God and nature are made to depend upon the mutable laws of mortal men, just as one should go about to control the sun by the authority of the clock.

T. H. Hitherto he never offered to mend any of the doctrines he inveighs against; but here he does. He says I have a glimmering of something I was not able to apprehend and express clearly. Let us see his Lordship's more clear expression. *We acknowledge, saith he, that though the laws or commands of a sovereign prince be erroneous, or unjust, or injurious, such as a subject cannot approve for good in themselves, yet he is bound to acquiesce, and may not oppose or resist otherwise than by prayers and tears, and at the most by flight.* Hence it follows clearly, that when a sovereign has made a law, though erroneous, then, if his subject oppose it, it is a sin. Therefore I would fain know, when a man has broken that law by doing what it forbade, or by refusing to do what it commanded, whether he have opposed this law or not. If to break the law be to oppose it, he granteth it. Therefore his Lordship has not here expressed himself so clearly, as to make men understand the difference between breaking a law and opposing it. Though there be some difference between breaking of a law, and opposing those that are sent with force to see it executed; yet between

breaking and opposing the law itself, there is no difference. Also, though the subject think the law just, as when a thief is by law condemned to die, yet he may lawfully oppose the execution, not only by prayers, tears, and flight, but also (as I think) any way he can. For though his fault were never so great, yet his endeavour to save his own life is not a fault. For the law expects it, and for that cause appointeth felons to be carried bound and encompassed with armed men to execution. Nothing is opposite to law, but sin: nothing opposite to the sheriff, but force. So that his Lordship's sight was not sharp enough to see the difference between the law and the officer. Again, *We acknowledge, says he, that the laws have power to bind the conscience of a Christian in themselves, but not from themselves.* Neither do the Scriptures bind the conscience because they are Scriptures, but because they were from God. So also the book of English Statutes bindeth our consciences in itself, but not from itself, but from the authority of the king, who only in the right of God has the legislative powers. Again he saith, *We acknowledge that in doubtful cases, the sovereign and the law are always presumed to be in the right.* If he presume they are in the right, how dare he presume that the cases they determine are doubtful? *But, saith he, in evident cases which admit no doubt, it is always better to obey God than man.* Yes, and in doubtful cases also, say I. But not always better to obey the inferior pastors than the supreme pastor, which is the king. But what are those cases that admit no doubt? I know but very few, and those are such as his Lordship was not much acquainted with.

J. D. But it is not worthy of my labour, nor any part of my intention, to pursue every shadow of a question which he springeth. It shall suffice to gather a posy of flowers (or rather a bundle of weeds) out of his writings, and present them to the reader, who will easily distinguish them from healthful plants by the rankness of their smell. Such are these which follow.

T. H. As for the following posy of flowers, there wants no more to make them sweet, than to wipe off the venom blown upon some of them by his Lordship's breath.

J. D. 1. *To be delighted in the imagination only of being possessed of another man's goods, servants, or wife, without any intention to take*

them from him by force or fraud, is no breach of the law which saith: Thou shalt not covet.

T. H. What man was there ever, whose imagination of anything he thought would please him, was not some delight? Or what sin is there, where there is not so much as an intention to do injustice? But his Lordship would not distinguish between delight and purpose, nor between a wish and a will. This was venom. I believe that his Lordship himself, even before he was married, took some delight in the thought of it, and yet the woman then was not his own. All love is delight, but all love is not sin. Without this love of that which is not yet a man's own, the world had not been peopled.

J. D. 2. *If a man by the terror of present death be compelled to do a fact against the law, he is totally excused, because no law can oblige a man to abandon his own preservation; nature compelleth him to the fact.* The like doctrine he hath elsewhere. *When the actor doth anything against the law of nature by the command of the author, if he be obliged by former covenants to obey him, not he, but the author breaketh the law of nature.*

T. H. The second flower is both sweet and wholesome.

J. D. 3. *It is a doctrine repugnant to civil society, that whatsoever a man does against his conscience, is sin.*

T. H. It is plain, that to do what a man thinks in his own conscience to be sin, is sin; for it is a contempt of the law itself; and from thence ignorant men, out of an erroneous conscience, disobey the law, which is pernicious to all government.

J. D. 4. *The kingdom of God is not shut but to them that sin, that is, to them who have not performed due obedience to the laws of God; nor to them, if they believe the necessary articles of the Christian faith.*

5. *We must know that the true acknowledging of sin is repentance itself.*

6. *An opinion publicly appointed to be taught cannot be heresy; nor the sovereign princes that authorized the same, heretics.*

T. H. The fourth, fifth, and sixth smell well. But to say, that the sovereign prince in England is a heretic, or that an act of parliament is heretical, stinks abominably; as it was thought *primo Elizabethæ*.

J. D. 7. *Temporal and spiritual government are but two words to make men see double, and mistake their lawful sovereign, &c. There is*

no other government in this life, neither of state nor religion, but temporal.

8. It is manifest, that they, who permit a contrary doctrine to that which themselves believe and think necessary (to salvation), do against their consciences, and will, as much as in them lieth, the eternal destruction of their subjects.

T. H. The seventh and eighth are roses and jessamine. But his leaving out the words (*to salvation*) was venom.

J. D. 9. *Subjects sin if they do not worship God according to the laws of the commonwealth.*

T. H. The ninth he hath poisoned, and made it not mine. He quotes my book *De Cive*, cap. xv. 19, where I say, *regnante Deo per solam rationem naturalem*, that is, *before the Scripture was given*, they sinned that refused to worship God, according to the rites and ceremonies of the country; which hath no ill scent, but to undutiful subjects.

J. D. 10. *To believe in Jesus (in Jesum), is the same as to believe that Jesus is Christ.*

T. H. And so it is always in the Scripture.

J. D. 11. *There can be no contradiction between the laws of God, and the laws of a Christian commonwealth.* Yet, we see Christian commonwealths daily contradict one another.

T. H. The eleventh is also good. But his Lordship's instance, *that Christian commonwealths contradict one another*, has nothing to do here. Their laws do indeed contradict one another, but contradict not the law of God. For God commands their subjects to obey them in all things, and his Lordship himself confesseth that their laws, though erroneous, bind the conscience. But Christian commonwealths would seldom contradict one another, if they made no doctrine law, but such as were necessary to salvation.

J. D. 12. *No man giveth but with intention of some good to himself. Of all voluntary acts, the object is to every man his own good.* Moses, St. Paul, and the Decii were not of his mind.

T. H. That which his Lordship adds to the twelfth, namely, that Moses, St. Paul, and the Decii were not of my mind, is false. For the two former did what they did for a good to themselves, which was eternal life; and the Decii for a good fame after death. And his Lordship also, if he had believed there is an eternal happiness to come, or

thought a good fame after death to be anything worth, would have directed all his actions towards them, and have despised the wealth and titles of the present world.

J. D. 13. There is no natural knowledge of man's estate after death, much less of reward which is then to be given to breach of faith, but only a belief grounded upon other men's saying, that they know it supernaturally, or that they know those that knew them that knew others that knew it supernaturally.

T. H. The thirteenth is good and fresh.

J. D. 14. David's killing of Uriah was no injury to Uriah; because the right to do what he pleased, was given him by Uriah himself.

T. H. David himself makes this good, in saying, *to thee only have I sinned.*

J. D. 15. To whom it belongeth to determine controversies which may arise from the divers interpretations of Scripture, he hath an imperial power over all men, which acknowledge the Scripture to be the word of God.

16. What is theft, what is murder, what is adultery, and universally what is an injury, is known by the civil law, that is, by the commands of the sovereign.

T. H. For the fifteenth, he should have disputed it with the head of the church. And as to the sixteenth, I would have asked him by what other law his Lordship would have it determined what is theft, or what is injury, than by the laws made in parliament, or by the laws which distinguish between *meum* and *tuum*? His Lordship's ignorance smells rankly ('tis his own phrase in this and many other places, which I have let pass) of his own interest. The King tells us what is sin, in that he tells us what is law. He hath authorized the clergy to dehorte the people from sin, and to exhort them, by good motives both from Scripture and reason, to obey the laws; and supposeth them (though under forty years old), by the help they have in the university, able, in case the law be not written, to teach the people, old and young, what they ought to follow in doubtful cases of conscience; that is to say, they are authorized to expound the laws of nature; but not so as to make it a doubtful case, whether the King's laws be to be obeyed or not. All they ought to do, is from the King's authority. And therefore this my doctrine is no weed.

J. D. 17. He admitteth incestuous *copulations* of the heathens, according to their heathenish laws, to have been lawful marriages. Though the Scripture teach us (Levit. xviii. 28) expressly, that for those abominations the land of Canaan spued out her inhabitants.

T. H. The seventeenth he hath corrupted with a false interpretation of the text. For in that chapter, from the beginning to verse twenty, are forbidden marriages in certain degrees of kindred. From verse twenty, which begins with *Moreover*, to the twenty-eighth, are forbidden sacrificing of children to Moloch, and profaning of God's name, and buggery with man and beast, with this cause expressed, (*For all these abominations have the men of the land done which were before you, and the land is defiled,*) that the land spue not you out also. As for marriages within the degrees prohibited, they are not referred to the abominations of the heathen. Besides, for some time after Adam, such marriages were necessary.

J. D. 18. I say that no other article of faith besides this, that Jesus is Christ, is necessary to a Christian man for salvation.

19. Because Christ's kingdom is not of this world, therefore neither can his ministers, unless they be kings, require obedience in his name. They have no right of commanding, no power to make laws.

T. H. These two smell comfortably, and of Scripture. The contrary doctrine smells of ambition and encroachment of jurisdiction, or rump of the Roman tyranny.

J. D. 20. I pass by his errors about oaths, about vows, about the resurrection, about the kingdom of Christ, about the power of the keys, binding, loosing, excommunication, &c., his ignorant mistakes of *meritum congrui* and *condigni*, active and passive obedience, and many more, for fear of being tedious to the reader.

T. H. The terms of School divinity, of which number are *meritum congrui*, *meritum condigni*, and *passive obedience*, are so obscure, as no man living can tell what they mean; so that they that use them may admit or deny their meaning, as it shall serve their turns. I said not that this was their meaning, but that I thought it was so. For no man living can tell what a Schoolman means by his words. Therefore I expounded them according to their true signification. Merit *ex condigno*, is when a thing is deserved by pact; as when I say the labourer is worthy of his hire, I mean *meritum ex condigno*. But when a man of his own grace

throweth money among the people, with an intention that what part soever of it any of them could catch he should have, he that catcheth merits it, not by pact, nor by precedent merit, as a labourer, but because it was congruent to the purpose of him that cast it amongst them. In all other meaning these words are but jargon, which his Lordship had learnt by rote. Also *passive obedience* signifies nothing, except it may be called *passive obedience* when a man refraineth himself from doing what the law hath forbidden. For in his Lordship's sense, the thief that is hanged for stealing, hath fulfilled the law; which I think is absurd.

J. D. His whole works are a heap of mis-shapen errors, and absurd paradoxes, vented with the confidence of a juggler, the brags of a mountebank, and the authority of some Pythagoras, or third Cato, lately dropped down from heaven.

Thus we have seen how the Hobbian principles do destroy the existence, the simplicity, the ubiquity, the eternity, and infiniteness of God, the doctrine of the Blessed Trinity, the hypostatical union, the kingly, sacerdotal, and prophetic office of Christ, the being and operation of the Holy Ghost, heaven, hell, angels, devils, the immortality of the soul, the Catholic and all national churches; the holy Scriptures, holy orders, the holy sacraments, the whole frame of religion, and the worship of God; the laws of nature, the reality of goodness, justice, piety, honesty, conscience, and all that is sacred. If his disciples have such an implicit faith, that they can digest all these things, they may feed with *ostriches*.

T. H. He here concludes his first chapter with bitter reproaches, to leave in his reader, as he thought, a sting; supposing perhaps that he will read nothing but the beginning and end of his book, as is the custom of many men. But to make him lose that petty piece of cunning, I must desire of the reader one of these two things. Either that he would read with it the places of my *Leviathan* which he cites, and see not only how he answers my arguments, but also what the arguments are which he produceth against them; or else, that he would forbear to condemn me, so much as in his thought: for otherwise he is unjust. The name of Bishop is of great authority; but these words are not the words of a bishop, but of a passionate Schoolman, too fierce and unseemly in any man whatsoever. Besides, they are untrue. Who that knows me, will say that I have the confidence of a juggler, or that I use to brag of anything,

much less that I play the mountebank? What my works are, he was no fit judge. But now he has provoked me, I will say thus much of them, that neither he, (if he had lived), nor I, if I would, could extinguish the light which is set up in the world by the greatest part of them: and for these doctrines which he impugneth, I have few opposers, but such whose profit, or whose fame in learning is concerned in them. He accuses me first of destroying the existence of God; that is to say, he would make the world believe I were an atheist. But upon what ground? Because I say, that God is a spirit, but *corporeal*. But to say that, is allowed me by St. Paul, that says (1 Cor. xv. 44): *There is a spiritual body, and there is an animal body*. He that holds there is a God, and that God is really somewhat, (for *body* is doubtlessly a *real substance*), is as far from being an atheist, as it is possible to be. But he that says God is an *incorporeal substance*, no man can be sure whether he be an atheist or not. For no man living can tell whether there be any *substance* at all, that is not also *corporeal*. For neither the word *incorporeal*, nor *immaterial*, nor any word equivalent to it, is to be found in Scripture, or in reason. But on the contrary, that *the Godhead dwelleth bodily in Christ*, is found in Colos. ii. 9; and Tertullian maintains that God is either a *corporeal substance* or *nothing*. Nor was he ever condemned for it by the church. For why? Not only Tertullian, but all the learned, call *body*, not only that which one can see, but also whatsoever has magnitude, or that is somewhere; for they had greater reverence for the divine substance, than that they durst think it had no *magnitude*, or was *nowhere*. But they that hold God to be a phantasm, as did the exorcists in the Church of Rome, that is, such a thing as were at that time thought to be the sprights, that were said to walk in churchyards and to be the souls of men buried, do absolutely make God to be nothing at all. But how? Were they atheists? No. For though by ignorance of the consequence they said that which was equivalent to atheism, yet in their hearts they thought God a substance, and would also, if they had known what *substance* and what *corporeal* meant, have said he was a corporeal substance. So that this *atheism by consequence* is a very easy thing to be fallen into, even by the most godly men of the church. He also that says that God is *wholly here*, and *wholly there*, and *wholly every where*, destroys by consequence the unity of God, and the infiniteness of God, and the simplicity of God.

And this the Schoolmen do, and are therefore *atheists by consequence*, and yet they do not all say in their hearts that there is no God. So also his Lordship by exempting the will of man from being subject to the necessity of God's will or decree, denies by *consequence* the Divine prescience, which also will amount to *atheism by consequence*. But out of this, that God is a *spirit corporeal* and *infinitely pure*, there can no unworthy or dishonourable consequence be drawn.

Thus far to his Lordships first chapter, in justification of my *Leviathan* as to matter of religion; and especially to wipe off that unjust slander cast upon me by the Bishop of Derry. As for the second chapter, which concerns my civil doctrines, since my errors there, if there be any, will not tend very much to my disgrace, I will not take the pains to answer it.

Whereas his Lordship has talked in his discourse here and there ignorantly of heresy, and some others have not doubted to say publicly, that there be many heresies in my *Leviathan*; I will add hereunto, for a general answer, an historical relation concerning the word Heresy, from the first use of it amongst the Grecians till this present time.

AN
HISTORICAL NARRATION
CONCERNING
HERESY,

AND
THE PUNISHMENT THEREOF.

“Nam veluti pueri trepidant, atque omnia cæcis
In tenebris metuunt: sic nos in luce timemus
Interdum, nihilo quæ sunt metuenda magis, quam
Quæ pueri in tenebris pavitant, finguntque futura.”
LUCRETIUS, Lib. II. 54-57.

HÆRESEΩS LARVAS, SECTARUM IMMANIA MONSTRA
HOBBIUS INVICTO DISPULIT INGENIO.

CONCERNING HERESY,
AND
THE PUNISHMENT THEREOF.

The word *heresy* is Greek, and signifies a taking of any thing, and particularly the taking of an opinion. After the study of philosophy began in Greece, and the philosophers, disagreeing amongst themselves, had started many questions, not only about things natural, but also moral and civil; because every man took what opinion he pleased, each several opinion was called a *heresy*; which signified no more than a private opinion, without reference to truth or falsehood. The beginners of these heresies were chiefly Pythagoras, Plato, Aristotle, Epicurus, Zeno; men, who as they held many errors, so also found they out many true and useful doctrines, in all kinds of learning: and for that cause were well esteemed of by the greatest personages of their own times; and so also were some few of their followers.

But the rest, ignorant men, and very often needy knaves, having learned by heart the opinions of these admired philosophers, and pretending to take after them, made use thereof to get their living by the teaching of rich men's children that happened to be in love with those great names: though by their impertinent discourse, sordid and ridiculous manners, they were generally despised, of what sect or heresy soever; whether they were Pythagoreans; or Academics, followers of Plato; or Peripatetics, followers of Aristotle; Epicureans; or Stoics, followers of Zeno. For these were the names of heresies, or, as the Latins call them, *sects*, *a sequendo*, so much talked of from after the time of Alexander till this present day, and that have perpetually troubled or deceived the people with whom they lived, and were never more numerous than in the time of the primitive church.

The heresy of Aristotle, by the revolutions of time, has had the good fortune to be predominant over the rest. However, originally the name of *heresy* was no disgrace, nor the word *heretic* at all in use: though the several sects, especially the Epicureans and the Stoics, hated one another; and the Stoics, being the fiercer men, used to revile those that differed from them, with the most despiteful words they could invent.

It cannot be doubted, but that, by the preaching of the apostles and disciples of Christ, in Greece and other parts of the Roman empire full of these philosophers, many thousands of men were converted to the Christian faith, some really, and some feignedly, for factious ends, or for need; for Christians lived then in common, and were charitable. And because most of these philosophers had better skill in disputing and

oratory than the common people, and thereby were better qualified both to defend and propagate the Gospel, there is no doubt, I say, but most of the pastors of the primitive church were for that reason chosen out of the number of these philosophers; who retaining still many doctrines which they had taken up on the authority of their former masters, whom they had in reverence, endeavoured many of them to draw the Scriptures every one to his own heresy. And thus at first entered heresy into the church of Christ. Yet these men were all of them Christians; as they were, when they were first baptized. Nor did they deny the authority of those writings which were left them by the Apostles and Evangelists, though they interpreted them, many times, with a bias to their former philosophy. And this dissention amongst themselves, was a great scandal to the unbelievers, and which not only obstructed the way of the Gospel, but also drew scorn and greater persecution upon the church.

For remedy whereof, the chief pastors of churches did use, at the rising of any new opinion, to assemble themselves for the examining and determining of the same. Wherein, if the author of the opinion were convinced of his error, and subscribed to the sentence of the church assembled, then all was well again: but if he still persisted in it, they laid him aside, and considered him but as an heathen man; which to an unfeigned Christian, was a great ignominy, and of force to make him consider better of his own doctrine; and sometimes brought him to the acknowledgment of the truth. But other punishment they could inflict none; that being a right appropriated to the civil power. So that all the punishment the church could inflict, was only ignominy; and that among the faithful, consisting in this, that his company was by all the godly avoided, and he himself branded with the name of *heretic*, in opposition to the whole church, that condemned his doctrine. So that *catholic* and *heretic* were terms relative; and here it was that *heretic* came to be a name, and a name of disgrace, both together.

The first and most troublesome heresies of the primitive church, were about the Trinity. For, according to the usual curiosity of natural philosophers, they could not abstain from disputing the very first principles of Christianity, into which they were baptized, *in the name of the Father, the Son, and the Holy Ghost*. Some there were that made them allegorical. Others would make one creator of good, and another

of evil; which was in effect to set up two Gods, one contrary to another; supposing that causation of evil could not be attributed to God, without impiety. From which doctrine they are not far distant, that now make the first cause of sinful actions to be every man as to his own sin. Others there were, that would have God to be a body with parts organical, as face, hands, fore-parts, and back-parts. Others, that Christ had no real body, but was a mere phantasm: for phantasms were taken then, and have been ever since, by unlearned and superstitious men, for things real and subsistent. Others denied the divinity of Christ. Others, that Christ, being God and man, was two persons. Others confessed he was one person, and withal that he had but one nature. And a great many other heresies arose from the too much adherence to the philosophy of those times: whereof some were suppressed for a time by St. John's publishing his Gospel, and some by their own unreasonableness vanished, and some lasted till the time of Constantine the Great, and after.

When Constantine the Great, made so by the assistance and valour of the Christian soldiers, had attained to be the only Roman Emperor, he also himself became a Christian, and caused the temples of the heathen gods to be demolished, and authorised Christian religion only to be public. But towards the latter end of his time, there arose a dispute in the city of Alexandria, between Alexander the Bishop, and Arius, a presbyter of the same city; wherein Arius maintained, first, that Christ was inferior to his Father; and afterwards, that he was no God, alleging the words of Christ, *my Father is greater than I*: the bishop, on the contrary, alleging the words of St. John, *and the word was God*; and the words of St. Thomas, *my Lord and my God*. This controversy presently, amongst the inhabitants and soldiers of Alexandria, became a quarrel, and was the cause of much bloodshed in and about the city; and was likely then to spread further, as afterwards it did. This so far concerned the Emperor's civil government, that he thought it necessary to call a general council of all the bishops and other eminent divines throughout the Roman Empire, to meet at the city of Nice. When they were assembled, they presented the Emperor with libels of accusation one against another. When he had received these libels into his hands, he made an oration to the fathers assembled, exhorting them to agree, and to fall in hand with the settlement of the articles of faith, for which

cause he had assembled them; saying, whatsoever they should decree therein, he would cause to be observed. This may perhaps seem a greater indifferency, than would in these days be approved of. But so it is in the history; and the articles of faith necessary to salvation, were not thought then to be so many as afterwards they were defined to be by the Church of Rome.

When Constantine had ended his oration, he caused the aforesaid libels to be cast into the fire, as became a wise king and a charitable Christian. This done, the fathers fell in hand with their business, and following the method of a former creed, now commonly called *the Apostles' Creed*, made a confession of faith, viz.: I BELIEVE IN ONE GOD, THE FATHER ALMIGHTY, MAKER OF HEAVEN AND EARTH, AND OF ALL THINGS VISIBLE AND INVISIBLE: in which is condemned the polytheism of the Gentiles: AND IN ONE LORD JESUS CHRIST, THE ONLY BEGOTTEN SON OF GOD: against the many sons of the many Gods of the heathen: BEGOTTEN OF HIS FATHER BEFORE ALL WORLDS, GOD OF GOD: against the Arians: VERY GOD OF VERY GOD: against the Valentinians, and against the heresy of Apelles and others, who made Christ a mere phantasm: LIGHT OF LIGHT: this was put in for explication, and used before to that purpose by Tertullian: BEGOTTEN, NOT MADE, BEING OF ONE SUBSTANCE WITH THE FATHER: in this again they condemn the doctrine of Arius. For this word, *of one substance*, in Latin *consubstantialis*, but in Greek ὁμοούσιος, that is, *of one essence*, was put as a touchstone to discern an Arian from a Catholic; and much ado there was about it. Constantine himself, at the passing of this creed, took notice of it for a hard word; but yet approved of it, saying, that in a divine mystery it was fit to use *divina et arcana verba*; that is, divine words, and hidden from human understanding: calling that word ὁμοούσιος, divine, not because it was in the divine Scripture, (for it is not there) but because it was to him *arcanum*, that is, not sufficiently understood. *And in this again appeared the indifferency of the Emperor, and that he had for his end, in the calling of the Synod, not so much the truth, as the uniformity of the doctrine, and peace of his people that depended on it.* The cause of the obscurity of this word ὁμοούσιος, proceeded chiefly from the difference between the Greek and Roman dialect, in the philosophy of the Peripatetics. The first principle of religion in all nations, is, *that God is*, that is to say, that God really is something, and not a mere fancy; but that which is really

something, is considerable alone by itself, as being *somewhere*. In which sense a man is a thing real; for I can consider him *to be*, without considering any other thing *to be* besides him. And for the same reason, the earth, the air, the stars, heaven, and their parts, are all of them things real. And because whatsoever is real here, or there, or in any place, has dimensions, that is to say, magnitude; that which hath magnitude, whether it be visible or invisible, finite or infinite, is called by all the learned a *body*. It followeth, that all real things, in that they are *somewhere*, are corporeal. On the contrary, essence, deity, humanity, and such like names, signify nothing that can be considered, without first considering there is an *ens*, a god, a man, &c. So also if there be any real thing that is *white* or *black*, *hot* or *cold*, the same may be considered by itself; but whiteness, blackness, heat, coldness, cannot be considered, unless it be first supposed that there is some real thing to which they are attributed. These real things are called by the Latin philosophers, *entia*, *subjecta*, *substantiæ*; and by the Greek philosophers, τὰ ὄντα ὑποκειμένα, ὑποστάμενα. The other, which are incorporeal, are called by the Greek philosophers, οὐσία συμβεβηχότα, φαντάσματα; but most of the Latin philosophers used to convert οὐσία into *substantia*, and so confound real and corporeal things with incorporeal: which is not well; for essence and substance signify divers things. And this mistake is received, and continues still in these parts, in all disputes, both of philosophy and divinity; for in truth *essentia* signifies no more, than if we should talk ridiculously of the *isness* of the thing that is. BY WHOM ALL THINGS WERE MADE. This is proved out of St. John i. 1, 2, 3, and Heb. i. 3, and that again out of Gen. i. where God is said to create every thing by his sole word, as when he said: *Let there be light, and there was light*. And then, that Christ was that Word, and in the beginning with God, may be gathered out of divers places of Moses, David, and other of the prophets. Nor was it ever questioned amongst Christians, except by the Arians, but that Christ was God eternal, and his incarnation eternally decreed. But the Fathers, all that write expositions on this creed, could not forbear to philosophize upon it, and most of them out of the principles of Aristotle; which are the same the Schoolmen now use; as may partly appear by this, that many of them, amongst their treatises of religion, have affected to publish principles of logic and physics according to the sense of Aristotle; as

Athanasius, and Damascene. And so some later divines of note, still confound the concrete with the abstract, *deus* with *deitas*, *ens* with *essentia*, *sapiens* with *sapientia*, *æternus* with *æternitas*. If it be for exact and rigid truth sake, why do they not say also, that holiness is a holy man, covetousness a covetous man, hypocrisy an hypocrite, and drunkenness a drunkard, and the like, but that it is an error? The Fathers agree that the Wisdom of God is the eternal Son of God, by whom all things were made, and that he was incarnate by the Holy Ghost, if they meant it in the abstract: for if *deitas* abstracted be *deus*, we make two Gods of one. This was well understood by John Damascene, in his treatise *De Fide Orthodoxa*, which is an exposition of the Nicene creed; where he denies absolutely that *deitas* is *deus*, lest seeing God was made man, it should follow, the Deity was made man; which is contrary to the doctrine of all the Nicene Fathers. The attributes therefore of God in the abstract, when they are put for God, are put *metonymically*; which is a common thing in Scripture; for example, Prov. viii. 25, where it is said: *before the mountains were settled, before the hills, was I brought forth*; the wisdom there spoken of, being the wisdom of God, signifies the same with the wise God. This kind of speaking is also ordinary in all languages. This considered, such abstracted words ought not to be used in arguing, and especially in the deducing the articles of our faith; though in the language of God's eternal worship, and in all godly discourses, they cannot be avoided; and the creed itself is less difficult to be assented to in its own words, than in all such expositions of the Fathers.

WHO FOR US MEN AND OUR SALVATION CAME DOWN FROM HEAVEN, AND WAS INCARNATE BY THE HOLY GHOST OF THE VIRGIN MARY, AND WAS MADE MAN. I have not read of any exception to this; for where Athanasius in his creed says of the Son, *He was not made, but begotten*, it is to be understood of the Son as he was God eternal; whereas here it is spoken of the Son as he is man. And of the Son, also as he was man, it may be said he was begotten of the Holy Ghost; for a woman conceiveth not, but of him that begetteth; which is also confirmed, (Matth. i. xx): *That which is begotten in her*, (τὸ γενεθὲν), *is of the Holy Ghost*. AND WAS ALSO CRUCIFIED FOR US UNDER PONTIUS PILATE: HE SUFFERED AND WAS BURIED: AND THE THIRD DAY HE ROSE AGAIN ACCORDING TO THE SCRIPTURES, AND ASCENDED INTO HEAVEN, AND SITTETH ON THE RIGHT HAND OF THE FATHER: AND HE SHALL COME AGAIN WITH GLORY TO JUDGE

BOTH THE QUICK AND THE DEAD. WHOSE KINGDOM SHALL HAVE NO END. Of this part of the creed I have not met with any doubt made by any Christian. Hither the Council of Nice proceeded in their general confession of faith, and no further.

This finished, some of the bishops present at the Council (seventeen or eighteen, whereof Eusebius Bishop of Cæsarea was one) not sufficiently satisfied, refused to subscribe till this doctrine of ὁμοούσιος should be better explained. Thereupon the Council decreed, that whosoever shall say that God hath parts, shall be anathematized; to which the said bishops subscribed. And Eusebius, by order of the Council, wrote a letter, the copies whereof were sent to every absent bishop, that being satisfied with the reason of their subscribing, they also should subscribe. The reason they gave of their subscription was this, *that they had now a form of words prescribed, by which, as a rule, they might guide themselves so, as not to violate the peace of the church.* By this it is manifest, that no man was an heretic, but he that in plain and direct words contradicted that form by the church prescribed, and that no man could be made *an heretic by consequence.* And because the said form was not put into the body of the creed, but directed only to the bishops, there was no reason to punish any lay-person that should speak to the contrary.

But what was the meaning of this doctrine, *that God has no parts?* Was it made heresy to say, that God, who is a real substance, cannot be considered or spoken of as *here* or *there*, or any where, which are parts of places? Or that there is any real thing without length every way, that is to say, which hath no magnitude at all, finite, nor infinite? Or is there any whole substance, whose two halves or three thirds are not the same with that whole? Or did they mean to condemn the argument of Tertullian, by which he confuted Apelles and other heretics of his time, namely, *whatsoever was not corporeal, was nothing but phantasm, and not corporeal*, for heretical? No, certainly, no divines say that. They went to establish the doctrine of *one individual God in Trinity*; to abolish the diversity of species in God, not the distinction of *here* and *there* in substance. When St. Paul asked the Corinthians, *Is Christ divided*, he did not think they thought him impossible to be considered as having hands and feet, but that they might think him, according to the manner of the Gentiles, one of the sons of God, as Arius did; but not

the only-begotten Son of God. And thus also it is expounded in the Creed of Athanasius, who was present in that council, by these words, *not confounding the persons, nor dividing the substances*; that is to say, that God is not divided into three persons, as man is divided into Peter, James, and John; nor are the three persons one and the same person. But Aristotle, and from him all the Greek Fathers, and other learned men, when they distinguish the general latitude of a word, they call it division; as when they divide *animal* into man and beast, they call these εἶδη, *species*; and when they again divide the *species* man into Peter and John, they call these μέρη, *partes individuæ*. And by this confounding the division of the substance with the distinction of words, divers men have been led into the error of attributing to God a name, which is not the name of any substance at all, viz. *incorporeal*.

By these words, *God has no parts*, thus explained, together with the part of the *creed* which was at that time agreed on, many of those heresies which were antecedent to that first general Council, were condemned; as that of Manes, who appeared about thirty years before the reign of Constantine, by the first article, *I believe in one God*; though in other words it seems to me to remain still in the doctrine of the church of Rome, which so ascribeth a liberty of the will to men, as that their will and purpose to commit sin, should not proceed from the cause of all things, God; but originally from themselves or from the Devil. It may seem perhaps to some, that by the same words the Anthropomorphites also were then condemned: and certainly, if by parts were meant not persons individual, but pieces, they were condemned: for face, arms, feet, and the like, are pieces. But this cannot be, for the Anthropomorphites appeared not till the time of Valens the Emperor, which was after the Council of Nice between forty and fifty years; and were not condemned till the second general Council at Constantinople.

Now for the punishment of heretics ordained by Constantine, we read of none; but that ecclesiastical officers, bishops and other preachers, if they refused to subscribe to this faith, or taught the contrary doctrine, were for the first fault deprived of their offices, and for the second banished. And thus did heresy, which at first was the name of private opinion, and no crime, by virtue of a law of the

Emperor, made only for the peace of the church, become a crime in a pastor, and punishable with deprivation first, and next with banishment.

After this part of the creed was thus established, there arose presently many new heresies, partly about the interpretation of it, and partly about the Holy Ghost, of which the Nicene Council had not determined. Concerning the part established, there arose disputes about the nature of Christ, and the word *hypostasis*, *id est*, substance; for of persons there was yet no mention made, the creed being written in Greek, in which language there is no word that answereth to the Latin word *persona*. And the union, as the Fathers called it, of the human and Divine nature in Christ, *hypostatical*, caused Eutyches, and after him Dioscorus, to affirm, there was but one nature in Christ; thinking that whensoever two things are united, they are one: and this was condemned as Arianism in the Councils of Constantinople and Ephesus. Others, because they thought two living and rational substances, such as are God and man, must needs be also two *hypostases*, maintained that Christ had two *hypostases*: but these were two heresies condemned together. Then concerning the Holy Ghost, Nestorius Bishop of Constantinople, and some others, denied the divinity thereof. And whereas about seventy years before the Nicene Council, there had been holden a provincial Council at Carthage, wherein it was decreed, that those Christians which in the persecutions had denied the faith of Christ, should not be received again into the church unless they were again baptized: this also was condemned, though the President in that Council was that most sincere and pious Christian, Cyprian. And at last the creed was made up entire as we have it, in the Chalcedonian Council, by addition of these words: AND I BELIEVE IN THE HOLY GHOST, THE LORD AND GIVER OF LIFE, WHO PROCEEDETH FROM THE FATHER AND THE SON. WHO WITH THE FATHER AND THE SON TOGETHER IS WORSHIPPED AND GLORIFIED. WHO SPAKE BY THE PROPHETS. AND I BELIEVE ONE CATHOLIC AND APOSTOLIC CHURCH. I ACKNOWLEDGE ONE BAPTISM FOR THE REMISSION OF SINS. AND I LOOK FOR THE RESURRECTION OF THE DEAD, AND THE LIFE OF THE WORLD TO COME. In this addition are condemned, first the Nestorians and others, in these words: WHO WITH THE FATHER AND THE SON TOGETHER IS WORSHIPPED AND GLORIFIED: and secondly, the doctrine of the Council of Carthage, in these words: I BELIEVE ONE BAPTISM FOR THE REMISSION OF SINS. For one baptism is not there put as opposite to several sorts or

manners of baptism, but to the iteration of it. St. Cyprian was a better Christian than to allow any baptism that was not in the name of the Father, Son, and Holy Ghost. In the general confession of faith contained in the creed called the Nicene Creed, there is no mention of *hypostasis*, nor of hypostatical union, nor of corporeal, nor of incorporeal, nor of parts; the understanding of which words being not required of the vulgar, but only of the pastors, whose disagreement else might trouble the church; nor were such points necessary to salvation, but set abroad for ostentation of learning, or else to dazzle men, with design to lead them towards some ends of their own. The changes of prevalence in the empire between the Catholics and the Arians, and how the great Athanasius, the most fierce of the Catholics, was banished by Constantine, and afterwards restored, and again banished, I let pass; only it is to be remembered, that Athanasius is supposed to have made his creed then, when (banished) he was in Rome, Liberius being pope; by whom, as is most likely, the word *hypostasis*, as it was in Athanasius's Creed, was disliked. For the Roman church could never be brought to receive it, but instead thereof used their own word *persona*. But the first and last words of that creed the church of Rome refused not: for they make every article, not only those of the body of the creed, but all the definitions of the Nicene Fathers to be such, as a man cannot be saved, unless he believe them all stedfastly; though made only for peace sake, and to unite the minds of the clergy, whose disputes were like to trouble the peace of the empire. After these four first general Councils, the power of the Roman church grew up apace; and, either by the negligence or weakness of the succeeding Emperors, the Pope did what he pleased in religion. *There was no doctrine which tended to the power ecclesiastical, or to the reverence of the clergy, the contradiction whereof was not by one Council or another made heresy, and punished arbitrarily by the Emperors with banishment or death.* And at last kings themselves, and commonwealths, unless they purged their dominions of heretics, were excommunicated, interdicted, and their subjects let loose upon them by the Pope; insomuch as to an ingenuous and serious Christian, there was nothing so dangerous as to enquire concerning his own salvation, of the Holy Scripture; the careless cold Christian was safe, and the skilful hypocrite a saint. But this is a story so well known, as I need not insist upon it any longer, but

proceed to the heretics here in England, and what punishments were ordained for them by acts of parliament. All this while the penal laws against heretics were such, as the several princes and states, in their own dominions, thought fit to enact. The edicts of the emperors made their punishments capital, but for the manner of the execution, left it to the prefects of provinces: and when other kings and states intended, according to the laws of the Roman church, to extirpate heretics, they ordained such punishment as they pleased. The first law that was here made for the punishment of heretics, called Lollards and mentioned in the Statutes, was in the fifth year of the reign of Richard the Second, occasioned by the doctrine of John Wickliff and his followers; which Wickliff, because no law was yet ordained for his punishment in parliament, by the favour of John of Gaunt, the King's son, during the reign of Edward the Third, had escaped. But in the fifth year of the next king, which was Richard the Second, there passed an act of parliament to this effect: that sheriffs and some others should have commissions to apprehend such as were certified by the prelates to be preachers of heresy, their fautors, maintainers, and abettors, and to hold them in strong prison, till they should justify themselves, according to the law of holy church. So that hitherto there was no law in England, by which a heretic could be put to death, or otherways punished, than by imprisoning him till he was reconciled to the church. After this, in the next king's reign, which was Henry the Fourth, son of John of Gaunt, by whom Wickliff had been favoured, *and who in his aspiring to the crown had needed the good will of the bishops*, was made a law, in the second year of his reign, wherein it was enacted, that every ordinary may convene before him, and imprison any person suspected of heresy; and that an obstinate heretic shall be burnt before the people.

In the next king's reign, which was Henry the Fifth, in his second year, was made an act of parliament, wherein it is declared, that the intent of heretics, called Lollards, was to subvert the Christian faith, the law of God, the church, and the realm: and that an heretic convict should forfeit all his fee-simple lands, goods, and chattels, besides the punishment of burning. Again, in the five-and-twentieth year of King Henry the Eighth, it was enacted, that an heretic convict shall abjure his heresies, and refusing so to do, or relapsing, shall be burnt in open place, for example of others. This act was made after the putting down

of the Pope's authority: and by this it appears, that King Henry the Eighth intended no farther alteration in religion, than the recovering of his own right ecclesiastical. But in the first year of his son, King Edward the Sixth, was made an act, by which were repealed not only this act, but also all former acts concerning doctrines, or matters of religion; so that at this time there was no law at all for the punishment of heretics.

Again, in the Parliament of the first and second year of Queen Mary, this act of 1 Edward VI was not repealed, but made useless, by reviving the statute of 25 Henry VIII, and freely putting it in execution; insomuch as it was debated, whether or no they should proceed upon that statute against the Lady Elizabeth, the Queen's sister.

The Lady Elizabeth, not long after, by the death of Queen Mary, coming to the crown, in the fifth year of her reign, by act of Parliament repealed in the first place all the laws ecclesiastical of Queen Mary, with all other former laws concerning the punishments of heretics: nor did she enact any other punishments in their place. In the second place it was enacted, that the Queen by her letters patents should give a commission to the bishops, with certain other persons, in her Majesty's name, to execute the power ecclesiastical; in which commission, the commissioners were forbidden to adjudge anything to be heresy, which was not declared to be heresy by some of the first four general Councils: but there was no mention made of general Councils, but only in that branch of the act which authorised that commission, commonly called *the High Commission*; nor was there in that commission anything concerning how heretics were to be punished; but it was granted to them, that they might declare or not declare, as they pleased, to be heresy or not heresy, any of those doctrines which had been condemned for heresy in the first four general Councils. So that during the time that the said High Commission was in being, there was no statute by which a heretic could be punished otherways, than by the ordinary censures of the church; nor doctrine accounted heresy, unless the commissioners had actually declared and published, that all that which was made heresy by those four Councils, should be heresy also now: but I never heard that any such declaration was made either by proclamation, or by recording it in churches, or by public printing, as in penal laws is necessary; the breaches of it are excused by ignorance. Besides, if

heresy had been made capital, or otherwise civilly punishable, either the four general Councils themselves, or at least the points condemned in them, ought to have been printed or put into parish churches in English, because without it, no man could know how to beware of offending against them.

Some men may perhaps ask, whether nobody were condemned and burnt for heresy, during the time of the High Commission.

I have heard there were: but they which approve such executions, may peradventure know better grounds for them than I do; but those grounds are very well worthy to be enquired after.

Lastly, in the seventeenth year of the reign of King Charles the First, shortly after that the Scots had rebelliously put down the episcopal government in Scotland, the Presbyterians in England endeavoured the same here. The king, though he saw the rebels ready to take the field, would not condescend to that; but yet in hope to appease them, was content to pass an act of parliament for the abolishing the High Commission. But though the High Commission was taken away, yet the parliament having other ends besides the setting up of the Presbyterate, pursued the rebellion, and put down both episcopacy and monarchy, erecting a power by them called *The Commonwealth*, by others *The Rump*, which men obeyed not out of duty, but for fear; nor were there any human laws left in force to restrain any man from preaching or writing any doctrine concerning religion that he pleased. And in this heat of the war, it was impossible to disturb the peace of the state, which then was none.

And in this time it was, that a book called *Leviathan* was written in defence of the King's power, temporal and spiritual, without any word against episcopacy, or against any bishop, or against the public doctrine of the church. It pleased God, about twelve years after the usurpation of this *Rump*, to restore his most gracious Majesty that now is, to his father's throne, and presently, his Majesty restored the bishops, and pardoned the Presbyterians. But then both the one and the other accused in Parliament this book of heresy, when neither the bishops before the war had declared what was heresy; when if they had, it had been made void by the putting down of the High Commission at the importunity of the Presbyterians. So fierce are men, for the most part, in dispute, where either their learning or power is debated, that they never think of

the laws, but as soon as they are offended, they cry out, *crucifige*; forgetting what St. Paul (2 Tim. ii. 24, 25) saith, even in case of obstinate holding of an error: *the servant of the Lord must not strive, but be gentle unto all men, apt to teach, patient, in meekness instructing those that oppose themselves; if God peradventure will give them repentance, to the acknowledging of the truth*: of which counsel, such fierceness as hath appeared in the disputation of divines, down from before the Council of Nice to this present time, is a violation.

FINIS.

CONSIDERATIONS
UPON THE
REPUTATION, LOYALTY, MANNERS,
AND RELIGION,

OF

THOMAS HOBBS,

OF MALMESBURY,

WRITTEN BY HIMSELF,

BY WAY OF

LETTER TO A LEARNED PERSON

(JOHN WALLIS, D.D.)

THE
BOOKSELLER'S ADVERTISEMENT.
TO THE READERS.

I do here present you with a piece of Mr. Hobbes's writing; which is not published from an imperfect MS. as his *Dialogue of the Civil Wars of England* was, by some that had got accidentally a copy of it, absolutely against his consent, as you may see by some passages out of some of his letters to me, which I have here inserted.

In his letter of June, 1679, he saith:

"I would fain have published my *Dialogue of the Civil Wars of England*, long ago; and to that end I presented it to his Majesty: and some days after, when I thought he had read it, I humbly besought him to let me print it; but his Majesty, though he heard me graciously, yet he flatly refused to have it published. Therefore I brought away the book, and gave you leave to take a copy of it; which when you had done, I gave the original to an honourable and learned friend, who about a year after died. The King knows better, and is more concerned in publishing of books than I am: therefore I dare not venture to appear in the business, lest it should offend him. Therefore I pray you not to meddle in the business. Rather than to be thought any way to further or countenance the printing, I would be content to lose twenty times the value of what you can expect to get, &c. I pray do not take it ill; it may be I may live to send you somewhat else as vendible as that: and without offence, I rest Your very humble servant,

THOMAS HOBBS."

Chatsworth, June 19, 1679.

(Part of his letter in July, 1679.)

“If I leave any MSS. worth printing, I will leave word you shall have them, if you please. I am

Your humble servant,

THOMAS HOBBS.”

Chatsworth, July 21, 1679.

(Part of his letter, August, 1679.)

“Sir,—I thank you for taking my advice in not stirring about the printing of my book concerning the civil wars of England, &c. I am writing somewhat for you to print in English, &c. I am, Sir,

Your humble servant,

THOMAS HOBBS.”

Chatsworth, Aug. 18, 1679.

That no spurious brats, for the time to come, be fathered upon the deceased author, I have printed, *verbatim*, these passages out of his letters written to me at several times; their original I have by me. I will be so just to his memory, that I will not print anything but what is perfect, and fitted for the press. And if any book shall be printed with his name to it, that hath not before been printed, you may be confident it is not his, unless printed for

WILLIAM CROOKE.

CONSIDERATIONS
UPON THE REPUTATION, &c.
OF
THOMAS HOBBS.

SIR,
I am one of them that admire your writings; and having read over your *Hobbius Heauton-timorumenos*, I cannot hold from giving you some

account of the causes why I admire it. And first I considered how you handle him for his disloyalty, in these words (page 5): *His great Leviathan, wherein he placed his main strength, is now somewhat out of season; which, upon deserting his royal master in distress, (for he pretends to have been the King's tutor, though yet, from those who have most reason to know it, I can find but little ground for such a pretence), was written in defence of Oliver's title, or whoever, by whatsoever means, can get to be upmost; placing the whole right of government merely in strength, and absolving all his Majesty's subjects from their allegiance, whenever he is not in a present capacity to force obedience.*

That which I observe and admire here, first, is, that you left not this passage out, for two reasons; one, because Mr. Hobbes could long for nothing more than such an occasion to tell the world his own and your little stories, during the time of the late rebellion.

When the Parliament sat, that began in April 1640, and was dissolved in May following, and in which many points of the regal power, which were necessary for the peace of the kingdom, and the safety of his Majesty's person, were disputed and denied, Mr. Hobbes wrote a little treatise in English, wherein he did set forth and demonstrate, that the said power and rights were inseparably annexed to the sovereignty; which sovereignty they did not then deny to be in the King; but it seems understood not, or would not understand that inseparability. Of this treatise, though not printed, many gentlemen had copies, which occasioned much talk of the author; and had not his Majesty dissolved the Parliament, it had brought him into danger of his life.

He was the first that had ventured to write in the King's defence; and one, amongst very few, that upon no other ground but knowledge of his duty and principles of equity, without special interest, was in all points perfectly loyal.

The third of November following, there began a new Parliament, consisting for the greatest part of such men as the people had elected only for their averseness to the King's interest. These proceeded so fiercely in the very beginning, against those that had written or preached in the defence of any part of that power, which they also intended to take away, and in gracing those whom the King had disgraced for sedition, that Mr. Hobbes, doubting how they would use him, went over into France, the first of all that fled, and there continued

eleven years, to his damage some thousands of pounds deep. This, Doctor, was your time of harvest: you were in their favour, and that, as you have made it since appear, for no goodness.

Being at Paris, he wrote and published his book *De Cive*, in Latin, to the end that all nations which should hear what you and your Con-Covenanters were doing in England, might detest you, which I believe they do; for I know no book more magnified than this is beyond the seas.

When his Majesty, that now is, came to Paris, Mr. Hobbes had the honour to initiate him in the mathematics; but never was so impudent or ignorant as to call, or to think himself the King's tutor, as you, that understand not what that word, out of the University, signifies, do falsely charge him with; or ever to say, that he was one of his Majesty's domestic servants. While upon this occasion he staid about Paris, and had neither encouragement nor desire to return into England, he wrote and published his *Leviathan*, far from the intention either of disadvantage to his Majesty, or to flatter Oliver, who was not made Protector till three or four years after, on purpose to make way for his return. For there is scarce a page in it that does not upbraid both him, and you, and others such as you, with your abominable hypocrisy and villainy.

Nor did he desert his Majesty, as you falsely accuse him, as his Majesty himself knows. Nor was his Majesty, as you unmannerly term it, *in distress*. He had the title, right, and reverence of a King, and maintained his faithful servants with him. It is true that Mr. Hobbes came home, but it was because he would not trust his safety with the French clergy.

Do you know that ever he sought any benefit either from Oliver, or from any of his party, or was any way familiar with any of his ministers, before or after his return; or curried favour with any of them, as you did by dedicating a book to his vice-chancellor, Owen?

Did you ever hear that he took anything done to him by his Majesty in evil part, or spake of him otherwise than the best of his servants would do; or that he was sullen, silent, or sparing, in praising his Majesty in any company, upon any occasion?

He knew who were his enemies, and upon what ground they misconstrued his writings.

But your indiscretion appears more manifestly in giving him occasion to repeat what you have done, and to *consider* you, as you professedly have considered him. For with what equity can it be denied him to repeat your manifest and horrible crimes, for all you have been pardoned; when you publish falsely pretended faults of his, and comprehended in the same pardon?

If he should say and publish, that you deciphered the letters of the King and his party, and thereby delivered his Majesty's secrets to the enemy, and his best friends to the scaffold, and boasted of it in your book of arithmetic, written in Latin, to all the world, as of a monument of your wit, worthy to be preserved in the University Library: how will you justify yourself, if you be reproached for having been a rebel and a traitor? It may be you, or some for you, will now say, you deciphered those letters to the King's advantage: but then you were unfaithful to your masters of the Parliament: a very honest pretence, and full of gallantry, to excuse *treason* with *treachery*, and to be a double spy. Besides, who will believe it? Who enabled you to do the King that favour? Why herded you with his enemies? Who brought the King into a need of such a fellow's favour, but they that first deserted him, and then made war upon him, and which were your friends and Mr. Hobbes his enemies? Nay more, I know not one enemy Mr. Hobbes then had, but such as were first the King's enemies, and, because the King's, therefore his. Your being of that party, without your deciphering, amounts to no more than a desertion. Of the bishops that then were, and for whose sakes, in part, you raised the war, there was not one that followed the King out of the land, though they loved him, but lived quietly under the protection, first of the Parliament, and then of Oliver, (whose titles and actions were equally unjust) without treachery. Is not this as bad as if they had gone over, and (which was Mr. Hobbes his case) been driven back again? I hope you will not call them all deserters, or, because by their stay here openly they accepted of the Parliament's and of Oliver's protection, defenders either of Oliver's or of the Parliament's title to the sovereign power.

How many were there in that Parliament at first that did indeed and voluntarily desert the King, in consenting to many of their unjust actions? Many of these afterwards, either upon better judgment, or because they pleased not the faction, (for it was a hard matter for such

as were not of Pym's cabal to please the Parliament), or for some other private ends deserted the Parliament, and did some of them more hurt to the King than if they had stayed where they were; for they had been so affrighted by such as you, with a panic fear of tyranny, that seeking to help him by way of composition and sharing, they abated the just and necessary indignation of his armies, by which only his right was to be recovered.

That very entering into the Covenant with the Scottish nation against the King, is by itself a very great crime, and you guilty of it. And so was the imposing of the Engagement, and you guilty of that also, as being done by the then Parliament, whose democratical principles you approved of.

You were also assisting to the Assembly of Divines that made the *Directory*, and which were afterwards put down by Oliver for counterfeiting themselves ambassadors. And this was when the King was living, and at the head of an army, which with your own endeavour might have protected you. What crime it is, the King being head of the Church of England, to make *Directories*, to alter the *Church-government*, and to set up new forms of God's service, upon your own fancies, without the King's authority, the lawyers could have told you; and what punishment you were to expect from it, you might have seen in the statute printed before the *Book of Common Prayer*.

Further he may say, and truly, that you were guilty of all the treasons, murders, and spoil committed by Oliver, or by any upon Oliver's or the Parliament's authority: for, during the late trouble, who made both Oliver and the people mad, but the preachers of your principles? But besides the wickedness, see the folly of it. You thought to make them mad, but just to such a degree as should serve your own turn; that is to say, mad, and yet just as wise as yourselves. Were you not very imprudent to think to govern madness? Paul they knew, but who were you? You were they, that put the army into Oliver's hands, who before, as mad as he was, was too weak, and too obscure to do any great mischief; with which army he executed upon such as you, both here and in Scotland, that which the justice of God required.

Therefore of all the crimes, the great one not excepted, done in that rebellion, you were guilty; you, I say, Doctor, how little force or wit soever you contributed, for your good-will to their cause. The King was

hunted as a partridge in the mountains; and though the hounds have been hanged, yet the hunters were as guilty as they, and deserved no less punishment. And the decipherers, and all that blew the horn, are to be reckoned amongst the hunters. Perhaps you would not have had the prey killed, but rather have kept it tame. And yet who can tell? I have read of few kings deprived of their power by their own subjects, that have lived any long time after it, for reasons that every man is able to conjecture.

All this is so manifest, as it needs no witnesses. In the meantime Mr. Hobbes his behaviour was such, that of them who appeared in that scene, he was the only man I know, except a few that had the same principles with him, that has not something more or less to blush for; as having either assisted that rebellious Parliament, without necessity (when they might have had protection from the King, if they had resorted to him for it in the field), by covenanting, or by action, or with money or plate, or by voting against his Majesty's interest, in himself or his friends; though some of them have since by extraordinary service deserved to be received into favour; but what is that to you? You are none of them; and yet you dare to reproach the guiltless, as if after so ill fruits of your sermons, it were not impudence enough to preach.

I admire further, that having been forgiven these so transcendent crimes, so great a debt to the gallows, you take Mr. Hobbes by the throat for a word in his *Leviathan*, made a fault by malicious or over-hasty construction: for you have thereby, like the unmerciful debtor in the Gospel, in my opinion, forfeited your pardon, and so, without a new one, may be hanged yet.

To that other charge, *that he writ his Leviathan in defence of Oliver's title*, he will say, that you in your own conscience know it is false. What was Oliver, when that book came forth? It was in 1650, and Mr. Hobbes returned before 1651. Oliver was then but General under your masters of the Parliament, nor had yet cheated them of their usurped power. For that was not done till two or three years after, in 1653, which neither he nor you could foresee. What title then of Oliver's could he pretend to justify? But you will say, he placed the right of government there, wheresoever should be the strength; and so by consequence he placed it in Oliver. Is that all? Then primarily his *Leviathan* was intended for your masters of the Parliament, because the

strength was then in them. Why did they not thank him for it, both they and Oliver in their turns? There, Doctor, you deciphered ill. For it was written in the behalf of those many and faithful servants and subjects of his Majesty, that had taken his part in the war, or otherwise done their utmost endeavour to defend his Majesty's right and person against the rebels: whereby, having no other means of protection, nor, for the most part, of subsistence, they were forced to compound with your masters, and to promise obedience for the saving of their lives and fortunes; which in his book he hath affirmed they might lawfully do, and consequently not lawfully bear arms against the victors. They that had done their utmost endeavour to perform their obligation to the King, had done all that they could be obliged unto; and were consequently at liberty to seek the safety of their lives and livelihood wheresoever, and without treachery. But there is nothing in that book to justify the submission of you, or such as you, to the Parliament, after the King's being driven from them, or to Oliver; for you were the King's enemies, and cannot pretend want of that protection which you yourselves refused, denied, fought against, and destroyed. If a man owe you money, and you by robbing him, or other injury, disable him to pay you, the fault is your own; nor needs this exception, *unless the creditor rob him*, be put into the condition of the bond. Protection and obedience are relative. He that says a man may submit to an enemy for want of protection, can never be construed, but that he meant it of the obedient. But let us consider his words, when he puts for a law of nature, (vol. iii. p. 703) *that every man is bound, as much as in him lieth, to protect in war the authority by which he is himself protected in time of peace*; which I think is no ungodly or unreasonable principle. For confirmation of it, he defines in what point of time it is, that a subject becomes obliged to obey an unjust conqueror; and defines it thus: *it is that point wherein having liberty to submit to the conqueror, he consenteth either by express words, or by other sufficient signs, to be his subject*.

I cannot see, Doctor, how a man can be at liberty to submit to his new, that has not first done all he could for his old master: nor if he have done all he could, why that liberty should be refused him. If a man be taken by the Turk, and brought by terror to fight against his former master, I see how he may be killed for it as an enemy, but not as a

criminal; nor can I see how he that hath liberty to submit, can at the same time be bound not to submit.

But you will say, perhaps, that he defines the time of that liberty to the advantage of Oliver, in that he says, *that for an ordinary subject, it is then, when the means of his life are within the guards and garrisons of the enemy; for it is then, that he hath no protection but from the enemy for his contribution.* It was not necessary for him to explain it to men of so great understanding, as you and other his enemies pretend to be, by putting in the exception, *unless they came into those guards and garrisons by their own treason.* Do you think that Oliver's party, for their submission to Oliver, could pretend the want of that protection?

The words therefore by themselves, without that exception, do signify no more than this; *that whosoever had done as much as in him did lie, to protect the King in war, had liberty afterwards to provide themselves of such protection as they could get;* which to those whose means of life were within the guards and garrisons of Oliver, was Oliver's protection.

Do you think, when a battle is lost, and you at the mercy of an enemy, it is unlawful to receive quarter with condition of obedience? Or if you receive it on that condition, do you think it honesty to break promise, and treacherously murder him that gave you your life? If that were good doctrine, he were a foolish enemy that would give quarter to any man.

You see, then, that this submission to Oliver, or to your then masters, is allowed by Mr. Hobbes his doctrine only to the King's faithful party, and not to any that fought against him, howsoever they coloured it, by saying they fought for the King and Parliament; nor to any that writ or preached against his cause, or encouraged his adversaries; nor to any that betrayed his counsels, or that intercepted or deciphered any letters of his, or of his officers, or of any of his party; nor to any that by any way had contributed to the diminution of his Majesty's power, ecclesiastical or civil; nor does it absolve any of them from their allegiance. You that make it so heinous a crime for a man to save himself from violent death, by a forced submission to a usurper, should have considered what crime it was to submit voluntarily to the usurping Parliament.

I can tell you besides, why those words were put into his last chapter, which he calls the review. It happened at that time that there were many honourable persons, that having been faithful and unblemished servants to the King, and soldiers in his army, had their estates then sequestered; of whom some were fled, but the fortunes of them all were at the mercy, not of Oliver, but of the Parliament. Some of these were admitted to composition, some not. They that compounded, though they helped the Parliament less by their composition, than they should have done, if they had stood out, by their confiscation, yet they were ill-spoken of, especially by those that had no estates to lose, nor hope to compound. And it was for this that he added to what he had written before, this caution, that if they would compound, they were to do it *bona fide*, without intention of treachery. Wherein he justified their submission by their former obedience, and present necessity; but condemned treachery. Whereas you that pretend to abhor atheism, condemn that which was done upon necessity, and justify the treachery: and you had reason for it, that cannot otherwise justify yourselves. Those strugglings which happened afterwards, lost his Majesty many a good and able subject, and strengthened Oliver with the confiscation of their estates; which if they had attended the discord of their enemies, might have been saved.

Perhaps you will take for a sign of Mr. Hobbes his ill meaning, that his Majesty was displeased with him. And truly I believe he was displeased for a while, but not very long. They that complained of, and misconstrued his writings, were his Majesty's good subjects, and reputed wise and learned men, and thereby obtained to have their misconstruction believed for some little time: but the very next summer after his coming away, two honourable persons of the Court, that came over into England, assured him, that his Majesty had a good opinion of him; and others since have told me, that his Majesty said openly, that he thought Mr. Hobbes never meant him hurt. Besides, his Majesty hath used him more graciously than is ordinary to so humble a person as he is, and so great a delinquent as you would make him; and testified his esteem of him in his bounty. What argument now can you draw from hence more than this, that his Majesty understood his writings better than his accusers did?

I admire in the next place, upon what ground you accuse him, and with him all those that have approved his *Leviathan*, with atheism. I thought once, that that slander had had some, though not firm, ground, in that you call his a new divinity: but for that point he will allege these words of his *Leviathan* (p. 438): *By which it seemeth to me (with submission nevertheless, both in this and all other questions whereof the determination dependeth on the Scriptures, to the interpretation of the Bible authorized by the commonwealth, whose subject I am), that, &c.* What is there in these words, but modesty and obedience? But you were at this time in actual rebellion. Mr. Hobbes, that holds religion to be a law, did in order thereto condemn the maintenance of any of his opinions against the law; and you that reproach him for them, upon your own account should also have shown by your own learning, wherein the Scripture, which was his sole proof, was miscited or misconstrued by him; (for he submitted to the laws, that is to say, to the King's doctrine, not to yours); and not have insulted for the victory won by the power of the law, to which you were then an enemy.

Another argument of atheism you take from his denying *immaterial* or *incorporeal substances*. Let any man impartially now compare his religion with yours, by this very measure, and judge which of the two savours most of atheism.

It is by all Christians confessed, that God is *incomprehensible*; that is to say, that there is nothing can arise in our fancy from the naming of him, to resemble him either in *shape, colour, stature, or nature*; there is no idea of him; he is like nothing that we can think on. What then ought we to say of him? What attributes are to be given him (not speaking otherwise than we think, nor otherwise than is fit,) by those who mean to honour him? None but such as Mr. Hobbes hath set down, namely, expressions of reverence, such as are in use amongst men for signs of honour, and consequently signify *goodness, greatness, and happiness*; and either absolutely put, as *good, holy, mighty, blessed, just, wise, merciful, &c.*, or superlative, as *most good, most great, most mighty, almighty, most holy, &c.*, or negative of whatsoever is not perfect, as *infinite, eternal*, and the like: and not such as neither reason nor Scripture hath approved for honourable. This is the doctrine that Mr. Hobbes hath written, both in his *Leviathan*, and in his book *De Cive*, and when occasion serves, maintains. What kind of attribute, I pray

you, is, *immaterial*, or *incorporeal substance*? Where do you find it in the Scripture? Whence came it hither, but from Plato and Aristotle, heathens, who mistook those thin inhabitants of the brain they see in sleep, for so many *incorporeal* men; and yet allowed them motion, which is proper only to things *corporeal*? Do you think it an honour to God to be one of these? And would you learn Christianity from Plato and Aristotle? But seeing there is no such word in the Scripture, how will you warrant it from natural reason? Neither Plato nor Aristotle did ever write of, or mention, an *incorporeal spirit*. For they could not conceive how a spirit, which in their language was πνεῦμα, in ours a *wind*, could be *incorporeal*. Do you understand the connexion of *substance* and *incorporeal*? If you do, explain it in English; for the words are Latin. It is something, you will say, that being *without body*, *stands under*——. Stands under what? Will you say, *under accidents*? Almost all the Fathers of the Church will be against you; and then you are an atheist. Is not Mr. Hobbes his way of attributing to God, that only which the Scriptures attribute to him, or what is never any where taken but for honour, much better than this bold undertaking of yours, to consider and decipher God's *nature* to us?

For a third argument of atheism, you put, that he says: *besides the creation of the world, there is no argument to prove a Deity: and, that it cannot be evinced by any argument that the world had a beginning; and, that whether it had or no, is to be decided not by argument, but by the magistrate's authority*. That it may be decided by the Scriptures, he never denied; therefore in that also you slander him. And as for arguments from natural reason, neither you, nor any other, have hitherto brought any, except the creation, that has not made it more doubtful to many men than it was before. That which he hath written concerning such arguments, in his book *De Corpore: opinions*, saith he (vol. I. p. 412), *concerning the nature of infinite and eternal, as the chiefest of the fruits of wisdom, God hath reserved to himself, and made judges of them those men whose ministry he meant to use in the ordering of religion; and therefore I cannot praise those men that brag of demonstration of the beginning of the world from natural reason: and again* (vol. I. p. 414), *wherefore I pass by those questions of infinite and eternal, contenting myself with such doctrine concerning the beginning and magnitude of the world, as I have learned from the Scripture,*

confirmed by miracles, and from the use of my country, and from the reverence I owe to the law. This, Doctor, is not ill said, and yet it is all you ground your slander on, which you make to sneak vilely under a crooked paraphrase.

These opinions, I said, were to be judged by those to whom God has committed the ordering of religion; that is, to the supreme governors of the church, that is, in England, to the King: by his authority, I say, it ought to be decided, not what men shall think, but what they shall say in those questions. And methinks you should not dare to deny it; for it is a manifest relapse into your former crimes.

But why do you style the King by the name of *magistrate*? Do you find *magistrate* to signify any where the person that hath the sovereign power, or not every where the sovereign's officers. And I think you knew that; but you and your fellows (your fellows I call all those that are so besmeared all over with the filth of the same crime, as not to be distinguished) meant to make your Assembly the sovereign, and the King your *magistrate*. I pray God you do not mean so still, if opportunity be presented.

There has hitherto appeared in Mr. Hobbes his doctrine, no sign of atheism; and whatsoever can be inferred from the denying of *incorporeal substances*, makes Tertullian, one of the ancientest of the Fathers, and most of the doctors of the Greek Church, as much atheists as he. For Tertullian, in his treatise *De Carne Christi*, says plainly: *omne quod est, corpus est sui generis. Nihil est incorporale, nisi quod non est*: that is to say, *whatsoever is anything, is a body of its kind. Nothing is incorporeal, but that which has no being*. There are many other places in him to the same purpose: for that doctrine served his turn to confute the heresy of them that held that Christ had no body, but was a *ghost*; also of the soul he speaks, as of an invisible body. And there is an epitome of the doctrine of the Eastern Church, wherein is this, that they thought angels and souls were *corporeal*, and only called *incorporeal*, because their bodies were not like ours. And I have heard that a Patriarch of Constantinople, in a Council held there, did argue for the lawfulness of painting angels, from this, that they were *corporeal*. You see what fellows in atheism you join with Mr. Hobbes.

How unfeigned your own religion is, may be argued strongly, demonstratively, from your behaviour, that I have already recited. Do

you think, you that have committed so abominable sins, not through infirmity, or sudden transport of passion, but premeditatedly, wilfully, for twenty years together, that any rational man can think you believe yourselves, when you preach of heaven and hell, or that you do not believe one another to be cheats and impostors, and laugh at silly people in your sleeves for believing you; or that you applaud not your own wit for it; though for my part I could never conceive that very much wit was requisite for the making of a knave? And in the pulpit most of you have been a scandal to Christianity, by preaching up sedition, and crying down moral virtue. You should have preached against unjust *ambition, covetousness, gluttony, malice, disobedience to government, fraud, and hypocrisy*: but for the most part you preached your own controversies, about who should be uppermost, or other fruitless and unedifying doctrines. When did any of you preach against *hypocrisy*? You dare not in the pulpit, I think, so much as name it, lest you set the church a laughing: and you in particular, when you said in a sermon, that σοφίης was not in Homer. What edification could the people have from that, though it had been true, as it is false? For it is in his *Iliad*, xv. 412. Another I heard make half his sermon of this doctrine, that *God never sent a great deliverance, but in a great danger*: which is indeed true, because the greatness of the danger makes the greatness of the deliverance, but for the same cause ridiculous; and the other half he took to construe the Greek of his text: and yet such sermons are much applauded. But why? First, because they make not the people ashamed of any vice. Secondly, because they like the preacher, for using to find fault with the government or governors. Thirdly, for their vehemence, which they mistake for zeal. Fourthly, for their zeal to their own ends, which they mistake for zeal to God's worship. I have heard besides divers sermons made by fanatics, young men, and whom, by that and their habit, I imagined to be apprentices; and found little difference between their sermons, and the sermons of such as you, either in respect of wisdom, or eloquence, or vehemence, or applause of common people.

Therefore, I wonder how you can pretend, as you do in your petition for a dispensation from the ceremonies of the Church, to be either better preachers than those that conform, or to have tenderer consciences than other men. You that have covered such black designs

with the sacred words of Scripture, why can you not as well find in your hearts to cover a black gown with a white surplice? Or what idolatry do you find in making the sign of the cross, when the law commands it? Though I think you may conform without sin, yet I think you might have been also dispensed with without sin, if you had dispensed in like manner with other ministers that subscribed to the articles of the Church. And if tenderness of conscience be a good plea, you must give Mr. Hobbes also leave to plead tenderness of conscience to his new Divinity, as well as you. I should wonder also, how any of you should dare to speak to a multitude met together, without being limited by his Majesty what they shall say, especially now that we have felt the smart of it, but that it is a relic of the ecclesiastical policy of the Popes, that found it necessary for the disjoining of the people from their too close adherence to their Kings or other civil governors.

But it may be you will say, that the rest of the clergy, bishops, and episcopal men, no friends of yours, and against whose office Mr. Hobbes never writ anything, speak no better of his religion than you do.

It is true, he never wrote against episcopacy; and it is his private opinion, that such an episcopacy as is now in England, is the most commodious that a Christian King can use for the governing of Christ's flock; the misgoverning whereof the King is to answer for to Christ, as the bishops are to answer for their misgovernment to the King, and to God also. Nor ever spake he ill of any of them, as to their persons: therefore I should wonder the more at the uncharitable censure of some of them, but that I see a relic still remaining of the venom of popish ambition, lurking in that seditious *distinction* and *division* between the power *spiritual* and *civil*; which they that are in love with a power to hurt all those that stand in competition with them for learning, as the Roman clergy had to hurt Galileo, do not willingly forsake. All bishops are not in every point like one another. Some, it may be, are content to hold their authority from the King's letters patents; and these have no cause to be angry with Mr. Hobbes. Others will needs have somewhat more, they know not what, of divine right, to govern by virtue of *imposition of hands*, and *consecration*, not acknowledging their power from the King, but immediately from Christ. And these perhaps are they that are displeased with him, which he cannot help, nor has deserved; but will for all that believe the King only, and without

sharers, to be the head of all the Churches within his own dominions; and that he may dispense with ceremonies, or with anything else that is not against the Scriptures, nor against natural equity; and that the consent of the Lords and Commons cannot now give him that power, but declare, for the people, their advice and consent to it. Nor can he be made believe that the safety of a state depends upon the safety of the Church, I mean of the clergy. For neither is a clergy essential to a commonwealth; and those ministers that preached sedition, pretend to be of the clergy, as well as the best. He believes rather that the safety of the Church depends on the safety of the King, and the entireness of the sovereign power; and that the King is no part of the flock of any minister or bishop, no more than the shepherd is of his sheep, but of Christ only; and all the clergy, as well as the people, the King's flock. Nor can that clamour of his adversaries make Mr. Hobbes think himself a worse Christian than the best of them. And how will you disprove it, either by his disobedience, to the laws *civil* or *ecclesiastical*, or by any ugly action? Or how will you prove that the obedience, which springs from scorn of injustice, is less acceptable to God, than that which proceeds from fear of punishment, or hope of benefit. Gravity and heaviness of countenance are not so good marks of assurance of God's favour, as cheerful, charitable, and upright behaviour towards men, which are better signs of religion than the zealous maintaining of controverted doctrines. And therefore I am verily persuaded, it was not his Divinity that displeased you or them, but somewhat else, which you are not willing to pretend. As for your party, that which angered you, I believe, was this passage of his *Leviathan* (vol. iii. p. 160); *Whereas some men have pretended for their disobedience to their sovereign, a new covenant made, not with men, but with God; this also is unjust. For there is no covenant with God, but by mediation of somebody that represented God's person; which none doth but God's lieutenant, who hath the sovereignty under God. But this pretence of covenant with God, is so evident a lie, (this is it that angered you), even in the pretenders' own consciences, that it is not only an act of an unjust, but also of a vile and unmanly disposition.*

Besides, his making the King judge of doctrines to be preached or published, hath offended you both; so has also his attributing to the civil sovereign all power *sacerdotal*. But this perhaps may seem hard,

when the sovereignty is in a Queen. But it is because you are not subtle enough to perceive, that though *man* be *male* and *female*, *authority* is not. To please neither party is easy; but to please both, unless you could better agree amongst yourselves than you do, is impossible. Your differences have troubled the kingdom, as if you were the houses revived of York and Lancaster. A man would wonder how a little Latin and Greek should work so mightily, when the Scriptures are in English, as that the King and Parliament can hardly keep you quiet, especially in time of danger from abroad. If you will needs quarrel, decide it amongst yourselves, and draw not the people into your parties.

You were angry also for his blaming the scholastical philosophers, and denying such fine things as these: *that the species or apparences of bodies come from the thing we look on, into the eye, and so make us see; and into the understanding, to make us understand; and into the memory, to make us remember: that a body may be just the same it was, and yet bigger or lesser: that eternity is a permanent now; and the like:* and for detecting, further than you thought fit, the fraud of the Roman clergy. Your dislike of his divinity, was the least cause of your calling him atheist. But no more of this now.

The next head of your contumelies is to make him contemptible, and to move Mr. Boyle to pity him. This is a way of railing too much beaten to be thought witty. As for the thing itself, I doubt your intelligence is not good, and that you algebricians, and non-conformists, do but feign it, to comfort one another. For your own part, you condemn him not, or else you did very foolishly to entitle the beginning of your book, *Mr. Hobbes considered*; which argues he is considerable enough to you. Besides, it is no argument of contempt, to spend upon him so many angry lines as would have furnished you with a dozen of sermons. If you had in good earnest despised him, you would have let him alone, as he does Dr. Ward, Mr. Baxter, Pike, and others, that have reviled him as you do. As for his reputation beyond the seas, it fades not yet: and because perhaps you have no means to know it, I will cite you a passage of an Epistle, written by a learned Frenchman to an eminent person in France, a passage not impertinent to the point now in question. It is in a volume of Epistles, the fourth in order, and the words (page 167) concerning chemists, are these: *Truly, Sir, as much as I admire them, when I see them lute an alembic handsomely, filter a*

liquor, build an athanor, so much I dislike them when I hear them discourse upon the subject of their operations; and yet they think all they do, is nothing in respect of what they say. I wish they would take less pains, and be at less charges; and whilst they wash their hands after their work, they would leave to those that attend to the polishing of their discourse, I mean, the Galileos, the Descarteses, the Hobbeses, the Bacons, and the Gassendis, to reason upon their work, and themselves to hear what the learned and judicious shall tell them, such as are used to discern the differences of things. Quam scit uterque libens censebo exercent artem. And more to the same purpose.

What is here said of chymists, is applicable to all other mechanics.

Every man that hath spare money, can get furnaces, and buy coals. Every man that hath spare money, can be at the charge of making great moulds, and hiring workmen to grind their glasses; and so may have the best and greatest telescopes. They can get engines made, and apply them to the stars; recipients made, and try conclusions; but they are never the more philosophers for all this. It is laudable, I confess, to bestow money upon curious or useful delights; but that is none of the praises of a philosopher. And yet, because the multitude cannot judge, they will pass with the unskilful, for skilful in all parts of natural philosophy. And I hear now, that Hugenius and Eustachio Divini are to be tried by their glasses, who is the more skilful in *optics* of the two; but for my part, before Mr. Hobbes his book *De Homine* came forth, I never saw any thing written on that subject intelligibly. Do not you tell me now, according to your wonted ingenuity, that I never saw Euclid's, Vitellio's, and many other men's *Optics*; as if I could not distinguish between *geometry* and *optics*.

So also of all other arts; not every one that brings from beyond seas a new gin, or other jaunty device, is therefore a philosopher. For if you reckon that way, not only apothecaries and gardeners, but many other sorts of workmen, will put in for, and get the prize. Then, when I see the gentlemen of Gresham College apply themselves to the doctrine of motion, (as Mr. Hobbes has done, and will be ready to help them in it, if they please, and so long as they use him civilly,) I will look to know some causes of natural events from them, and their register, and not before: for nature does nothing but by motion.

I hear that the reason given by Mr. Hobbes, why the drop of glass so much wondered at, shivers into so many pieces, by breaking only one small part of it, is approved for probable, and registered in their college. But he has no reason to take it for a favour: because hereafter the invention may be taken, by that means, not for his, but theirs.

To the rest of your calumnies the answers will be short, and such as you might easily have foreseen. And first, for his boasting of his learning, it is well summed up by you in these words: *It was a motion made by one, whom I will not name, that some idle person should read over all his books, and collecting together his arrogant and supercilious speeches, applauding himself, and despising all other men, set them forth in one synopsis, with this title, Hobbius de se. What a pretty piece of pageantry this would make, I shall leave to your own thoughts.*

Thus say you: now says Mr. Hobbes, or I for him, let your idle person do it, and set down no more than he has written, as high praises as they be, I will promise you he shall acknowledge them under his hand, and be commended for it, and you scorned. A certain Roman senator having propounded something in the assembly of the people, which they misliking made a noise at, boldly bade them hold their peace, and told them he knew better what was good for the commonwealth than all they. And his words are transmitted to us as an argument of his virtue; so much do truth and vanity alter the complexion of self-praise. Besides, you can have very little skill in morality, that cannot see the justice of commending a man's self, as well as of anything else, in his own defence: and it was want of prudence in you, to constrain him to a thing that would so much displease you. That part of his self-praise which most offends you, is in the end of his *Leviathan* (page 713), in these words: *Therefore I think it may be profitably printed, and more profitably taught in the Universities, in case they also think so, to whom the judgment of the same belongeth.* Let any man consider the truth of it. Where did those ministers learn their seditious doctrine, and to preach it, but there? Where therefore should preachers learn to teach loyalty, but there? And if your principles produced civil war, must not the contrary principles, which are his, produce peace? And consequently his book, as far as it handles civil doctrine, deserves to be taught there. But when can this be

done? When you shall have no longer an army ready to maintain the evil doctrine wherewith you have infected the people. By a ready army, I mean arms, and money, and men enough, though not yet in pay, and put under officers, yet gathered together in one place or city, to be put under officers, armed, and paid on any sudden occasion; such as are the people of a great and populous town. Every great city is as a standing army, which if it be not under the sovereign's command, the people are miserable; if they be, they may be taught their duties in the Universities safely and easily, and be happy. I never read of any Christian king that was a tyrant, though the best of kings have been called so.

Then for the *morosity* and *peevishness* you charge him with, all that know him familiarly, know it is a false accusation. But you mean, it may be, only towards those that argue against his opinion; but neither is that true. When vain and ignorant young scholars, unknown to him before, come to him on purpose to argue with him, and to extort applause for their foolish opinions; and, missing of their end, fall into indiscreet and uncivil expressions, and he then appear not very well contented: it is not his *morosity*, but their *vanity* that should be blamed. But what humour, if not morosity and peevishness, was that of yours, whom he never had injured, or seen, or heard of, to use toward him such insolent, injurious, and clownish words, as you did in your absurd *Elenchus*?

Was it not impatience of seeing any dissent from you in opinion? Mr. Hobbes has been always far from provoking any man, though when he is provoked, you find his pen as sharp as yours.

Again, when you make his age a reproach to him, and show no cause that might impair the faculties of his mind, but only age, I admire how you saw not that you reproached all old men in the world as much as him, and warranted all young men, at a certain time, which they themselves shall define, to call you *fool*. Your dislike of old age, you have also otherwise sufficiently signified, in venturing so fairly as you have done to escape it. But that is no great matter to one that hath so many marks upon him of much greater reproaches. By Mr. Hobbes his calculation, that derives prudence from experience, and experience from age, you are a very young man; but by your own reckoning, you are older already than Methuselah.

Lastly, who told you that he writ against Mr. Boyle, whom in his writing he never mentioned, and that it was, because Mr. Boyle was acquainted with you? I know the contrary. I have heard him wish it had been some person of lower condition, that had been the author of the doctrine which he opposed, and therefore opposed because it was false, and because his own could not otherwise be defended. But thus much I think is true, that he thought never the better of his judgment, for mistaking you for learned. This is all I thought fit to answer for him and his manners. The rest is of his geometry and philosophy, concerning which, I say only this, that there is too much in your book to be confuted; almost every line may be disproved, or ought to be reprehended. In sum, it is all error and railing, that is, stinking wind; such as a jade lets fly, when he is too hard girt upon a full belly. I have done. I have considered you now, but will not again, whatsoever preferment any of your friends shall procure you.

THE ANSWER
OF
MR. HOBBS
TO
SIR WILLIAM DAVENANT'S
PREFACE BEFORE GONDIBERT.

THE ANSWER
TO THE PREFACE TO GONDIBERT.

SIR,

If to commend your poem, I should only say, in general terms, that in the choice of your argument, the disposition of the parts, the maintenance of the characters of your persons, the dignity and vigour of your expression, you have performed all the parts of various experience, ready memory, clear judgment, swift and well-governed fancy: though it were enough for the truth, it were too little for the weight and credit of my testimony. For I lie open to two exceptions, one of an incompetent, the other of a corrupted witness. Incompetent, because I am not a poet; and corrupted with the honour done me by your preface. The former obliges me to say something, by the way, of the nature and differences of poesy.

As philosophers have divided the universe, their subject, into three regions, *celestial*, *aerial*, and *terrestrial*; so the poets, whose work it is, by imitating human life, in delightful and measured lines, to avert men from vice, and incline them to virtuous and honourable actions, have lodged themselves in the three regions of mankind, *court*, *city*, and *country*, correspondent, in some proportion, to those three regions of the world. For there is in princes, and men of conspicuous power, anciently called *heroes*, a lustre and influence upon the rest of men,

resembling that of the heavens; and an insincereness, inconstancy, and troublesome humour in those that dwell in populous cities, like the mobility, blustering, and impurity of the air; and a plainness, and, though dull, yet a nutritive faculty in rural people, that endures a comparison with the earth they labour.

From hence have proceeded three sorts of poesy, *heroic*, *scommatic*, and *pastoral*. Every one of these is distinguished again in the manner of *representation*; which sometimes is *narrative*, wherein the poet himself relateth; and sometimes *dramatic*, as when the persons are every one adorned and brought upon the theatre, to speak and act their own parts. There is therefore neither more nor less than six sorts of poesy. For the heroic poem narrative, such as is yours, is called an *epic* poem; the heroic poem dramatic, is *tragedy*. The scommatic narrative is *satire*; dramatic is *comedy*. The pastoral narrative, is called simply *pastoral*, anciently *bucolic*; the same dramatic, *pastoral comedy*. The figure therefore of an epic poem, and of a tragedy, ought to be the same: for they differ no more but in that they are pronounced by one, or many persons; which I insert to justify the figure of yours, consisting of five books divided into songs, or cantos; as five acts divided into scenes, has ever been the approved figure of a tragedy.

They that take for poesy whatsoever is writ in verse, will think this division imperfect, and call in sonnets, epigrams, eclogues, and the like pieces, which are but essays, and parts of an entire poem; and reckon Empedocles and Lucretius, natural philosophers, for poets; and the moral precepts of Phocylides Theognis, and the quatrains of Pybrach, and the history of Lucan, and others of that kind, amongst poems: bestowing on such writers, for honour, the name of poets, rather than of historians or philosophers. But the subject of a poem is the manners of men, not natural causes; manners presented, not dictated; and manners feigned, as the name of poesy imports, not found in men. They that give entrance to fictions writ in prose, err not so much; but they err; for prose requireth delightfulness, not only of fiction, but of style; in which if prose contend with verse, it is with disadvantage and, as it were, on foot against the strength and wings of Pegasus.

For verse amongst the Greeks was appropriated anciently to the service of their Gods, and was the holy style; the style of the oracles; the style of the laws; and the style of the men that publicly

recommended to their Gods the vows and thanks of the people, which was done in their holy songs called hymns; and the composers of them were called prophets and priests, before the name of poet was known. When afterwards the majesty of that style was observed, the poets chose it as best becoming their high invention. And for the antiquity of verse, it is greater than the antiquity of letters. For it is certain, Cadmus was the first that from Phœnicia, a country that neighboureth Judea, brought the use of letters into Greece. But the service of the Gods, and the laws, which by measured sounds were easily committed to the memory, had been long time in use before the arrival of Cadmus there.

There is, besides the grace of style, another cause why the ancient poets chose to write in measured language; which is this. Their poems were made at first with intention to have them sung, as well epic as dramatic (which custom hath been long time laid aside, but began to be revived in part, of late years, in Italy,) and could not be made commensurable to the voice or instruments, in prose; the ways and motions whereof are so uncertain and undistinguished, like the way and motion of a ship in the sea, as not only to discompose the best composers, but also to disappoint sometimes the most attentive reader, and put him to hunt counter for the sense. It was therefore necessary for poets in those times to write in verse.

The verse which the Greeks and Latins, considering the nature of their own languages, found by experience most grave, and for an epic poem most decent, was their *hexameter*; a verse limited not only in the length of the line, but also in the quantity of the syllables. Instead of which we use the line of ten syllables, recompensing the neglect of their quantity with the diligence of rhyme. And this measure is so proper to an heroic poem, as without some loss of gravity or dignity, it was never changed. A longer is not far from ill prose; and a shorter, is a kind of whisking, you know, like the unlacing, rather than the singing of a muse. In an epigram or a sonnet, a man may vary his measures, and seek glory from a needless difficulty; as he that contrived verses into the forms of an organ, a hatchet, an egg, an altar, and a pair of wings; but in so great and noble a work as is an epic poem, for a man to obstruct his own way with unprofitable difficulties, is great imprudence. So likewise to choose a needless and difficult correspondence of rhyme, is but a difficult toy, and forces a man

sometimes, for the stopping of a chink, to say somewhat he did never think. I cannot therefore but very much approve your *stanza*, wherein the syllables in every verse are ten, and the rhyme alternate.

For the choice of your subject you have sufficiently justified yourself in your preface. But because I have observed in Virgil, that the honour done to Æneas and his companions, has so bright a reflection upon Augustus Cæsar, and other great Romans of that time, as a man may suspect him not constantly possessed with the noble spirit of those his heroes; and I believe you are not acquainted with any great man of the race of Gondibert, I add to your justification the purity of your purpose, in having no other motive of your labour, but to adorn virtue, and procure her lovers; than which there cannot be a worthier design, and more becoming noble poesy.

In that you make so small account of the example of almost all the approved poets, ancient and modern, who thought fit in the beginning, and sometimes also in the progress of their poems, to invoke a Muse, or some other deity, that should dictate to them, or assist them in their writings; they that take not the laws of art, from any reason of their own, but from the fashion of precedent times, will perhaps accuse your singularity. For my part, I neither subscribe to their accusation, nor yet condemn that heathen custom, otherwise than as accessory to their false religion. For their poets were their divines; had the name of prophets; exercised amongst the people a kind of spiritual authority; would be thought to speak by a divine spirit; have their works which they writ in verse (the divine style) pass for the word of God, and not of man, and to be hearkened to with reverence. Do not the divines, excepting the style, do the same, and by us that are of the same religion cannot justly be reprehended for it? Besides, in the use of the spiritual calling of divines, there is danger sometimes to be feared, from want of skill, such as is reported of unskilful conjurers, that mistaking the rites and ceremonious points of their art, call up such spirits, as they cannot at their pleasure allay again; by whom storms are raised, that overthrow buildings, and are the cause of miserable wrecks at sea. Unskilful divines do oftentimes the like; for when they call unseasonably for *zeal*, there appears a spirit of *cruelty*; and by the like error, instead of *truth*, they raise *discord*; instead of *wisdom*, *fraud*; instead of *reformation*, *tumult*; and *controversy*, instead of *religion*. Whereas in the heathen

poets, at least in those whose works have lasted to the time we are in, there are none of those indiscretions to be found, that tended to the subversion, or disturbance of the commonwealths wherein they lived. But why a Christian should think it an ornament to his poem, either to profane the true God, or invoke a false one, I can imagine no cause, but a reasonless imitation of custom; of a foolish custom, by which a man enabled to speak wisely from the principles of nature, and his own meditation, loves rather to be thought to speak by inspiration, like a bagpipe.

Time and education beget experience; experience begets memory; memory begets judgment and fancy; judgment begets the strength and structure, and fancy begets the ornaments of a poem. The ancients therefore fabled not absurdly, in making Memory the mother of the Muses. For memory is the world, though not really, yet so as in a looking-glass, in which the judgment, the severer sister, busieth herself in a grave and rigid examination of all the parts of nature, and in registering by letters their order, causes, uses, differences, and resemblances; whereby the fancy, when any work of art is to be performed, finds her materials at hand and prepared for use, and needs no more than a swift motion over them, that what she wants, and is there to be had, may not lie too long unespied. So that when she seemeth to fly from one Indies to the other, and from heaven to earth, and to penetrate into the hardest matter and obscurest places, into the future, and into herself, and all this in a point of time, the voyage is not very great, herself being all she seeks. And her wonderful celerity, consisteth not so much in motion, as in copious imagery discreetly ordered, and perfectly registered in the memory; which most men under the name of philosophy have a glimpse of, and is pretended to by many, that grossly mistaking her, embrace contention in her place. But so far forth as the fancy of man has traced the ways of true philosophy, so far it hath produced very marvellous effects to the benefit of mankind. All that is beautiful or defensible in building; or marvellous in engines and instruments of motion; whatsoever commodity men receive from the observations of the heavens, from the description of the earth, from the account of time, from walking on the seas; and whatsoever distinguisheth the civility of Europe, from the barbarity of the American savages; is the workmanship of fancy, but guided by the

precepts of true philosophy. But where these precepts fail, as they have hitherto failed in the doctrine of moral virtue, there the architect Fancy must take the philosopher's part upon herself. He, therefore, who undertakes an heroic poem, which is to exhibit a venerable and amiable image of heroic virtue, must not only be the poet, to place and connect, but also the philosopher, to furnish and square his matter; that is, to make both body and soul, colour and shadow of his poem out of his own store; which, how well you have performed I am now considering.

Observing how few the persons be you introduce in the beginning, and how in the course of the actions of these, the number increasing, after several confluences, they run all at last into the two principal streams of your poem, *Gondibert and Oswald*, methinks the fable is not much unlike the theatre. For so, from several and far distant sources, do the lesser brooks of Lombardy, flowing into one another, fall all at last into the two main rivers, the Po and the Adige. It hath the same resemblance also with a man's veins, which proceeding from different parts, after the like concurrence, insert themselves at last into the two principal veins of the body. But when I considered that also the actions of men, which singly are inconsiderable, after many conjunctures, grow at last either into one great protecting power, or into two destroying factions, I could not but approve the structure of your poem, which ought to be no other than such as an imitation of human life requireth.

In the streams themselves I find nothing but settled valour, clean honour, calm counsel, learned diversion, and pure love; save only a torrent or two of ambition, which, though a fault, has somewhat heroic in it, and therefore must have place in an heroic poem. To shew the reader in what place he shall find every excellent picture of virtue you have drawn, is too long. And to show him one, is to prejudice the rest; yet I cannot forbear to point him to the description of love in the person of Bertha, in the seventh canto of the second book. There has nothing been said of that subject, neither by the ancient nor modern poets, comparable to it. Poets are painters; I would fain see another painter draw so true, perfect, and natural a love to the life, and make use of nothing but pure lines, without the help of any the least uncomely shadow, as you have done. But let it be read as a piece by itself: for in the almost equal height of the whole, the eminence of parts is lost.

There are some that are not pleased with fiction, unless it be bold; not only to exceed the *work*, but also the *possibility* of nature; they would have impenetrable armours, enchanted castles, invulnerable bodies, iron men, flying horses, and a thousand other such things, which are easily feigned by them that dare. Against such I defend you, without assenting to those that condemn either Homer or Virgil; by dissenting only from those that think the beauty of a poem consisteth in the exorbitancy of the fiction. For as truth is the bound of historical, so the resemblance of truth is the utmost limit of poetical liberty. In old time amongst the heathen, such strange fictions and metamorphoses were not so remote from the articles of their faith, as they are now from ours, and therefore were not so unpleasant. Beyond the actual works of nature a poet may now go; but beyond the conceived possibility of nature, never. I can allow a geographer to make in the sea, a fish or a ship, which by the scale of his map would be two or three hundred miles long, and think it done for ornament, because it is done without the precincts of his undertaking: but when he paints an elephant so, I presently apprehend it as ignorance, and a plain confession of *terra incognita*.

As the description of great men and great actions is the constant design of a poet; so the descriptions of worthy circumstances are necessary accessions to a poem, and being well performed, are the jewels and most precious ornaments of poesy. Such in Virgil are the funeral games of Anchises, the duel of Æneas and Turnus, &c. And such in yours, are *the Hunting, the Battle, the City Mourning, the Funeral, the House of Astragon, the Library and the Temple*; equal to his, or those of Homer whom he imitated.

There remains now no more to be considered but the expression, in which consisteth the countenance and colour of a beautiful Muse; and is given her by the poet out of his own provision, or is borrowed from others. That which he hath of his own, is nothing but experience and knowledge of nature, and specially human nature; and is the true and natural colour. But that which is taken out of books, the ordinary boxes of counterfeit complexion, shows well or ill, as it hath more or less resemblance with the natural; and are not to be used without examination unadvisedly. For in him that professes the imitation of nature, as all poets do, what greater fault can there be, than to betray an

ignorance of nature in his poem; especially, having a liberty allowed him, if he meet with any thing he cannot master, to leave it out?

That which giveth a poem the true and natural colour, consisteth in two things; which are, *to know well*, that is, to have images of nature in the memory distinct and clear; and *to know much*. A sign of the first is perspicuity, propriety, and decency; which delight all sorts of men, either by instructing the ignorant, or soothing the learned in their knowledge. A sign of the latter is novelty of expression, and pleaseth by excitation of the mind; for novelty causeth admiration, and admiration curiosity, which is a delightful appetite of knowledge.

There be so many words in use at this day in the English tongue, that, though of magnificent sound, yet like the windy blisters of troubled waters, have no sense at all, and so many others that lose their meaning by being ill coupled; that it is a hard matter to avoid them. For having been obtruded upon youth in the schools, by such as make it, I think, their business there, as it is expressed by the best poet

“With terms to charm the weak and pose the wise,”

GONDIBERT, Book ii. Canto 5, verse 44.

they grow up with them, and gaining reputation with the ignorant, are not easily shaken off.

To this palpable darkness, I may also add the ambitious obscurity of expressing more than is perfectly conceived; or perfect conception in fewer words than it requires. Which expressions, though they have had the honour to be called strong lines, are indeed no better than riddles, and not only to the reader, but also after a little time to the writer himself, dark and troublesome.

To the propriety of expression I refer that clearness of memory, by which a poet when he hath once introduced any person whatsoever, speaking in his poem, maintaineth in him to the end the same character he gave him in the beginning. The variation whereof, is a change of pace, that argues the poet tired.

Of the indecencies of an heroic poem, the most remarkable are those that show disproportion either between the persons and their actions, or between the manners of the poet and the poem. Of the first kind, is the uncomeliness of representing in great persons the inhuman vice of

cruelty, or the sordid vices of lust and drunkenness. To such parts, as those the ancient approved poets thought it fit to suborn, not the persons of men, but of monsters and beastly giants, such as Polyphemus, Cacus, and the Centaurs. For it is supposed a Muse, when she is invoked to sing a song of that nature, should maidenly advise the poet to set such persons to sing their own vices upon the stage; for it is not so unseemly in a *tragedy*. Of the same kind it is to represent scurrility, or any action or language that moveth much laughter. The delight of an *epic* poem consisteth not in mirth, but admiration. Mirth and laughter are proper to *comedy* and *satire*. Great persons, that have their minds employed on great designs, have not leisure enough to laugh, and are pleased with the contemplation of their own power and virtues, so as they need not the infirmities and vices of other men to recommend themselves to their own favour by comparison, as all men do when they laugh. Of the second kind, where the disproportion is between the poet and the persons of his poem, one is in the dialect of the inferior sort of people, which is always different from the language of the court. Another is, to derive the illustration of any thing from such metaphors or comparisons as cannot come into men's thoughts, but by mean conversation, and experience of humble or evil arts, which the person of an epic poem cannot be thought acquainted with.

From *knowing much*, proceedeth the admirable variety and novelty of metaphors and similitudes, which are not possible to be lighted on in the compass of a narrow knowledge. And the want whereof compelleth a writer to expressions that are either defaced by time, or sullied with vulgar or long use. For the phrases of poesy, as the airs of music, with often hearing become insipid; the reader having no more sense of their force, than our flesh is sensible of the bones that sustain it. As the sense we have of bodies, consisteth in change of variety of impression, so also does the sense of language in the variety and changeable use of words. I mean not in the affectation of words newly brought home from travel, but in new, and withal significant, translation to our purposes, of those that be already received; and in far-fetched, but withal, apt, instructive, and comely similitudes.

Having thus, I hope, avoided the first exception, against the incompetency of my judgment, I am but little moved with the second, which is of being bribed by the honour you have done me, by

attributing in your preface somewhat to my judgment. For I have used your judgment no less in many things of mine, which coming to light will thereby appear the better. And so you have your bribe again.

Having thus made way for the admission of my testimony, I give it briefly thus. I never yet saw poem, that had so much shape of art, health of morality, and vigour and beauty of expression, as this of yours. And but for the clamour of the multitude, that hide their envy of the present under a reverence of antiquity, I should say further, that it would last as long as either the *Æneid*, or *Iliad*, but for one disadvantage; and the disadvantage is this; the languages of the Greeks and Romans, by their colonies and conquests, have put off flesh and blood, and are become immutable, which none of the modern tongues are like to be. I honour antiquity; but that which is commonly called *old time*, is *young time*. The glory of antiquity is due, not to the dead, but to the aged.

And now, whilst I think of it, give me leave with a short discord to sweeten the harmony of the approaching close. I have nothing to object against your poem; but dissent only from something in your preface, sounding to the prejudice of age. It is commonly said, that old age is a return to childhood. Which methinks you insist on so long, as if you desired it should be believed. That is the note I mean to shake a little. That saying, meant only of the weakness of body, was wrested to the weakness of mind, by froward children, weary of the controlment of their parents, masters, and other admonitors. Secondly, the dotage and childishness they ascribe to age, is never the effect of time, but sometimes of the excesses of youth, and not a returning to, but a continual stay, with childhood. For they that wanting the curiosity of furnishing their memories with the rarities of nature in their youth, pass their time in making provision only for their ease and sensual delight, are children still at what years soever; as they that coming into a populous city, never going out of their inn, are strangers still, how long soever they have been there. Thirdly, there is no reason for any man to think himself wiser to-day than yesterday, which does not equally convince he shall be wiser to-morrow than to-day. Fourthly, you will be forced to change your opinion hereafter when you are old; and in the mean time you discredit all I have said before in your commendation, because I am old already. But no more of this.

I believe, Sir, you have seen a curious kind of perspective, where he that looks through a short hollow pipe upon a picture containing divers figures, sees none of those that are there painted, but some one person made up of their parts, conveyed to the eye by the artificial cutting of a glass. I find in my imagination an effect not unlike it, from your poem. The virtues you distribute there amongst so many noble persons, represent, in the reading, the image but of one man's virtue to my fancy, which is your own; and that so deeply imprinted, as to stay for ever there, and govern all the rest of my thoughts and affections in the way of honouring and serving you to the utmost of my power, that am,

Sir,

Your most humble and obedient servant,

THOMAS HOBBS.

Paris, Jan. 10, 1650.

=====

LETTER TO THE
RIGHT HONOURABLE EDW. HOWARD.^[B]

TO THE RIGHT HON. MR. EDWARD HOWARD.

SIR,

My judgment in poetry hath, you know, been once already censured by very good wits, for commending *Gondibert*; but yet they have not, I think, disabled my testimony. For what authority is there in wit? A jester may have it; a man in drink may have it; be fluent over night, and wise and dry in the morning. What is it? Or who can tell whether it be better to have it or be without it, especially if it be a pointed wit? I will take my liberty to praise what I like, as well as they do to reprehend what they do not like. Your poem, Sir, contains a well and judiciously contrived story, full of admirable and heroic actions, set forth in noble and perspicuous language, such as becomes the dignity of the persons you introduce: which two things of themselves are the height of poetry. I know that variety of story, true or feigned, is the thing wherewith the reader is entertained most delightfully. And this also to the smallness of the volume is not wanting. Yours is but one small piece; whereas the poets that are with us so much admired, have taken larger subjects. But let an English reader, in Homer or Virgil in English, by whomsoever translated, read one piece by itself, no greater than yours; I may make a question whether he will be less pleased with yours than his. I know you do not equal your poem to either of theirs: the bulk of the work does not distinguish the art of the workman. [The Battle of Mice and Frogs may be owned without disparagement by Homer himself. Yet if Homer had written nothing else, he never had had the reputation of so admirable a poet as he was.]^[C] Ajax was a man of very great stature, and Teucer a very little person: yet he was brother to Ajax, both in blood and chivalry. I commend your poem for judgment, not for bulk; and am assured it will be welcome to the world

with its own confidence; though if it come forth armed with verses and epistles, I cannot tell what to think of it. For the great wits will think themselves threatened, and rebel. Unusual fortifications upon the borders, carry with them a suspicion of hostility. And poets will think such letters of commendation a kind of confederacy and league, tending to usurp upon their liberty. [I have told you my judgment, and you may make use of it as you please. But I remember a line or two in your poem, that touched upon divinity, wherein we differed in opinion. But since you say the book is licensed, I shall think no more upon it, but only reserve my liberty of dissenting, which I know you will allow me.]

[D] I rest,

Sir,

Your most humble and obedient servant,

THOMAS HOBBS.

Chatsworth,

October the 24th, 1668.

B. This letter is here printed from the autograph of Mr. Hobbes, now in the possession of Rowland Eyles Egerton Warburton, Esq. of Arley Hall, Cheshire. The same letter, with the variations hereafter noticed, was prefixed to Mr. Howard's poem, "*The British Princes*," published in 1669: it is there addressed "*To the Honourable Edward Howard, Esq. on his intended impression of his poem of the 'British Princes,'*" and is subscribed,

"I need say no more, but rest,

Your Honour's most humble and obedient servant,

THOMAS HOBBS.

Chatsworth, Nov. the 6th, 1668."

C. The passage between brackets is omitted in the letter prefixed to the *British Princes*, and the following is substituted for it: "*Besides 'tis a virtue in a poet to advance the honour of his remotest ancestors, especially when it has not been done before. What, though you out-go the limits of certain history? Do painters, when they paint the face of the earth, leave a blank beyond what they know? Do not they fill up the space with strange rocks, monsters, and other gallantry, to fix their work in the memory of men by the delight of fancy? So will your*

readers from this poem think honourably of their original, which is a kind of piety.”

D. This passage is omitted in the “*British Princes.*”

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Transcriber's Note

Internal references to specific articles in this text are linked for ease of navigation. More general references to entire chapters have not been linked.

In the table of contents, the page number for the final section (“Letter to the Right Honourable Edward Howard”) was incorrectly given as p. 459. The section begins at p. 458 and the correction was made.

At 42.17, the word ‘forwardness’ appears. Several lines earlier, ‘frowardness’ is used. The discrepancy is probably a printer’s error. ‘Froward’ is also used elsewhere: ‘*froward* children, weary of the controlment of their parents’ (p. 457). Since Hobbes is discussing a specific behavior, the former has been retained as less ambiguous.

The chapter summary for Part II, Chapter II of DE CORPORE POLITICO, on p. 138, misnumbered section 2 as ‘1’.

On p. 117, a reference to section 16 of the XIIth chapter of *Human Nature* is incorrect. The 6th section of that chapter is the obviously correct reference.

On p. 201, a reference to section 9 of the VIIth chapter of the same text is also incorrect. The 8th section seems to be the intended reference.

Other errors deemed most likely to be the printer’s have been corrected, and are noted here. The references are to the page and line in the original.

26.21	I take <i>nosce t[ei/e i]psum</i> for a precept	Space added.
176.32	Jesus Christ is come in [t]he flesh	Added.
183.18	is not only not necessa[a/r]y	Replaced.
216.12	a duty of sover[e]igns	Inserted.
248.28	Thus you see the case[]put by St. Paul	Inserted.

270.22	are necess[s]ary.	Removed.
333.1	nor had he[he] received	Removed.

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